

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[962 NE2d 252, 938 NYS2d 831]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent-Appellant,
v AKINLOWO OMOWALE, Appellant-Respondent.

Decided December 13, 2011

SUMMARY

CROSS APPEALS, by permission of an Associate Judge of the Court of Appeals and by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Appellate Division, entered April 28, 2011. The Appellate Division (1) affirmed a judgment of the Supreme Court, New York County (Bonnie G. Wittner, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree, and (2) reversed, on the law, a judgment of the Supreme Court, New York County (Edward J. McLaughlin, J., at hearing; Bonnie G. Wittner, J., at plea and sentence), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the first degree and criminal possession of a weapon in the second degree, granted defendant's motion to suppress physical evidence, and dismissed the indictment.

Defendant was convicted of separate crimes following the discovery of physical evidence seized in connection with two automobile stops that occurred on September 17, 2006 and May 5, 2007. In the 2006 encounter, the police noticed that a passenger in the automobile defendant was driving made eye contact with an officer in a way that created the impression that the passenger recognized him and his colleagues to be police officers and the passenger then turned his shoulder as if placing something in the automobile's center console. The vehicle made an illegal turn and defendant pulled the automobile over after having been directed to do so several times. In the 2007 encounter, which occurred when defendant was on bail on

the indictment stemming from the first encounter, a vehicle was stopped after police officers saw defendant sitting in it while it was double-parked. Two of the same officers who had participated in defendant's prior arrest approached the vehicle; defendant was ordered to exit the vehicle and was immediately handcuffed. Defendant was discovered to be in possession of another person's driver's license. Defendant was arrested and taken to the precinct; a search of his person and the vehicle revealed contraband.

People v Omowale, 83 AD3d 614, affirmed.

People v Omowale, 83 AD3d 614, appeal dismissed.

HEADNOTES

Crimes — Appeal — Matters Reviewable

1. The determination of the Appellate Division, that the police reasonably could have concluded that a weapon was located in defendant's vehicle during a traffic stop and that the situation presented an actual and specific danger to the safety of the officers, was a mixed question of law and fact for which there was support in the record and was therefore beyond further review in the Court of Appeals.

Crimes — Appeal — Matters Appealable

2. In a criminal prosecution, the People's appeal from a portion of an Appellate Division order reversing the court below and granting a motion to suppress seized evidence was dismissed as it could not be said that the reversal was "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]). The Appellate Division rejected the People's assertion that there was probable cause to believe that defendant committed attempted criminal impersonation in the second degree, and further concluded that the facts did not provide probable cause to arrest defendant for criminal possession of stolen property because he was taken into custody before the officers learned that another person's driver's license in defendant's possession had been reported missing.

APPEARANCES OF COUNSEL

Office of the Appellate Defender, New York City (*Rosemary Herbert* and *Richard M. Greenberg* of counsel), for appellant-respondent.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Andrew E. Seewald* of counsel), for respondent-appellant.

OPINION OF THE COURT

MEMORANDUM.

On defendant's appeal pertaining to his September 2006 arrest, the order of the Appellate Division should be affirmed. The People's appeal regarding his May 2007 arrest should be

dismissed on the ground that the reversal by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal” (CPL 450.90 [2] [a]).

[1] The Appellate Division’s determination that the police reasonably could have concluded that a weapon was located in defendant’s vehicle during the September 2006 traffic stop and that the situation presented an actual and specific danger to the safety of the officers (*see e.g. People v Mundo*, 99 NY2d 55, 59 [2002]; *People v Torres*, 74 NY2d 224, 231 n 4 [1989]) was a mixed question of law and fact for which there is support in the record (83 AD3d 614 [2011]). The court’s determination is therefore beyond our further review (*see e.g. People v Williams*, 17 NY3d 834, 835 [2011]).

[2] With regard to the May 2007 traffic stop, the Appellate Division reversed and ordered suppression of the seized evidence. It rejected the People’s assertion that there was probable cause to believe that defendant committed attempted criminal impersonation in the second degree. It further concluded that the facts did not provide probable cause to arrest defendant for criminal possession of stolen property because he was taken into custody before the officers learned that the license had been reported missing. It cannot be said that the reversal was “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal” (CPL 450.90 [2] [a]). Consequently, the People’s appeal from that portion of the Appellate Division’s order must be dismissed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), on defendant’s appeal, order affirmed, and People’s appeal dismissed, in a memorandum.

JAMES KNAPP et al., Respondents-Appellants, v JAMES R. HUGHES et al., Appellants-Respondents.

Submitted September 6, 2011; decided December 13, 2011

Reported below, 25 AD3d 886.

Motion by defendants for leave to appeal granted. Motion by plaintiffs for leave to appeal dismissed upon the ground that it

does not lie, plaintiffs previously having moved for leave to appeal to the Court of Appeals from the January 2006 Appellate Division order from which leave to appeal is currently sought (7 NY3d 921 [2006]). Moreover, no motion by plaintiffs for leave to appeal would lie to the Court of Appeals from the July 2011 Supreme Court judgment to bring up for review the January 2006 Appellate Division order as plaintiffs have appealed that judgment to the Appellate Division and simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

In the Matter of EDDIE JAMES LEE, Appellant, v MOHAWK TIME ALLOWANCE COMMITTEE et al., Respondents. (And Another Action.)

Submitted October 11, 2011; decided December 13, 2011

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of O., Respondent, v M., Appellant.

Submitted November 21, 2011; decided December 13, 2011

Reported below, 88 AD3d 797.

Motion for leave to appeal granted. Motion for a stay granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT J. COFFEY JR., Appellant.

Submitted November 7, 2011; decided December 13, 2011

Reported below, 77 AD3d 1202.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 denied as unnecessary and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN O. COOPER, Appellant.

Submitted December 5, 2011; decided December 13, 2011

Reported below, 85 AD3d 1594.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRIAN GAMMON, Appellant.

Submitted October 11, 2011; decided December 13, 2011

Reported below, 30 Misc 3d 46.

Motion to vacate this Court's September 21, 2011 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RAFAEL LORA, Respondent.

Submitted September 6, 2011; decided December 13, 2011

Reported below, 85 AD3d 487.

Motion to dismiss the appeal granted and the appeal dismissed upon the ground that the reversal by the Appellate Division was not on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal (CPL 450.90 [2] [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIO VELEZ, Appellant.

Submitted November 21, 2011; decided December 13, 2011

Reported below, 78 AD3d 867.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

REGIONAL ECONOMIC COMMUNITY ACTION PROGRAM, INC., Appellant, v ENLARGED CITY SCHOOL DISTRICT OF MIDDLETOWN, Respondent.

Submitted December 5, 2011; decided December 13, 2011

Reported below, 79 AD3d 723.

Motion by New York State School Boards Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of JUSTO RICHARDS, Appellant, v ANDREW M. CUOMO, as Attorney General of the State of New York, Respondent.

Decided December 13, 2011

Reported below, 88 AD3d 1043.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of STEPHEN ROSENBLUM, Respondent, v NEW YORK CITY CONFLICTS OF INTEREST BOARD et al., Appellants.

Submitted December 5, 2011; decided December 13, 2011

Reported below, 75 AD3d 426.

Motion by Citizens Union of the City of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of STEPHEN ROSENBLUM, Respondent, v NEW YORK CITY CONFLICTS OF INTEREST BOARD et al., Appellants.

Submitted December 5, 2011; decided December 13, 2011

Reported below, 75 AD3d 426.

Motion by Association of the Bar of the City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of STATE OF NEW YORK, Respondent, v DANIEL F., Appellant.

Submitted October 31, 2011; decided December 13, 2011

Reported below, 77 AD3d 1400.

Motion to strike appendix and supplemental appendix and to direct appellant to file the record on appeal granted and appellant is directed to serve three copies of the record on appeal on respondent and file the original and eight copies with the Court.

[962 NE2d 764, 939 NYS2d 273]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WAYNE
R. STEWART, Appellant.

Argued November 16, 2011; decided December 15, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 11, 2010. The Appellate Division affirmed a judgment of the Herkimer County Court (Patrick L. Kirk, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree.

People v Stewart, 70 AD3d 1367, modified.

HEADNOTES

Crimes — Assault — Serious Physical Injury — Superficial Wounds

1. Defendant's conviction for first degree assault was reduced to second degree assault where the victim's injuries, sustained after receiving numerous blows with a sharp instrument, were not shown to be objectively distressing or objectionable so as to justify the conclusion that they constituted "serious . . . disfigurement" qualifying as a serious physical injury predicate for first degree assault under Penal Law § 120.10 (1) and § 10.00 (10). The victim's injuries were described in their most acute aspect by the treating emergency room physician as "superficial," with no organ damage or injury to muscle tissue being radiologically evident. Three of the victim's four wounds required only gauze dressing, and, while the remaining six-to-seven-centimeter wound on the victim's inner forearm was sutured, the victim spent just one day in the hospital without follow-up medical care, apart from the removal of his stitches.

Crimes — Assault — Serious Physical Injury — Pain

2. Defendant's conviction for first degree assault was reduced to second degree assault since there was a failure to show that the victim, who received numerous blows with a sharp instrument, suffered "protracted impairment of health" so as to constitute serious physical injury within the meaning of Penal Law § 120.10 (1) and § 10.00 (10). While the victim complained of daily pain attributable to his healing scars, there was no basis for the jury reasonably to conclude that those sensations, discomfiting as they may have been, were indicative of or causally related to any protracted health impairment, and there was no medical evidence of an injury even potentially giving rise to

extended health impairment. Although it may be possible for pain itself to be disabling and result in protracted impairment of health, there was no evidence that the pain complained of by the victim was so severe as to have had that effect, as he did not, for example, testify as to his pain's severity or his need to resort to palliative measures.

APPEARANCES OF COUNSEL

Anthony J. LaFache, Utica, for appellant.

John H. Crandall, District Attorney, Herkimer (*Jeffrey S. Carpenter* and *Jacquelyn M. Asnoe* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by reducing defendant's conviction for assault in the first degree (Penal Law § 120.10 [1]) to one for assault in the second degree (Penal Law § 120.05 [2]) and remitting to County Court for resentencing and, as so modified, affirmed.

[1] While the assault upon which defendant's conviction is based was serious, involving numerous blows with a sharp instrument, the resulting injuries were described in their most acute aspect by the treating emergency room physician as "superficial"; no organ damage or injury to muscle tissue was radiologically evident. Three of the victim's four wounds required only gauze dressing. And, while the remaining six-to-seven-centimeter wound on the victim's inner forearm was sutured, the victim spent just one day in the hospital without follow-up medical care, apart from the removal of his stitches. These injuries were not shown to be objectively "distressing or objectionable" (see *People v McKinnon*, 15 NY3d 311, 315 [2010]) so as to justify the conclusion that they constituted "serious . . . disfigurement" qualifying as a serious physical injury predicate for first degree assault under Penal Law § 120.10 (1) and § 10.00 (10).

[2] Nor was serious physical injury proved upon the alternative ground set forth in the same Penal Law provisions, that the victim suffered "protracted impairment of health." It is true that the victim complained of daily pain attributable to his healing scars, but there was no basis for the jury reasonably to conclude that these sensations, discomfiting as they may have been, were indicative of or causally related to any protracted health impairment. There was, as noted, no medical evidence of an injury even potentially giving rise to extended health impairment. And, while we do not exclude the possibility that pain

may itself be disabling and result in protracted impairment of health, there was no evidence that the pain complained of by the present victim was so severe as to have had that effect; the victim did not, for example, testify as to his pain's severity or his need to resort to palliative measures. We note in this connection that the governing definitional statute, Penal Law § 10.00 (10), provides that, apart from an injury that is protractedly health impairing, "serious physical injury" alternatively may be "physical injury which creates a substantial risk of death, or which causes death or serious and protracted disfigurement . . . [or] protracted loss or impairment of the function of any bodily organ." It would not have been consistent with the Legislature's evident intent in this enumeration, rigorously to require verifiable proof of serious and consequential injury, to have included in it what would amount to a catch-all option for complaints of persisting discomfort unconnected to ascertainable health impairment.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order modified, etc.

[962 NE2d 256, 938 NYS2d 835]

EDWARD BEAZER, Respondent, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION et al., Defendants, and BEYS CONTRACTING, INC., Appellant.

Argued November 15, 2011; decided December 15, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 3, 2010. The Appellate Division affirmed an order of the Supreme Court, New York County (Eileen A. Rakower, J.; op 2009 NY Slip Op 31291[U] [2009]), which, among other things, had denied defendant Beys Contracting, Inc.'s motion for summary judgment dismissing the common-law negligence cause of action as against it. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as affirmed by the decision and order of this Court, properly made?"

Beazer v New York City Health & Hosps. Corp., 76 AD3d 405, affirmed.

HEADNOTE**Negligence — Duty — Injured Worker**

In an action to recover damages for personal injuries plaintiff worker sustained when he sliced his left thumb while using an unguarded angle grinder, the Appellate Division properly affirmed an order denying defendant contractor's motion for summary judgment dismissing plaintiff's common-law negligence cause of action as against it since there were unresolved factual issues bearing on whether defendant, which was not plaintiff's employer, owed any duty to plaintiff with respect to the condition of the grinder. There was conflicting evidence as to whether the grinder was owned by defendant or plaintiff's employer, and as to the circumstances under which plaintiff came to possess the grinder.

APPEARANCES OF COUNSEL

Smith Mazure Director Wilkins Young & Yagerman, P.C., New York City (*Joel M. Simon* and *Marcia K. Raicus* of counsel), for appellant.

David Horowitz, P.C., New York City (*Steven J. Horowitz* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

Plaintiff Edward Beazer sliced his left thumb while using an unguarded angle grinder to cut a piece of exposed hollow steel tube out of a concrete floor at a construction site at Bellevue Hospital Center in New York City. At the time, plaintiff was employed by Turner Construction Company, the construction manager for the Bellevue project pursuant to a contract with the New York State Dormitory Authority (DASNY), the owner of the premises. Defendant Beys Contracting, Inc. was working on the project under a separate contract with DASNY.

Plaintiff subsequently sued New York City, the New York City Health and Hospitals Corporation (HHC) and Beys for damages, asserting causes of action for violations of Labor Law §§ 200 and 241 (6), and for common-law negligence. Supreme Court dismissed the complaint and all cross claims against the City and HHC on the ground that the State of New York owned Bellevue; and granted Beys summary judgment dismissing plaintiff's Labor Law claims (2009 NY Slip Op 31291[U] [Sup Ct, NY County 2009]). As for plaintiff's common-law negligence cause of action, Supreme Court denied Beys's motion on the ground there were material disputed issues of fact. The Appellate Division agreed, with two Justices dissenting (76 AD3d 405

[1st Dept 2010]). Beys appeals to us by permission of the Appellate Division.

We affirm. There are unresolved factual issues bearing on whether Beys owed any duty to plaintiff with respect to the condition of the grinder. There is conflicting evidence as to whether the grinder was owned by Beys or Turner, and as to the circumstances under which plaintiff came to possess the grinder.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order affirmed, etc.

[962 NE2d 257, 938 NYS2d 836]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT GUY DICKINSON, Appellant.

Argued November 16, 2011; decided December 15, 2011

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 4, 2010. The Appellate Division affirmed a judgment of the Washington County Court (Kelly S. McKeighan, J.), which had convicted defendant, upon a jury verdict, of the crimes of driving while ability impaired, aggravated unauthorized operation of a motor vehicle in the first degree and resisting arrest, and the traffic infraction of failure to comply with a lawful order of a police officer.

People v Dickinson, 78 AD3d 1237, reversed.

HEADNOTE

Crimes — Right to Speedy Trial — Waiver

The indictment charging defendant with driving while ability impaired, other crimes and an infraction was dismissed where it was undisputed that the People were not ready for trial within six months of the commencement of the action, as required by CPL 30.30 (1) (a), even after application of the exclusions listed in CPL 30.30 (4), and where the record contained no evidence of any waiver, written or oral, of defendant's rights under CPL 30.30. While the People claimed that defendant waived his rights under CPL 30.30 by participating in plea negotiations for several months, mere silence is not a waiver.

APPEARANCES OF COUNSEL

Robert M. Winn, Granville, for appellant.

Kevin C. Kortright, District Attorney, Fort Edward (*Katherine G. Henley* of counsel), for respondent.

New York State Defenders Association, Albany (*Alfred O'Connor* of counsel), for New York State Defenders Association, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the indictment dismissed.

It is undisputed that the People were not ready for trial within six months of the commencement of the action, as CPL 30.30 (1) (a) requires, even after application of the exclusions listed in CPL 30.30 (4). The People's only claim is that defendant waived his rights under CPL 30.30 by participating in plea negotiations for several months.

While a defendant may waive rights under CPL 30.30 (*People v Waldron*, 6 NY3d 463 [2006]), the record here contains no evidence of any waiver, written or oral. Mere silence is not a waiver. We repeat our observation in *Waldron* that "prosecutors would be well advised to obtain unambiguous written waivers in situations like these" (*id.* at 468).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

DANIELLE BITON et al., Appellants, v AMEENA MEER et al.,
Respondents.

Decided December 15, 2011

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

In the Matter of the Arbitration Between BUFFALO PROFESSIONAL FIREFIGHTERS ASSOCIATION, INC., IAFF LOCAL 282,
Respondent, and CITY OF BUFFALO, Appellant.

Submitted November 7, 2011; decided December 15, 2011

Reported below, 79 AD3d 1737.

Motion for reargument of motion for leave to appeal denied [see 17 NY3d 854 (2011)]. An order directing further arbitration proceedings, whether before the same or a different arbitrator, is not one finally determining a proceeding within the meaning of the Constitution (*Matter of SOMA Partners, LLC v Northwest Biotherapeutics, Inc.*, 41 AD3d 257 [2007], *lv dismissed* 9 NY3d 942 [2007]; *Matter of Beard v Town of Newburgh*, 259 AD2d 613 [1999], *lv dismissed* 93 NY2d 958 [1999]; *Matter of Sachem Cent. Teachers Assn. v Board of Educ. of Sachem Cent. School Dist.*, 227 AD2d 632 [1996], *lv dismissed* 88 NY2d 1064 [1996]). Older cases to the contrary (e.g. *Matter of Baar & Beards [Oleg Cassini, Inc.]*, 30 NY2d 649 [1972]) are no longer good law.

In the Matter of the Claim of MARCITA G. CHILDS, Appellant.
KALEIDA HEALTH, Respondent; COMMISSIONER OF LABOR,
Respondent.

Submitted October 17, 2011; decided December 15, 2011

Reported below, 69 AD3d 1070.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

FRANK FUSCA, Respondent, v A & S CONSTRUCTION, LLC, Appellant. (And a Third-Party Action.)

Submitted October 24, 2011; decided December 15, 2011

Reported below, 84 AD3d 1155.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GALASSO, LANGIONE & BOTTER, LLP, et al., Respondents, v THOMAS F. LIOTTI, Defendant and Third-Party Plaintiff-Appellant. FREDERICK K. BREWINGTON, Third-Party Defendant-Respondent.

Submitted October 17, 2011; decided December 15, 2011

Reported below, 81 AD3d 884.

Motion for reargument of motion for leave to appeal denied [see 17 NY3d 847 (2011)]. Motion for a stay dismissed as academic.

In the Matter of RICKEY LYNCH, Appellant, v WILLIAM CONDON, Respondent.

Submitted November 7, 2011; decided December 15, 2011

Reported below, 87 AD3d 644.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the issues presented have become moot. Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

JAVONDI PENDER, Appellant, v LASALLE BUS SERVICE, INC., Respondent.

Submitted October 24, 2011; decided December 15, 2011

Reported below, 2011 NY Slip Op 83123(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

RANDI RHODES, Also Known as RANDI ROBERTSON, Appellant, v STEVEN EDWARD HERZ et al., Respondents.

Submitted October 17, 2011; decided December 15, 2011

Reported below, 84 AD3d 1.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[962 NE2d 261, 938 NYS2d 838]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRED-
ERICK E. WALKER, Appellant.

Decided December 20, 2011

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered November 19, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Stephen R. Sirkin, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts), assault in the first degree (two counts), grand larceny in the fourth degree (two counts), robbery in the second degree, and attempted robbery in the second degree (two counts).

Following defendant's conviction for robbery, assault and related crimes, he moved at the Appellate Division for a writ of error coram nobis on the ground that appellate counsel had failed to raise an issue on appeal that may have merit, i.e., that defendant was denied his right to be present at his *Sandoval* hearing. The Appellate Division majority concluded that defendant failed to satisfy his burden of coming forward with substantial evidence establishing his absence from the *Sandoval* hearing.

People v Walker, 78 AD3d 1671, modified.

HEADNOTE**Crimes — Right to be Present at Trial — Reconstruction Hearing**

On the record presented, defendant satisfied his burden of showing that a reconstruction hearing was necessary to determine whether he was present during his *Sandoval* hearing. Upon remittal, if it is determined that defendant was not present during the *Sandoval* hearing, a new trial must be ordered; if it is determined that defendant was present, the judgment of conviction should be amended to reflect that result.

APPEARANCES OF COUNSEL

James S. Hinman, P.C., Rochester (*James S. Hinman* of counsel), for appellant.

Michael C. Green, District Attorney, Rochester (*Stephen X. O'Brien* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order

modified and case remitted to Supreme Court, Monroe County, for further proceedings, and as so modified, affirmed. We conclude that on this record defendant satisfied his burden of showing that a reconstruction hearing is necessary to determine whether he was present during the *Sandoval* hearing. Upon remittal, if it is determined that defendant was not present during the *Sandoval* hearing, a new trial must be ordered; if it is determined that defendant was present, the judgment of conviction should be amended to reflect that result.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and JONES. Taking no part: Judge PIGOTT.

[962 NE2d 261, 938 NYS2d 839]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID HOLLAND, Appellant.

Argued November 16, 2011; decided December 20, 2011

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 10, 2010. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Bonnie G. Wittner, J.), which had granted a motion by defendant to suppress physical evidence and statements, (2) denied the motion, and (3) remanded the matter for further proceedings.

On December 30, 2007, four police officers were on patrol in the vicinity of a public housing development where there had been reports of drug dealing, robberies and gunshots. At approximately 1:40 A.M., the officers approached a group of four to six individuals. Defendant, who was walking toward the group, changed his direction as the officers approached. One of the officers called out to defendant and asked him to stop. In response to the officer's questions, defendant stated that he did not live in the housing development. At the officer's request, defendant handed over photo identification. The officer testified that his investigation was complete at that point, since nothing about defendant's photo identification aroused his suspicion. The officer did not, however, return the identification to defendant. Another officer, who did not hear the conversation between the first officer and defendant, began asking defendant some of the same questions put to him by the first officer. Defendant became

irate and initiated physical contact with the first officer. A struggle ensued as the officers arrested defendant for assault and disorderly conduct. Upon the arrest, quantities of crack cocaine and marijuana were recovered from defendant's person.

The Appellate Division majority found that any allegedly unlawful conduct in stopping and questioning defendant was attenuated by his calculated, aggressive and wholly distinct conduct.

People v Holland, 74 AD3d 520, appeal dismissed.

HEADNOTE

Crimes — Appeal — Matters Reviewable

An appeal from an order of the Appellate Division, which reversed an order granting defendant's motion to suppress evidence, was dismissed by the Court of Appeals upon the ground that the reversal by the Appellate Division was not on the law alone within the meaning of CPL 450.90 (2) (a). The Appellate Division's reversal, while termed "on the law," was actually predicated upon a differing view concerning the issue of attenuation, which was a mixed question of law and fact, and a reversal on a mixed question typically does not meet the requisites of the statute.

APPEARANCES OF COUNSEL

Legal Aid Society, Criminal Appeals Bureau, New York City (Arthur H. Hopkirk, Justin Diamant and Steven Banks of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (William Mahoney, Alan Gadlin and Joseph Davis of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The appeal should be dismissed upon the ground that the reversal by the Appellate Division (74 AD3d 520 [1st Dept 2010]) was not on the law alone within the meaning of CPL 450.90 (2) (a).*

Here, the Appellate Division's reversal of Supreme Court's order granting suppression, while termed "on the law," was actually predicated upon a differing view concerning the issue of attenuation, which is a mixed question of law and fact. A reversal

* Pursuant to CPL 450.90 (2) (a), this Court may entertain an appeal from an order of an intermediate appellate court reversing an order of a criminal court only if it "determines that the intermediate appellate court's determination of reversal . . . was on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal."

on a mixed question typically does not meet the requisites of CPL 450.90 (2) (a) (*see People v Mayorga*, 64 NY2d 864, 865 [1985] [dismissing an appeal from an Appellate Division order of reversal involving mixed question of whether “there has been an attenuating break in an interrogation”]; *People v Lawrence*, 74 NY2d 732 [1989]; *People v Howard*, 74 NY2d 943 [1989]; *People v Hinton*, 81 NY2d 867 [1993]).

Chief Judge LIPPMAN (dissenting). If the Appellate Division, in reversing the motion court’s grant of suppression, had performed an attenuation analysis and consequently concluded that defendant’s act of physically contacting a police officer was not in fact directly attributable and proportionately responsive to the preceding official illegality, I would agree that the appeal should be dismissed since it would then present an inquiry turning in essential part on factual findings by the Appellate Division unreviewable by this Court (*see* CPL 450.90 [2] [a]). The Appellate Division, however, decided the matter “on the law,” and while that is not from this Court’s perspective a binding characterization, it is accurately descriptive of the Court’s decision. The problem now presented—a purely legal one—is that while purporting to make a finding of attenuation, the Court eschewed the analysis upon which such a finding must rest.

The evidence adduced at the hearing upon defendant’s suppression motion showed that, upon observing defendant walking in the early morning in an area near a public housing project known for its high incidence of crime, Police Officer David Porras asked defendant to stop. Officer Porras inquired whether defendant lived in the project, and defendant replied that he did not. The officer then asked defendant for photo identification, which defendant provided. Officer Porras examined defendant’s identification and found it satisfactory; he acknowledged that his inquiry had at that point run its course. Nonetheless, he did not return defendant’s photo identification and allow him to go on his way. Rather, he retained the identification and stood by without interceding as one of his partners approached and repeated the inquiries he, Porras, had just completed. Defendant reportedly became agitated and, at the approach of yet a third police officer, either pushed or punched Officer Porras¹ in what the officers understood as an attempt “to go.” A scuffle ensued in the aftermath of which defendant was arrested for

1. The officers’ memo books indicated that Porras was pushed and Porras himself testified to that effect. Another officer testified, at variance with his earlier written account, that defendant punched Porras.

assault and disorderly conduct, and then searched. Drugs were found on his person.

In granting defendant's motion to suppress the drugs thus recovered, the motion court found that defendant had been illegally detained and that the illegality had not been attenuated by defendant's attempt to get past the police officers "blocking [his] egress." The court observed,

"[e]ven if there was a basis for initially requesting information from defendant . . . any such justification was exhausted after he answered Porr[a]s who was obligated to return the identification and allow him to leave. The continued detention was unlawful and the reaction of defendant proportionate to the circumstances. It does not attenuate the unlawful detention and render the contraband admissible."

The Appellate Division, while disagreeing with the motion court's conclusion that the primary official illegality had not been attenuated by defendant's conduct, was assertedly disinterested with the nature and quality of the illegality or of the attenuating conduct. Indeed, the Court expressly found it unnecessary to decide whether there had been any official illegality (74 AD3d 520, 522 [1st Dept 2010]), since "[o]nce defendant punched Officer Porras, *any allegedly unlawful conduct* in stopping and questioning defendant was attenuated by his calculated, aggressive and wholly distinct conduct" (*id.* at 521 [emphasis added]). And, while the Appellate Division characterized the attenuating conduct as a "punch," that characterization was ultimately unimportant to its analysis, since the Court found it "of no moment whether defendant punched or pushed Officer Porras, because . . . the police officers did not initiate or attempt to initiate physical contact with defendant" (*id.* at 522).

The dissenting Justices, by contrast, after a thorough review of the record facts to ascertain precisely what had transpired and the manner in which defendant's alleged attenuative conduct was related to his immediately preceding detention, concluded:

"In view of the officers' concession that defendant was trying to get away from them, the documentary evidence and Porras's eventual admission at the hearing that defendant pushed him, *the limited physical force used against Porras by defendant was*

an immediate response to his unjustified detention.

It does not constitute an independent act sufficiently attenuated from the unlawful detention so as to dissipate the illegal taint associated with it (*cf. Townes*, 41 NY2d at 101-102), but was an immediate and direct consequence of that unlawful detention” (74 AD3d at 529).

Ordinarily, a finding of attenuation in the search and seizure context entails an analysis taking into account the specific nature of the illegal intrusion and the timing and quality of the subsequent, allegedly attenuating act or circumstance. Where, as in the present matter, it is claimed that the defendant’s act attenuated the primary illegality, “[t]he test to be applied is whether defendant’s action . . . was spontaneous and precipitated by the illegality or whether it was a calculated act not provoked by the unlawful police activity and thus attenuated from it” (*People v Wilkerson*, 64 NY2d 749, 750 [1984]).

Here, the Appellate Division simply concluded that any alleged illegality, no matter how extreme or provocative,² must have been attenuated by defendant’s act of initiating physical contact with Officer Porras, even if that act consisted only of a push to get past the three officers illegally blocking his way. This was, in the end, not an attenuation analysis at all, but simply the announcement of an arbitrary rule that any physical contact with a police officer—no matter what its force or purpose—if not preceded by an attempt by the officer to contact the defendant, will be deemed distinct and unattributable to any precedent official illegality, no matter how provocative. Certainly, there is nothing in our cases that could be construed as permitting the substitution of such a rule for an attenuation analysis.

I do not say that the Appellate Division was bound to resolve the attenuation issue as the motion court had and the dissenting Justices would have, only that if it was to decide the question differently it had to perform an attenuation analysis—that is to say it had to make a conscientious effort to ascertain whether defendant’s allegedly attenuating act was or was not directly precipitated by and a proportionate response to his

2. The Court, as noted, explicitly did not make any finding as to whether there had been an illegal detention: “we need not resolve the issue of the legality of the police officers’ stopping and questioning defendant” (74 AD3d at 522).

closely antecedent illegal detention.³ To do this, it would have been essential for the Court to make some finding as to the nature and quality of the official illegality and defendant's following act. Inasmuch as the Court expressly found that such findings were either dispensable or irrelevant, and instead merely concluded that defendant's initiation of contact was per se attenuative, whatever the nature of the contact or of any antecedent official provocation, I believe that the correct disposition of this appeal is to remit to the Appellate Division for a proper determination of the attenuation issue.

In instead pigeonholing this appeal as one involving a "mixed question," the Court makes a choice that is not only unsound jurisdictionally, but erosive of this Court's role in articulating the law governing police-civilian encounters. The doctrine of attenuation in the search and seizure context is of course nothing more than a closely limited exception to the general, dominant rule that police intrusions must be justified at their inception (see *Terry v Ohio*, 392 US 1, 19-20 [1968]; *People v Cantor*, 36 NY2d 106, 111 [1975]; *People v Moore*, 6 NY3d 496, 498 [2006]). If the exception is not to swallow the rule, care must be taken to assure that the doctrine is correctly employed. When courts with the factual jurisdiction to make attenuation findings employ facile analytic shortcuts operating to shield from judicial scrutiny illegal and possibly highly provocative police conduct, an issue of law is presented that is, I believe, this Court's proper function to resolve. The alternative is to turn a blind eye to "tactics . . . [under which] any person might be approached, detained, intimidated, harassed, even provoked into a display of aggression and thereupon arrested, effectively eviscerating Fourth Amendment protections and 'abandon[ing] the law-abiding citizen to the police officer's whim or caprice' (*Cantor*, 36 NY2d at 112)" (74 AD3d at 530 [Tom, J., dissenting]). This is not an exaggerated or purely academic concern in a jurisdiction where, as is now a matter of public record, hundreds of thousands of pedestrian stops are performed annually by the police,⁴ only a very small percentage of which actually result in the discovery of evidence of crime.

3. Of course, if the Court had concluded that there was no illegal detention, there would have been no need to introduce the concept of attenuation at all.

4. As Judge Scheindlin recently noted in denying, in part, the municipal defendants' motion to dismiss claims alleging racial bias in the New York City Police Department's stop and frisk policies and practices, "it is clear that the

(n. cont'd)

Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur; Chief Judge LIPPMAN dissents in an opinion in which Judge CIPARICK concurs.

Appeal dismissed, in a memorandum.

[963 NE2d 123, 939 NYS2d 746]

RONI LLC et al., Respondents, v RACHEL L. ARFA et al., Appellants, et al., Defendants.

Argued November 15, 2011; decided December 20, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 3, 2010. The Appellate Division affirmed so much of an order of the Supreme Court, New York County (Charles E. Ramos, J.), as had denied the motion of defendants Rachel L. Arfa, Alexander Shpigel and American Elite Properties, Inc. to dismiss plaintiffs' accounting, breach of fiduciary duty, and constructive fraud causes of action. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of Supreme Court, properly made?"

Roni LLC v Arfa, 74 AD3d 442, affirmed.

HEADNOTE

Torts — Breach of Fiduciary Duty — Existence of Relationship

In an action arising from a series of related business transactions in which a number of foreign investors acquired membership interests in limited liability companies that purchased residential buildings for renovation and resale, plaintiffs' allegations of a fiduciary relationship survived defendants' motion to dismiss claims of an accounting, breach of fiduciary duty and constructive fraud. Plaintiffs asserted that defendants, who organized the limited liability companies, located and managed the properties, and solicited the investors, deliberately concealed that they were paid commissions of up to 15% of the purchase prices of the properties, thereby inflating the purchase prices by millions of dollars. The promoters of a limited liability company are in the best position to disclose material facts to investors and can reveal those facts more efficiently than individual investors, who would otherwise incur expense

policing policies that the City has implemented over the past decade and a half have led to a dramatic increase in the number of pedestrian stops, to the point of now reaching almost 600,000 a year" (*Floyd v City of New York*, 813 F Supp 2d 417, 422 [SD NY 2011] [internal quotation marks and footnote omitted]).

investigating what the promoters already know. In addition, the complaint alleged that defendants represented to the foreign investors that they had “particular experience and expertise” in the New York real estate market, and that plaintiffs were “overseas investors” with little knowledge of New York real estate or American laws or business practices regarding real estate or investments. Moreover, plaintiffs contended that defendants assumed a position of trust and confidence, in part, by “playing upon the cultural identities and friendship” of plaintiffs. Accepting the totality of those allegations to be true, the complaint adequately pleaded a fiduciary relationship. Additionally, the constructive fraud claim survived the motion to dismiss because plaintiffs sufficiently alleged damages by asserting that they suffered actual pecuniary loss in the amount of the secret commissions that inflated the purchase prices of the properties.

APPEARANCES OF COUNSEL

Schlam Stone & Dolan, LLP, New York City (*David J. Katz* and *Michael C. Marcus* of counsel), for appellants.

Balber Pickard Maldonado & Van Der Tuin, P.C., New York City (*John Van Der Tuin* and *Jane Y. Ginns* of counsel), for respondents.

Eric T. Schneiderman, Attorney General, New York City (*Richard Dearing* of counsel), for Office of the Attorney General, amicus curiae.

Larry E. Ribstein, of the Illinois bar, admitted pro hac vice, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

This action arises from a series of related business transactions in which a number of Israeli investors acquired membership interests in seven limited liability companies that purchased residential buildings in the Bronx and Harlem for renovation and resale. The promoter defendants organized the limited liability companies, located and managed the properties, and solicited the investors. Plaintiffs—the majority of the investors or their assignees—brought this action, alleging that the promoter defendants deliberately concealed that property sellers and mortgage brokers paid them commissions of up to 15% of the purchase prices of the properties and that these commissions inflated the purchase prices by millions of dollars. The complaint contains claims for an accounting, waste, breach of fiduciary duty, actual fraud and constructive fraud. The promoter

defendants moved to dismiss the complaint insofar as asserted against them pursuant to CPLR 3211.

Supreme Court granted the motion to the extent of dismissing the causes of action for waste and actual fraud. It also permitted plaintiffs to replead their fraud claim. The Appellate Division affirmed (74 AD3d 442 [1st Dept 2010]) and granted the promoter defendants leave to appeal on a certified question.

The promoter defendants argue that the three claims at issue on this appeal—an accounting, breach of fiduciary duty and constructive fraud—must be dismissed because no fiduciary relationship existed between the promoter defendants and plaintiffs before the formation of the limited liability companies. On a CPLR 3211 motion to dismiss, however, we must give the complaint a liberal construction, accept the allegations as true and provide plaintiffs with the benefit of every favorable inference. Indeed, the question of “[w]hether a plaintiff can ultimately establish its allegations is not part of the calculus in determining a motion to dismiss” (*EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11, 19 [2005]). Applying this standard, we conclude that plaintiffs’ allegations of a fiduciary relationship survive the dismissal motion.

A fiduciary relationship arises “between two persons when one of them is under a duty to act for or to give advice for the benefit of another upon matters within the scope of the relation” (*id.* [internal quotation marks and citation omitted]). Put differently, “[a] fiduciary relation exists when confidence is reposed on one side and there is resulting superiority and influence on the other” (*AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 11 NY3d 146, 158 [2008] [internal quotation marks and citation omitted]). Ascertaining the existence of a fiduciary relationship “inevitably requires a fact-specific inquiry” (*Eurycleia Partners, LP v Seward & Kissel, LLP*, 12 NY3d 553, 561 [2009]).

Here, plaintiffs assert that the promoter defendants planned the business venture, organized the limited liability companies, solicited their involvement and exercised control over the invested funds. We agree with plaintiffs that the promoters of a limited liability company are in the best position to disclose material facts to investors and can reveal those facts more efficiently than individual investors, who would otherwise incur expense investigating what the

promoters already know.¹ In addition, the complaint alleges that the promoter defendants represented to the foreign investors that they had “particular experience and expertise” in the New York real estate market. Although the promoter defendants describe plaintiffs as “sophisticated prospective investors,” the complaint paints a different picture, stating that they were “overseas investors who had little or limited knowledge of New York real estate or United States laws, customs or business practices with respect to real estate or investments.” Moreover, plaintiffs contend that the promoter defendants assumed a position of trust and confidence, in part, by “playing upon the cultural identities and friendship” of plaintiffs. Accepting the totality of these allegations to be true, as we must at this early stage of the litigation, the complaint adequately pleads a fiduciary relationship.²

The promoter defendants’ alternative contention that plaintiffs’ accounting, breach of fiduciary duty and constructive fraud claims are preempted by the Martin Act is without merit (*see Assured Guar. [UK] Ltd. v J.P. Morgan Inv. Mgt. Inc.*, 18 NY3d 341 [2011] [decided today]). Finally, we agree with the Appellate Division that the constructive fraud claim withstands the motion to dismiss because “plaintiffs sufficiently alleged damages by asserting that they suffered actual pecuniary loss in the amount of the secret commissions that inflated the purchase prices of the properties” (74 AD3d at 445).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, PIGOTT and JONES concur in memorandum. Taking no part: Judge SMITH.

Order affirmed, etc.

1. Certainly, there are differences between limited liability companies and traditional corporations, but the distinctions are not relevant to the allegations in this case: a potential exists regardless of corporate form for “conscienceless promoters [to] accumulate[] property at a low price under a well-devised scheme to unload it upon others at a high price” (*Heckscher v Edenborn*, 203 NY 210, 219 [1911]).

2. Based on the foregoing analysis, we need not decide the question of whether the promoter defendants’ status as organizers of the limited liability companies, standing alone, was sufficient to allege a fiduciary relationship.

[962 NE2d 771, 939 NYS2d 280]

In the Matter of ROBERT WALSH, Appellant, v NICHOLAS SCOPPETTA, as Fire Commissioner of the City of New York and as Chairman of the Board of Trustees of the New York City Fire Department, Article 1-B Pension Fund, et al., Respondents.

Argued November 14, 2011; decided December 20, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 25, 2010. The Appellate Division affirmed so much of a judgment of the Supreme Court, Kings County (Bruce M. Balter, J.), entered in a hybrid proceeding pursuant to CPLR article 78 and an action for, among other things, declaratory relief, as had (1) denied those branches of the petition which were to annul the determination of the New York City Fire Department Article 1-B Pension Fund, denying petitioner's application for accident disability retirement benefits based on injuries sustained by him as a result of an assault against him, and to compel the New York City Fire Department Article 1-B Pension Fund to grant his application for accident disability retirement benefits, and (2) dismissed the proceeding and the action.

Matter of Walsh v Scoppetta, 73 AD3d 1192, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Accidental Disability Retirement

A petition seeking to annul a determination of a municipal pension fund's Board of Trustees denying a line-of-duty accidental disability retirement to petitioner firefighter, who was injured in a firehouse brawl with a fellow firefighter, was properly denied notwithstanding that the Board was deadlocked on the choice between ordinary disability and accidental disability. The denial of accidental retirement on the basis of a tie vote of the Board of Trustees may not be set aside unless it can be determined as a matter of law on the record that the disability was the natural and proximate result of a service-related accident. That was plainly not the case here, where petitioner's injuries resulted solely from an altercation with a fellow firefighter, rather than his performance of any job duties.

APPEARANCES OF COUNSEL

Ungaro & Cifuni, New York City (*Nicholas G. Cifuni* and *Robert A. Ungaro* of counsel), for appellant.

Michael A. Cardozo, Corporation Counsel, New York City (Paul T. Rephen and Leonard Koerner of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

On New Year's Eve in 2003, petitioner Robert Walsh, a firefighter in the New York City Fire Department, got into a "loud and heated" argument with a fellow firefighter in the kitchen of the firehouse. Their dispute, fueled by the prohibited consumption of alcohol, escalated from mutual taunting and provocative insults to assault when the other firefighter hit petitioner over the head from behind with a metal chair, knocking him to the floor.

Petitioner suffered traumatic brain injuries in the New Year's Eve brawl in the firehouse. He was subsequently diagnosed with a postconcussional disorder, entailing "sensory nerve dysfunction on his face and leg, headaches, and memory, concentration and sleep disturbance." In May 2005, the Fire Commissioner filed an application for ordinary disability retirement on petitioner's behalf with the New York City Fire Department Pension Fund, which is administered by a Board of Trustees. In September 2007, petitioner filed for accidental disability retirement, which provides greater benefits than ordinary disability retirement. An applicant is eligible for accidental disability retirement when the Pension Fund's Medical Board determines and certifies to the Board of Trustees that

"such member is physically or mentally incapacitated for the performance of city-service as a natural and proximate result of an accidental injury received in such city-service while a member, and that such disability was not the result of wilful negligence on the part of such member and that such member should be retired" (Administrative Code of City of NY § 13-353).

In March 2008, the Medical Board recommended to the Board of Trustees that petitioner be granted ordinary rather than accidental medical disability, and in April 2008, the Board deadlocked on the choice. As a result, petitioner's application for accidental disability retirement was denied, and he was

retired for ordinary disability instead (*see Matter of Meyer v Board of Trustees of N.Y. City Fire Dept., Art. 1-B Pension Fund*, 90 NY2d 139, 144-145 [1997] [when the “Medical Board finds (a) firefighter disabled for performance of duty and the Board of Trustees becomes deadlocked . . . , and is thus unable to pass by majority vote a resolution retiring the firefighter for ordinary or accidental disability, by a time-honored procedural practice the application for accidental disability retirement is denied and the lesser ordinary disability benefits are awarded”]).

In August 2008, petitioner commenced this CPLR article 78 proceeding against respondent Fire Commissioner, the Pension Fund, the Board of Trustees and the City of New York (collectively, the City), seeking to annul the Board’s determination denying him a line-of-duty accidental disability retirement. Supreme Court denied the petition, stating that it could not “find, as a matter of law, that petitioner’s disability was the natural and proximate result of a service related accident and thus, finds that the Board of Trustees[’] determination that petitioner’s assault was not an accident was rationally based and was not arbitrary or capricious and, therefore, cannot be judicially disturbed.” The Appellate Division affirmed (73 AD3d 1192 [2d Dept 2010]), as do we.

We may not set aside the Board of Trustees’ denial of accidental retirement on the basis of a tie vote “[u]nless it can be determined as a matter of law on the record that the disability was the natural and proximate result of a service-related accident” (*Matter of Canfora v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y., Art. II*, 60 NY2d 347, 352 [1983]). That is plainly not the case here, where petitioner’s injuries resulted solely from an altercation with a fellow firefighter rather than his performance of any job duties. Consequently, we need not consider and do not decide whether, or under what circumstances, injuries caused by the intentional act of a third party are accidental within the meaning of section 13-353 of the Administrative Code.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

MANINDER BHUGRA, Appellant, v MASSACHUSETTS CASUALTY INSURANCE COMPANY et al., Respondents.

Submitted November 7, 2011; decided December 20, 2011

Reported below, 2011 NY Slip Op 68561(U).

Motion for reconsideration of this Court's September 20, 2011 dismissal order denied [*see* 17 NY3d 850 (2011)].

WILLIAM E. BURKHART, JR., Appellant, v STEVEN V. MODICA et al., Respondents.

Submitted November 7, 2011; decided December 20, 2011

Reported below, 81 AD3d 1356.

Motion for leave to appeal etc. denied.

In the Matter of the Foreclosure of Tax Liens by COUNTY OF SCHUYLER. COUNTY OF SCHUYLER, Respondent; EDWARD SOLOMON JR., Respondent, and SOLOMON FINANCIAL CENTER, INC., Appellant. MARGARET E. STARBUCK, as County Treasurer of the County of Schuyler, et al., Respondents.

Submitted November 7, 2011; decided December 20, 2011

Reported below, 83 AD3d 1243.

Motion for reargument of motion for leave to appeal denied [*see* 17 NY3d 850 (2011)].

PAUL ELDRIDGE, Respondent, v CARMEL CENTRAL SCHOOL DISTRICT BOARD OF EDUCATION et al., Appellants.

Submitted November 7, 2011; decided December 20, 2011

Reported below, 82 AD3d 1147.

Motion for leave to appeal, insofar as made by the Carmel Central School District Board of Education, dismissed upon the ground that the Board is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DEBORAH ETZION, Respondent, v RAFAEL ETZION, Appellant, et al., Defendants.

Submitted November 14, 2011; decided December 20, 2011

Reported below, 84 AD3d 1015.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JLG ARCHITECTURAL PRODUCTS, LLC, Appellant, v WDF, INC., Respondent, et al., Defendants. (And a Third-Party Action.)

Submitted November 7, 2011; decided December 20, 2011

Reported below, 87 AD3d 681.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

L&L ASSOCIATES HOLDING CORP., Respondent, v JOSEPH A.F. SADOWSKI, Appellant, et al., Defendants.

Submitted November 14, 2011; decided December 20, 2011

Reported below, 2011 NY Slip Op 84844(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602). Motion for a stay dismissed as academic. Motion for poor person relief dismissed as academic.

In the Matter of LASTANZEA L. and Others, Infants. ONEIDA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; LAKESHA L., Appellant.

Submitted November 7, 2011; decided December 20, 2011

Reported below, 87 AD3d 1356.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed Family Court's denial of the motion to vacate, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided December 20, 2011

Reported below, 2011 NY Slip Op 77315(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MARGARET REGAN SMITH, on Behalf of HUNTER I., an Infant, Respondent, v DAWN F.B., Appellant. RICHARD I., Nonparty Respondent.

Submitted November 14, 2011; decided December 20, 2011

Reported below, 88 AD3d 729.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

YAN PING XU, Appellant, v CITY OF NEW YORK, Sued Herein as NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE, Respondent.

Submitted November 7, 2011; decided December 20, 2011

Reported below, 82 AD3d 559.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of appellant's motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(December 1, 2011 through December 31, 2011)

Duberry v State of New York

4th Dept: 2011 NY Slip
Op 81308(U)

12/8/11

People v Boyland	4th Dept: 79 AD3d 1658	12/29/11
People ex rel. Cameron v Schriro	1st Dept: 2011 NY Slip Op 84461(U)	12/15/11
People ex rel. Jackson v Bradt	4th Dept: 2011 NY Slip Op 84386(U)	12/29/11
People ex rel. Moore v Superintendent of Southport Correctional Facility	3d Dept: 2011 NY Slip Op 88242(U)	12/29/11

APPEALS WITHDRAWN AND DISCONTINUED

(December 1, 2011 through December 31, 2011)

Angamarca v New York City Partnership Hous. Dev. Fund, Inc.	1st Dept: 87 AD3d 206	12/21/11
Caruso v Northeast Emergency Med. Assoc., P.C.	3d Dept: 85 AD3d 1502	12/29/11
People v Attea	4th Dept: 84 AD3d 1700	12/30/11
Ramirez v Shoats	1st Dept: 78 AD3d 515	12/15/11

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2011 through December 31, 2011)

People v Alaouie	1st Dept: 86 AD3d 462 (NY)	denied 12/6/11 (Ciparick, J.)
People v Allaway	App Div, 1st Dept: 2011 NY Slip Op 79862(U) (Bronx)	denied 12/27/11 (Ciparick, J.)
People v Allen	2d Dept: 88 AD3d 898 (Suffolk)	denied 12/20/11 (Pigott, J.)
People v Alvarez	2d Dept: 88 AD3d 807 (Orange)	denied 12/20/11 (Pigott, J.)
People v Amanze	2d Dept: 87 AD3d 1159 (Westchester)	denied 12/28/11 (Pigott, J.)
People v Antoine	2d Dept: 87 AD3d 1159 (Westchester)	denied 12/28/11 (Pigott, J.)
People v Ariola	4th Dept: 87 AD3d 1412 (Onondaga)	denied 12/27/11 (Ciparick, J.) (Appeal Nos. 1 and 2)
People v Audi	3d Dept: 88 AD3d 1070 (Washington)	denied 12/28/11 (Pigott, J.)
People v Bailey	3d Dept: 80 AD3d 999 (Chemung)	denied 12/1/11 (Pigott, J.)
People v Baker (Desiree)	4th Dept: 89 AD3d 1431 (Erie)	denied 12/15/11 (Grafteo, J.)

MEMORANDA

857

People v Baker (Ricky)	4th Dept: 87 AD3d 1313 (Wayne)	denied 12/13/11 (Grafteo, J.)
People v Baker (Ricky)	4th Dept: 87 AD3d 1316 (Wayne)	denied 12/13/11 (Grafteo, J.)
People v Baker (Trevis)	4th Dept: 82 AD3d 1656 (Monroe)	granted 12/21/11 (Smith, J.)
People v Baker (Trevis)	4th Dept: 82 AD3d 1657 (Monroe)	granted 12/21/11 (Smith, J.)
People v Baldwin	1st Dept: 88 AD3d 492 (NY)	denied 12/12/11 (Pigott, J.)
People v Batista	1st Dept: 88 AD3d 545 (Bronx)	denied 12/27/11 (Ciparick, J.)
People v Bernacet	1st Dept: 88 AD3d 542 (NY)	denied 12/20/11 (Pigott, J.)
People v Bevans	2d Dept: 84 AD3d 827 (Westchester)	denied 12/13/11 (Grafteo, J.)
People v Bici	App Term, 2d Dept: 32 Misc 3d 136(A) (Queens)	denied 12/27/11 (Ciparick, J.)
People v Blanco	1st Dept: 87 AD3d 932 (NY)	denied 12/15/11 (Grafteo, J.)
People v Boutry	App Term, 2d Dept: 32 Misc 3d 136(A) (Nassau)	denied 12/27/11 (Ciparick, J.)
People v Boyce	App Term, 1st Dept: 32 Misc 3d 145(A) (NY)	denied 12/1/11 (Pigott, J.)
People v Bradley	4th Dept: 83 AD3d 1444 (Monroe)	granted 12/15/11 (Smith, J.)
People v Brown	4th Dept: 87 AD3d 1414 (Wyoming)	denied 12/27/11 (Ciparick, J.)
People v Cannon	1st Dept: 87 AD3d 915 (NY)	denied 12/14/11 (Pigott, J.)
People v Carrow	1st Dept: 88 AD3d 576 (NY)	denied 12/15/11 (Smith, J.)
People v Ceaser	App Term, 2d Dept: 33 Misc 3d 136(A) (Kings)	denied 12/28/11 (Smith, J.)
People v Chardon	2d Dept: 83 AD3d 954 (Kings)	denied 12/13/11 (Smith, J.)
People v Cobham	App Term, 2d Dept: 32 Misc 3d 128(A) (Nassau)	denied 12/27/11 (Ciparick, J.)
People v Coia	County Ct, 8/25/11 (Monroe)	denied 12/2/11 (Jones, J.)
People v Coleman	2d Dept: 87 AD3d 1072 (Nassau)	denied 12/13/11 (Grafteo, J.)
People v Comacho	4th Dept: 87 AD3d 1372 (Monroe)	denied 12/13/11 (Grafteo, J.)
People v Coon	County Ct, 8/19/11 (Erie)	denied 12/2/11 (Smith, J.)
People v Correa	2d Dept: 88 AD3d 810 (Orange)	denied 12/15/11 (Grafteo, J.)
People v Couvertier	1st Dept: 87 AD3d 934 (NY)	denied 12/15/11 (Smith, J.)

People v Covington	1st Dept: 88 AD3d 486 (NY)	denied 12/27/11 (Ciparick, J.)
People v Cumberbatch	1st Dept: 87 AD3d 929 (NY)	denied 12/27/11 (Ciparick, J.)
People v Davis	4th Dept: 87 AD3d 1332 (Onondaga)	denied 12/15/11 (Smith, J.)
People v Dean	1st Dept: 88 AD3d 578 (NY)	denied 12/28/11 (Smith, J.)
People v Delmoral	1st Dept: 87 AD3d 921 (NY)	denied 12/12/11 (Smith, J.)
People v DeVivo (Anthony)	3d Dept: 87 AD3d 794 (Broome)	denied 12/27/11 (Ciparick, J.)
People v DeVivo (Walter)	App Div, 2d Dept: 2011 NY Slip Op 89395(U) (Westchester)	dismissed 12/29/11 (Lippman, Ch. J.)
People v Diaz	1st Dept: 87 AD3d 942 (NY)	denied 12/12/11 (Pigott, J.)
People v Dineen	2d Dept: 87 AD3d 1072 (Orange)	denied 12/14/11 (Grafteo, J.)
People v Doe	4th Dept: 82 AD3d 1595 (Monroe)	denied 12/2/11 (Jones, J.)
People v E-Money	3d Dept: 88 AD3d 1029 (Schenectady)	denied 12/16/11 (Smith, J.)
People v Ephram	1st Dept: 87 AD3d 925 (Bronx)	denied 12/29/11 (Lippman, Ch. J.)
People v Evans	3d Dept: 88 AD3d 1029 (Schenectady)	denied 12/16/11 (Smith, J.)
People v Figgins	4th Dept: 68 AD3d 1823 (Monroe)	denied 12/2/11 (Smith, J.)
People v Flores	2d Dept: 88 AD3d 902 (Queens)	denied 12/15/11 (Grafteo, J.)
People v Fogle	2d Dept: 88 AD3d 738 (Queens)	denied 12/27/11 (Ciparick, J.)
People v Foster	2d Dept: 87 AD3d 299 (Kings)	denied 12/6/11 (Ciparick, J.)
People v Francis	App Div, 1st Dept: 2011 NY Slip Op 86451(U) (NY)	denied 12/15/11 (Grafteo, J.)
People v Gaines	1st Dept: 88 AD3d 467 (NY)	denied 12/6/11 (Smith, J.)
People v Gantt	3d Dept: 84 AD3d 1642 (Clinton)	denied 12/2/11 (Smith, J.)
People v Gates	2d Dept: 88 AD3d 740 (Nassau)	denied 12/27/11 (Ciparick, J.)
People v Gayton	4th Dept: 82 AD3d 1595 (Monroe)	denied 12/2/11 (Jones, J.)
People v Genzale	1st Dept: 88 AD3d 552 (NY)	denied 12/20/11 (Pigott, J.)
People v Gilmer	4th Dept: 87 AD3d 1269 (Erie)	denied 12/20/11 (Pigott, J.)
People v Grays	1st Dept: 88 AD3d 543 (NY)	denied 12/20/11 (Smith, J.)

MEMORANDA

859

People v Griffith	2d Dept: 86 AD3d 649 (Queens)	denied 12/6/11 (Ciparick, J.)
People v Guzzardo	2d Dept: 87 AD3d 1160 (Dutchess)	denied 12/16/11 (Smith, J.)
People v Haji	2d Dept: 87 AD3d 1016 (Queens)	denied 12/6/11 (Smith, J.)
People v Harrington	2d Dept: 88 AD3d 817 (Kings)	denied 12/14/11 (Grafteo, J.)
People v Harris	4th Dept: 77 AD3d 1299 (Erie)	denied 12/2/11 (Smith, J.)
People v Hartman	3d Dept: 86 AD3d 711 (Madison)	denied 12/6/11 (Ciparick, J.)
People v Heidgen	2d Dept: 87 AD3d 1035 (Nassau)	granted 12/12/11 (Grafteo, J.)
People v Hernandez	2d Dept: 88 AD3d 907 (Suffolk)	denied 12/16/11 (Smith, J.)
People v Hickman	2d Dept: 85 AD3d 1057 (Kings)	denied 12/14/11 (Grafteo, J.)
People v Holmes	2d Dept: 88 AD3d 819 (Kings)	denied 12/27/11 (Ciparick, J.)
People v Horlback	1st Dept: 88 AD3d 542 (NY)	denied 12/14/11 (Pigott, J.)
People v Hyra	App Term, 2d Dept: 2011 NY Slip Op 88346(U) (Westchester)	dismissed 12/20/11 (Pigott, J.)
People v Jefferson	2d Dept: 85 AD3d 1058 (Suffolk)	denied 12/19/11 (Jones, J.)
People v Jennings	4th Dept: 87 AD3d 1266 (Onondaga)	denied 12/2/11 (Smith, J.)
People v Joe	4th Dept: 87 AD3d 1266 (Onondaga)	granted 12/16/11 (Grafteo, J.)
People v John	1st Dept: 88 AD3d 491 (NY)	denied 12/14/11 (Pigott, J.)
People v Johnson (Nathaniel)	2d Dept: 87 AD3d 1074 (Suffolk)	denied 12/2/11 (Smith, J.)
People v Johnson (Tyrone)	2d Dept: 87 AD3d 1161 (Queens)	denied 12/15/11 (Grafteo, J.)
People v Jones (Charles)	4th Dept: 87 AD3d 1286 (Erie)	denied 12/27/11 (Ciparick, J.)
People v Jones (Dandre)	3d Dept: 88 AD3d 1029 (Albany)	denied 12/27/11 (Ciparick, J.)
People v Jones (Gerald)	1st Dept: 88 AD3d 512 (NY)	denied 12/6/11 (Smith, J.)
People v Joseph	4th Dept: 87 AD3d 1413 (Monroe)	denied 12/6/11 (Smith, J.)
People v Kearsse	County Ct, 8/1/11 (Onondaga)	denied 12/6/11 (Ciparick, J.)
People v Khan	App Div, 2d Dept: 2011 NY Slip Op 83811(U) (Queens)	dismissed 12/12/11 (Smith, J.)

People v Kohler	2d Dept: 85 AD3d 1203 (Nassau)	denied 12/6/11 (Ciparick, J.)
People v Koso	2d Dept: 87 AD3d 1162 (Suffolk)	denied 12/1/11 (Pigott, J.)
People v Lambertson	4th Dept: 87 AD3d 1313 (Genesee)	denied 12/12/11 (Lippman, Ch. J.)
People v Lampertson	4th Dept: 87 AD3d 1313 (Genesee)	denied 12/12/11 (Lippman, Ch. J.)
People v Laporte	App Div, 1st Dept: 2011 NY Slip Op 86095(U) (NY)	denied 12/28/11 (Smith, J.)
People v LaPuma	2d Dept: 87 AD3d 1162 (Westchester)	denied 12/14/11 (Grafteo, J.)
People v Lester	App Div, 1st Dept: 2011 NY Slip Op 86451(U) (NY)	denied 12/15/11 (Grafteo, J.)
People v Livingston-Boyd	App Term, 1st Dept: 32 Misc 3d 143(A) (Bronx)	denied 12/15/11 (Smith, J.)
People v Locicero	2d Dept: 87 AD3d 1163 (Kings)	denied 12/12/11 (Pigott, J.)
People v Lugo	4th Dept: 87 AD3d 1403 (Monroe)	denied 12/28/11 (Smith, J.)
People v MacFarlane	2d Dept: 87 AD3d 700 (Suffolk)	denied 12/2/11 (Jones, J.)
People v Mackey	1st Dept: 88 AD3d 555 (NY)	denied 12/16/11 (Smith, J.)
People v Magnum	1st Dept: 88 AD3d 467 (NY)	denied 12/6/11 (Smith, J.)
People v Mangum	1st Dept: 88 AD3d 467 (NY)	denied 12/6/11 (Smith, J.)
People v Martinez	App Div, 1st Dept, 9/26/11 (NY)	dismissed 12/14/11 (Grafteo, J.)
People v Matthews	1st Dept: 88 AD3d 575 (NY)	denied 12/14/11 (Grafteo, J.)
People v McFadden	2d Dept: 87 AD3d 554 (Queens)	granted 12/28/11 (Pigott, J.)
People v McFarland	1st Dept: 88 AD3d 547 (NY)	denied 12/20/11 (Pigott, J.)
People v McNeil	2d Dept: 86 AD3d 650 (Nassau)	denied 12/6/11 (Ciparick, J.)
People v Mena	1st Dept: 87 AD3d 946 (NY)	denied 12/6/11 (Smith, J.)
People v Mendez	2d Dept: 85 AD3d 1060 (Queens)	denied 12/6/11 (Ciparick, J.)
People v Michtavy	App Term, 2d Dept: 32 Misc 3d 133(A) (Queens)	denied 12/6/11 (Ciparick, J.)
People v Miller	2d Dept: 88 AD3d 1015 (Kings)	denied 12/15/11 (Grafteo, J.)
People v Mixon	1st Dept: 87 AD3d 919 (NY)	denied 12/20/11 (Pigott, J.)
People v Molina	App Div, 3d Dept: 2011 NY Slip Op 85429(U) (Albany)	denied 12/20/11 (Smith, J.)

MEMORANDA

861

People v Monclova	1st Dept: 89 AD3d 424 (NY)	denied 12/20/11 (Smith, J.)
People v Murder	3d Dept: 87 AD3d 754 (Schenectady)	denied 12/12/11 (Ciparick, J.)
People v Nettles	1st Dept: 88 AD3d 492 (NY)	denied 12/12/11 (Smith, J.)
People v Nichols	4th Dept: 85 AD3d 1655 (Oneida)	denied reconsideration 12/2/11 (Smith, J.)
People v Norton	4th Dept: 87 AD3d 1310 (Monroe)	granted 12/16/11 (Grafteo, J.)
People v Paleo	1st Dept: 88 AD3d 494 (NY)	denied 12/13/11 (Grafteo, J.)
People v Pedroza-Castillo	2d Dept: 87 AD3d 1167 (Queens)	denied 12/27/11 (Ciparick, J.)
People v Perez	2d Dept: 88 AD3d 820 (Kings)	denied 12/14/11 (Pigott, J.)
People v Perl	App Term, 2d Dept: 32 Misc 3d 135(A) (Westchester)	denied 12/6/11 (Ciparick, J.)
People v Preston	2d Dept: 88 AD3d 748 (Queens)	denied 12/28/11 (Pigott, J.)
People v Quiridumbay-Jerez	2d Dept: 88 AD3d 914 (Rockland)	denied 12/13/11 (Grafteo, J.)
People v Richardson	4th Dept: 85 AD3d 1556 (Erie)	denied 12/2/11 (Jones, J.)
People v Riddick	1st Dept: 88 AD3d 516 (NY)	denied 12/27/11 (Ciparick, J.)
People v Rivera (Luis)	2d Dept: 78 AD3d 1203 (Nassau)	denied 12/19/11 (Jones, J.)
People v Rivera (William)	App Term, 2d Dept: 33 Misc 3d 126(A) (Queens)	denied 12/27/11 (Ciparick, J.)
People v Roberts	4th Dept: 87 AD3d 1313 (Oswego)	denied 12/14/11 (Pigott, J.)
People v Rosario	1st Dept: 88 AD3d 530 (NY)	denied 12/13/11 (Grafteo, J.)
People v Samuel	2d Dept: 88 AD3d 1020 (Kings)	denied 12/15/11 (Grafteo, J.)
People v Sanders	4th Dept: 89 AD3d 106 (Monroe)	denied 12/13/11 (Grafteo, J.)
People v Soto	1st Dept: 88 AD3d 553 (Bronx)	denied 12/28/11 (Pigott, J.)
People v Spencer	2d Dept: 87 AD3d 751 (Queens)	granted 12/28/11 (Ciparick, J.)
People v Stevens	3d Dept: 87 AD3d 754 (Schenectady)	denied 12/27/11 (Ciparick, J.)
People v Stewart	App Term, 2d Dept: 32 Misc 3d 133(A) (Queens)	denied 12/28/11 (Ciparick, J.)
People v Stroud	1st Dept: 87 AD3d 917 (NY)	denied 12/13/11 (Grafteo, J.)

People v Stubinger	4th Dept: 87 AD3d 1316 (Ontario)	denied 12/27/11 (Ciparick, J.)
People v Sue Chen	App Term, 2d Dept: 2011 NY Slip Op 81777(U) (Queens)	dismissed 12/14/11 (Jones, J.)
People v Sullivan	1st Dept: 88 AD3d 458 (NY)	denied 12/27/11 (Ciparick, J.)
People v Swinton	1st Dept: 87 AD3d 491 (NY)	denied 12/2/11 (Smith, J.)
People v Taylor (Deandre)	2d Dept: 88 AD3d 821 (Kings)	denied 12/15/11 (Smith, J.)
People v Taylor (Reginald)	4th Dept: 87 AD3d 1310 (Erie)	denied 12/1/11 (Pigott, J.) (Appeal No. 1)
People v Taylor (Reginald)	4th Dept: 87 AD3d 1310 (Erie)	denied 12/1/11 (Pigott, J.) (Appeal No. 2)
People v Thomas	2d Dept: 85 AD3d 1060 (Queens)	denied 12/6/11 (Ciparick, J.)
People v Thornton	2d Dept: 87 AD3d 663 (Dutchess)	denied 12/20/11 (Pigott, J.)
People v Ties	1st Dept: 87 AD3d 946 (NY)	denied 12/13/11 (Grafteo, J.)
People v Tiribio	1st Dept: 88 AD3d 534 (NY)	denied 12/6/11 (Smith, J.)
People v Turane	1st Dept: 88 AD3d 469 (NY)	denied 12/12/11 (Pigott, J.)
People v Vasquez	2d Dept: 87 AD3d 1042 (Queens)	granted 12/13/11 (Grafteo, J.)
People v Wade	3d Dept: 86 AD3d 713 (Ulster)	denied reconsideration 12/27/11 (Ciparick, J.)
People v Walker (Garrett)	4th Dept: 87 AD3d 1352 (Erie)	denied 12/6/11 (Smith, J.)
People v Walker (William)	App Div, 3d Dept: 2011 NY Slip Op 80186(U) (Schenectady)	denied 12/21/11 (Jones, J.)
People v Warren	4th Dept: 87 AD3d 36 (Erie)	granted 12/16/11 (Smith, J.)
People v Washington	App Div, 4th Dept, 11/16/11 (Monroe)	dismissed 12/14/11 (Jones, J.)
People v Watson (Carl)	2d Dept: 84 AD3d 1126 (Kings)	granted 12/30/11 (Lippman, Ch. J.)
People v Watson (Tyrone)	2d Dept: 82 AD3d 1276 (Queens)	granted 12/6/11 (Smith, J.)
People v Weakfall	4th Dept: 87 AD3d 1353 (Monroe)	denied 12/16/11 (Smith, J.)
People v Wesley	1st Dept: 85 AD3d 672 (NY)	denied 12/6/11 (Ciparick, J.)
People v Wicks	App Div, 3d Dept, 9/27/11 (Warren)	denied 12/14/11 (Pigott, J.)

MEMORANDA

863

People v Williams (Andre)	1st Dept: 87 AD3d 942 (NY)	denied 12/12/11 (Pigott, J.)
People v Williams (Timothy)	App Div, 2d Dept: 2011 NY Slip Op 89490(U) (Nassau)	dismissed 12/28/11 (Ciparick, J.)
People v Williams (Travon)	1st Dept: 87 AD3d 938 (NY)	denied 12/20/11 (Smith, J.)
People v Wilson	County Ct, 9/9/11 (Erie)	denied 12/20/11 (Jones, J.)
People v Wimberly	3d Dept: 86 AD3d 806 (Albany)	denied 12/6/11 (Ciparick, J.)
People v Wingfield	1st Dept: 88 AD3d 537 (NY)	denied 12/27/11 (Ciparick, J.)
People v Winter	1st Dept: 88 AD3d 581 (NY)	denied 12/12/11 (Smith, J.)
People v Wolf	4th Dept: 88 AD3d 1266 (Orleans)	denied 12/13/11 (Grafteo, J.)
People v Wolfe	4th Dept: 88 AD3d 1266 (Orleans)	denied 12/13/11 (Grafteo, J.)
People v Wright (Gary)	3d Dept: 88 AD3d 1154 (Albany)	denied 12/20/11 (Smith, J.)
People v Wright (James)	2d Dept: 89 AD3d 874 (Kings)	denied 12/29/11 (Smith, J.)
People v Yancey	1st Dept: 87 AD3d 849 (Bronx)	denied 12/27/11 (Ciparick, J.)
People v Yen Thai	App Term, 2d Dept: 2011 NY Slip Op 81777(U) (Queens)	dismissed 12/14/11 (Jones, J.)
People v Youngblood	4th Dept: 87 AD3d 1412 (Monroe)	denied 12/21/11 (Smith, J.)
People v Yuson	4th Dept: 83 AD3d 1502 (Monroe)	granted 12/20/11 (Smith, J.)

In the Matter of ALBANY LAW SCHOOL et al., Respondents-Appellants, v NEW YORK STATE OFFICE OF MENTAL RETARDATION AND DEVELOPMENTAL DISABILITIES et al., Appellants-Respondents.

Submitted January 3, 2012; decided January 5, 2012

Reported below, 81 AD3d 145.

Motion by NYSARC, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

WILLIAM B. CLARKE, Respondent, v RAFAEL RODRIGUEZ, Appellant.

Submitted November 7, 2011; decided January 5, 2012

Reported below, 73 AD3d 677.

Motion for reargument dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 16 NY3d 815 (2011)].

LISA L. DEVER, Appellant, v MARK DEVITO et al., Respondents.

Submitted September 26, 2011; decided January 5, 2012

Reported below, 84 AD3d 1539.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GLOBAL REINSURANCE CORPORATION-U.S. BRANCH, Formerly Known as GERLING GLOBAL REINSURANCE CORPORATION-U.S. BRANCH, Respondent, v EQUITAS LTD. et al., Appellants.

Submitted January 3, 2012; decided January 5, 2012

Reported below, 82 AD3d 26.

Motion by Society of Lloyd's for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of HAILEY ZZ., a Child Alleged to be Permanently Neglected. TOMPKINS COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; RICKY ZZ., Appellant.

Submitted December 12, 2011; decided January 5, 2012

Reported below, 85 AD3d 1265.

Motion by Legal Aid Bureau of Buffalo, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

HUDSON VALLEY FEDERAL CREDIT UNION, Appellant, v NEW YORK
STATE DEPARTMENT OF TAXATION AND FINANCE et al., Re-
spondents.

Submitted January 3, 2012; decided January 5, 2012

Reported below, 85 AD3d 415.

Motion by Credit Union Association of New York et al. for
leave to appear amici curiae on the appeal herein granted only
to the extent that the proposed brief is accepted as filed. Two
copies of the brief must be served and 19 copies filed within
seven days.

HUDSON VALLEY FEDERAL CREDIT UNION, Appellant, v NEW YORK
STATE DEPARTMENT OF TAXATION AND FINANCE et al., Re-
spondents.

Submitted January 3, 2012; decided January 5, 2012

Reported below, 85 AD3d 415.

Motion by National Association of Federal Credit Unions for
leave to appear amicus curiae on the appeal herein granted only
to the extent that the proposed brief is accepted as filed. Two
copies of the brief must be served and 19 copies filed within
seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EMIL
BEST, Appellant.

Submitted December 12, 2011; decided January 5, 2012

Reported below, 31 Misc 3d 141(A).

Motion for assignment of counsel granted and Kent V. Moston,
Esq., Legal Aid Society of Nassau County, One Helen Keller
Way, Hempstead, New York 11550 assigned as counsel to the ap-
pellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRIS-
TOPHER CLARK, Appellant.

Submitted December 19, 2011; decided January 5, 2012

Reported below, 88 AD3d 527.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALBERTO DE LUNA, Appellant.

Submitted December 19, 2011; decided January 5, 2012

Reported below, 86 AD3d 433.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAREK HYRA, Appellant.

Submitted December 27, 2011; decided January 5, 2012

Reported below, 29 Misc 3d 143(A).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANNY MARTIN, Appellant.

Submitted January 3, 2012; decided January 5, 2012

Reported below, 88 AD3d 473.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LONNIE R. MECKWOOD, Appellant.

Submitted December 19, 2011; decided January 5, 2012

Reported below, 86 AD3d 865.

Motion for assignment of counsel granted and Brent R. Stack, Esq., care of Fitzsimmons, Mack & Mills, P.C., 3223 Church Street, PO Box 811, Valatie, New York 12184 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAUL
TILLMAN, Appellant.

Submitted December 12, 2011; decided January 5, 2012

Reported below, 82 AD3d 509.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEITH
WASHINGTON, Appellant.

Submitted December 12, 2011; decided January 5, 2012

Reported below, 85 AD3d 1303.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE
WATSON, Appellant.

Submitted December 27, 2011; decided January 5, 2012

Reported below, 82 AD3d 1276.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. SHAUN McMANUS, Appellant, v MARTIN F. HORN, Commissioner of the New York City Department of Corrections, Respondent.

Submitted January 3, 2012; decided January 5, 2012

Reported below, 77 AD3d 571.

Motion by New York Civil Liberties Union et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of KELLYANN TOALE, Appellant, v MICHAEL CARAVELLA, Respondent.

Submitted November 14, 2011; decided January 5, 2012

Reported below, 86 AD3d 576.

Motion for leave to appeal dismissed upon the ground that appellant has failed to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2).

In the Matter of JOHN WAYMAN et al., Respondents, v KELLY RAMOS, Appellant, et al., Respondent.

Submitted November 14, 2011; decided January 5, 2012

Reported below, 88 AD3d 1237.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of LAFAYETTE D. YOUNG, JR., a Justice of the Macomb Town Court, St. Lawrence County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted December 27, 2011; decided January 5, 2012

Motion to waive strict compliance with certain requirements concerning the record on review herein granted to the extent that consideration of the determination of the Commission on Judicial Conduct may be prosecuted upon 10 copies of the record on review.

In the Matter of the Estate of ARMENAK AJAMIAN, Deceased. ALICE AJAMIAN, as Administrator of the Estate of ARMENAK AJAMIAN, Deceased, Respondent; ROBERT AJAMIAN, Appellant; TROY SAVINGS BANK et al., Respondents.

Submitted November 21, 2011; decided January 10, 2012

Reported below, 2011 NY Slip Op 86009(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ANONYMOUS, an Attorney and Counselor-at-Law, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted November 21, 2011; decided January 10, 2012

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

ECHOSTAR SATELLITE L.L.C., Appellant, v ESPN INC. et al., Respondents.

Submitted November 28, 2011; decided January 10, 2012

Reported below, 85 AD3d 584.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

KENNETH ENTLER, Appellant, v ERIC KOCH et al., Defendants, and BOY SCOUTS OF AMERICA, Respondent.

Submitted November 21, 2011; decided January 10, 2012

Reported below, 85 AD3d 1098.

Motion, insofar as it seeks reargument of appellant's motion for leave to appeal from the June 2011 Appellate Division order, denied [*see* 17 NY3d 898 (2011)]; motion, insofar as it seeks leave to appeal from the November 2011 stipulation treated as a final judgment, denied.

YVETTE HUFF, Respondent, v ANITA L. RODRIGUEZ, Formerly Known as ANITA L. ROSARIO, et al., Appellants.

Decided January 10, 2012

Reported below, 88 AD3d 1274.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order sought to be reviewed does not necessarily affect the final judgment as required by CPLR 5601 (d) (*see* Karger, Powers of the New York Court of Appeals § 9:5, at 312 [3d ed rev]).

GURUMURTHY KALYANARAM, Appellant, v NEW YORK INSTITUTE OF TECHNOLOGY, Respondent.

Submitted December 5, 2011; decided January 10, 2012

Reported below, 79 AD3d 418.

Motion for reargument of motion for leave to appeal denied [*see* 17 NY3d 712 (2011)].

FRANK D. MAKI, Appellant, v BASSETT HEALTHCARE et al., Respondents.

Submitted November 14, 2011; decided January 10, 2012

Reported below, 85 AD3d 1366.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the portion of the Supreme Court order granting respondents' motion for summary judgment and dismissing the complaint, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining part of the Appellate Division order does not finally determine the action within the meaning of the Constitution.

In the Matter of NEW YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Respondent, to Acquire in Fee Simple Certain Real Property Currently Owned by Fallsite, LLC and Known as 232 Sixth Street, City of Niagara Falls, and Others, Together with All Compensable Interests Therein Currently Owned by Fallsite, LLC, et al., and Any Other Condemnees Who Are Currently Unknown. FALLSITE, LLC, et al., Appellants.

Submitted November 21, 2011; decided January 10, 2012

Reported below, 85 AD3d 1723.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

CAROL RICKLES, Appellant, v MICHAEL RICKLES, Respondent.

Submitted November 28, 2011; decided January 10, 2012

Reported below, 88 AD3d 780.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SUNRISE HARBOR REALTY, LLC, Appellant, v 35TH SUNRISE CORP., Respondent, et al., Defendants. (And a Third-Party Action.)

Submitted November 28, 2011; decided January 10, 2012

Reported below, 86 AD3d 562.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[962 NE2d 278, 938 NYS2d 853]

MARYANN IMPERATO et al., Respondents, v MOUNT SINAI MEDICAL CENTER et al., Appellants.

Decided January 12, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 1, 2011. The Appellate Division affirmed an order of the Supreme Court, New York County (Joan B. Lobis, J.; op 2010 NY Slip Op 33755[U] [2010]), which had granted a motion by plaintiffs to vacate an order precluding their expert witness from testifying at trial and denied a motion by defendants to dismiss the case. The following question was certified by the Appellate Division: “Did this Court properly affirm the Supreme Court’s order vacating the preclusion order against plaintiff, or does *Gibbs* (*Gibbs v St. Barnabas Hospital*, 16 NY3d 74 [2010]) now mandate submission of an affidavit of

merit (as well as reasonable excuse) for default of any type at any point in litigation, not just for failure to submit a bill of particulars or a complaint which were the defaults at issue in *Gibbs, Fiore (Fiore v Galang, 64 NY2d 999 [1985])*, and the authorities cited therein?”

In a medical malpractice action, the Appellate Division concluded that plaintiffs’ counsel’s debilitating illness, coupled with “law office failure,” was a reasonable excuse warranting relief from a preclusion order entered on default. In addition, the Court found that plaintiffs’ expert witness disclosure sufficiently delineated defendants’ alleged departures from accepted medical practice and their causal connection to plaintiffs’ injuries, and that there was no evidence that the failure to timely disclose was willful, contumacious or manifested bad faith.

Imperato v Mount Sinai Med. Ctr., 82 AD3d 414, affirmed.

HEADNOTE

Disclosure — Preclusion Order — Relief from Order — Demonstration of Meritorious Claim

Plaintiffs demonstrated the existence of a meritorious claim for purposes of avoiding a preclusion order in a medical malpractice action by their expert witness disclosure, pursuant to CPLR 3101 (d) (1) (i), detailing the expert medical opinion evidence supporting the claim.

APPEARANCES OF COUNSEL

Wilson, Elser, Moskowitz, Edelman & Dicker LLP, New York City (*Richard E. Lerner* of counsel), for appellants.

Arnold E. DiJoseph, P.C., New York City (*Arnold E. DiJoseph, III*, of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs. The certified question should be answered by stating that the preclusion order was properly vacated.

Under the circumstances of this case, the Appellate Division correctly determined that plaintiffs demonstrated the existence of a meritorious claim for purposes of avoiding preclusion. Specifically, the expert witness disclosure submitted by plaintiffs pursuant to CPLR 3101 (d) (1) (i) detailed the expert medical opinion evidence supporting the claim.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

In the Matter of BRITTANY ANNETTE M., a Child Alleged to be Permanently Neglected. DANIELLE McC., Appellant; EPISCOPAL SOCIAL SERVICES, Respondent.

Submitted November 28, 2011; decided January 12, 2012

Reported below, 88 AD3d 466.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DAMIAN G. and Another, Infants. ONEIDA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JACQUELYN M., Appellant, et al., Respondent.

Submitted October 31, 2011; decided January 12, 2012

Reported below, 88 AD3d 1268.

Motion for leave to appeal granted. Motion for poor person relief granted.

HUDSON VALLEY FEDERAL CREDIT UNION, Appellant, v NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE et al., Respondents.

Submitted January 9, 2012; decided January 12, 2012

Reported below, 85 AD3d 415.

Motion by Federal Housing Finance Agency for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of MARION C.W., a Person Alleged to be Incapacitated. LISA K. et al., Appellants; STEVEN MAGUIRE et al., Respondents. FERN FINKEL et al., Nonparty Respondents.

Submitted November 28, 2011; decided January 12, 2012

Reported below, 83 AD3d 1087, 1089.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

MODERN ART SERVICES, LTD., et al., Appellants, v OCA LONG ISLAND CITY, LLC, Respondent.

Submitted November 21, 2011; decided January 12, 2012

Reported below, 84 AD3d 1040.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Estate of SANDRA MURRAY, Deceased. JEROME MURRAY, Respondent; IVAN O. KLINE, Appellant, et al., Respondents.

Submitted November 21, 2011; decided January 12, 2012

Reported below, 84 AD3d 106; 2011 NY Slip Op 85698(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

NEW YORK STATE PSYCHIATRIC ASSOCIATION, INC., et al., Respondents, v NEW YORK STATE DEPARTMENT OF HEALTH, Appellant.

Submitted September 12, 2011; decided January 12, 2012

Reported below, 71 AD3d 852.

Motion to strike addendum to appellant's reply brief and references thereto in appellant's reply brief granted and this material is deemed stricken.

ERICA L. NIEMANN et al., as Coadministrators of the Estate of
TIMOTHY W. NIEMANN, Deceased, Appellants, v ST. JOSEPH'S
HOSPITAL HEALTH CENTER et al., Respondents, et al., De-
fendants.

Submitted November 28, 2011; decided January 12, 2012

Reported below, 87 AD3d 1395.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

BRUCE OVITZ, Appellant, v BLOOMBERG L.P et al., Respondents.

Submitted January 9, 2012; decided January 12, 2012

Reported below, 77 AD3d 515.

Motion by Sirius XM Radio Inc. for leave to appear amicus
curiae on the appeal herein granted only to the extent that the
proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES
EXTALE, Appellant.

Submitted January 9, 2012; decided January 12, 2012

Reported below, 78 AD3d 1519.

Motion by District Attorneys Association of the State of New
York for leave to appear amicus curiae on the appeal herein
granted only to the extent that the proposed brief is accepted as
filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CALVIN
L. HARRIS, Appellant.

Submitted December 19, 2011; decided January 12, 2012

Reported below, 88 AD3d 83.

Motion for waiver of strict compliance with the requirements
of the Rules of Practice of the Court of Appeals granted only to
the extent that the appeal may be prosecuted upon the original
file and an original and seven copies of appellant's appendix.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN JOSE PEQUE, Also Known as JUAN JOSE PEQUE SICAJAN, Appellant.

Submitted January 9, 2012; decided January 12, 2012

Reported below, 88 AD3d 1024.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. VINCENT ARTIS, Appellant, v JAMES KRALIK et al., Respondents.

Submitted November 21, 2011; decided January 12, 2012

Reported below, 2011 NY Slip Op 66570(U); 2011 NY Slip Op 77485(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JOHN RICHARD, Appellant, v MARY BATRONEY et al., Respondents.

Submitted November 28, 2011; decided January 12, 2012

Reported below, 2011 NY Slip Op 77201(U); 2011 NY Slip Op 83848(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

CAROLINE COMMISSO, Appellant, v STEVEN G. ORSHAN et al., Respondents.

Submitted December 19, 2011; decided January 17, 2012

Reported below, 85 AD3d 845.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's denial of appellant's motion to renew, dismissed upon the ground that such portion of the order does not finally determine

the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

ARLENE S. GARLAND, as Executrix of RICHARD T. SHANOR and GANELLE M. SHANOR, Deceased, Appellant, v RLI INSURANCE COMPANY, Respondent, et al., Defendant.

Submitted December 5, 2011; decided January 17, 2012

Reported below, 79 AD3d 1576.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution. The December 2008 Supreme Court order was the final paper in this action.

THE GOLDMAN SACHS GROUP, INC., Respondent, et al., Plaintiff, v ALMAH LLC, Appellant.

Submitted December 5, 2011; decided January 17, 2012

Reported below, 85 AD3d 424.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GS PLASTICOS LIMITADA, Appellant, v BUREAU VERITAS, Respondent, et al., Defendant.

Submitted December 5, 2011; decided January 17, 2012

Reported below, 80 AD3d 511.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 17 NY3d 714 (2011)].

In the Matter of JAHQUAVIUS W. ORANGE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; QUANTERIA H., Appellant. (Proceeding No. 1.)

In the Matter of JEREMIAH W. ORANGE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; QUANTERIA H., Appellant. (Proceeding No. 2.)

Submitted November 14, 2011; decided January 17, 2012

Reported below, 86 AD3d 576.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2).

In the Matter of JATIE P., a Neglected Child. FRANKLIN COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JOSEPH Q., Appellant. (And Another Related Proceeding.)

Submitted December 12, 2011; decided January 17, 2012

Reported below, 88 AD3d 1178.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

KAI LIN, Appellant, v STRONG HEALTH et al., Respondents. (And Another Action.)

Submitted December 5, 2011; decided January 17, 2012

Reported below, 82 AD3d 1585 (Appeal Nos. 1 and 2).

Motion for reargument of motion for leave to appeal denied [*see* 17 NY3d 899 (2011)].

NIVES MONTERO, Respondent, v CARLOS MONTERO, Appellant.

Submitted November 7, 2011; decided January 17, 2012

Reported below, 85 AD3d 986; 2011 NY Slip Op 83116(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the

meaning of the Constitution; motion for leave to appeal otherwise denied.

LIJO PANGHAT, M.D., Appellant, v NEW YORK DOWNTOWN HOSPITAL, Respondent.

Submitted December 5, 2011; decided January 17, 2012

Reported below, 85 AD3d 473.

Motion for relief ancillary to the motion for leave to appeal herein dismissed upon the ground that it does not lie.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RONALD JACKSON, Appellant, v MARK L. BRADT, as Superintendent of Elmira Correctional Facility, et al., Respondents.

Submitted December 5, 2011; decided January 17, 2012

Motion for leave to appeal dismissed upon the ground that this motion for leave to appeal does not lie from the order of the individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of JOHN RICHARD, Appellant, v CHRISTOPHER LINDQUIST et al., Respondents.

Submitted November 28, 2011; decided January 17, 2012

Reported below, 2011 NY Slip Op 83849(U).

Motion, insofar as it seeks leave to appeal from the September 2011 Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

SARAH SCHOTTENSTEIN, Appellant, v WINDSOR TOV, LLC, et al., Respondents, et al., Defendants.

Submitted November 21, 2011; decided January 17, 2012

Reported below, 85 AD3d 546.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

OSQUGAMA F. SWEZEY, Appellant, v MERRILL LYNCH, PIERCE, FENNER & SMITH INC., Respondent. PHILIPPINE NATIONAL BANK et al., Intervenors-Respondents.

Submitted December 5, 2011; decided January 17, 2012

Reported below, 87 AD3d 119.

Motion to enlarge the record denied.

MARIA SWEZEY, Appellant, v MONTAGUE REHAB & PAIN MANAGEMENT, P.C., et al., Defendants, and SHAMA RASOOL et al., Respondents.

Submitted November 21, 2011; decided January 17, 2012

Reported below, 84 AD3d 779.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming Supreme Court's judgment dismissing the complaint, denied; motion, insofar as it seeks leave to appeal from the other Appellate Division orders, dismissed upon the ground that such orders do not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of WILLIAM B. TAYLOR, Appellant, v ROCHESTER CITY SCHOOL DISTRICT et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted December 12, 2011; decided January 17, 2012

Reported below, 2011 NY Slip Op 75976(U).

Motion for reargument of motion for leave to appeal denied [see 17 NY3d 894 (2011)].

APPEALS WITHDRAWN AND DISCONTINUED

(January 1, 2012 through January 31, 2012)

McCabe v St. Paul Fire & Mar. Ins. Co.	4th Dept: 79 AD3d 1612	1/4/12
Vela v Tower Ins. Co. of N.Y.	2d Dept: 83 AD3d 1050	1/19/12

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2012 through January 31, 2012)

People v Adams	2d Dept: 89 AD3d 859 (Queens)	denied 1/13/12 (Read, J.)
People v Ahmed	2d Dept: 89 AD3d 954 (Kings)	denied 1/24/12 (Smith, J.)
People v Algarin	2d Dept: 89 AD3d 859 (Queens)	denied 1/31/12 (Grafteo, J.)
People v Ali	4th Dept: 89 AD3d 1412 (Erie)	denied 1/24/12 (Smith, J.)
People v Allen (Karsem)	2d Dept: 89 AD3d 741 (Queens)	denied 1/23/12 (Pigott, J.)
People v Badmaxx	3d Dept: 89 AD3d 1243 (Washington)	denied 1/13/12 (Read, J.)
People v Bahamonte	1st Dept: 89 AD3d 512 (NY)	denied 1/19/12 (Pigott, J.)
People v Barbosa	1st Dept: 87 AD3d 918 (Bronx)	denied 1/10/12 (Read, J.)
People v Bartlett	4th Dept: 89 AD3d 1453 (Ontario)	denied 1/25/12 (Pigott, J.)
People v Benoit	2d Dept: 83 AD3d 728 (Dutchess)	denied 1/19/12 (Read, J.)
People v Bermejo	2d Dept: 77 AD3d 965 (Queens)	denied 1/31/12 (Grafteo, J.)
People v Bolling	4th Dept: 89 AD3d 1464 (Monroe)	denied 1/25/12 (Pigott, J.)
People v Borrell	App Div, 2d Dept: 2011 NY Slip Op 91734(U) (Queens)	dismissed 1/27/12 (Lippman, Ch. J.)
People v Borukhova	2d Dept: 89 AD3d 194 (Queens)	denied 1/18/12 (Smith, J.)
People v Brooks	2d Dept: 89 AD3d 746 (Queens)	denied 1/18/12 (Smith, J.)
People v Bryant	4th Dept: 87 AD3d 1270 (Wyoming)	denied 1/10/12 (Read, J.)
People v Burgess	1st Dept: 88 AD3d 469 (NY)	denied 1/18/12 (Lippman, Ch. J.)
People v Burke	1st Dept: 89 AD3d 467 (NY)	denied 1/13/12 (Read, J.)
People v Burnett	2d Dept: 89 AD3d 958 (Queens)	denied 1/26/12 (Smith, J.)

People v Buske	4th Dept: 87 AD3d 1354 (Onondaga)	denied 1/31/12 (Ciparick, J.)
People v Cardova	2d Dept: 88 AD3d 1008 (Queens)	denied 1/10/12 (Read, J.)
People v Chisholm	County Ct, 4/14/11 (Albany)	denied 1/31/12 (Jones, J.)
People v Cisson (Jerome)	4th Dept: 85 AD3d 1611 (Oneida)	denied 1/6/12 (Grafteo, J.)
People v Cisson (Jerome)	4th Dept: 87 AD3d 1417 (Oneida)	denied 1/31/12 (Grafteo, J.)
People v Clark	App Div, 2d Dept: 2011 NY Slip Op 93607(U) (Suffolk)	dismissed 1/31/12 (Jones, J.)
People v Cochran	1st Dept: 88 AD3d 555 (NY)	denied 1/19/12 (Pigott, J.)
People v Coffey	3d Dept: 77 AD3d 1202 (Albany)	denied 1/26/12 (Smith, J.)
People v Colon	App Div, 1st Dept, 10/14/11 (NY)	dismissed 1/23/12 (Read, J.)
People v Coulibaly	4th Dept: 89 AD3d 1453 (Erie)	denied 1/10/12 (Read, J.)
People v Cruz	1st Dept: 88 AD3d 540 (NY)	denied 1/19/12 (Pigott, J.)
People v Danford	3d Dept: 88 AD3d 1064 (Cortland)	denied 1/10/12 (Read, J.)
People v D'Antuono	4th Dept: 87 AD3d 1412 (Niagara)	denied 1/23/12 (Read, J.)
People v Deoude	County Ct, 6/7/11 (Monroe)	denied 1/19/12 (Lippman, Ch. J.)
People v Diallo	1st Dept: 88 AD3d 511 (Bronx)	denied 1/31/12 (Ciparick, J.)
People v Diaz	2d Dept: 85 AD3d 1047 (Kings)	granted 1/19/12 (Pigott, J.)
People v Dominguez	2d Dept: 88 AD3d 901 (Kings)	denied 1/10/12 (Read, J.)
People v Douglas	3d Dept: 89 AD3d 1147 (Ulster)	denied 1/11/12 (Grafteo, J.)
People v Dove	3d Dept: 86 AD3d 715 (Broome)	denied reconsideration 1/18/12 (Smith, J.)
People v Emanuel	4th Dept: 89 AD3d 1481 (Wayne)	denied 1/26/12 (Smith, J.)
People v Ewing	App Div, 2d Dept: 2011 NY Slip Op 85950(U) (Kings)	denied 1/11/12 (Grafteo, J.)
People v Fagan	1st Dept: 88 AD3d 465 (NY)	denied 1/10/12 (Read, J.)
People v Fernandez	1st Dept: 88 AD3d 620 (Bronx)	denied 1/6/12 (Grafteo, J.)
People v Fields	2d Dept: 89 AD3d 861 (Westchester)	denied 1/27/12 (Pigott, J.)

MEMORANDA

883

People v Fisher	3d Dept: 89 AD3d 1135 (Chemung)	denied 1/31/12 (Ciparick, J.)
People v Florestal	1st Dept: 89 AD3d 641 (NY)	denied 1/12/12 (Grafteo, J.)
People v Friedman	App Div, 2d Dept: 2011 NY Slip Op 92941(U) (Queens)	dismissed 1/11/12 (Jones, J.)
People v Frontis	1st Dept: 89 AD3d 414 (NY)	denied 1/19/12 (Lippman, Ch. J.)
People v Fuentes	2d Dept: 88 AD3d 904 (Kings)	denied 1/12/12 (Grafteo, J.)
People v Garcia (Ediberto)	2d Dept: 89 AD3d 959 (Queens)	denied 1/25/12 (Pigott, J.)
People v Garcia (Miguel)	1st Dept: 85 AD3d 28 (Bronx)	granted 1/18/12 (Smith, J.)
People v Garrett	4th Dept: 88 AD3d 1253 (Monroe)	denied 1/31/12 (Ciparick, J.)
People v Gillespie	1st Dept: 88 AD3d 539 (NY)	denied ¹ 1/24/12 (Read, J.)
People v Gousse	App Div, 2d Dept: 2011 NY Slip Op 92721(U) (Nassau)	dismissed 1/30/12 (Ciparick, J.)
People v Gray	1st Dept: 87 AD3d 457 (NY)	denied 1/18/12 (Lippman, Ch. J.)
People v Gunter	1st Dept: 89 AD3d 461 (Bronx)	denied 1/26/12 (Smith, J.)
People v Haley	County Ct, 11/21/11 (Rensselaer)	denied 1/31/12 (Grafteo, J.)
People v Hall	2d Dept: 88 AD3d 906 (Suffolk)	denied 1/11/12 (Grafteo, J.)
People v Hamby	1st Dept: 87 AD3d 929 (NY)	denied 1/31/12 (Ciparick, J.)
People v Hanks	4th Dept: 90 AD3d 1592 (Onondaga)	denied 1/31/12 (Ciparick, J.)
People v Harris	App Div, 1st Dept: 2011 NY Slip Op 83746(U) (NY)	dismissed 1/9/12 (Jones, J.)
People v Hawthorne	2d Dept: 85 AD3d 819 (Queens)	denied 1/18/12 (Lippman, Ch. J.)
People v Hershey	4th Dept: 85 AD3d 1661 (Ontario)	denied 1/19/12 (Lippman, Ch. J.)
People v Hill	1st Dept: 90 AD3d 457 (NY)	denied 1/23/12 (Lippman, Ch. J.)
People v Hira	App Term, 2d Dept: 32 Misc 3d 129(A) (Nassau)	denied 1/10/12 (Read, J.)
People v Hodge (Shakeymo)	4th Dept: 85 AD3d 1680 (Steuben)	denied 1/18/12 (Lippman, Ch. J.)
People v Hodge (Shakeymo)	4th Dept: 85 AD3d 1681 (Steuben)	denied 1/18/12 (Lippman, Ch. J.)
People v Holmes	1st Dept: 89 AD3d 508 (NY)	denied 1/13/12 (Read, J.)

1. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Rodriguez* (88 AD3d 557 [2011], *lv granted* 18 NY3d 886 [2012]).

People v Hunter	4th Dept: 89 AD3d 1494 (Onondaga)	denied 1/18/12 (Smith, J.)
People v Israel	2d Dept: 87 AD3d 1161 (Kings)	denied 1/23/12 (Pigott, J.)
People v Jackson	1st Dept: 88 AD3d 451 (NY)	denied 1/10/12 (Read, J.)
People v Johnson	2d Dept: 89 AD3d 863 (Nassau)	denied 1/11/12 (Grafteo, J.)
People v Jones	1st Dept: 89 AD3d 416 (NY)	denied 1/23/12 (Pigott, J.)
People v Jordan	1st Dept: 88 AD3d 580 (NY)	denied 1/11/12 (Grafteo, J.)
People v Joseph	1st Dept: 88 AD3d 542 (NY)	denied 1/23/12 (Read, J.)
People v Kennedy	App Div, 3d Dept: 2011 NY Slip Op 88902(U) (Chemung)	denied 1/31/12 (Grafteo, J.)
People v Khan (Abu)	2d Dept: 88 AD3d 1014 (Queens)	denied 1/19/12 (Smith, J.)
People v Khan (Hafiz)	App Term, 2d Dept: 31 Misc 3d 130(A) (Queens)	denied 1/31/12 (Jones, J.)
People v Khan (Pheod)	2d Dept: 89 AD3d 750 (Kings)	denied 1/12/12 (Grafteo, J.)
People v Lopez	2d Dept: 85 AD3d 1059 (Kings)	denied 1/18/12 (Lippman, Ch. J.)
People v Madera	2d Dept: 88 AD3d 1015 (Suffolk)	denied 1/11/12 (Grafteo, J.)
People v Maldonado	1st Dept: 88 AD3d 454 (NY)	denied 1/10/12 (Read, J.)
People v McCrary	2d Dept: 89 AD3d 752 (Nassau)	denied 1/11/12 (Grafteo, J.)
People v McFadden	1st Dept: 90 AD3d 435 (NY)	denied 1/31/12 (Grafteo, J.)
People v McKinney	App Div, 2d Dept: 2011 NY Slip Op 91279(U) (Dutchess)	dismissed 1/23/12 (Pigott, J.)
People v McNair	App Div, 4th Dept, 10/12/11 (Erie)	dismissed 1/10/12 (Read, J.)
People v McNeil	App Div, 1st Dept: 2011 NY Slip Op 84936(U) (NY)	denied 1/31/12 (Ciparick, J.)
People v McRae	1st Dept: 88 AD3d 552 (NY)	denied 1/31/12 (Ciparick, J.)
People v Milsner	App Term, 2d Dept: 2011 NY Slip Op 52496(U) (Westchester)	denied 1/27/12 (Pigott, J.)
People v Montes	1st Dept: 88 AD3d 466 (NY)	denied 1/23/12 (Read, J.)
People v Mora	App Div, 1st Dept: 2010 NY Slip Op 88531(U) (Bronx)	denied 1/27/12 (Pigott, J.)
People v Morales	1st Dept: 89 AD3d 546 (NY)	denied 1/23/12 (Lippman, Ch. J.)
People v Morton	3d Dept: 84 AD3d 1507 (Schenectady)	denied 1/18/12 (Lippman, Ch. J.)

MEMORANDA

885

People v Moss	4th Dept: 89 AD3d 1526 (Erie)	denied 1/27/12 (Pigott, J.)
People v Mullings	2d Dept: 88 AD3d 745 (Kings)	denied 1/10/12 (Read, J.)
People v Nelson	1st Dept: 89 AD3d 433 (Bronx)	denied 1/31/12 (Grafteo, J.)
People v Newland	1st Dept: 87 AD3d 941 (NY)	denied 1/18/12 (Read, J.)
People v Nunes (Antonio)	4th Dept: 89 AD3d 1559 (Erie)	denied 1/12/12 (Grafteo, J.)
People v Nunes (Antonio)	4th Dept: 89 AD3d 1560 (Erie)	denied 1/12/12 (Grafteo, J.)
People v O'Conner	1st Dept: 90 AD3d 431 (NY)	denied 1/26/12 (Smith, J.)
People v O'Connor	1st Dept: 90 AD3d 431 (NY)	denied 1/26/12 (Smith, J.)
People v Oliva	1st Dept: 88 AD3d 598 (Bronx)	denied 1/31/12 (Ciparick, J.)
People v Ortiz	4th Dept: 89 AD3d 1482 (Oneida)	denied 1/24/12 (Smith, J.)
People v Pacheco	1st Dept: 88 AD3d 584 (Bronx)	denied 1/18/12 (Smith, J.)
People v Pagan	3d Dept: 87 AD3d 1181 (Fulton)	denied 1/10/12 (Read, J.)
People v Paige	2d Dept: 88 AD3d 912 (Kings)	denied ² 1/12/12 (Grafteo, J.)
People v Parker-Davidson	2d Dept: 89 AD3d 1114 (Kings)	denied 1/31/12 (Smith, J.)
People v Patterson	2d Dept: 89 AD3d 870 (Kings)	denied 1/10/12 (Read, J.)
People v Peralta	1st Dept: 87 AD3d 939 (NY)	denied 1/10/12 (Read, J.)
People v Perkins	2d Dept: 88 AD3d 820 (Kings)	denied 1/11/12 (Read, J.)
People v Perry	2d Dept: 89 AD3d 961 (Queens)	denied 1/12/12 (Grafteo, J.)
People v Peterkin	4th Dept: 89 AD3d 1455 (Monroe)	denied 1/10/12 (Read, J.)
People v Pina	2d Dept: 88 AD3d 1008 (Queens)	denied 1/10/12 (Read, J.)
People v Pordy	2d Dept: 88 AD3d 746 (Rockland)	denied 1/27/12 (Lippman, Ch. J.)
People v Prevorse	4th Dept: 89 AD3d 1411 (Monroe)	denied 1/31/12 (Smith, J.)
People v Ramos	App Div, 1st Dept: 2011 NY Slip Op 82926(U) (Bronx)	dismissed 1/11/12 (Read, J.)
People v Robinson	1st Dept: 89 AD3d 642 (NY)	denied 1/12/12 (Grafteo, J.)

2. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Smith* (75 AD3d 420 [2010], *aff'd* 18 NY3d 588 [2012]).

People v Rodriguez	1st Dept: 88 AD3d 557 (NY)	granted 1/20/12 (Pigott, J.)
People v Romero	2d Dept: 88 AD3d 1020 (Kings)	denied 1/19/12 (Read, J.)
People v Sanchez	2d Dept: 88 AD3d 1022 (Nassau)	denied 1/18/12 (Read, J.)
People v Santiago (Enrique)	1st Dept: 88 AD3d 619 (Bronx)	denied 1/19/12 (Read, J.)
People v Santiago (Nixzaliz)	2d Dept: 87 AD3d 707 (Kings)	denied 1/10/12 (Read, J.)
People v Scala	2d Dept: 88 AD3d 916 (Rockland)	denied 1/23/12 (Read, J.)
People v Scott	County Ct, 9/19/11 (Monroe)	denied 1/31/12 (Ciparick, J.)
People v Sessions	App Div, 4th Dept, 11/10/11 (Erie)	denied 1/18/12 (Smith, J.)
People v Sharpe (Dawson)	2d Dept: 88 AD3d 821 (Queens)	denied 1/18/12 (Smith, J.)
People v Sharpe (Jerome)	2d Dept: 87 AD3d 1168 (Queens)	denied 1/9/12 (Jones, J.)
People v Shoga	3d Dept: 89 AD3d 1225 (Broome)	denied 1/24/12 (Smith, J.)
People v Sims (Dorcene)	1st Dept: 88 AD3d 576 (NY)	denied 1/23/12 (Pigott, J.)
People v Sims (Synell)	1st Dept: 88 AD3d 548 (NY)	denied 1/10/12 (Read, J.)
People v Smalls	2d Dept: 83 AD3d 1103 (Queens)	denied 1/19/12 (Lippman, Ch. J.)
People v Smith	4th Dept: 89 AD3d 1472 (Erie)	denied 1/23/12 (Pigott, J.)
People v Spann	1st Dept: 88 AD3d 597 (NY)	denied 1/31/12 (Ciparick, J.)
People v Springer	1st Dept: 89 AD3d 493 (NY)	denied 1/18/12 (Smith, J.)
People v Stanford	4th Dept: 87 AD3d 1367 (Monroe)	denied 1/31/12 (Ciparick, J.)
People v Stilts	4th Dept: 86 AD3d 927 (Steuben)	denied 1/23/12 (Read, J.)
People v Sweeper	App Div, 1st Dept: 2011 NY Slip Op 86906(U) (NY)	denied 1/26/12 (Smith, J.)
People v Szyszkowski	App Div, 4th Dept, 11/18/11 (Cattaraugus)	denied 1/4/12 (Grafteo, J.)
People v Thomas	App Div, 1st Dept: 2011 NY Slip Op 82926(U) (Bronx)	dismissed 1/11/12 (Read, J.)
People v Torres	1st Dept: 90 AD3d 420 (Bronx)	denied 1/27/12 (Pigott, J.)
People v Turner	1st Dept: 84 AD3d 649 (Bronx)	denied 1/19/12 (Smith, J.)
People v Valdez (Omar)	App Div, 1st Dept: 2010 NY Slip Op 88531(U) (Bronx)	denied 1/27/12 (Pigott, J.)

MEMORANDA

887

People v Valdez (Santiago)	2d Dept: 85 AD3d 1067 (Queens)	denied 1/19/12 (Smith, J.)
People v Valette	1st Dept: 88 AD3d 461 (NY)	denied 1/19/12 (Smith, J.)
People v VanDeViver	App Div, 4th Dept, 7/29/11 (Oswego)	denied reconsideration 1/19/12 (Read, J.)
People v Vanfleet	County Ct, 10/26/11 (Greene)	dismissed 1/30/12 (Grafteo, J.)
People v Velez	1st Dept: 89 AD3d 433 (NY)	denied 1/12/12 (Grafteo, J.)
People v Viera	1st Dept: 89 AD3d 509 (NY)	denied 1/12/12 (Grafteo, J.)
People v Walker (Samuel)	4th Dept: 88 AD3d 1287 (Erie)	granted 1/9/12 (Grafteo, J.)
People v Walker (William)	App Div, 3d Dept: 2011 NY Slip Op 88336(U) (Ulster)	dismissed 1/18/12 (Smith, J.)
People v Walker (William)	App Div, 3d Dept: 2011 NY Slip Op 91290(U) (Ulster)	dismissed 1/18/12 (Smith, J.)
People v Washington	1st Dept: 89 AD3d 531 (NY)	denied 1/23/12 (Pigott, J.)
People v Watts	2d Dept: 89 AD3d 965 (Kings)	denied 1/26/12 (Smith, J.)
People v Weaver	2d Dept: 89 AD3d 772 (Kings)	denied 1/19/12 (Pigott, J.)
People v White	3d Dept: 84 AD3d 1641 (St. Lawrence)	denied 1/19/12 (Lippman, Ch. J.)
People v Williams (David)	App Div, 2d Dept: 2011 NY Slip Op 91509(U) (Westchester)	dismissed 1/27/12 (Pigott, J.)
People v Williams (DeAndre)	App Div, 2d Dept: 2011 NY Slip Op 91509(U) (Westchester)	dismissed 1/27/12 (Pigott, J.)
People v Williams (DeAndre)	App Div, 2d Dept: 2011 NY Slip Op 92960(U) (Westchester)	dismissed 1/31/12 (Pigott, J.)
People v Williams (Jarquell)	3d Dept: 89 AD3d 1222 (Albany)	denied 1/26/12 (Smith, J.)
People v Williams (Kevin)	2d Dept: 88 AD3d 917 (Queens)	denied 1/19/12 (Pigott, J.)
People v Wine	1st Dept: 89 AD3d 465 (NY)	denied 1/31/12 (Smith, J.)
People v Woodrich	4th Dept: 87 AD3d 1302 (Genesee)	denied 1/10/12 (Read, J.)
People v World	2d Dept: 89 AD3d 966 (Kings)	denied 1/27/12 (Pigott, J.)
People v Zuke	4th Dept: 87 AD3d 1290 (Ontario)	denied 1/9/12 (Jones, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(January 1, 2012 through January 31, 2012)

People v Allen (Keagan) 2d Dept: 89 AD3d 742 (Dutchess)

granted 1/30/12
(Balkin, J.)

[963 NE2d 1232, 940 NYS2d 531]

In the Matter of DANIEL WILLIAMS, Appellant, v BRIAN FISCHER,
Commissioner of the Department of Correctional Services,
Respondent.

Argued January 9, 2012; decided February 9, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered July 1, 2010, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Chemung County). The Appellate Division confirmed a determination of the Commissioner of Correctional Services which had found petitioner guilty of violating certain prison disciplinary rules, and dismissed the petition.

Matter of Williams v Fischer, 75 AD3d 706, affirmed.

HEADNOTE**Prisons and Prisoners — Discipline of Inmates — Confidential Informant**

The Appellate Division's judgment confirming a determination in an inmate disciplinary hearing finding petitioner guilty of violating prison rules prohibiting assault and violent conduct was affirmed notwithstanding that the hearing officer relied principally on detailed information from a confidential informant and declined to call as a witness a correction officer who petitioner thought might corroborate his testimony concerning his whereabouts. Information from a confidential informant may constitute substantial evidence to support a prison disciplinary determination so long as the hearing officer makes an independent assessment of the informant's reliability. Here, the hearing officer's inquiry established that the confidential account was detailed and specific; that there were valid reasons to conclude that the informant was reliable; and that there was no reason to think that the informant was motivated by a promise of reward from the prison officials or a personal vendetta against petitioner. Further, the hearing officer did not abuse his discretion when he declined to call as a witness an additional correction officer

* Includes only applications that were granted.

from whom petitioner sought testimony since the correction officer responsible for monitoring inmate movement to and from petitioner's cell block on the day in question testified that he did not maintain a written record of the time when an inmate issued a pass comes back to the cell block, and that he did not recall seeing petitioner return. In any event, testimony about petitioner's whereabouts at one time would not preclude his presence in the location where the assault occurred an hour later.

APPEARANCES OF COUNSEL

Prisoners' Legal Services of New York, Albany (James M. Bogin and Karen Murtagh-Monks of counsel), for appellant.

Eric T. Schneiderman, Attorney General, Albany (Marcus J. Mastracco, Martin A. Hotvet, Andrea Oser and Barbara D. Underwood of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be affirmed, without costs.

Petitioner Daniel Williams, an inmate at the Elmira Correctional Facility, was served with a misbehavior report charging him with violating prison rules prohibiting assault and violent conduct. These charges arose from an attack on an inmate who suffered numerous cutting wounds while he was in the "laundry corridor," which he passed through on his way back to his cell block from the package room. The attack occurred at 10:30 A.M. Following a tier III disciplinary hearing, the hearing officer found petitioner guilty of the charges. He assessed a penalty of 12 months in the Special Housing Unit, and recommended 12 months' loss of good time. The hearing officer relied principally on detailed information from a confidential informant.

After an unsuccessful administrative appeal, petitioner brought this CPLR article 78 proceeding. He argued that the hearing officer did not make a meaningful independent assessment of the confidential information's reliability, and improperly declined to call as a witness a correction officer who petitioner thought might corroborate his testimony that he had returned from the infirmary to his cell at 9:30 A.M., an hour before the assault occurred. The Appellate Division confirmed the determination and dismissed the petition, concluding that "[t]he misbehavior report, the hearing testimony and the confidential testimony and documents reviewed by the Hearing Officer in camera provide[d] substantial evidence to support the determination of guilt" (75 AD3d 706 [3d Dept 2010]).

We now affirm. Information from a confidential informant may constitute substantial evidence to support a prison disciplinary determination so long as the hearing officer makes an independent assessment of the informant's reliability. In the circumstances of this case, the hearing officer adequately questioned the correction officer who interviewed the confidential informant so as to gauge the basis for the informant's knowledge of the assault and his reliability (*see Matter of Abdur-Raheem v Mann*, 85 NY2d 113, 120-121 [1995]). The inquiry established that the confidential account was detailed and specific; that there were valid reasons to conclude that the informant was reliable; and that there was no reason to think that the informant was motivated by a promise of reward from the prison officials or a personal vendetta against petitioner. Further, the hearing officer did not abuse his discretion when he declined to call as a witness the additional correction officer from whom petitioner sought testimony. The correction officer responsible for monitoring inmate movement to and from petitioner's cell block on the day in question testified that he does not maintain a written record of the time when an inmate issued a pass comes back to the cell block, and that he did not recall seeing petitioner return. In any event, as the hearing officer observed, testimony about petitioner's whereabouts at 9:30 A.M. would not preclude his presence in the "laundry corridor" at 10:30 A.M.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Judgment affirmed, without costs, in a memorandum.

[963 NE2d 1234, 940 NYS2d 533]

In the Matter of the Claim of KATHLEEN F. CAPPELLINO, Appellant, v BAUMANN & SONS BUS COMPANY et al., Respondents.
WORKERS' COMPENSATION BOARD, Respondent.

Argued January 5, 2012; decided February 9, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 19, 2008. The Appellate Division affirmed a decision of the Workers' Compensation Board

which had ruled that claimant's decedent did not sustain a causally related injury, and denied the claim for workers' compensation death benefits.

Matter of Cappellino v Baumann & Sons Bus Co., 52 AD3d 1058, reversed.

HEADNOTE

Workers' Compensation — Causal Relation — Employer's Failure to File Notice of Controversy

In a workers' compensation case in which it was undisputed that the employer did not timely file its notice of controversy (*see* Workers' Compensation Law § 25 [2] [b]) and there was no showing of good cause or other reason to excuse the failure, the employer should have been precluded from offering its physician's testimony to dispute claimant's evidence on the issue of causation. Accordingly, on remand the Workers' Compensation Board must determine, without regard to the employer's proof, whether claimant, in the first instance, demonstrated that the decedent's death was work-related.

APPEARANCES OF COUNSEL

Law Office of Joel M. Gluck, Brooklyn (*Joel M. Gluck* of counsel), for appellant.

Cherry, Edson & Kelly, LLP, Carle Place (*David W. Faber* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the case remitted to that court to remand to the Workers' Compensation Board for further proceedings in accordance with the following memorandum.

John Cappellino was employed by Baumann & Sons Bus Company as a bus driver. In July 2000, while supervising a van and bus wash, he suffered a fatal heart attack. Claimant, the decedent's wife, brought a claim for death benefits under the Workers' Compensation Law.

A Workers' Compensation Law Judge found that the employer failed to file its notice of controversy (C-7) within 25 days of the mailing of the notice that the case had been indexed, as required by Workers' Compensation Law § 25 (2) (b). That provision provides, in relevant part, as follows:

“Failure to file the notice of controversy within the prescribed twenty-five day time limit shall bar the

employer and its insurance carrier from pleading that the injured person was not at the time of the accident an employee of the employer, or that the employee did not sustain an accidental injury, or that the injury did not arise out of and in the course of the employment.”

Nevertheless, a hearing was held at which a physician retained by the employer was permitted to testify that, in his opinion, decedent’s work activity was not a precipitating cause of his death. That was error.

On appeal, the Workers’ Compensation Board found that the employer’s physician provided contrary medical evidence to the claimant’s proof and demonstrated a significant issue as to the accuracy of the factual history relied upon by the claimant’s doctor. Based on this finding, it concluded that further development of the issue of causal relationship was warranted and the case was referred to an Impartial Specialist, who considered, among other things, the testimony of the employer’s physician. The Impartial Specialist opined that the “evidence for causal relation to work” was inadequate. Both the Workers’ Compensation Board and the Appellate Division later relied on these findings in holding that decedent’s death was not causally related to his work.

Here, there is an undisputed finding that the employer untimely filed the notice of controversy and there was no showing of good cause or other reason to excuse the failure. Thus, the employer should have been precluded from offering its physician’s testimony to dispute claimant’s evidence on the issue of causation. The Board must determine, without regard to the employer’s proof, whether claimant, in the first instance, demonstrated that the decedent’s death was work-related.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

ALTSHULER SHAHAM PROVIDENT FUNDS, LTD., Appellant, v GML TOWER LLC, et al., Defendants, and THE PIKE COMPANY, INC., et al., Respondents.

Submitted December 12, 2011; decided February 9, 2012

Reported below, 83 AD3d 1563.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ANDREW WILLIAM V. WESTCHESTER COUNTY
DEPARTMENT OF SOCIAL SERVICES, Respondent; CHANTAL
JEAN G., Appellant. (And Another Proceeding.)

Submitted December 12, 2011; decided February 9, 2012

Reported below, 2011 NY Slip Op 63243(U).

Motion for reargument of motion for leave to appeal denied
[see 17 NY3d 947 (2011)].

DANIELLE BITON, Appellant, et al., Plaintiff, v ALOFT CORPORATE
TRAVEL, INC., et al., Respondents.

Submitted November 7, 2011; decided February 9, 2012

Reported below, 2008 NY Slip Op 79906(U).

Motion for reargument of motion for leave to appeal denied
[see 17 NY3d 844 (2011)].

DANIELLE BITON et al., Appellants, v AMEENA MEER et al.,
Respondents.

Submitted November 7, 2011; decided February 9, 2012

Reported below, 2010 NY Slip Op 60102(U).

Motion for reargument of motion for leave to appeal denied
[see 17 NY3d 845 (2011)].

CRYSTAL BITON, Also Known as SAPHYRE REDFORD, et al., Appel-
lants, v STATE FARM INSURANCE COMPANY et al., Respon-
dents.

Submitted November 7, 2011; decided February 9, 2012

Reported below, 2008 NY Slip Op 88892(U).

Motion for reargument of motion for leave to appeal denied
[see 17 NY3d 845 (2011)].

CRYSTAL BITON, Also Known as SAPHYRE REDFORD, Appellant, v
JOE TURCO et al., Respondents.

Submitted November 7, 2011; decided February 9, 2012

Reported below, 2008 NY Slip Op 88890(U).

Motion for reargument of motion for leave to appeal denied
[see 17 NY3d 845 (2011)].

In the Matter of MICHAEL LESHER, Appellant, v CHARLES J.
HYNES, as District Attorney of Kings County, New York, et
al., Respondents.

Submitted January 23, 2012; decided February 9, 2012

Reported below, 80 AD3d 611.

Motion by New York Civil Liberties Union for leave to appear
amicus curiae on the appeal herein granted only to the extent
that the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TREVIS
D. BAKER, Appellant. (Appeal No. 1.)

Submitted February 6, 2012; decided February 9, 2012

Reported below, 82 AD3d 1656.

Motion for assignment of counsel granted and Timothy P.
Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh
Street, Rochester, New York 14614 assigned as counsel to the
appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TREVIS
D. BAKER, Appellant. (Appeal No. 2.)

Submitted February 6, 2012; decided February 9, 2012

Reported below, 82 AD3d 1657.

Motion for assignment of counsel granted and Timothy P.
Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh
Street, Rochester, New York 14614 assigned as counsel to the
appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT BARKSDALE, Appellant.

Submitted February 6, 2012; decided February 9, 2012

Reported below, 2011 NY Slip Op 72276(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DALE BRADLEY, Appellant.

Submitted January 23, 2012; decided February 9, 2012

Reported below, 83 AD3d 1444.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DONALD M. DOVE, Appellant.

Submitted January 17, 2012; decided February 9, 2012

Reported below, 89 AD3d 1153.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COREY GAMBLE, Appellant.

Submitted January 9, 2012; decided February 9, 2012

Reported below, 72 AD3d 544.

Motion to supplement pro se appendix granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BRANDON McFADDEN, Respondent.

Submitted February 6, 2012; decided February 9, 2012

Reported below, 87 AD3d 554.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARNELL NORTON, Appellant.

Submitted January 23, 2012; decided February 9, 2012

Reported below, 87 AD3d 1310.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL PALMER, Appellant.

Submitted February 6, 2012; decided February 9, 2012

Reported below, 88 AD3d 676.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent-Appellant, v CHRISTOPHER PERINO, Appellant-Respondent.

Submitted January 17, 2012; decided February 9, 2012

Reported below, 76 AD3d 456.

Motion to supplement the record denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL VASQUEZ, Appellant.

Submitted January 17, 2012; decided February 9, 2012

Reported below, 87 AD3d 1042.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New

York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAMUEL WALKER, Appellant.

Submitted January 30, 2012; decided February 9, 2012

Reported below, 88 AD3d 1287.

Motion for assignment of counsel granted and David C. Schopp, Esq., the Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARL WATSON, Appellant.

Submitted January 23, 2012; decided February 9, 2012

Reported below, 84 AD3d 1126.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MORRIS B. YUSON, Appellant.

Submitted January 23, 2012; decided February 9, 2012

Reported below, 83 AD3d 1502.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

FREDA GATES POZEFSKY, Appellant, v RICHARD T. AULISI et al., Respondents, et al., Defendants.

Submitted December 5, 2011; decided February 9, 2012

Reported below, 79 AD3d 467; 2011 NY Slip Op 62755(U).

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of BENJAMIN SEEGARS, Appellant, v BRIAN S. FISCHER, as Commissioner of Correctional Services, et al., Respondents.

Submitted October 24, 2011; decided February 9, 2012

Reported below, 84 AD3d 1653.

Motion for reargument of motion for leave to appeal denied [*see* 17 NY3d 711 (2011)].

JILL WILLIAMS et al., Respondents, v STATE OF NEW YORK, Appellant.

Submitted February 6, 2012; decided February 9, 2012

Reported below, 84 AD3d 412.

Motion by Marvin Bernstein, Director of Mental Hygiene Legal Service, First Judicial Department, et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of WORLD TRADE CENTER BOMBING LITIGATION. STEERING COMMITTEE et al., Respondents, v THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY, Appellant.

Submitted October 31, 2011; decided February 9, 2012

Reported below, 51 AD3d 337.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 17 NY3d 428 (2011)].

Concur: Judges CIPARICK, GRAFFEO, READ, PIGOTT, JONES, PRUDENTI* and MERCURE.*

Taking no part: Chief Judge LIPPMAN and Judge SMITH.

* Designated pursuant to NY Constitution, article VI, § 2.

PINHAS ZACHERY, Respondent, v CRYSTAL BITON, Appellant.

Submitted November 7, 2011; decided February 9, 2012

Reported below, 2010 NY Slip Op 60092(U).

Motion for reargument of motion for leave to appeal denied
[see 17 NY3d 850 (2011)].

[963 NE2d 785, 940 NYS2d 208]

VBH LUXURY, INCORPORATED, Plaintiff, v 940 MADISON ASSOCI-
ATES LLC, Defendant and Third-Party Plaintiff-Respondent.
EXCELSIOR INSURANCE COMPANY, Third-Party Defendant-
Appellant, et al., Third-Party Defendant.

Decided February 14, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 14, 2011. The Appellate Division (1) reversed, on the law, a judgment (denominated an order) of the Supreme Court, New York County (Debra A. James, J.), which had declared that the third-party plaintiff's claims were excluded from coverage under the policy issued by the third-party defendant Excelsior Insurance Company, (2) vacated the declaration, and (3) declared that the third-party plaintiff's claims were not excluded from coverage under the policy. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of the Supreme Court, properly made?"

VBH Luxury, Inc. v 940 Madison Assoc. LLC, 83 AD3d 515, reversed.

HEADNOTE

Insurance — Duty to Defend and Indemnify — Additional Insured under Commercial General Liability Policy

An insurer was not obligated to defend a landlord in an underlying action where the landlord was an additional insured under a commercial general liability policy issued by the insurer to plaintiff tenant "only with respect to liability arising out of the ownership, maintenance or use of that part of the premises leased to [tenant]." Although the landlord would be entitled to a defense in an action commenced against it by a third party for an injury suffered on the leased premises, the policy did not provide coverage for liability to its co-insured for damage to property owned, rented, or occupied by the insured.

APPEARANCES OF COUNSEL

Wilson, Elser, Moskowitz, Edelman & Dicker LLP, New York City (*Richard E. Lerner* and *Judy C. Selmeci* of counsel), for third-party appellant.

Baker & Hostetler LLP, New York City (*David Einhorn* of counsel), for third-party respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, the judgment of Supreme Court reinstated, and the certified question answered in the negative.

Third-party plaintiff landlord 940 Madison Associates LLC is an additional insured under a commercial general liability policy issued by third-party defendant Excelsior Insurance Company to plaintiff tenant VBH Luxury, Inc. “only with respect to liability arising out of the ownership, maintenance or use of that part of the premises leased to [tenant].” Although landlord would be entitled to a defense in an action commenced against it by a third party for an injury suffered on the leased premises (see *ZKZ Assoc. v CNA Ins. Co.*, 89 NY2d 990, 991 [1997]), the policy does not provide coverage for liability to its co-insured for damage to property owned, rented, or occupied by the insured (see *Insurance Corp. of N.Y. v Cohoes Realty Assoc., L.P.*, 50 AD3d 1228, 1229-1230 [3d Dept 2008]; *Utica Mut. Ins. Co. v Watertown Indus. Ctr. Local Dev. Corp.*, 9 AD3d 836, 837 [4th Dept 2004], *lv denied* 11 AD3d 1053 [4th Dept 2004]). Thus, Excelsior was not obligated to defend landlord in the underlying action.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

CHENEISE E. CAREY, Appellant, v EMPIRE PARATRANSIT CORP. et al., Respondents.

Submitted December 27, 2011; decided February 14, 2012

Reported below, 85 AD3d 520.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE EMPIRE CENTER FOR NEW YORK STATE POLICY, Appellant, v
NEW YORK CITY POLICE PENSION FUND, Respondent.

Submitted December 19, 2011; decided February 14, 2012

Reported below, 88 AD3d 520.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

THE EMPIRE CENTER FOR NEW YORK STATE POLICY, Appellant, v
NEW YORK CITY POLICE PENSION FUND, Respondent.

Submitted December 27, 2011; decided February 14, 2012

Reported below, 88 AD3d 520.

Motion by the Albany Times Union et al. for leave to file a brief *amici curiae* on the motion for leave to appeal herein denied.

BERNARD H. GLATZER, Appellant, v BEAR, STEARNS & CO., INC.,
et al., Respondents.

Decided February 14, 2012

Reported below, 2011 NY Slip Op 85629(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

SHAWN GREEN, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 27, 2011; decided February 14, 2012

Reported below, 2011 NY Slip Op 88906(U).

Motion, insofar as it seeks leave to appeal from the Court of Claims judgment, dismissed upon the ground that it does not lie (*see* CPLR 5602); motion, insofar as it seeks leave to appeal from the Appellate Division order denying appellant's motion

for reargument, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

ELIZABETH O'CONNOR LITTLE et al., Appellants, v NEW YORK STATE TASK FORCE ON DEMOGRAPHIC RESEARCH AND REAPPORTIONMENT et al., Defendants, and MICHAEL BAILEY et al., Intervenors-Respondents.

Decided February 14, 2012

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

MARKO S., Also Known as MARKO ALEXANDER S., Also Known as MARKO A., Respondent, v HEATHER S., Also Known as HEATHER KIM S., Appellant.

Submitted December 27, 2011; decided February 14, 2012

Reported below, 2011 NY Slip Op 77742(U).

Motion for reargument and other relief denied [*see* 17 NY3d 900 (2011)].

In the Matter of NECHAMA MARKOVICI, Appellant, v LAZAR MARKOVICI, Respondent.

Submitted December 27, 2011; decided February 14, 2012

Reported below, 2011 NY Slip Op 89469(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motions for poor person relief and a stay dismissed as academic.

CHARLES MCKIE, Appellant, v ADAM SAHEED et al., Defendants, and FLAGSTAR BANK, FSB, Respondent.

Submitted December 19, 2011; decided February 14, 2012

Reported below, 2011 NY Slip Op 88539(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay and ancillary relief dismissed as academic.

In the Matter of M.G.M. INSULATION, INC., et al., Appellants, v
COLLEEN C. GARDNER, as Commissioner of Labor, Respondent.

Submitted December 5, 2011; decided February 14, 2012

Reported below, 86 AD3d 812.

Motion by the Empire State Chapter of the Associated Builders and Contractors, Inc. for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein granted, three copies of the brief to be served and an original and 19 copies filed within 30 days.

In the Matter of M.G.M. INSULATION, INC., et al., Appellants, v
COLLEEN C. GARDNER, as Commissioner of Labor, Respondent.

Submitted December 5, 2011; decided February 14, 2012

Reported below, 86 AD3d 812.

Motion by the Firemen's Association of the State of New York for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein granted, three copies of the brief to be served and an original and 19 copies filed within 30 days.

In the Matter of M.G.M. INSULATION, INC., et al., Appellants, v
COLLEEN C. GARDNER, as Commissioner of Labor, Respondent.

Submitted December 5, 2011; decided February 14, 2012

Reported below, 86 AD3d 812.

Motion by Associated General Contractors of New York State, LLC for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed,

and for leave to file a brief amicus curiae on the appeal herein granted, three copies of the brief to be served and an original and 19 copies filed within 30 days.

MICHAEL MULGREW, as President of the United Federation of Teachers, Local 2, American Federation of Teachers, AFL-CIO, on Behalf of All Represented Employees in the City School District of the City of New York, Appellant, v BOARD OF EDUCATION OF THE CITY SCHOOL DISTRICT OF THE CITY OF NEW YORK et al., Respondents. DOW JONES & COMPANY, INC., et al., Intervenors-Respondents.

Submitted December 27, 2011; decided February 14, 2012

Reported below, 87 AD3d 506.

Motion by New York State United Teachers for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein dismissed as academic.

In the Matter of NATHAN O., Respondent, v JENNIFER P. et al., Appellants. (And Another Related Proceeding.)

Submitted December 19, 2011; decided February 14, 2012

Reported below, 88 AD3d 1125.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JULIO C. BORRELL, Appellant, v NEW YORK STATE BOARD OF PAROLE, Respondent.

Submitted January 9, 2012; decided February 14, 2012

Reported below, 85 AD3d 1515.

Motion for reargument of motion for leave to appeal denied [see 17 NY3d 718 (2011)].

In the Matter of STATE OF NEW YORK, Respondent, v C.B., Appellant.

Submitted December 5, 2011; decided February 14, 2012

Reported below, 88 AD3d 599.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

[964 NE2d 399, 941 NYS2d 28]

JENNIFER D. MARTINO, Respondent, v MICHAEL A. STOLZMAN, Respondent, and MICHAEL OLIVER et al., Appellants. (Action No. 1.)

JUDITH A. ROST, Respondent, v MICHAEL A. STOLZMAN et al., Respondents, and MICHAEL OLIVER et al., Appellants. (Action No. 2.)

Argued January 9, 2012; decided February 16, 2012

SUMMARY

APPEAL, in the two above-entitled actions, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered June 11, 2010. The Appellate Division order, insofar as appealed from, affirmed an order of the Supreme Court, Niagara County (Ralph A. Boniello, III, J.), to the extent it had denied a motion by defendants Michael and Susan Oliver for summary judgment to dismiss common-law negligence claims asserted against them in two related actions. The following question was certified by the Appellate Division: "Was the order of this Court entered June 11, 2010 properly made?"

Martino v Stolzman, 74 AD3d 1764, reversed.

HEADNOTES

Intoxicating Liquors — Liability of Social Host — Preventing Intoxicated Guests from Leaving Party

1. In actions arising out of a motor vehicle accident that occurred when an intoxicated guest was leaving a party hosted by defendants at their home, common-law negligence claims asserted against defendants, alleging that defendants served the driver an unreasonable amount of alcohol and failed to

control him while he was on defendants' property, were dismissed. Although landowners, in general, have a duty to act in a reasonable manner to prevent harm to those on their property, and, in particular, have a duty to control the conduct of third persons on their premises when they have the opportunity to control such persons, the defendants here were no longer in a position to control the intoxicated driver when he entered his vehicle and drove away. Furthermore, requiring social hosts to prevent intoxicated guests from leaving their property would inappropriately expand the concept of duty.

Negligence — Duty — Duty to Assist Guest Leaving Party

2. In actions arising out of a motor vehicle accident that occurred when an intoxicated guest was leaving a party hosted by defendants at their home, common-law negligence claims asserted against defendants, alleging that defendants failed to warn the driver that vehicles parked on the road could obstruct his view as he exited the driveway, were dismissed. Defendants had no duty to assist the driver as he pulled out of their driveway, or otherwise warn him that vehicles parked along the road next to the driveway might obstruct the view when exiting. While a landowner's duty to warn of a latent, dangerous condition on his property is a natural counterpart to his duty to maintain his property in a reasonably safe condition, the vehicles parked adjacent to the defendants' driveway did not create a latent or dangerous condition on their property. That the defendants may have been aware of the potential obstruction did not create a duty on their part to assist or warn the departing guest.

APPEARANCES OF COUNSEL

Hagelin Kent LLC, Buffalo (*Victor M. Wright* of counsel), for appellants in the first and second above-entitled actions.

Chiacchia & Fleming LLP, Hamburg (*Lisa A. Poch, Sarah P. Rera* and *Daniel J. Chiacchia* of counsel), for Jennifer D. Martino, respondent in the first above-entitled action.

Kenney Shelton Liptak Nowak LLP, Buffalo (*Amanda L. Machacek* of counsel), for Michael A. Stolzman, respondent in the first and second above-entitled actions.

Lipsitz Green Scime Cambria LLP, Buffalo (*John A. Collins* of counsel), for Judith A. Rost, respondent in the second above-entitled action.

Barth Sullivan Behr, Buffalo (*Sarah P. Rera* of counsel), for Gina L. Avino and another, respondents in the second above-entitled action.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, the Oliver defendants' motion for summary judgment granted, the complaint in action No. 1 and the amended complaint in action No. 2 dismissed against them, and the certified question answered in the negative.

On the evening of December 31, 2006 and into January 1, 2007, Michael and Susan Oliver (the Olivers) hosted a New Year's Eve party at their home in Gasport, New York. Michael Stolzman, and his friend, Judith Rost, attended the party and consumed alcohol. At approximately 12:30 A.M., Stolzman left the party and got into his truck, with Rost in the passenger seat. Stolzman backed his truck out of the Olivers' driveway onto the main road and collided with an oncoming vehicle driven by Jennifer Martino. Martino sustained severe injuries, including a dislocated ankle and leg fractures. Rost also suffered severe injuries, including fractures of her hip, pelvis, and spine, an amputated finger, and herniated discs. Following the accident, a test revealed that Stolzman had a blood alcohol content of .14%, nearly twice the legal limit. He later pleaded guilty to driving while intoxicated (*see* Vehicle and Traffic Law § 1192 [3]).

Martino and Rost commenced separate actions against various defendants including the Olivers alleging, as relevant here, claims for a violation of the Dram Shop Act (General Obligations Law § 11-101) and common-law negligence. Essentially, Martino and Rost allege in their respective complaints that the Olivers served Stolzman an unreasonable amount of alcohol rendering him intoxicated and failed to control Stolzman while he was on their property. Martino and Rost also allege that the Olivers had a duty to warn Stolzman that, as he exited their driveway, vehicles parked on the road adjacent to the driveway may obstruct the view.

The Olivers filed one motion as to both actions, seeking dismissal of the Dram Shop Act claims and summary judgment as to the common-law negligence claims. Supreme Court denied the Olivers' motion in its entirety. The Olivers appealed the order, and the parties agreed to consolidate the appeals and have them perfected in one record.

The Appellate Division, with two Justices dissenting in part, modified the order by granting the Olivers' motion to dismiss the Dram Shop Act claims in both actions, and as so modified, affirmed (*see Martino v Stolzman*, 74 AD3d 1764, 1765 [4th Dept 2010]). In affirming Supreme Court's denial of the Olivers' motion for summary judgment as to the common-law negligence claims, the majority concluded that "there is an issue of fact whether the Olivers knew or should have known that Stolzman left the party in a dangerous state of intoxication" (*id.* at 1766). The majority also opined that "[t]he Olivers

both had an opportunity to control or at least to guide Stolzman as he exited their driveway,” observing that the Olivers had “acknowledged that sightlines near the end of their driveway were limited at the time of the accident” (*id.* at 1767).

The dissenting Justices would have granted the Olivers’ motion for summary judgment as to the common-law negligence claims (*see id.*). The dissenters concluded that the Olivers had no duty to prevent Stolzman “from leaving their house or to assist him in pulling out of their driveway in his vehicle” (*id.*).

The same panel of the Appellate Division granted the Olivers’ motion for leave to appeal to this Court (*see Martino v Stolzman*, 79 AD3d 1832 [4th Dept 2010]), and certified this question: “Was the order of this Court entered June 11, 2010 properly made?” We now reverse and answer the certified question in the negative.

[1] It has long been the rule in New York that “[l]andowners in general have a duty to act in a reasonable manner to prevent harm to those on their property” (*D’Amico v Christie*, 71 NY2d 76, 85 [1987]). “In particular, they have a duty to control the conduct of third persons on their premises when they have the opportunity to control such persons” (*id.*). Here, the Olivers were no longer in a position to control Stolzman when he entered his vehicle and drove away. Furthermore, we agree with the dissenting Justices at the Appellate Division that “requiring social hosts to prevent intoxicated guests from leaving their property would inappropriately expand the concept of duty” (*Martino*, 74 AD3d at 1767).

[2] We also conclude that the Olivers had no duty to assist Stolzman as he pulled out of their driveway, or otherwise warn him that vehicles parked along the road next to the driveway may obstruct the view when exiting. Of course, “a landowner’s duty to warn of a latent, dangerous condition on his property is a natural counterpart to his duty to maintain his property in a reasonably safe condition” (*Galindo v Town of Clarkstown*, 2 NY3d 633, 636 [2004]). In this case, the vehicles parked adjacent to the Olivers’ driveway did not create a latent or dangerous condition on the Olivers’ property. That the Olivers may have been aware of this potential obstruction did not create a duty on their part to assist or warn Stolzman (*see Pulka v Edelman*, 40 NY2d 781, 785 [1976], *rearg denied* 41 NY2d 901 [1977] [“(f)oreseeability should not be confused with duty”]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.
Order, insofar as appealed from, reversed, etc.

[963 NE2d 1257, 940 NYS2d 556]

CHRISTINE M. STUTO, Appellant, v GREGORY G. KERBER et al.,
Defendants, and WILLIAM J. MCNEARY III et al., Respon-
dents.

Argued January 10, 2012; decided February 16, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 28, 2010. The Appellate Division affirmed an order of the Supreme Court, Albany County (Richard M. Platkin, J.; op 26 Misc 3d 535 [2009]), which, among other things, had granted a motion by defendants William J. McNeary III, Jamie Jayko and William J. McNeary IV to dismiss the complaint as against them.

Stuto v Kerber, 77 AD3d 1233, affirmed.

HEADNOTE

Corporations — Foreign Corporation — Liability for Unpaid Wages

The trial court properly dismissed an action by a former employee as against three shareholders of plaintiff's out-of-state corporate employer to recover unpaid wages pursuant to Business Corporation Law § 630. The plain language and history of section 630 and other relevant portions of the Business Corporation Law reveal that section applies only to domestic corporations, and not to foreign corporations.

APPEARANCES OF COUNSEL

Cooper, Erving, Savage LLP, Albany (*Phillip G. Steck* of counsel), for appellant.

Driver Greene, LLP, Albany (*John D. Hoggan, Jr.*, of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiff Christine M. Stuto was employed by World Media, Inc., a corporation organized under the laws of the State of Delaware. In May 2006, after encountering financial difficulties, World Media stopped paying plaintiff's salary. She continued

working, however, in the hope that the corporation's financial position would improve. It did not, and the corporation closed. Plaintiff thereafter obtained a judgment against Wurld Media for unpaid wages and commenced this action against Wurld Media's 10 largest shareholders to recover the unpaid wages pursuant to Business Corporation Law § 630. Supreme Court granted the motion of three defendant shareholders to dismiss the complaint on the ground that the statute does not apply to foreign corporations, and the Appellate Division affirmed.

We agree with the courts below that the plain language and history of Business Corporation Law § 630 (*see Armstrong v Dyer*, 268 NY 671 [1935]), as well as other relevant portions of the Business Corporation Law (*see* Business Corporation Law § 102 [a] [4], [7]; § 1319), reveal that section 630 applies to only domestic corporations, and not to foreign corporations.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

In the Matter of ALBANY LAW SCHOOL et al., Respondents-Appellants, v NEW YORK STATE OFFICE OF MENTAL RETARDATION AND DEVELOPMENTAL DISABILITIES et al., Appellants-Respondents.

Submitted February 14, 2012; decided February 16, 2012

Reported below, 81 AD3d 145.

Motion by National Disability Rights Network, Inc. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

MARIA AUQUI et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted February 6, 2012; decided February 16, 2012

Reported below, 83 AD3d 407.

Motion by Consolidated Edison Company of New York, Inc. for leave to appear amicus curiae on the appeal herein denied.

Chief Judge LIPPMAN taking no part.

THOMAS E. DOMBROWSKI, Respondent, v RAYMOND W. BULSON,
Appellant.

Submitted February 14, 2012; decided February 16, 2012

Reported below, 79 AD3d 1587.

Motion by Ganpat Ramcharran for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

BETTY FLOYD, Appellant, v STATE OF NEW YORK DIVISION OF HUMAN RIGHTS, Respondent.

Submitted December 27, 2011; decided February 16, 2012

Reported below, 2010 NY Slip Op 85297(U).

Motion for reargument denied [*see* 17 NY3d 899 (2011)].

KATHRYN JORDAN, Appellant, v BATES ADVERTISING HOLDINGS, INC., Formerly Known as AC & R ADVERTISING, INC., Respondent.

Submitted December 19, 2011; decided February 16, 2012

Reported below, 2011 NY Slip Op 88663(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]).

Chief Judge LIPPMAN taking no part.

CARY KITTNER, Individually and as Assignee of Stuart Quimby, et al., Appellants, v EASTERN MUTUAL INSURANCE COMPANY, Respondent.

Submitted January 9, 2012; decided February 16, 2012

Reported below, 80 AD3d 843.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of CHANDRA LASONDE et al., Respondents, v NORMAN SEABROOK et al., Appellants.

Submitted December 27, 2011; decided February 16, 2012

Reported below, 89 AD3d 132.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of EYAL OVADIA et al., Appellants, v OFFICE OF THE INDUSTRIAL BOARD OF APPEALS et al., Respondents.

Submitted February 14, 2012; decided February 16, 2012

Reported below, 81 AD3d 457.

Motion by Mason Tenders' District Council of Greater New York & Long Island et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

SCOTT M. PANKOFF, Appellant, v LISA B. PANKOFF, Respondent.

Submitted December 12, 2011; decided February 16, 2012

Reported below, 84 AD3d 690.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICKEY CASS, Appellant.

Submitted January 30, 2012; decided February 16, 2012

Reported below, 79 AD3d 768.

Motion for removal of assigned counsel and permission to proceed pro se on appeal denied. Motion to enlarge the record on appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RANDOLFO DIAZ, Respondent.

Submitted February 14, 2012; decided February 16, 2012

Reported below, 85 AD3d 1047.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARTIN HEIDGEN, Appellant.

Submitted January 23, 2012; decided February 16, 2012

Reported below, 87 AD3d 1016.

Motion for assignment of counsel granted and Jillian S. Harrington, Esq., PO Box 6006, Monroe Township, New Jersey 08831 assigned as counsel to the appellant on the appeal herein. Motion for waiver of strict compliance with the requirements of the Rules of Practice of the Court of Appeals granted only to the extent that the appeal may be prosecuted upon the original file and an original and nine copies of appellant's brief and appendix.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARTIN HEIDGEN, Appellant.

Submitted February 14, 2012; decided February 16, 2012

Reported below, 87 AD3d 1035.

Motion for assignment of counsel granted and Jillian S. Harrington, Esq., PO Box 6006, Monroe Township, New Jersey 08831 assigned as counsel to the appellant on the appeal herein. Motion for waiver of strict compliance with the requirements of the Rules of Practice of the Court of Appeals granted only to the extent that the appeal may be prosecuted upon the original file and an original and nine copies of appellant's brief and appendix.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AKIEME NESBITT, Appellant.

Submitted February 14, 2012; decided February 16, 2012

Reported below, 89 AD3d 447.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th

Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VINCENT RODRIGUEZ, Appellant.

Submitted February 14, 2012; decided February 16, 2012

Reported below, 88 AD3d 557.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MIKAL SMITH, Appellant.

Submitted February 14, 2012; decided February 16, 2012

Reported below, 87 AD3d 920.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

In the Matter of the Estate of KEVIN W. STANLEY, Deceased. DIANE R. STANLEY, Appellant; LAWRENCE J. MATTAR, ESQ., et al., Respondents.

In the Matter of the Estate of KATHLEEN A. STANLEY, Deceased. RICHARD T. STANLEY, Appellant; LAWRENCE J. MATTAR, ESQ., et al., Respondents.

Submitted November 28, 2011; decided February 16, 2012

On the Court's own motion, appeal by Diane R. Stanley dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. On the Court's own motion, appeal by Richard T. Stanley dismissed, without costs, upon the ground that appellant is not a party aggrieved. Motion for leave to appeal, insofar as made by Diane R. Stanley, denied; motion for leave to appeal, insofar as made by Richard T. Stanley, dismissed upon the ground that said appellant is not a party aggrieved.

RICKY D. WEST et al., Appellants-Respondents, v MARK HOGAN et al., Respondents-Appellants. (And a Third-Party Action.)

Submitted December 19, 2011; decided February 16, 2012

Reported below, 88 AD3d 1247.

On the Court's own motion, appeal by defendants dismissed, without costs, upon the ground that the Appellate Division order appealed from does not finally determine the action within the meaning of the Constitution. Motion by plaintiffs for leave to appeal dismissed upon the ground that the Appellate Division order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Plaintiffs' stipulation to a reduction in damages as an alternative to a new trial is invalid under the circumstances of this case and leaves the action pending for a new trial. Plaintiffs stipulated to the reduced amount in lieu of a new trial on punitive damages, purporting to reserve a right to challenge the stipulated amount of damages on appeal. By operation of law, plaintiffs cannot so provide. A stipulation in such circumstances makes the damage award nonappealable by plaintiffs (*see Dudley v Perkins*, 235 NY 448, 457 [1923]). Thus, under these circumstances, plaintiffs' stipulation must be rejected. Either a new unconditional stipulation by plaintiffs accepting the reduced damage award must be filed or the parties must proceed to a new trial on punitive damages.

[965 NE2d 958, 942 NYS2d 456]

JAMES L. MELCHER, Appellant, v APOLLO MEDICAL FUND MANAGEMENT L.L.C. et al., Respondents.

Decided February 21, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 17, 2011. The Appellate Division order, insofar as appealed from, affirmed a judgment of the Supreme Court, New York County (Melvin L. Schweitzer, J.), which had awarded plaintiff damages on the third cause of action, granted him judgment on the sixth cause of action, and dismissed defendants' counterclaim for breach of contract. The

appeal brings up for review a prior nonfinal order of that Appellate Division, entered October 5, 2010 (2010 NY Slip Op 84265[U] [2010]). The Appellate Division, among other things, had sua sponte dismissed appeals by plaintiff from the same judgment of that Supreme Court, which had, in part, dismissed certain causes of action in the complaint.

Melcher v Apollo Med. Fund Mgt. L.L.C., 84 AD3d 547, reversed.

HEADNOTE

Appeal — Dismissal — Summary Dismissal by Appellate Division

Appeals to the Appellate Division that had been dismissed by that court sua sponte were reinstated since the Appellate Division abused its discretion where it did not articulate a basis for its order of dismissal and no grounds for dismissing the appeals appeared tenable from the record. Plaintiff timely perfected his appeals under the First Department's rules, and the court did not give plaintiff adequate notice if it shortened the time period for him to perfect the appeals. Accordingly, on the present record, the appeals could not have been properly dismissed for failure to comply with the court's orders. Therefore, plaintiff's appeals were reinstated and the case remitted to the Appellate Division to consider the merits of those appeals.

APPEARANCES OF COUNSEL

Patterson Belknap Webb & Tyler LLP, New York City (*Stephen P. Younger* of counsel), for appellant.

Windels Marx Lane & Mittendorf, LLP, New York City (*Scott R. Matthews* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, the appeals by plaintiff that were dismissed in the October 2010 order of the Appellate Division reinstated, and the case remitted to the Appellate Division for further proceedings in accordance with this memorandum.

In its October 2010 order, brought up for review on this appeal, the Appellate Division sua sponte dismissed plaintiff's appeals without articulating the basis for its order. We conclude that dismissal was an abuse of discretion. No grounds for dismissing the appeals appear tenable from the record. Plaintiff timely perfected his appeals under the First Department's rules, and the court did not give plaintiff adequate notice if it shortened the time period for him to perfect the appeals. On this record, the appeals could not have been properly dismissed for failure to comply with the court's orders. Accordingly, plaintiff's

appeals that were dismissed by the October 2010 Appellate Division order should be reinstated and the case remitted to the Appellate Division to consider the merits of those appeals. In light of this remittal, we do not reach the other issue raised by plaintiff on this appeal.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed, etc.

In the Matter of ALEXANDER JOHN B. and Another, Children Alleged to be Abandoned. CYNTHIA A., Appellant; CARDINAL McCLOSKEY SERVICES et al., Respondents.

Submitted January 3, 2012; decided February 21, 2012

Reported below, 87 AD3d 927.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Family Court's denial of the motion to vacate, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

CYNTHIA A. BELL, Appellant, v 24-26 EAST 82ND STREET CORPORATION et al., Respondents.

Submitted January 9, 2012; decided February 21, 2012

Reported below, 2011 NY Slip Op 75563(U).

Motion to dismiss appeal granted and appeal, insofar as taken against defendants Carter Ledyard & Milburn LLP, Ronald Spencer, Davis Polk & Wardwell LLP, Ogden Lewis and Larry Jacobs, dismissed as untimely (*see* CPLR 5513 [a]); appeal otherwise dismissed upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

LEE BORDELEAU et al., Respondents, v STATE OF NEW YORK et al., Appellants.

Submitted January 23, 2012; decided February 21, 2012

Reported below, 74 AD3d 1688.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 18 NY3d 305 (2011)].

In the Matter of CHRISTOPHER JAMES A., a Child Alleged to be Neglected. ANNE ELIZABETH PIERRE L., Appellant; NEW ALTERNATIVES FOR CHILDREN, INC., Respondent.

Submitted January 17, 2012; decided February 21, 2012

Reported below, 90 AD3d 515.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of KATHLEEN M. CLARK, Respondent, v MICHAEL J. CLARK, Appellant.

Submitted January 9, 2012; decided February 21, 2012

Reported below, 88 AD3d 1095; 85 AD3d 1350.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceedings within the meaning of the Constitution.

GENNADY GORELIK, Appellant, v ELENA GORELIK, Respondent.

Submitted December 12, 2011; decided February 21, 2012

Reported below, 85 AD3d 859; 85 AD3d 856; 71 AD3d 730; 71 AD3d 729; 2011 NY Slip Op 85548(U); 2011 NY Slip Op 85547(U).

On the Court's own motion, appeal, insofar as taken from that part of the June 14, 2011 Appellate Division order that affirmed the February 22, 2010 Supreme Court judgment, dismissed without costs, upon the ground that no substantial constitutional question is directly involved; appeal otherwise dismissed upon the ground that the remaining part of the June 14, 2011 Appellate Division order, and the other orders appealed from, do not finally determine the action within the meaning of

the Constitution. Motion for a stay dismissed as academic. Motion for poor person relief dismissed as academic.

YVETTE HUFF, Respondent, v ANITA L. RODRIGUEZ, Formerly Known as ANITA L. ROSARIO, et al., Appellants.

Submitted January 17, 2012; decided February 21, 2012

Reported below, 88 AD3d 1274.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

JOHN HOLLINGS, INC., Appellant, v NICK & DUKE, LLC, et al., Respondents, et al., Defendants.

Submitted January 23, 2012; decided February 21, 2012

Reported below, 83 AD3d 444; 2011 NY Slip Op 90384(U).

Motion, insofar as it seeks leave to appeal from that portion of the November 2011 Appellate Division order denying appellant's motion for reargument/renewal or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

NIZAM PETER KETTANEH et al., Appellants, v BOARD OF STANDARDS AND APPEALS OF THE CITY OF NEW YORK et al., Respondents.

LANDMARK WEST! INC. et al., Appellants, v BOARD OF STANDARDS AND APPEALS OF THE CITY OF NEW YORK et al., Respondents.

Submitted December 19, 2011; decided February 21, 2012

Reported below, 85 AD3d 620; 2011 NY Slip Op 87169(U).

Motion by Nizam Peter Kettaneh et al. insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the

Constitution; motion for leave to appeal otherwise denied. Motion by Landmark West! Inc. et al. for leave to appeal denied.

DEBORAH RAE LAMB et al., Appellants, v GOVERNOR FOR NEW YORK STATE et al., Respondents.

Decided February 21, 2012

Reported below, 90 AD3d 716.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

LZG REALTY, LLC, et al., Respondents, v H.D.W. 2005 FOREST, LLC, Appellant, and ELI WEINSTEIN, et al., Respondents, et al., Defendants. (And Other Actions.)

Submitted January 3, 2012; decided February 21, 2012

Reported below, 87 AD3d 727.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TOBIAS BOYLAND, Appellant.

Submitted January 23, 2012; decided February 21, 2012

Reported below, 79 AD3d 1658.

Motion to vacate this Court's December 29, 2011 dismissal order granted [*see* 18 NY3d 856 (2011)].

In the Matter of TROY SAND & GRAVEL COMPANY, INC., et al., Appellants, v TOWN OF NASSAU et al., Respondents.

Submitted January 3, 2012; decided February 21, 2012

Reported below, 89 AD3d 1178.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action/proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

2470 CADILLAC RESOURCES, INC., et al., Appellants, v DHL EXPRESS (USA), INC., Respondent, et al., Defendant.

Submitted January 9, 2012; decided February 21, 2012

Reported below, 84 AD3d 697.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

VINCENT DAVID URBAN, Respondent, v CITY OF ALBANY, Appellant.

Submitted January 9, 2012; decided February 21, 2012

Reported below, 90 AD3d 1132.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ZECHARIAH J., a Child Alleged to be Neglected.
ORANGE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; VALRICK J., Appellant.

Submitted January 23, 2012; decided February 21, 2012

Reported below, 84 AD3d 1087.

Motion for reargument of motion for leave to appeal denied [see 18 NY3d 802 (2011)].

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(February 1, 2012 through February 29, 2012)

APPEALS WITHDRAWN AND DISCONTINUED

(February 1, 2012 through February 29, 2012)

PC Group, LLC, Matter of, v Grannis	2d Dept: 83 AD3d 848	2/28/12
Putnam/Northern Westchester Bd. of Coop. Educ. Servs., Matter of, v Westchester County Human Rights Commn.	2d Dept: 81 AD3d 733	2/7/12

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2012 through February 29, 2012)

People v Abreu	1st Dept: 89 AD3d 412 (NY)	denied* 2/2/12 (Ciparick, J.)
People v Adams	App Div, 1st Dept: 2011 NY Slip Op 89548(U) (Bronx)	denied 2/22/12 (Pigott, J.)
People v Ali	4th Dept: 89 AD3d 1417 (Onondaga)	denied 2/23/12 (Grafteo, J.)
People v Anderson	1st Dept: 90 AD3d 456 (NY)	denied 2/27/12 (Smith, J.)
People v Anonymous	1st Dept: 85 AD3d 414 (NY)	denied 2/1/12 (Jones, J.)
People v Aucter	4th Dept: 85 AD3d 1551 (Cayuga)	denied 2/15/12 (Read, J.)
People v Aviles	2d Dept: 87 AD3d 547 (Kings)	denied 2/29/12 (Lippman, Ch. J.)
People v Ayers	4th Dept: 85 AD3d 1583 (Monroe)	dismissed 2/29/12 (Lippman, Ch. J.)
People v Blow	1st Dept: 88 AD3d 580 (NY)	denied 2/1/12 (Jones, J.)
People v Bodden	1st Dept: 88 AD3d 518 (NY)	withdrawn 2/22/12 (Lippman, Ch. J.)
People v Brown (Carlton)	4th Dept: 87 AD3d 1412 (Monroe)	denied 2/1/12 (Jones, J.)
People v Brown (Corey)	3d Dept: 90 AD3d 1140 (St. Lawrence)	denied 2/23/12 (Grafteo, J.)
People v Brown (Kennedy)	1st Dept: 90 AD3d 545 (NY)	denied 2/28/12 (Smith, J.)
People v Brown (Nelson)	App Div, 2d Dept: 2011 NY Slip Op 93425(U) (Kings)	dismissed 2/7/12 (Ciparick, J.)
People v Brown (Shamei)	2d Dept: 89 AD3d 1032 (Westchester)	denied 2/22/12 (Pigott, J.)
People v Burnell	3d Dept: 89 AD3d 1118 (Albany)	denied 2/23/12 (Smith, J.)

* Denied with leave to renew within 30 days after the Court renders a decision in *People v Wright* (87 AD3d 229 [2011], *lv granted* 2011 NY Slip Op 78815[U] [2011]).

MEMORANDA

923

People v Carr	2d Dept: 89 AD3d 1033 (Dutchess)	denied 2/2/12 (Pigott, J.)
People v Caruso	2d Dept: 88 AD3d 809 (Nassau)	denied 2/24/12 (Lippman, Ch. J.)
People v Cass	App Div, 2d Dept: 2008 NY Slip Op 86808(U) (Kings)	denied reconsideration 2/16/12 (Jones, J.)
People v Coke	4th Dept: 81 AD3d 1260 (Niagara)	denied 2/1/12 (Jones, J.)
People v Cole	1st Dept: 88 AD3d 463 (NY)	denied 2/1/12 (Jones, J.)
People v Combs	1st Dept: 88 AD3d 532 (NY)	denied 2/1/12 (Jones, J.)
People v Costello	4th Dept: 90 AD3d 1546 (Erie)	denied 2/29/12 (Smith, J.)
People v Cruz	App Div, 3d Dept, 1/11/12 (Albany)	dismissed 2/7/12 (Jones, J.)
People v Culbero	App Div, 1st Dept: 2011 NY Slip Op 86905(U) (NY)	denied 2/28/12 (Grafteo, J.)
People v D	3d Dept: 89 AD3d 1325 (Saratoga)	denied 2/24/12 (Pigott, J.)
People v Dade	App Div, 2d Dept: 2011 NY Slip Op 91642(U) (Kings)	dismissed 2/22/12 (Smith, J.)
People v Daniels	1st Dept: 89 AD3d 632 (NY)	denied 2/24/12 (Pigott, J.)
People v Dawkins	2d Dept: 87 AD3d 550 (Kings)	denied 2/24/12 (Lippman, Ch. J.)
People v Deleon	1st Dept: 89 AD3d 643 (NY)	denied 2/14/12 (Read, J.)
People v Diaz	1st Dept: 89 AD3d 463 (Bronx)	denied 2/1/12 (Jones, J.)
People v Dixon	App Div, 1st Dept: 2012 NY Slip Op 62921(U) (NY)	dismissed 2/23/12 (Ciparick, J.)
People v Dominguez	2d Dept: 84 AD3d 1111 (Queens)	denied 2/24/12 (Lippman, Ch. J.)
People v Dowdell	4th Dept: 89 AD3d 1430 (Onondaga)	denied 2/23/12 (Grafteo, J.)
People v Droz	2d Dept: 87 AD3d 1073 (Queens)	denied 2/1/12 (Jones, J.)
People v Earley	4th Dept: 90 AD3d 1588 (Ontario)	denied 2/29/12 (Grafteo, J.)
People v Eggsware	3d Dept: 90 AD3d 1231 (Franklin)	denied 2/23/12 (Smith, J.)
People v Elder	3d Dept: 89 AD3d 1278 (Ulster)	denied 2/14/12 (Read, J.)
People v Elias	2d Dept: 90 AD3d 947 (Kings)	denied 2/29/12 (Smith, J.)
People v Erskine	2d Dept: 90 AD3d 674 (Kings)	denied 2/29/12 (Smith, J.)

People v Escalera	1st Dept: 77 AD3d 510 (NY)	denied 2/24/12 (Lippman, Ch. J.)
People v Feathers	4th Dept: 89 AD3d 1428 (Monroe)	denied 2/22/12 (Pigott, J.)
People v Forino	2d Dept: 90 AD3d 675 (Nassau)	denied 2/29/12 (Grafteo, J.)
People v Fowler	1st Dept: 89 AD3d 436 (Bronx)	denied 2/1/12 (Jones, J.)
People v Foy	2d Dept: 89 AD3d 1103 (Kings)	denied 2/28/12 (Grafteo, J.)
People v Fulge	4th Dept: 90 AD3d 1524 (Genesee)	denied 2/23/12 (Grafteo, J.)
People v Gadsden	2d Dept: 82 AD3d 902 (Kings)	denied reconsideration 2/23/12 (Grafteo, J.)
People v Garcia (Christopher)	App Div, 1st Dept, 8/23/11 (NY)	dismissed 2/14/12 (Read, J.)
People v Garcia (David)	3d Dept: 89 AD3d 1325 (Saratoga)	denied 2/24/12 (Pigott, J.)
People v Gardine	App Term, 1st Dept: 33 Misc 3d 139(A) (NY)	denied 2/2/12 (Pigott, J.)
People v Gibson	4th Dept: 89 AD3d 1514 (Monroe)	denied 2/23/12 (Grafteo, J.)
People v Gonzalez (Angel)	2d Dept: 90 AD3d 781 (Kings)	denied 2/23/12 (Grafteo, J.)
People v Gonzalez (Freddie)	1st Dept: 88 AD3d 480 (NY)	denied 2/1/12 (Jones, J.)
People v Graham	4th Dept: 89 AD3d 1412 (Erie)	denied 2/14/12 (Read, J.)
People v Gregg	4th Dept: 89 AD3d 1496 (Erie)	denied 2/28/12 (Grafteo, J.)
People v Gross	2d Dept: 88 AD3d 905 (Suffolk)	denied 2/1/12 (Jones, J.)
People v Hall	1st Dept: 84 AD3d 79 (NY)	denied 2/24/12 (Lippman, Ch. J.)
People v Hampton	2d Dept: 85 AD3d 1055 (Nassau)	granted 2/28/12 (Smith, J.)
People v Handberry	1st Dept: 87 AD3d 918 (NY)	denied 2/1/12 (Jones, J.)
People v Handy	4th Dept: 83 AD3d 1454 (Monroe)	granted 2/29/12 (Lippman, Ch. J.)
People v Haskins	App Term, 2d Dept: 34 Misc 3d 136(A) (Queens)	denied 2/27/12 (Smith, J.)
People v Hernandez-Bautista	2d Dept: 89 AD3d 749 (Dutchess)	denied 2/24/12 (Lippman, Ch. J.)
People v Hicks (Albert)	2d Dept: 88 AD3d 817 (Suffolk)	denied 2/1/12 (Pigott, J.)
People v Hicks (Charles)	4th Dept: 89 AD3d 1480 (Erie)	denied 2/17/12 (Read, J.)

MEMORANDA

925

People v Huitt	4th Dept: 89 AD3d 1411 (Monroe)	denied 2/14/12 (Read, J.)
People v Hurd	1st Dept: 88 AD3d 500 (NY)	denied 2/15/12 (Read, J.)
People v Ippolito (Gerald)	4th Dept: 89 AD3d 1369 (Monroe)	granted 2/8/12 (Read, J.)
People v Ippolito (Gerard)	4th Dept: 89 AD3d 1369 (Monroe)	granted 2/8/12 (Read, J.)
People v Irizarry	2d Dept: 88 AD3d 1013 (Kings)	denied 2/23/12 (Smith, J.)
People v Ivanitsky	2d Dept: 81 AD3d 976 (Kings)	denied 2/22/12 (Lippman, Ch. J.)
People v Jackson	App Div, 1st Dept: 2011 NY Slip Op 89868(U) (Bronx)	denied 2/14/12 (Read, J.)
People v Jassan J.	1st Dept: 84 AD3d 620 (NY)	denied 2/1/12 (Jones, J.)
People v Jefferys	App Div, 2d Dept: 2011 NY Slip Op 91648(U) (Kings)	dismissed 2/23/12 (Smith, J.)
People v Jenkins	4th Dept: 89 AD3d 1457 (Wayne)	denied 2/23/12 (Pigott, J.)
People v John	1st Dept: 89 AD3d 552 (NY)	denied 2/2/12 (Pigott, J.)
People v Jones (Deborah)	1st Dept: 83 AD3d 542 (NY)	denied 2/24/12 (Lippman, Ch. J.)
People v Jones (Steffen)	4th Dept: 89 AD3d 1395 (Onondaga)	denied 2/2/12 (Pigott, J.)
People v King	1st Dept: 85 AD3d 412 (NY)	denied 2/28/12 (Lippman, Ch. J.)
People v Klages	3d Dept: 90 AD3d 1149 (St. Lawrence)	denied 2/28/12 (Smith, J.)
People v Kwiek	3d Dept: 89 AD3d 1329 (Madison)	denied 2/24/12 (Lippman, Ch. J.)
People v Kyler	4th Dept: 85 AD3d 1593 (Niagara)	denied 2/1/12 (Jones, J.)
People v Lakatos	3d Dept: 89 AD3d 1329 (Madison)	denied 2/24/12 (Lippman, Ch. J.)
People v Lakatosz	3d Dept: 89 AD3d 1329 (Madison)	denied 2/24/12 (Lippman, Ch. J.)
People v Lakatur	3d Dept: 89 AD3d 1329 (Madison)	denied 2/24/12 (Lippman, Ch. J.)
People v Lange	4th Dept: 90 AD3d 1534 (Wayne)	denied 2/29/12 (Grafteo, J.)
People v Lee	1st Dept: 88 AD3d 626 (NY)	denied 2/1/12 (Jones, J.)
People v Lemon	4th Dept: 87 AD3d 1412 (Erie)	denied 2/1/12 (Jones, J.)
People v Lepard	3d Dept: 83 AD3d 1214 (Greene)	denied 2/1/12 (Jones, J.)
People v Lozado	1st Dept: 90 AD3d 582 (NY)	denied 2/29/12 (Smith, J.)

People v Lunderman	4th Dept: 83 AD3d 1602 (Jefferson)	denied 2/24/12 (Lippman, Ch. J.)
People v Mabry	App Div, 2d Dept: 2011 NY Slip Op 92954(U) (Queens)	dismissed 2/23/12 (Read, J.)
People v March	4th Dept: 89 AD3d 1496 (Erie)	denied 2/28/12 (Grafteo, J.)
People v Marinus	2d Dept: 90 AD3d 677 (Suffolk)	denied 2/28/12 (Smith, J.)
People v Marinza-Zavala	2d Dept: 88 AD3d 1015 (Suffolk)	denied 2/1/12 (Jones, J.)
People v Martorell	1st Dept: 88 AD3d 485 (NY)	denied 2/1/12 (Jones, J.)
People v Matias	1st Dept: 89 AD3d 576 (Bronx)	denied 2/22/12 (Pigott, J.)
People v Maxwell	2d Dept: 89 AD3d 1106 (Kings)	denied 2/22/12 (Smith, J.)
People v McCoy	2d Dept: 89 AD3d 1110 (Queens)	denied 2/28/12 (Smith, J.)
People v McGinnis	4th Dept: 83 AD3d 1594 (Monroe)	denied 2/1/12 (Jones, J.)
People v McKenzie	App Div, 2d Dept: 2011 NY Slip Op 84804(U) (Kings)	denied 2/22/12 (Lippman, Ch. J.)
People v McNab	1st Dept: 90 AD3d 455 (Bronx)	denied 2/29/12 (Grafteo, J.)
People v Melendez	1st Dept: 90 AD3d 474 (NY)	denied 2/23/12 (Smith, J.)
People v Miller	4th Dept: 87 AD3d 1303 (Orleans)	denied 2/1/12 (Jones, J.)
People v Moore	2d Dept: 89 AD3d 769 (Nassau)	denied 2/23/12 (Read, J.)
People v Morales	2d Dept: 89 AD3d 1111 (Suffolk)	denied 2/23/12 (Grafteo, J.)
People v Morrow	App Div, 2d Dept: 2011 NY Slip Op 91249(U) (Kings)	dismissed 2/23/12 (Grafteo, J.)
People v Moye	1st Dept: 90 AD3d 472 (Bronx)	denied 2/23/12 (Grafteo, J.)
People v Mulcare	2d Dept: 85 AD3d 946 (Westchester)	denied 2/1/12 (Jones, J.)
People v Murray	2d Dept: 89 AD3d 1040 (Queens)	denied 2/24/12 (Pigott, J.)
People v Nachum	1st Dept: 89 AD3d 524 (NY)	denied 2/23/12 (Grafteo, J.)
People v Newman	4th Dept: 87 AD3d 1348 (Orleans)	denied 2/15/12 (Read, J.)
People v Nieves	1st Dept: 89 AD3d 637 (Bronx)	denied 2/27/12 (Smith, J.)
People v Norris (Elbert)	2d Dept: 90 AD3d 955 (Kings)	granted 2/29/12 (Grafteo, J.)
People v Norris (Tyrell)	2d Dept: 90 AD3d 788 (Kings)	granted 2/29/12 (Grafteo, J.)

MEMORANDA

927

People v Nyeen	App Div, 1st Dept: 2011 NY Slip Op 89548(U) (Bronx)	denied 2/22/12 (Pigott, J.)
People v Ortiz	2d Dept: 89 AD3d 1113 (Suffolk)	denied 2/22/12 (Smith, J.)
People v Padgett	2d Dept: 87 AD3d 1166 (Queens)	denied 2/1/12 (Jones, J.)
People v Parker	3d Dept: 84 AD3d 1508 (Schenectady)	denied 2/24/12 (Lippman, Ch. J.)
People v Paulino	App Div, 1st Dept: 2011 NY Slip Op 86447(U) (Bronx)	denied 2/22/12 (Pigott, J.)
People v Pedro	1st Dept: 89 AD3d 643 (NY)	denied 2/14/12 (Read, J.)
People v Peguero	1st Dept: 88 AD3d 589 (NY)	denied 2/1/12 (Jones, J.)
People v Perez (Marcelino)	2d Dept: 88 AD3d 913 (Queens)	denied 2/24/12 (Lippman, Ch. J.)
People v Perez (Miguel)	1st Dept: 89 AD3d 597 (NY)	denied 2/28/12 (Grafteo, J.)
People v Perez (Pedro)	1st Dept: 88 AD3d 610 (NY)	denied 2/1/12 (Jones, J.)
People v Pica	1st Dept: 90 AD3d 554 (Bronx)	denied 2/28/12 (Lippman, Ch. J.)
People v Polomaine	3d Dept: 89 AD3d 1215 (Schenectady)	denied 2/2/12 (Pigott, J.)
People v Pratt	1st Dept: 89 AD3d 552 (NY)	denied 2/2/12 (Pigott, J.)
People v Rabinovich-Ardans	1st Dept: 90 AD3d 522 (NY)	denied 2/27/12 (Smith, J.)
People v Rauf	1st Dept: 90 AD3d 422 (Bronx)	denied 2/28/12 (Grafteo, J.)
People v Redmon	2d Dept: 89 AD3d 961 (Kings)	denied 2/1/12 (Pigott, J.)
People v Reome	4th Dept: 89 AD3d 1494 (Onondaga)	denied 2/23/12 (Read, J.)
People v Reyes	1st Dept: 84 AD3d 426 (NY)	denied 2/28/12 (Lippman, Ch. J.)
People v Reynolds (Bryan)	2d Dept: 85 AD3d 825 (Dutchess)	denied 2/24/12 (Lippman, Ch. J.)
People v Reynolds (Marlon)	2d Dept: 85 AD3d 825 (Dutchess)	denied 2/24/12 (Lippman, Ch. J.)
People v Richardson (Hanif)	4th Dept: 90 AD3d 1515 (Onondaga)	denied 2/23/12 (Grafteo, J.)
People v Richardson (Robert)	4th Dept: 90 AD3d 1515 (Onondaga)	denied 2/23/12 (Grafteo, J.)
People v Riggins	2d Dept: 88 AD3d 820 (Westchester)	denied 2/29/12 (Lippman, Ch. J.)
People v Riley	1st Dept: 87 AD3d 935 (NY)	denied 2/1/12 (Jones, J.)
People v Ringer	1st Dept: 90 AD3d 439 (NY)	denied 2/23/12 (Grafteo, J.)

People v Rivera (Angelo)	1st Dept: 88 AD3d 534 (NY)	denied 2/1/12 (Jones, J.)
People v Rivera (Benjamin)	4th Dept: 89 AD3d 1494 (Monroe)	denied 2/14/12 (Read, J.) (Appeal Nos. 1 and 2)
People v Rivera (Jose)	1st Dept: 90 AD3d 510 (Bronx)	denied 2/24/12 (Pigott, J.)
People v Rivera (Juan)	1st Dept: 91 AD3d 450 (Bronx)	denied 2/29/12 (Grafteo, J.)
People v Roach	4th Dept: 84 AD3d 1734 (Monroe)	denied reconsideration 2/27/12 (Smith, J.)
People v Robinson (Latee)	App Div, 1st Dept: 2011 NY Slip Op 83705(U) (Bronx)	denied 2/28/12 (Grafteo, J.)
People v Robinson (Randall)	2d Dept: 90 AD3d 1077 (Suffolk)	denied 2/28/12 (Lippman, Ch. J.)
People v Rodriguez (Luis)	App Div, 1st Dept: 2011 NY Slip Op 86447(U) (Bronx)	denied 2/22/12 (Pigott, J.)
People v Rodriguez (Serge)	2d Dept: 89 AD3d 1115 (Queens)	denied 2/24/12 (Pigott, J.)
People v Rosado (Adan)	1st Dept: 88 AD3d 454 (NY)	denied 2/1/12 (Jones, J.)
People v Rosado (Jose)	App Div, 2d Dept: 2011 NY Slip Op 93614(U) (Kings)	dismissed 2/14/12 (Lippman, Ch. J.)
People v Salamone	2d Dept: 89 AD3d 961 (Suffolk)	denied 2/1/12 (Pigott, J.)
People v Sanchez (Anike)	3d Dept: 87 AD3d 1226 (Ulster)	denied 2/28/12 (Lippman, Ch. J.)
People v Sanchez (Christopher)	1st Dept: 87 AD3d 924 (Bronx)	denied 2/1/12 (Jones, J.)
People v Savery	4th Dept: 90 AD3d 1505 (Cayuga)	denied 2/23/12 (Grafteo, J.)
People v Savinon	1st Dept: 87 AD3d 941 (NY)	denied 2/1/12 (Jones, J.)
People v Sawyer-Plato	4th Dept: 81 AD3d 1444 (Oneida)	denied 2/1/12 (Jones, J.)
People v Simmons	2d Dept: 84 AD3d 1120 (Queens)	denied 2/22/12 (Lippman, Ch. J.)
People v Stanislas	2d Dept: 89 AD3d 1043 (Kings)	denied 2/23/12 (Read, J.)
People v Sunter	App Div, 1st Dept: 2011 NY Slip Op 86071(U) (NY)	denied 2/2/12 (Pigott, J.)
People v Swift	App Div, 4th Dept, 8/11/11 (Cayuga)	denied reconsideration 2/23/12 (Read, J.)
People v Syville	1st Dept: 90 AD3d 535 (NY)	denied 2/28/12 (Grafteo, J.)
People v Thompson	2d Dept: 89 AD3d 1117 (Orange)	denied 2/23/12 (Grafteo, J.)

MEMORANDA

929

People v Tillman	1st Dept: 82 AD3d 509 (NY)	denied 2/28/12 (Grafteo, J.)
People v Vargas	2d Dept: 89 AD3d 771 (Kings)	withdrawn 2/29/12 (Smith, J.)
People v Ventura	1st Dept: 85 AD3d 484 (Bronx)	denied 2/24/12 (Lippman, Ch. J.)
People v Walltower	2d Dept: 84 AD3d 1124 (Queens)	denied 2/24/12 (Lippman, Ch. J.)
People v Washington	3d Dept: 85 AD3d 1303 (Ulster)	denied 2/28/12 (Smith, J.)
People v Webb	2d Dept: 89 AD3d 874 (Kings)	denied 2/23/12 (Grafteo, J.)
People v Whitmore	App Div, 3d Dept: 2011 NY Slip Op 86561(U) (Broome)	denied 2/1/12 (Jones, J.)
People v Wiggins	2d Dept: 60 AD3d 978 (Orange)	denied reconsideration 2/22/12 (Pigott, J.)
People v Williams (Deanzae)	County Ct, 11/4/11 (Ontario)	denied 2/23/12 (Grafteo, J.)
People v Williams (Kenyatte)	2d Dept: 84 AD3d 1131 (Suffolk)	leave denied upon reconsideration 2/1/12 (Jones, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices*

(February 1, 2012 through February 29, 2012)

People v Ippolito (Gerald)	4th Dept: 89 AD3d 1369 (Monroe)	granted 2/1/12 (Carni, J.)
People v Ippolito (Gerard)	4th Dept: 89 AD3d 1369 (Monroe)	granted 2/1/12 (Carni, J.)

[965 NE2d 959, 942 NYS2d 457]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JASON
MACK, Respondent.

Argued February 16, 2012; decided March 22, 2012

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 21, 2010. The Appellate Division affirmed an order of the Supreme Court, New York

* Includes only applications that were granted.

County (Renee A. White, J.), which had granted a motion by defendant to dismiss an indictment charging him with sexual abuse in the first degree.

People v Mack, 76 AD3d 877, affirmed.

HEADNOTE

Crimes — Sexual Abuse — Forcible Compulsion

An indictment charging defendant with sexual abuse in the first degree by means of forcible compulsion was properly dismissed since defendant's alleged touching of a teenage girl and "stealth" ejaculation on her as he stood behind her on a crowded subway train failed to establish the requisite use of forcible compulsion. There was no coordinated action by defendant and other passengers to hedge in the victim. Rather, the crowded conditions in the subway car merely masked and facilitated the unwanted sexual contact alleged. The sexual contact itself was the only physical force that defendant may be said to have deployed against his victim, and that was not enough to establish that the sexual contact was compelled by use of physical force (*see* Penal Law § 130.00 [8] [a]).

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (*Vincent W. Rivellese* and *Hilary Hassler* of counsel), for appellant.

Dratel & Mysliwiec, P.C., New York City (*Alice L. Fontier* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

During the morning rush hour on March 22, 2002, a teenage girl on her way to school got on a packed subway train in Manhattan. She stood just inside the train's door as a tall and "very heavy" man "pushed himself in so [that] he was behind" her. Once the doors closed and the train started to move, the girl felt some "weird movements" on her lower back, which she attributed to the swaying of the train and the press of passengers. When she turned in the man's direction, though, the touching sensation stopped; it resumed when she turned back around. She tried to "move more to [her] right" to avoid this man, but she was hemmed in by the crush of commuters. The man left the train one station after he got on. When the girl eventually got off the train, she noticed semen on her jeans and coat. Upon her arrival at school, she reported the incident to school officials, who called the police.

Although the police developed a DNA profile from the semen on the girl's clothing right away, a suspect was not immediately

identified. Then in 2007, defendant Jason Mack's DNA was added to the State's DNA data bank. An employee of the Office of the Chief Medical Examiner of the City of New York matched the DNA recovered from the girl's clothing to defendant's genetic profile. Defendant was subsequently charged by the grand jury with one count of first-degree sexual abuse (a class D felony) for the acts committed against the girl, as well as a count of third-degree sexual abuse (a class B misdemeanor) for an incident in 2006 involving another victim.

Defendant asked Supreme Court to inspect the grand jury minutes and to dismiss or reduce the first-degree count, arguing that the evidence did not establish the use of force. As relevant here, a person is guilty of first-degree sexual abuse "when he or she subjects another person to sexual contact . . . [b]y forcible compulsion" (Penal Law § 130.65 [1]); and forcible compulsion "means to compel by . . . use of physical force" (Penal Law § 130.00 [8] [a]). By contrast, "[a] person is guilty of [third-degree sexual abuse] when he or she subjects another person to sexual contact without the latter's consent," with an exception not at issue in this case (Penal Law § 130.55).

By decision and order dated September 22, 2008, Supreme Court concluded that "the mere close presence of many other passengers in the train [was] not sufficient to establish the requisite use of forcible compulsion." The judge therefore reduced the count of first-degree sexual abuse in the indictment to third-degree sexual abuse. After the People re-presented the case, defendant was again indicted for first-degree sexual abuse for the encounter on March 22, 2002. He once more asked Supreme Court to inspect the grand jury minutes and to dismiss or reduce the new charge of first-degree sexual abuse on the ground of insufficient evidence of forcible compulsion. By decision and order dated January 29, 2009, the judge found that "the evidence showed that defendant sexually touched the complainant[,] but failed to establish the requisite use of forcible compulsion." Accordingly, Supreme Court dismissed the one-count indictment, observing that the People could still prosecute defendant for this incident under the reduced charge in the original indictment.

Upon the People's appeal, the Appellate Division affirmed, with two Justices dissenting (76 AD3d 877 [1st Dept 2010]). The court remarked that "[w]hile the conduct described in the grand jury presentation was reprehensible," the evidence established only "the use of stealth to commit the crime," not

“the use of physical force” (*id.* at 879). The dissenters considered the proof sufficient to make out a *prima facie* case, analogizing the facts to robberies where defendants and their accomplices act together to create a “human wall” to intimidate or block a victim. A Justice of the Appellate Division granted the People leave to appeal, and we now affirm.

Here, there was no coordinated action by defendant and other passengers to hedge in the victim. Rather, the crowded conditions in the subway car merely masked and facilitated the unwanted sexual contact alleged. The sexual contact itself is the only physical force that defendant may be said to have deployed against his victim. This is not enough to establish that the sexual contact was “compel[led] by . . . use of physical force.”

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[967 NE2d 1159, 944 NYS2d 714]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PADRAIC KEATING, Appellant.

Argued February 9, 2012; decided March 22, 2012

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 15, 2010. The Appellate Division denied defendant’s application for a writ of error coram nobis to vacate an order of that Court, entered May 21, 2001 (283 AD2d 589 [2001]), which had affirmed a judgment of the Supreme Court, Richmond County (Charles A. Kuffner, J.), convicting defendant, upon a jury verdict, of murder in the second degree, manslaughter in the second degree, vehicular manslaughter in the first degree, vehicular manslaughter in the second degree, operating a motor vehicle while intoxicated (two counts), and leaving the scene of an accident (two counts).

People v Keating, 74 AD3d 1094, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Appellate Counsel

Defendant, convicted of second degree murder, driving while intoxicated and other related crimes, was not deprived of effective assistance of appellate counsel by his counsel's failure to raise the issue of the trial court's admission of a videotape of defendant consenting to a blood test, an arguably prejudicial piece of evidence. Although there are cases in which a single failing in an otherwise competent performance is so egregious and prejudicial as to deprive a defendant of his constitutional right, such cases are rare. Here, the evidentiary issue was a matter of discretion for the trial court, and the error, if any, was not egregious and was unlikely to have been prejudicial. While admitting the videotape into evidence may have been error because, under then-accepted law, evidence as to defendant's remorse or the lack of it may have been irrelevant to the presence or absence of "circumstances evincing a depraved indifference to human life" (Penal Law § 125.25 [2]), the argument was by no means "clear-cut," and it could not be said that its omission from defendant's appellate brief was inconsistent with the conduct of a reasonably competent appellate attorney.

APPEARANCES OF COUNSEL

Lauren G. Klein, Nantucket, Massachusetts, for appellant.

Daniel M. Donovan, Jr., District Attorney, Staten Island (*Anne Grady* and *Morrie I. Kleinbart* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant appeals, pursuant to permission granted by a Judge of this Court, from an Appellate Division order denying his application for coram nobis relief. This application seeks relief based solely on defendant's claim that he was denied effective assistance of appellate counsel.*

Defendant, who struck and killed a young mother while driving drunk, was convicted of murder in the second degree, manslaughter in the second degree, vehicular manslaughter in the first degree, vehicular manslaughter in the second degree, two counts of operating a motor vehicle while intoxicated, and two counts of leaving the scene of an accident. At his jury trial, the court permitted the admission of a videotape of defendant consenting to a blood test. During the videotape, in response to

* The issue raised in this application for a writ of error coram nobis had not been raised in prior applications. Defendant filed a petition for a writ of habeas corpus in the United States District Court for the Eastern District of New York in 2003. Most recently in April 2010, the proceeding was stayed to permit defendant to exhaust this claim in state court.

being asked whether he would consent to a blood test, defendant responded “Yes . . . I will not release the police department or the doctors from responsibility of the needle breaking off in my arm, et cetera et cetera, but I will take the test.” Defense counsel asked that the tape be stopped after defendant’s consent, arguing that the remainder was not relevant and would be prejudicial. The court ruled that it was probative “of what his mind set was before the accident” and thus admissible.

We reject defendant’s contention that he was deprived of effective assistance of counsel when his appellate counsel failed to raise, on direct appeal, the issue of the trial court’s admission of the videotape, an arguably prejudicial piece of evidence (*People v Stultz*, 2 NY3d 277 [2004]). Although there are “cases in which a single failing in an otherwise competent performance is so ‘egregious and prejudicial’ as to deprive a defendant of his constitutional right[,] . . . [s]uch cases are rare” (*People v Turner*, 5 NY3d 476, 480 [2005]). Indeed, these cases have involved issues that are “clear-cut” and “dispositive” (*id.* at 481). Here, the issue of the admission of defendant’s videotaped consent to a blood test is a matter of discretion for the trial court. Moreover, appellate counsel’s error, if it was one, was not egregious and is unlikely to have been prejudicial. As defendant points out, an argument might have been made, at the time defendant’s brief on direct appeal was submitted in 2000, that the admission of the videotape was error because, under then-accepted law, evidence as to defendant’s remorse or the lack of it may have been irrelevant to the presence or absence of “circumstances evincing a depraved indifference to human life” (Penal Law § 125.25 [2]; see *People v Roe*, 74 NY2d 20, 27 [1989] [evidence of defendant’s mental state “beside the point”]; *People v De George*, 73 NY2d 614, 621 [1989] [evidence of defendant’s post-event emotional condition “has little relevance”]). But the argument was by no means “clear-cut” (see *People v Gomez*, 65 NY2d 9, 12 [1985] [a “callous” remark held to be “evidence of depraved indifference”]). Indeed, we do not think the argument would have prevailed. It certainly cannot be said that its omission from defendant’s appellate brief was inconsistent with the conduct of “a reasonably competent appellate attorney” (*People v Borrell*, 12 NY3d 365, 368 [2009]). The parties have cited no case in which a similar argument—that evidence of defendant’s emotional state was improperly admitted to show depraved indifference—was made, successfully or unsuccessfully, on appeal. Thus, the Appellate Division correctly denied defendant’s motion for coram nobis relief.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

In the Matter of RAYMOND ALVAREZ, Appellant, v NEW YORK STATE DIVISION OF PAROLE, Chairman, Respondent.

Submitted November 28, 2011; decided March 22, 2012

Reported below, 85 AD3d 1468.

Motion to vacate this Court's October 24, 2011 dismissal order denied (*see* 17 NY3d 901 [2011]).

JULIETTE DEJOIE CADICHON et al., Appellants, v THOMAS FACELLE, M.D., et al., Respondents.

Submitted January 17, 2012; decided March 22, 2012

Reported below, 71 AD3d 520.

Motions for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 18 NY3d 230 (2011)].

CHAZON, LLC, Respondent, v MARGARET MAUGENEST, Appellant, et al., Defendants.

Submitted March 19, 2012; decided March 22, 2012

Reported below, 81 AD3d 769.

Motion by Lower Manhattan Loft Tenants for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of CHINESE STAFF AND WORKERS' ASSOCIATION et al., Appellants, v AMANDA M. BURDEN, as Director of the New York City Department of City Planning, et al., Respondents.

Submitted March 19, 2012; decided March 22, 2012

Reported below, 88 AD3d 425.

Motion by Natural Resources Defense Council et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

PAUL ELDRIDGE, Respondent, v CARMEL CENTRAL SCHOOL DISTRICT BOARD OF EDUCATION et al., Appellants.

Submitted January 17, 2012; decided March 22, 2012

Reported below, 82 AD3d 1147.

Motion for reargument of motion for leave to appeal denied [see 18 NY3d 853 (2011)].

In the Matter of HAILEY ZZ., a Child Alleged to be Permanently Neglected. TOMPKINS COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; RICKY ZZ., Appellant.

Submitted March 12, 2012; decided March 22, 2012

Reported below, 85 AD3d 1265.

Motion by Monroe County Department of Social Services for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of HAILEY ZZ., a Child Alleged to be Permanently Neglected. TOMPKINS COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; RICKY ZZ., Appellant.

Submitted March 19, 2012; decided March 22, 2012

Reported below, 85 AD3d 1265.

Motion by Saratoga County Department of Social Services et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of ITHACA CITY SCHOOL DISTRICT, Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted March 19, 2012; decided March 22, 2012

Reported below, 87 AD3d 268.

Motion by Advocates for Children of New York, Inc. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of ITHACA CITY SCHOOL DISTRICT, Appellant, v
NEW YORK STATE DIVISION OF HUMAN RIGHTS et al., Respon-
dents.

Submitted March 19, 2012; decided March 22, 2012

Reported below, 87 AD3d 268.

Motion by New York State School Boards Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of the Arbitration between JOHNSON CITY PROFES-
SIONAL FIREFIGHTERS LOCAL 921 et al., Respondents, and
VILLAGE OF JOHNSON CITY, Appellant. (Proceeding No. 1.)

In the Matter of the Arbitration between VILLAGE OF JOHNSON
CITY, Appellant, and JOHNSON CITY FIREFIGHTERS ASSOCIA-
TION, LOCAL 921 IAFF, Respondent. (Proceeding No. 2.)

Submitted January 3, 2012; decided March 22, 2012

Reported below, 72 AD3d 1235.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 18 NY3d 32 (2011)].

WILLIAM I. KOCH, Appellant, v ACKER, MERRALL & CONDIT COM-
PANY, Respondent.

Submitted February 27, 2012; decided March 22, 2012

Reported below, 73 AD3d 661.

Motion by Pacific Legal Foundation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge SMITH taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY BUSH, Appellant.

Submitted February 21, 2012; decided March 22, 2012

Reported below, 2011 NY Slip Op 92010(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EUGENE G. LAPIERRE, Appellant.

Submitted February 27, 2012; decided March 22, 2012

Reported below, 86 AD3d 619.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERRANCE MONK, Appellant.

Submitted December 5, 2011; decided March 22, 2012

Reported below, 83 AD3d 35.

Motion for assignment of counsel granted and Scott B. Tushman, Esq., 369 Lexington Avenue, 15th Floor, New York, NY 10017 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERRANCE MONK, Appellant.

Submitted December 19, 2011; decided March 22, 2012

Reported below, 83 AD3d 35.

Motion to vacate this Court's November 30, 2011 dismissal order granted [*see* 17 NY3d 950 (2011)].

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JEANNE M. VANDOVER, Respondent.

Submitted March 19, 2012; decided March 22, 2012

Reported below, 31 Misc 3d 131(A).

On the Court's own motion, Matthew S. Lerner, Esq. granted leave to appear as amicus curiae on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DAMIEN WARREN, Respondent.

Submitted February 21, 2012; decided March 22, 2012

Reported below, 87 AD3d 36.

Motion for assignment of counsel granted and Michael L. D'Amico, Esq., 484 Delaware Avenue, Buffalo, New York 14202 assigned as counsel to the respondent on the appeal herein.

In the Matter of TODD M. SMITH, Respondent, v JAMES C. TORMEY, District Administrative Judge, Fifth Judicial District, Respondent, and County of Onondaga et al., Appellants.

Submitted March 19, 2012; decided March 22, 2012

Reported below, 83 AD3d 1425.

Motion by New York State Association of Criminal Defense Lawyers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

Chief Judge LIPPMAN taking no part.

In the Matter of TOWN OF WALLKILL, Respondent, v CIVIL SERVICE EMPLOYEES ASSOCIATION, INC. (LOCAL 1000, AFSCME, AFL-CIO, TOWN OF WALLKILL POLICE DEPARTMENT UNIT, ORANGE COUNTY LOCAL 836), et al., Appellants.

Submitted March 5, 2012; decided March 22, 2012

Reported below, 84 AD3d 968.

Motion by New York State Public Employment Relations Board for leave to orally argue as amicus curiae on the appeal herein denied.

[967 NE2d 675, 944 NYS2d 452]

WILLIAM I. KOCH, Appellant, v ACKER, MERRALL & CONDIT COMPANY, Respondent.

Decided March 27, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Supreme Court, New York County (Martin Shulman, J.), entered August 26, 2011. The Supreme Court, upon a stipulation of discontinuance as to the breach of contract cause of action, dismissed that last remaining cause of action. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 27, 2010. The Appellate Division (1) reversed, on the law, so much of an order of that Supreme Court as had denied defendant's motion to dismiss plaintiff's causes of action asserted pursuant to General Business Law §§ 349 and 350, (2) granted the motion, and (3) dismissed those causes of action.

In an action arising out of the purchase of allegedly counterfeit bottles of wine, the Appellate Division noted that the "Conditions of Sale/Purchaser's Agreement" included in each of defendant's auction catalogs contained an "as is" provision alerting prospective purchasers that defendant "makes no express or implied representation, warranty, or guarantee regarding the origin, physical condition, quality, rarity, authenticity, value or estimated value of [the wine]," that any statements made by defendant were "opinion only, and shall not be relied upon by any bidder," and that "[p]rospective bidders must satisfy themselves by inspection or other means as to all considerations pertinent to any decision to place any bid." The Court concluded that a reasonable consumer, alerted by those disclaimers, would not have relied, and thus would not have been misled, by defendant's alleged misrepresentations concerning the vintage and provenance of the wine it sold, and that accordingly, plaintiff's claims under General Business Law §§ 349 and 350 lacked merit.

Koch v Acker, Merrall & Condit Co., 73 AD3d 661, reversed.

HEADNOTE

Consumer Protection — Deceptive Acts and Practices — Sale of Wine

In an action arising out of the purchase of allegedly counterfeit bottles of wine, plaintiff sufficiently pleaded causes of action under General Business

Law §§ 349 and 350 and the disclaimers set forth in defendant's catalogs did not bar those claims for deceptive trade practices on a motion to dismiss, as they did not establish a defense as a matter of law. To successfully assert a claim under General Business Law § 349 (h) or § 350, a plaintiff must allege that a defendant has engaged in consumer-oriented conduct that is materially misleading and that plaintiff suffered injury as a result of the allegedly deceptive act or practice. To the extent that the Appellate Division order imposed a reliance requirement on the section 349 and 350 claims, it was error. Justifiable reliance by the plaintiff is not an element of the statutory claim.

APPEARANCES OF COUNSEL

Hunton & Williams LLP, New York City (*Joseph J. Saltarelli*, *Shawn Patrick Regan* and *Jennifer L. Cummins* of counsel), and *Irell & Manella LLP*, Newport Beach, California (*Bruce A. Wessel*, *John Hueston* and *Moez M. Kaba* of counsel), for appellant.

Meister Seelig & Fein LLP, New York City (*Stephen B. Meister*, *Thomas L. Friedman* and *Remy J. Stocks* of counsel), for respondent.

Theodore Hadzi-Antich and *Deborah J. La Fetra*, Sacramento, California, for Pacific Legal Foundation, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The judgment of Supreme Court appealed from and the order of the Appellate Division brought up for review should be reversed, with costs, and defendant's motion to dismiss plaintiff's General Business Law §§ 349 and 350 causes of action denied. To successfully assert a claim under General Business Law § 349 (h) or § 350, "a plaintiff must allege that a defendant has engaged in (1) consumer-oriented conduct that is (2) materially misleading and that (3) plaintiff suffered injury as a result of the allegedly deceptive act or practice" (*City of New York v Smokes-Spirits.Com, Inc.*, 12 NY3d 616, 621 [2009]; see *Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 324 n 1 [2002]). Here, plaintiff sufficiently pleaded such causes of action, and the disclaimers set forth in defendant's catalogs "do not . . . bar [plaintiff's] claims for deceptive trade practices at this stage of the proceedings, as they do not establish a defense as a matter of law" (*Goshen*, 98 NY2d at 326; see *Gaidon v Guardian Life Ins. Co. of Am.*, 94 NY2d 330, 345 [1999]).

To the extent that the Appellate Division order imposed a reliance requirement on General Business Law §§ 349 and 350 claims, it was error. Justifiable reliance by the plaintiff is not an element of the statutory claim (see *Small v Lorillard Tobacco*

Co., 94 NY2d 43, 55 [1999], citing *Oswego Laborers' Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20, 26 [1995]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, FIGOTT and JONES concur in memorandum; Judge SMITH taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment appealed from and order of the Appellate Division brought up for review reversed, etc.

BELLA B. ALOYTS et al., Respondents, v 601 TENANT'S CORP., Respondent, and JEFF BERGER, Appellant.

Submitted November 28, 2011; decided March 27, 2012

Reported below, 84 AD3d 1287.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2).

In the Matter of DAVID BURR, Appellant, v TIMOTHY B. HOWARD, Sheriff of Erie County, Respondent.

Submitted January 17, 2012; decided March 27, 2012

Reported below, 2011 NY Slip Op 92347(U).

Motion for leave to appeal dismissed upon the ground that the December 2011 Appellate Division order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DAVID BURR, Appellant, v TIMOTHY B. HOWARD, Sheriff of Erie County, Respondent.

Submitted March 5, 2012; decided March 27, 2012

Reported below, 2012 NY Slip Op 60911(U).

Motion for leave to appeal dismissed upon the ground that the January 2012 Appellate Division order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MARILYN C. DeCRESCENTE, Respondent, v CATHOLIC CHARITIES OF THE DIOCESE OF ALBANY et al., Defendants and Third-Party Plaintiffs-Appellants. COUNTY OF WASHINGTON et al., Third-Party Defendants-Respondents, et al., Third-Party Defendant.

Submitted December 12, 2011; decided March 27, 2012

Reported below, 89 AD3d 1272.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order affirming so much of the Supreme Court order as dismissed the third-party complaint as against Fort Edward Victorian, Inc. and County of Washington, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order sought to be appealed from do not finally determine the action within the meaning of the Constitution.

SAM FUTERSAK, Appellant, v SHELDON PERL, Also Known as SHLOIME PERL, et al., Respondents.

Submitted January 17, 2012; decided March 27, 2012

Reported below, 84 AD3d 1309; 2011 NY Slip Op 89601(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

MICHAEL GRUCCI, Appellant, v CHRISTINE GRUCCI, Respondent.

Submitted January 23, 2012; decided March 27, 2012

Reported below, 81 AD3d 776.

Motion to strike appellant's appendix denied.

MICHAEL GRUCCI, Appellant, v CHRISTINE GRUCCI, Respondent.

Submitted February 6, 2012; decided March 27, 2012

Reported below, 81 AD3d 776.

Motion to vacate this Court's January 24, 2012 preclusion order granted.

JAMES KNAPP et al., Respondents-Appellants, v JAMES R. HUGHES et al., Appellants-Respondents.

Submitted January 30, 2012; decided March 27, 2012

Reported below, 25 AD3d 886.

Motion for reargument of motion for leave to appeal denied [*see* 18 NY3d 827 (2011)].

L&L ASSOCIATES HOLDING CORP., Respondent, v JOSEPH A.F. SADOWSKI, Appellant, et al., Defendants.

Submitted January 30, 2012; decided March 27, 2012

Reported below, 2011 NY Slip Op 84844(U).

Motion for reargument etc. denied [*see* 18 NY3d 854 (2011)].
Motion for poor person relief dismissed as academic.

In the Matter of RAYMOND C. MILLER SR., Appellant, v PATRICIA A. MILLER, Respondent.

Submitted January 17, 2012; decided March 27, 2012

Reported below, 90 AD3d 1185.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JAVONDI PENDER, Appellant, v LASALLE BUS SERVICE, INC., Respondent.

Submitted January 30, 2012; decided March 27, 2012

Reported below, 2011 NY Slip Op 83123(U).

Motion for reargument of motion for leave to appeal denied [*see* 18 NY3d 838 (2011)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN LASHWAY, Appellant.

Submitted January 23, 2012; decided March 27, 2012

Reported below, 90 AD3d 1178.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE WATSON, Appellant.

Submitted February 21, 2012; decided March 27, 2012

Reported below, 82 AD3d 1276.

Motion to vacate this Court's February 8, 2012 dismissal order granted (*see* 18 NY3d 921 [2012]).

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* A. JAMES BELL, on Behalf of OKECHUKWU OKORONKWO, Appellant, v COMMISSIONER OF THE NEW YORK CITY DEPARTMENT OF CORRECTIONS *et al.*, Respondents.

Submitted January 30, 2012; decided March 27, 2012

Reported below, 89 AD3d 1046.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

CHRISTOPHER EARL STRUNK, Plaintiff, v DAVID PATERSON *et al.*, Respondents. H. WILLIAM VAN ALLEN, Nonparty Appellant.

Decided March 27, 2012

Appeal dismissed, without costs, by the Court of Appeals, *sua sponte*, upon the ground that it does not lie (*see* CPLR 5601).

In the Matter of TOWN OF WALLKILL, Respondent, v CIVIL SERVICE EMPLOYEES ASSOCIATION, INC. (LOCAL 1000, AFSCME, AFL-CIO, TOWN OF WALLKILL POLICE DEPARTMENT UNIT, ORANGE COUNTY LOCAL 836), *et al.*, Appellants.

Submitted March 19, 2012; decided March 27, 2012

Reported below, 84 AD3d 968.

Motion by New York State Law Enforcement Officers Union,

Council 82, AFSCME, AFL-CIO for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

UNION STREET TOWER, LLC, Respondent, v ERIC RICHMOND et al., Appellants.

Submitted January 9, 2012; decided March 27, 2012

Reported below, 84 AD3d 784.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[967 NE2d 694, 944 NYS2d 469]

GERMELIA JOSEPH, Respondent, v GEORGE ATHANASOPOULOS et al., Defendants, and HDMJ RESTAURANT, INC., Appellant.

Submitted January 30, 2012; decided March 29, 2012

SUMMARY

MOTION for permission to withdraw from representation in a matter that had been accepted by the Court of Appeals upon certification of a question by the United States Court of Appeals for the Second Circuit on September 15, 2011.

Joseph v Athanasopoulos, 17 NY3d 848, certification declined.

HEADNOTE

Courts — Court of Appeals — Certified Question — Denial of Certification

The Court of Appeals denied a motion by counsel for appellant for permission to withdraw from representation of that party and, upon its own motion, reconsidered an order accepting certification of a question by the United States Court of Appeals for the Second Circuit and, upon reconsideration, declined to accept certification. Further consideration by the Court of Appeals was not warranted in light of appellant's unwillingness to participate in the certified question or to further prosecute the appeal in the Second Circuit, as evidenced by its motion to withdraw the appeal in that court, and by the apparent disintegration of the attorney-client relationship between appellant and its counsel.

APPEARANCES OF COUNSEL

Law Offices of David S. Feather, Garden City (*David S. Feather* of counsel), for appellant.

Germelia Joseph, pro se, and *Stephen N. Preziosi*, New York City, for *Germelia Joseph*, respondent.

OPINION OF THE COURT

MEMORANDUM.

The motion by counsel for HDMJ Restaurant, Inc. for permission to withdraw from representation of that party in this Court should be denied. On the Court's own motion, reconsideration is given to our September 15, 2011 order accepting certification of a question by the United States Court of Appeals for the Second Circuit (*see* 17 NY3d 848 [2011]), and, upon reconsideration, certification by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), should be declined.

In light of appellant HDMJ's unwillingness to participate in this Court on the certified question or to further prosecute the appeal in the Second Circuit, as evidenced by its motion to withdraw the appeal in that court, and the apparent disintegration of the attorney-client relationship between appellant and its counsel, any further consideration of this matter by this Court is not warranted. Therefore, after reconsidering our prior order, we decline to accept the certified question.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Motion by counsel for HDMJ Restaurant, Inc. for permission to withdraw from representation of that party in this Court denied; on the Court's own motion, reconsideration given to its September 15, 2011 order accepting certification of a question by the United States Court of Appeals for the Second Circuit (*see* 17 NY3d 848 [2011]), and, upon reconsideration, certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), declined, in a memorandum.

[967 NE2d 695, 944 NYS2d 470]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TECOY INGRAM, Appellant.

Argued February 9, 2012; decided March 29, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 10, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Onondaga County (John J. Brunetti, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the third degree.

In a prosecution for drug possession, defendant contended that the Supreme Court erred in refusing to suppress both the drugs found on his person and his statements to the police on the ground that he was unlawfully detained. The Appellate Division concluded that contrary to defendant's contention, the police officer's first request for identification information from defendant, a passenger in a vehicle detained pursuant to a valid traffic stop, was reasonably related in scope to the traffic stop and was supported by an objective credible reason, i.e., the driver's inability to produce a valid driver's license. The Appellate Division noted that the officer testified at the suppression hearing that he sought the information from defendant and another passenger in order to ascertain whether one of them was licensed to operate the vehicle, and that upon learning that defendant gave him a false name, the officer warned defendant that, if he gave the officer a second false name, that would constitute the crime of false personation. The Appellate Division further concluded that the officer was entitled to issue that warning in conjunction with seeking defendant's correct name, pursuant to the officer's right to conduct a common-law inquiry pursuant to *People v De Bour* (40 NY2d 210, 223 [1976]); that the first false name provided by defendant gave the officer the founded suspicion that criminality was afoot required for a common-law inquiry, and that when defendant gave a second false name to the officer, the officer was justified in asking defendant to exit the vehicle and conducting a search of defendant's person pursuant to a lawful arrest for false personation.

People v Ingram, 81 AD3d 1277, reversed.

HEADNOTE

Crimes — Appeal — Review Power of Appellate Courts

On appeal from a judgment convicting defendant of criminal possession of a controlled substance in the third degree, the Appellate Division erroneously resolved defendant's suppression application on a theory not reached by the suppression court without addressing the validity of Supreme Court's rationale. CPL 470.15 (1) precludes the Appellate Division from reviewing an issue that was either decided in an appellant's favor or was not decided by the trial court, and, in an appeal from an Appellate Division affirmance, CPL 470.35 (1) grants the Court of Appeals no broader review power than that possessed by the Appellate Division. Accordingly the Appellate Division order was reversed and the matter remitted to Supreme Court.

APPEARANCES OF COUNSEL

Mitchell Goris Stokes & O'Sullivan, LLP, Cazenovia (*Stewart F. Hancock, Jr.*, of counsel), and *Hiscock Legal Aid Society*, Syracuse (*Philip Rothschild* and *Piotr Banasiak* of counsel), for appellant.

William J. Fitzpatrick, District Attorney, Syracuse (*James P. Maxwell* and *Victoria M. White* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, and the matter remitted to Supreme Court for further proceedings in accordance with this memorandum.

CPL 470.15 (1) precludes the Appellate Division from reviewing an issue that was either decided in an appellant's favor or was not decided by the trial court (see *People v Concepcion*, 17 NY3d 192 [2011]; *People v LaFontaine*, 92 NY2d 470 [1998]). In an appeal from an Appellate Division affirmance, CPL 470.35 (1) grants us no broader review power than that possessed by the Appellate Division. Here, without addressing the validity of Supreme Court's rationale, the Appellate Division resolved defendant's suppression application on a theory not reached by the suppression court.

PIGOTT, J. (dissenting). For the reasons that Judge Smith stated in his dissent in *People v Concepcion* (17 NY3d 192, 201-207 [2011]), I remain convinced that *People v LaFontaine* (92 NY2d 470 [1998]) should be overruled. The majority thinks differently, and I would be constrained to accept their view of this case, except that *LaFontaine* clearly does not apply here.

In *LaFontaine*, the trial court and Appellate Division found

contrary rationales for denying a suppression motion. The trial court concluded that New Jersey police officers were authorized to execute a federal arrest warrant in New York, and explicitly rejected the rationale that the New Jersey police effected an authorized citizen's arrest. However, the Appellate Division accepted the citizen's arrest ground for denying suppression, thus deciding the appeal on an issue on which the defendant had prevailed. Similarly, in *Concepcion*, the trial court denied suppression to defendant on "inevitable discovery" grounds, and expressly rejected the alternative rationale of "consent," while the Appellate Division denied suppression on that very basis.

In both *LaFontaine* and *Concepcion*, the Appellate Division upheld a denial of suppression on a ground that the trial court had "explicitly rejected" (*LaFontaine*, 92 NY2d at 473; *see also Concepcion*, 17 NY3d at 196 [Appellate Division upheld denial of suppression on a basis that Supreme Court had "squarely rejected"]). Because the ground upon which the Appellate Division affirmed had previously been decided in appellant's favor, we held that the Appellate Division should not have reached that issue.

Here, on the other hand, the trial court ruled that both the police officer's initial request for defendant's name and his inquiry after he realized that defendant had given him a false name were permissible under the first level of *De Bour* police intrusion, "[t]he minimal intrusion of approaching to request information" (*People v De Bour*, 40 NY2d 210, 223 [1976]), while the Appellate Division ruled that the initial request for defendant's name was permissible under the first level of *De Bour*, but that the officer's second inquiry was justified by a "founded suspicion that criminal activity is afoot" (*De Bour*, 40 NY2d at 223), the second level of *De Bour*.

What distinguishes this case from *LaFontaine* and *Concepcion* is that the trial court did not reach the rationale of the Appellate Division that the police officer had founded suspicion of criminal activity. Far from deciding the issue in defendant's favor, the trial court, insofar as it was of the view that the officer's second inquiry did not rise to the second level of *De Bour*, committed an error that if anything "adversely affected the appellant" (CPL 470.15 [1]).

The result today is that the case will be remitted to the trial court, which will no doubt read the Appellate Division's decision and deny suppression on *De Bour* second-level grounds, instead of first-level grounds. This is a pointless exercise.

In my view the Appellate Division's ruling here is consistent with CPL 470.15 (1), and I would reach the merits. Because I believe that defendant's arguments on appeal either lack merit or are unpreserved for our review, I would affirm the order of the Appellate Division.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and JONES concur in memorandum; Judge PIGOTT dissents and votes to affirm in an opinion in which Judge SMITH concurs.

Order reversed, etc.

KENZIE GODFREY, Appellant, v G.E. CAPITAL AUTO LEASE, INC.,
Respondent, et al., Defendants.

Submitted December 27, 2011; decided March 29, 2012

Reported below, 89 AD3d 471.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 65 AD3d 434 [2009], *lv dismissed* 14 NY3d 748 [2010]).

Judge READ taking no part.

GREAT AMERICAN INSURANCE COMPANIES et al., Plaintiffs, v
BEARCAT FINANCIAL SERVICES, INC., et al., Defendants. PAT-
RICK HAYES, Third-Party Plaintiff-Appellant, v DRESDNER,
KLEINWORT, WASSERSTEIN SERVICES, LLC, Third-Party De-
fendant-Respondent. PETER A. HURWITZ, Esq., Nonparty
Appellant.

Submitted February 6, 2012; decided March 29, 2012

Reported below, 90 AD3d 533.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

YAAKOV LICCI, a Minor, by His Father and Natural Guardian,
ELIHAV LICCI, and by His Mother and Natural Guardian,
YEHUDIT LICCI, et al., Appellants, v LEBANESE CANADIAN
BANK, SAL, et al., Respondents.

Decided March 29, 2012

See 673 F3d 50.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

NELLA MANKO, Appellant, v AETNA HEALTH, INC., et al., Respondents.

Decided March 29, 2012

Reported below, 2011 NY Slip Op 79142(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided March 29, 2012

Reported below, 2011 NY Slip Op 81074(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5511, 5601).

MARSHALL INVESTMENTS CORPORATION et al., Appellants, v
HARRAH'S OPERATING COMPANY, INC., as Successor to CAESAR'S ENTERTAINMENT INC., Formerly Known as PARK PLACE ENTERTAINMENT CORPORATION, et al., Respondents.

Submitted January 3, 2012; decided March 29, 2012

Reported below, 82 AD3d 515.

Motion for reargument of motion for leave to appeal denied [see 17 NY3d 949 (2011)]. The parties' stipulation, being without prejudice, did not finally determine the second cause of action for purposes of this Court's jurisdiction.

In the Matter of EDWARD MURPHY et al., Respondents-Appellants, v UNITED STATES DREDGING CORPORATION, Appellant-Respondent, et al., Respondents.

Submitted January 3, 2012; decided March 29, 2012

Reported below, 74 AD3d 815.

Motion by appellant-respondent for leave to appeal denied. Motion by respondents-appellants for leave to appeal dismissed upon the ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

ROSE GROUP PARK AVENUE LLC et al., Appellants, v NEW YORK STATE LIQUOR AUTHORITY, Respondent. THE PRESERVATION COALITION et al., Intervenors-Respondents.

Submitted February 27, 2012; decided March 29, 2012

Reported below, 93 AD3d 1.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

DANIEL SINGER, Appellant, v CASEY KRUL, Respondent.

Submitted February 6, 2012; decided March 29, 2012

Reported below, 90 AD3d 1378.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 65 AD3d 434 [2009], *lv dismissed* 14 NY3d 748 [2010]).

In the Matter of SUSAN D. SETTENBRINO, P.C., Appellant, v FLORENTINA BARROGA-HAYES, Respondent.

Submitted January 17, 2012; decided March 29, 2012

Reported below, 89 AD3d 1094.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's order denying petitioner's motion to correct the judgment, dismissed upon the ground that such portion of the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(March 1, 2012 through March 31, 2012)

People v Schwartz	App Term, 2d Dept: 33 Misc 3d 142(A)	3/6/12
-------------------	---	--------

APPEALS WITHDRAWN AND DISCONTINUED

(March 1, 2012 through March 31, 2012)

Gersten v 56 7th Ave., LLC	1st Dept: 88 AD3d 189	3/6/12
----------------------------	-----------------------	--------

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2012 through March 31, 2012)

People v Achouatte	3d Dept: 91 AD3d 1028 (Warren)	denied 3/12/12 (Pigott, J.)
People v Adams	4th Dept: 90 AD3d 1508 (Monroe)	denied 3/14/12 (Smith, J.)
People v Alincastre	1st Dept: 90 AD3d 506 (Bronx)	denied 3/23/12 (Grafteo, J.)
People v Alleyne	1st Dept: 89 AD3d 646 (NY)	denied 3/8/12 (Jones, J.)
People v Alonso (Emilia)	2d Dept: 91 AD3d 663 (Westchester)	denied 3/27/12 (Smith, J.)
People v Alonso (Robert)	2d Dept: 91 AD3d 663 (Westchester)	denied 3/27/12 (Smith, J.)
People v Alston	1st Dept: 91 AD3d 448 (NY)	denied 3/26/12 (Smith, J.)
People v Anderson	2d Dept: 91 AD3d 789 (Kings)	denied 3/26/12 (Smith, J.)

MEMORANDA

955

People v Anonymous	1st Dept: 91 AD3d 487 (Bronx)	denied 3/12/12 (Pigott, J.)
People v Aponte	4th Dept: 89 AD3d 1429 (Niagara)	denied 3/14/12 (Ciparick, J.)
People v Arroyo	1st Dept: 88 AD3d 495 (Bronx)	denied 3/6/12 (Ciparick, J.)
People v Artis	3d Dept: 90 AD3d 1240 (Broome)	denied 3/30/12 (Grafteo, J.)
People v Ashley	3d Dept: 89 AD3d 1283 (St. Lawrence)	denied 3/8/12 (Jones, J.)
People v Austin	App Term, 2d Dept: 34 Misc 3d 136(A) (Kings)	denied 3/6/12 (Smith, J.)
People v Ballard	3d Dept: 88 AD3d 1025 (Washington)	denied 3/2/12 (Ciparick, J.)
People v Barley	App Div, 3d Dept: 2011 NY Slip Op 92059(U) (Albany)	dismissed 3/14/12 (Ciparick, J.)
People v Baxter	2d Dept: 86 AD3d 648 (Suffolk)	denied 3/30/12 (Lippman, Ch. J.)
People v Beck	2d Dept: 89 AD3d 745 (Nassau)	denied 3/26/12 (Smith, J.)
People v Belliard	4th Dept: 89 AD3d 1443 (Monroe)	granted 3/5/12 (Read, J.)
People v Benavdes	2d Dept: 90 AD3d 1066 (Queens)	denied 3/26/12 (Smith, J.)
People v Boland	3d Dept: 89 AD3d 1144 (Broome)	denied 3/7/12 (Ciparick, J.)
People v Bonner	App Div, 3d Dept: 2012 NY Slip Op 60308(U) (Albany)	denied 3/12/12 (Pigott, J.)
People v Borukhova	2d Dept: 89 AD3d 194 (Queens)	denied reconsideration 3/14/12 (Smith, J.)
People v Bouknight	2d Dept: 89 AD3d 957 (Kings)	denied 3/27/12 (Read, J.)
People v Bouwens	4th Dept: 90 AD3d 1557 (Ontario)	denied 3/27/12 (Lippman, Ch. J.)
People v Bowyer	4th Dept: 91 AD3d 1338 (Niagara)	denied 3/30/12 (Grafteo, J.)
People v Bradley	1st Dept: 89 AD3d 610 (NY)	denied 3/22/12 (Read, J.)
People v Brooks	2d Dept: 89 AD3d 747 (Suffolk)	denied 3/8/12 (Ciparick, J.)
People v Brown (Cecil)	2d Dept: 85 AD3d 940 (Queens)	denied 3/22/12 (Jones, J.)
People v Brown (Darryl)	4th Dept: 89 AD3d 1473 (Monroe)	denied 3/13/12 (Ciparick, J.)
People v Brown (Ronald)	1st Dept: 92 AD3d 455 (NY)	denied 3/30/12 (Grafteo, J.)
People v Buckman	4th Dept: 90 AD3d 1635 (Monroe)	denied 3/9/12 (Pigott, J.)

People v Buie	2d Dept: 89 AD3d 748 (Kings)	dismissed 3/13/12 (Ciparick, J.)
People v Burke	3d Dept: 90 AD3d 1246 (Columbia)	denied 3/9/12 (Pigott, J.)
People v Cage	4th Dept: 89 AD3d 1410 (Onondaga)	denied 3/8/12 (Jones, J.)
People v Carandang	1st Dept: 92 AD3d 432 (NY)	denied 3/30/12 (Grafteo, J.)
People v Carter	2d Dept: 89 AD3d 1101 (Suffolk)	denied 3/8/12 (Jones, J.)
People v Cassara	3d Dept: 88 AD3d 1069 (Fulton)	denied 3/6/12 (Ciparick, J.)
People v Caswell	App Div, 4th Dept: 2011 NY Slip Op 85227(U) (Cayuga)	dismissed 3/6/12 (Pigott, J.)
People v Coapman	4th Dept: 90 AD3d 1681 (Cayuga)	denied 3/30/12 (Grafteo, J.)
People v Collado	2d Dept: 90 AD3d 672 (Queens)	denied 3/6/12 (Pigott, J.)
People v Colon	App Div, 1st Dept, 10/14/11 (NY)	denied reconsideration 3/28/12 (Read, J.)
People v Comer	4th Dept: 91 AD3d 1339 (Onondaga)	denied 3/30/12 (Grafteo, J.)
People v Conceicao	App Term, 1st Dept: 33 Misc 3d 132(A) (Bronx)	denied 3/2/12 (Ciparick, J.)
People v Connors	4th Dept: 91 AD3d 1340 (Ontario)	denied 3/30/12 (Grafteo, J.)
People v Contant	2d Dept: 90 AD3d 779 (Rockland)	denied 3/30/12 (Lippman, Ch. J.)
People v Cook	4th Dept: 89 AD3d 1493 (Monroe)	denied 3/13/12 (Ciparick, J.)
People v Daggett	4th Dept: 88 AD3d 1296 (Onondaga)	denied 3/27/12 (Read, J.)
People v Daniels	1st Dept: 92 AD3d 404 (NY)	denied 3/30/12 (Lippman, Ch. J.)
People v Davis (Robert)	4th Dept: 87 AD3d 1332 (Onondaga)	denied reconsideration 3/6/12 (Smith, J.)
People v Davis (Shannon)	4th Dept: 90 AD3d 1525 (Erie)	denied 3/21/12 (Read, J.)
People v Dean	3d Dept: 89 AD3d 1326 (Washington)	denied 3/20/12 (Jones, J.)
People v Del Col	2d Dept: 88 AD3d 737 (Nassau)	denied 3/30/12 (Lippman, Ch. J.)
People v Delgado	4th Dept: 89 AD3d 1464 (Onondaga)	denied 3/13/12 (Ciparick, J.)
People v Dennis	County Ct, 12/21/11 (St. Lawrence)	denied 3/6/12 (Smith, J.)
People v Denno	App Div, 3d Dept: 2011 NY Slip Op 90640(U) (Essex)	denied 3/20/12 (Jones, J.)

MEMORANDA

957

People v DeProspero	4th Dept: 91 AD3d 39 (Oneida)	granted 3/13/12 (Ciparick, J.)
People v Diggins	1st Dept: 84 AD3d 667 (NY)	granted 3/30/12 (Lippman, Ch. J.)
People v Divine	App Div, 3d Dept: 2011 NY Slip Op 70750(U) (Schenectady)	denied reconsideration 3/30/12 (Lippman, Ch. J.)
People v Doe	4th Dept: 89 AD3d 1464 (Monroe)	denied 3/8/12 (Jones, J.)
People v Douglas	2d Dept: 89 AD3d 959 (Kings)	denied 3/8/12 (Jones, J.)
People v Dove	3d Dept: 89 AD3d 1153 (Broome)	denied 3/27/12 (Smith, J.)
People v Downing	4th Dept: 89 AD3d 1443 (Niagara)	denied 3/26/12 (Lippman, Ch. J.)
People v Duffner	App Div, 3d Dept: 2011 NY Slip Op 64404(U) (Albany)	denied 3/30/12 (Lippman, Ch. J.)
People v Duperroy	1st Dept: 88 AD3d 606 (NY)	denied 3/6/12 (Pigott, J.)
People v Echevarria	1st Dept: 89 AD3d 545 (NY)	granted 3/8/12 (Ciparick, J.)
People v Edwards (Keith)	2d Dept: 88 AD3d 902 (Queens)	denied 3/8/12 (Jones, J.)
People v Edwards (Malik)	2d Dept: 89 AD3d 1034 (Kings)	denied 3/13/12 (Ciparick, J.)
People v Farewell (Judd)	4th Dept: 90 AD3d 1502 (Orleans)	denied 3/6/12 (Smith, J.)
People v Farewell (Judd)	4th Dept: 90 AD3d 1503 (Orleans)	denied 3/6/12 (Smith, J.)
People v Figgins	4th Dept: 68 AD3d 1823 (Monroe)	denied reconsideration 3/27/12 (Smith, J.)
People v Frank	1st Dept: 89 AD3d 517 (NY)	denied 3/8/12 (Jones, J.)
People v Garcia (Frank)	App Div, 4th Dept: 2012 NY Slip Op 62955(U) (Ontario)	dismissed 3/28/12 (Read, J.)
People v Garcia (Luis)	2d Dept: 89 AD3d 862 (Queens)	denied 3/8/12 (Jones, J.)
People v Gerrara	2d Dept: 88 AD3d 811 (Kings)	denied 3/27/12 (Read, J.)
People v Gibson	App Div, 1st Dept: 2011 NY Slip Op 89559(U) (NY)	denied 3/8/12 (Jones, J.)
People v Gordon	4th Dept: 89 AD3d 1466 (Oneida)	denied 3/27/12 (Read, J.)
People v Gould	App Div, 1st Dept: 2012 NY Slip Op 62389(U) (NY)	dismissed 3/27/12 (Lippman, Ch. J.)
People v Gouveia	2d Dept: 88 AD3d 814 (Kings)	denied 3/27/12 (Read, J.)

People v Green (Lamont)	3d Dept: 84 AD3d 1499 (Albany)	denied reconsideration 3/13/12 (Ciparick, J.)
People v Green (Rodney)	2d Dept: 90 AD3d 948 (Queens)	denied 3/6/12 (Pigott, J.)
People v Guasp	1st Dept: 91 AD3d 462 (NY)	denied 3/14/12 (Smith, J.)
People v Harding	1st Dept: 90 AD3d 491 (NY)	denied 3/20/12 (Jones, J.)
People v Harris (Dwayne)	2d Dept: 89 AD3d 863 (Kings)	denied 3/6/12 (Ciparick, J.)
People v Harris (Semrau)	4th Dept: 90 AD3d 1514 (Monroe)	denied 3/30/12 (Grafteo, J.)
People v Harrison	App Div, 1st Dept: 2011 NY Slip Op 93265(U) (NY)	denied 3/21/12 (Read, J.)
People v Hart	1st Dept: 91 AD3d 574 (Bronx)	denied 3/30/12 (Lippman, Ch. J.)
People v Hassan	2d Dept: 88 AD3d 740 (Queens)	denied 3/30/12 (Lippman, Ch. J.)
People v Helenese	2d Dept: 87 AD3d 1073 (Queens)	denied 3/8/12 (Jones, J.)
People v Herbert	1st Dept: 91 AD3d 501 (NY)	denied 3/23/12 (Grafteo, J.)
People v Hill	4th Dept: 90 AD3d 1588 (Orleans)	denied 3/6/12 (Pigott, J.)
People v Hines	App Div, 2d Dept: 2011 NY Slip Op 85176(U) (Westchester)	dismissed 3/8/12 (Pigott, J.)
People v Holloway	1st Dept: 88 AD3d 620 (NY)	denied 3/2/12 (Ciparick, J.)
People v Hyra	App Term, 2d Dept: 29 Misc 3d 143(A) (Westchester)	denied 3/6/12 (Pigott, J.)
People v Inge	2d Dept: 90 AD3d 675 (Dutchess)	denied 3/8/12 (Jones, J.)
People v Isasi	App Div, 2d Dept: 2011 NY Slip Op 94034(U) (Queens)	dismissed 3/5/12 (Lippman, Ch. J.)
People v Jackson	4th Dept: 90 AD3d 1692 (Onondaga)	denied 3/6/12 (Smith, J.)
People v Jadoonanan	2d Dept: 89 AD3d 1036 (Kings)	denied 3/20/12 (Jones, J.)
People v James (Andrew)	2d Dept: 90 AD3d 782 (Kings)	denied 3/28/12 (Read, J.)
People v James (Maurice)	3d Dept: 90 AD3d 1249 (Albany)	denied 3/27/12 (Read, J.)
People v Janish	1st Dept: 90 AD3d 543 (NY)	denied 3/23/12 (Grafteo, J.)
People v Jenkins	3d Dept: 90 AD3d 1326 (Broome)	denied 3/30/12 (Grafteo, J.)
People v Johnson (Leroy)	App Div, 2d Dept: 2010 NY Slip Op 81846(U) (Queens)	denied reconsideration 3/30/12 (Grafteo, J.)

MEMORANDA

959

People v Johnson (Martin)	1st Dept: 88 AD3d 503 (NY)	denied 3/8/12 (Jones, J.)
People v Johnson (Shawndell)	3d Dept: 91 AD3d 1121 (Schenectady)	denied 3/12/12 (Pigott, J.)
People v Johnson (Ronald)	3d Dept: 91 AD3d 1115 (Ulster)	denied 3/30/12 (Graffeo, J.)
People v Jones (Bethel)	App Div, 2d Dept: 2012 NY Slip Op 60274(U) (Kings)	dismissed 3/14/12 (Smith, J.)
People v Jones (Farlie)	4th Dept: 89 AD3d 1457 (Erie)	denied 3/6/12 (Ciparick, J.)
People v Jones (Kenneth)	2d Dept: 84 AD3d 1409 (Dutchess)	denied 3/27/12 (Lippman, Ch. J.)
People v Kendall	App Div, 1st Dept: 2011 NY Slip Op 79349(U) (NY)	dismissed 3/12/12 (Pigott, J.)
People v Kenley	1st Dept: 87 AD3d 518 (NY)	dismissed 3/30/12 (Lippman, Ch. J.)
People v Kesha	3d Dept: 89 AD3d 1218 (Albany)	denied 3/7/12 (Ciparick, J.)
People v King	4th Dept: 90 AD3d 1533 (Livingston)	denied 3/23/12 (Graffeo, J.)
People v Krivoi	2d Dept: 81 AD3d 978 (Kings)	denied 3/27/12 (Lippman, Ch. J.)
People v Kruppenbacher	App Div, 3d Dept: 2011 NY Slip Op 88234(U) (Schenectady)	denied 3/8/12 (Jones, J.)
People v Latimer	App Div, 2d Dept: 2012 NY Slip Op 60851(U) (Orange)	dismissed 3/21/12 (Read, J.)
People v Lazartes	2d Dept: 90 AD3d 949 (Kings)	denied 3/6/12 (Pigott, J.)
People v Lebron	1st Dept: 90 AD3d 539 (NY)	denied 3/28/12 (Read, J.)
People v Lont	App Term, 2d Dept: 34 Misc 3d 142(A) (Kings)	denied 3/30/12 (Graffeo, J.)
People v Mack	2d Dept: 89 AD3d 864 (Suffolk)	denied 3/27/12 (Read, J.)
People v Madison	App Div, 3d Dept: 2012 NY Slip Op 63175(U) (Schenectady)	dismissed 3/29/12 (Graffeo, J.)
People v Mahncke	App Term, 2d Dept: 34 Misc 3d 10 (Westchester)	denied 3/27/12 (Read, J.)
People v Maldonado	1st Dept: 90 AD3d 513 (NY)	denied 3/8/12 (Pigott, J.)
People v Malone	1st Dept: 88 AD3d 586 (Bronx)	denied 3/2/12 (Ciparick, J.)
People v Mannina	2d Dept: 89 AD3d 1038 (Orange)	denied 3/27/12 (Read, J.)
People v Manning	3d Dept: 81 AD3d 1181 (Franklin)	denied 3/1/12 (Read, J.)
People v Mannino	2d Dept: 89 AD3d 1105 (Richmond)	denied 3/14/12 (Ciparick, J.)
People v Martel	1st Dept: 90 AD3d 471 (NY)	denied 3/6/12 (Pigott, J.)

People v Martinez (Eriverto)	1st Dept: 90 AD3d 409 (NY)	denied 3/6/12 (Pigott, J.)
People v Martinez (George)	1st Dept: 88 AD3d 513 (Bronx)	denied 3/6/12 (Ciparick, J.)
People v Martinez (Wilson)	1st Dept: 90 AD3d 582 (NY)	denied 3/22/12 (Read, J.)
People v McCoy	3d Dept: 89 AD3d 1218 (Albany)	denied 3/7/12 (Ciparick, J.)
People v McKean	2d Dept: 89 AD3d 866 (Westchester)	denied 3/13/12 (Ciparick, J.)
People v McKoy	4th Dept: 90 AD3d 1492 (Erie)	denied 3/23/12 (Grafteo, J.)
People v McNair	App Div, 4th Dept, 10/12/11 (Erie)	denied reconsideration 3/21/12 (Read, J.)
People v Medina	2d Dept: 90 AD3d 950 (Kings)	denied 3/23/12 (Grafteo, J.)
People v Mena	App Div, 1st Dept: 2011 NY Slip Op 91047(U) (NY)	denied 3/30/12 (Grafteo, J.)
People v Miller	3d Dept: 90 AD3d 1416 (St. Lawrence)	denied 3/23/12 (Grafteo, J.)
People v Mills	4th Dept: 90 AD3d 1518 (Genesee)	denied 3/23/12 (Grafteo, J.)
People v Mingo	2d Dept: 85 AD3d 1061 (Queens)	denied reconsideration 3/13/12 (Ciparick, J.)
People v Mojica-Sanchez	1st Dept: 90 AD3d 488 (NY)	denied 3/13/12 (Ciparick, J.)
People v Molson	4th Dept: 89 AD3d 1539 (Niagara)	denied 3/8/12 (Ciparick, J.)
People v Moss	1st Dept: 89 AD3d 600 (NY)	granted 3/13/12 (Ciparick, J.)
People v Munt	4th Dept: 89 AD3d 1428 (Niagara)	denied 3/8/12 (Jones, J.)
People v Murray	1st Dept: 89 AD3d 567 (NY)	denied 3/6/12 (Ciparick, J.)
People v Murtha	4th Dept: 90 AD3d 1504 (Onondaga)	denied 3/28/12 (Read, J.)
People v Nesbitt	1st Dept: 90 AD3d 474 (NY)	denied 3/14/12 (Ciparick, J.)
People v Nguyen	3d Dept: 90 AD3d 1330 (Broome)	denied 3/7/12 (Smith, J.)
People v Norales	1st Dept: 88 AD3d 499 (Bronx)	denied 3/2/12 (Ciparick, J.)
People v Nottingham	App Div, 4th Dept, 11/10/10 (Genesee)	denied 3/8/12 (Jones, J.)
People v O'Rourke	1st Dept: 91 AD3d 424 (NY)	denied 3/12/12 (Pigott, J.)
People v Ortiz	4th Dept: 90 AD3d 1531 (Niagara)	denied 3/28/12 (Read, J.)

MEMORANDA

961

People v Pacienza	2d Dept: 91 AD3d 672 (Nassau)	denied 3/27/12 (Smith, J.)
People v Pantoja	2d Dept: 87 AD3d 555 (Westchester)	denied 3/30/12 (Grafteo, J.)
People v Pauletta	1st Dept: 88 AD3d 532 (NY)	denied 3/2/12 (Ciparick, J.)
People v Pealer	4th Dept: 89 AD3d 1504 (Yates)	granted 3/14/12 (Ciparick, J.)
People v Perez	4th Dept: 89 AD3d 1393 (Monroe)	denied 3/7/12 (Ciparick, J.)
People v Perry	2d Dept: 89 AD3d 1114 (Richmond)	denied 3/14/12 (Ciparick, J.)
People v Peterson	1st Dept: 91 AD3d 579 (NY)	denied 3/27/12 (Smith, J.)
People v Phelan	App Div, 3d Dept: 2011 NY Slip Op 64404(U) (Albany)	denied 3/30/12 (Lippman, Ch. J.)
People v Preedom	4th Dept: 90 AD3d 1573 (Genesee)	denied 3/21/12 (Read, J.)
People v Proano	1st Dept: 91 AD3d 483 (NY)	denied 3/28/12 (Read, J.)
People v Quiles	2d Dept: 84 AD3d 1415 (Westchester)	denied 3/26/12 (Lippman, Ch. J.)
People v Quinones	1st Dept: 91 AD3d 445 (Bronx)	denied 3/2/12 (Smith, J.)
People v Ramirez	3d Dept: 90 AD3d 1335 (Columbia)	denied 3/9/12 (Pigott, J.)
People v Rauenzahn	County Ct, 10/18/11 (Schenectady)	denied 3/6/12 (Ciparick, J.)
People v Rawleigh	4th Dept: 89 AD3d 1483 (Livingston)	denied 3/13/12 (Ciparick, J.)
People v Reese	1st Dept: 88 AD3d 625 (NY)	denied 3/6/12 (Ciparick, J.)
People v Remington	2d Dept: 90 AD3d 678 (Kings)	denied 3/13/12 (Ciparick, J.)
People v Rice	3d Dept: 90 AD3d 1237 (Ulster)	denied 3/8/12 (Jones, J.)
People v Rivera	1st Dept: 91 AD3d 498 (NY)	withdrawn 3/14/12 (Grafteo, J.)
People v Robinson (Amber)	County Ct, 11/30/11 (Genesee)	denied 3/22/12 (Read, J.)
People v Robinson (Tyrone)	1st Dept: 89 AD3d 404 (NY)	denied 3/8/12 (Jones, J.)
People v Rodriguez	App Div, 1st Dept: 2011 NY Slip Op 86901(U) (NY)	denied 3/8/12 (Jones, J.)
People v Roman	1st Dept: 91 AD3d 502 (Bronx)	denied 3/27/12 (Read, J.)
People v Rosado	2d Dept: 90 AD3d 1078 (Kings)	denied 3/27/12 (Lippman, Ch. J.)

People v Ross (James)	App Div, 3d Dept: 2011 NY Slip Op 70750(U) (Schenectady)	denied reconsideration 3/30/12 (Lippman, Ch. J.)
People v Ross (Tyrone)	1st Dept: 89 AD3d 495 (NY)	denied 3/8/12 (Jones, J.)
People v Rought	3d Dept: 90 AD3d 1247 (Broome)	denied 3/27/12 (Lippman, Ch. J.)
People v Rucano	App Div, 2d Dept: 2012 NY Slip Op 62643(U) (Richmond)	dismissed 3/15/12 (Jones, J.)
People v Ryer	1st Dept: 89 AD3d 551 (NY)	denied 3/8/12 (Jones, J.)
People v Schapiro (Noah)	4th Dept: 90 AD3d 1503 (Erie)	denied 3/28/12 (Read, J.) (Appeal No. 1)
People v Schapiro (Noah)	4th Dept: 90 AD3d 1503 (Erie)	denied 3/28/12 (Read, J.) (Appeal No. 2)
People v Shaver	3d Dept: 86 AD3d 800 (Ulster)	denied 3/30/12 (Grafteo, J.)
People v Simms	2d Dept: 89 AD3d 1043 (Kings)	denied 3/8/12 (Ciparick, J.)
People v Sinclair	4th Dept: 90 AD3d 1518 (Monroe)	denied 3/14/12 (Smith, J.)
People v Singh	2d Dept: 90 AD3d 1079 (Queens)	denied 3/7/12 (Smith, J.)
People v Smith (Bruce)	3d Dept: 89 AD3d 1126 (Columbia)	denied 3/6/12 (Ciparick, J.)
People v Smith (Damion)	4th Dept: 85 AD3d 1655 (Erie)	leave denied upon reconsideration 3/8/12 (Jones, J.) (Appeal No. 1)
People v Smith (Damion)	4th Dept: 85 AD3d 1655 (Erie)	leave denied upon reconsideration 3/8/12 (Jones, J.) (Appeal No. 2)
People v Smith (Thomas)	2d Dept: 89 AD3d 963 (Kings)	denied 3/13/12 (Ciparick, J.)
People v Smurphat (Kevin)	3d Dept: 91 AD3d 979 (Essex)	denied 3/27/12 (Read, J.)
People v Smurphat (Kevin)	3d Dept: 91 AD3d 980 (Essex)	denied 3/27/12 (Read, J.)
People v Stephenson	2d Dept: 89 AD3d 872 (Queens)	denied 3/8/12 (Jones, J.)
People v Stuckey	App Div, 1st Dept: 2011 NY Slip Op 90374(U) (Bronx)	denied 3/22/12 (Read, J.)
People v Taylor	App Div, 3d Dept: 2011 NY Slip Op 92050(U) (Saratoga)	denied 3/6/12 (Pigott, J.)

MEMORANDA

963

People v Thomas	2d Dept: 90 AD3d 1080 (Kings)	denied 3/2/12 (Smith, J.)
People v Thomassini	1st Dept: 91 AD3d 449 (NY)	denied 3/28/12 (Read, J.)
People v Titus	App Div, 2d Dept: 2011 NY Slip Op 93366(U) (Suffolk)	dismissed 3/29/12 (Grafteo, J.)
People v Todd	2d Dept: 90 AD3d 791 (Queens)	denied 3/9/12 (Pigott, J.)
People v Ubrich	4th Dept: 89 AD3d 1481 (Cayuga)	denied 3/8/12 (Jones, J.)
People v Vargas	1st Dept: 91 AD3d 452 (Bronx)	denied 3/30/12 (Grafteo, J.)
People v Vasquez	App Div, 1st Dept: 2011 NY Slip Op 91796(U) (NY)	denied 3/27/12 (Lippman, Ch. J.)
People v Vonner	App Div, 3d Dept: 2012 NY Slip Op 60308(U) (Albany)	denied 3/12/12 (Pigott, J.)
People v Wallace	1st Dept: 89 AD3d 559 (NY)	dismissed 3/13/12 (Ciparick, J.)
People v Walloe	1st Dept: 88 AD3d 544 (NY)	denied 3/6/12 (Ciparick, J.)
People v Washington (Kasseem)	3d Dept: 89 AD3d 1140 (Schenectady)	denied 3/8/12 (Jones, J.)
People v Washington (Tommy)	4th Dept: 89 AD3d 1516 (Onondaga)	denied 3/7/12 (Ciparick, J.)
People v Watts	2d Dept: 91 AD3d 678 (Dutchess)	denied 3/30/12 (Lippman, Ch. J.)
People v West (Patrick)	App Div, 3d Dept: 2012 NY Slip Op 60307(U) (Cortland)	denied 3/16/12 (Smith, J.)
People v West (Patrick)	App Div, 3d Dept: 2011 NY Slip Op 93969(U) (Cortland)	dismissed 3/7/12 (Smith, J.)
People v Westbrook	4th Dept: 90 AD3d 1536 (Lewis)	denied 3/30/12 (Grafteo, J.)
People v Wiggins	2d Dept: 90 AD3d 791 (Orange)	denied 3/6/12 (Pigott, J.)
People v Williams	1st Dept: 88 AD3d 605 (NY)	denied 3/6/12 (Ciparick, J.)
People v Wilson	3d Dept: 90 AD3d 1155 (Otsego)	denied 3/6/12 (Pigott, J.)
People v Winter (Jamal)	2d Dept: 88 AD3d 824 (Kings)	denied 3/5/12 (Pigott, J.)
People v Winter (Jamal)	2d Dept: 89 AD3d 966 (Kings)	denied 3/9/12 (Pigott, J.)
People v Worthy	4th Dept: 90 AD3d 1527 (Erie)	denied 3/2/12 (Smith, J.)
People v Wright	2d Dept: 90 AD3d 679 (Kings)	denied 3/6/12 (Pigott, J.)
People v Wynn	App Term, 2d Dept: 34 Misc 3d 137(A) (Kings)	denied 3/21/12 (Read, J.)
People v Wynters	4th Dept: 89 AD3d 1464 (Monroe)	denied 3/8/12 (Jones, J.)

People v Young (Laurie)	2d Dept: 88 AD3d 918 (Suffolk)	denied 3/26/12 (Lippman, Ch. J.)
People v Young (Matthew)	App Term, 2d Dept: 34 Misc 3d 137(A) (Queens)	denied 3/9/12 (Pigott, J.)
People v Zayas	1st Dept: 89 AD3d 610 (NY)	denied 3/8/12 (Jones, J.)
People v Zinkhen (Thomas)	3d Dept: 89 AD3d 1319 (Ulster)	denied 3/8/12 (Jones, J.)
People v Zinkhen (Thomas)	3d Dept: 89 AD3d 1320 (Ulster)	denied 3/8/12 (Jones, J.)

[967 NE2d 676, 944 NYS2d 453]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AARON
RICHARD FISHER, Appellant.

Argued February 15, 2012; decided April 3, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 12, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (John J. Ark, J.), which had convicted defendant, upon a jury verdict, of course of sexual conduct against a child in the first degree, course of sexual conduct against a child in the second degree and endangering the welfare of a child.

People v Fisher, 78 AD3d 1605, reversed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Failure to Object to Prosecutor's Summation

In the prosecution of defendant for sex offenses allegedly committed against his two nieces, defense counsel's failure to object to the prosecutor's egregiously improper departures during summation deprived defendant of the right to effective assistance of counsel when viewed in the totality of the representation provided defendant, and where no strategic basis for counsel's failure to object to the highly prejudicial instances of prosecutorial abuse was evident. The evidence of the charged sex offenses was far from overwhelming: the alleged sexual abuse was not medically confirmed, defendant asserted that the children's mother had a financial motive to put the children up to their accusations, and the testimony of a convicted murderer awaiting a hearing upon an alleged parole violation was crucial to confirming the children's testimony. On summation, the prosecutor improperly encouraged inferences of guilt based on facts not in evidence, bolstered the children's credibility, gave a less than frank minimization of the consideration the inmate would receive in exchange for his potentially pivotal testimony, and admonished the jury that

their acceptance of the children's testimony was essential to the administration of justice. Competent defense counsel should have sought to prevent the prosecutor's summation from directing the jury's attention away from the properly admitted evidence.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (Janet C. Somes of counsel), for appellant.

Michael C. Green, District Attorney, Rochester (Kelly C. Wolford of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Defendant was convicted of various sex offenses and sentenced to prison terms aggregating to 20 years upon the testimony of two of his nieces, that while they were left by their mother in his care he on numerous occasions molested them. The alleged abuse was not, in the aftermath of its report, medically confirmed during the physical examinations to which the children were subjected, and defendant raised before the jury the question of whether the children had been put up to their accusations by their mother; there was evidence that the children were afraid of their mother because she was physically abusive and that she had a financial motive to prompt their allegations against defendant. Indeed, there was proof that the mother took advantage of defendant's arrest and pretrial incarceration to steal from him by cashing over forged endorsements government checks in substantial amounts payable to defendant and mailed to him at the mother's address.

Crucial to confirming the young children's accounts was testimony elicited by the People from one Raymond Burse, a convicted murderer, who, while reincarcerated for and awaiting a hearing upon an alleged parole violation, claimed to have become privy to statements by defendant in which defendant described his sexual predation upon his nieces. Defendant urged that Burse obtained the information upon which his testimony was based not from him but from legal papers he had with him during his pretrial incarceration, to which Burse surreptitiously gained access. Defendant pointed out in this regard that, upon learning of the sex abuse charges against him, Burse communicated by letter directly with the trial prosecutor, whose name he would not likely have known except from defendant's

paperwork. Defendant also contended that Burse was receiving a benefit in exchange for his testimony against him, the prosecutor having promised to write a letter on Burse's behalf to the Parole Board.

While the evidence of the charged abuse was sufficient, it was, even when viewed in the light most favorable to the People, far from overwhelming; the trial's outcome turned entirely on the jury's resolution of fairly pronounced witness credibility issues. Those issues should have been resolved by the jury dispassionately on the basis of the properly admitted evidence. The prosecutor's summation, however, directed the jury's attention elsewhere—a circumstance that competent defense counsel should have sought to prevent.

We have instructed that

“[i]t is fundamental that the jury must decide the issues on the evidence, and therefore fundamental that counsel, in summing up, must stay within the four corners of the evidence and avoid irrelevant comments which have no bearing on any legitimate issue in the case. Thus the District Attorney may not refer to matters not in evidence or call upon the jury to draw conclusions which are not fairly inferable from the evidence. Above all he [or she] should not seek to lead the jury away from the issues by drawing irrelevant and inflammatory conclusions which have a decided tendency to prejudice the jury against the defendant” (*People v Ashwal*, 39 NY2d 105, 109-110 [1976] [citations and internal quotation marks omitted]).

Here, the prosecutor improperly encouraged inferences of guilt based on facts not in evidence. Without record basis for referring to prior consistent statements by the complainants, no such statements having been admitted in evidence—likely for the very good reason that there had been no claim of recent fabrication (*see People v McClean*, 69 NY2d 426, 428 [1987])—the prosecutor bolstered her young witnesses' credibility by describing in extended fashion the “long road” they had traveled in advance of their trial appearances in the course of which “they said the exact same thing over and over and over again” to the police, social workers, doctors and the grand jury. Continuing, the prosecutor, essentially testifying, improperly, advised the jury that it could view evidence of the complainants' contemporaneous misbehavior at school as proof that the crimes occurred.

Hazard of an improperly founded, erroneous conviction was further heightened by the prosecutor's less than frank minimization of the consideration Burse was to receive in exchange for his potentially pivotal testimony as to defendant's jailhouse admissions. While it was literally true that the prosecutor, as she asserted in her summation, was not the Parole Board and did not "control what happen[ed] to Ray [Burse]," the none too subtle suggestion that the prosecutor's letter to the Board on Burse's behalf was merely a courtesy and conferred no real benefit to be weighed in assessing Burse's credibility was materially misleading; the prosecutor was plainly in a position, if not to control, at least to influence the outcome of Burse's parole violation hearing.

Finally, in her peroration, the prosecutor exhorted, "[t]he voice of a child is evidence, the testimony of two children is evidence. The day that the voice of a child is not evidence is the day that those doors [the doors to the courtroom] should be locked forever." Obviously, it was not permissible for the prosecutor, an officer of the court, to admonish the jury that their acceptance of the testimony of the child witnesses was essential to the administration of justice.

Even when viewed in the "totality" of the representation provided defendant, defense counsel's failure to object to any, let alone all, of the prosecutor's egregiously improper departures during summation, particularly in the highly charged, potentially outcome determinative context in which they occurred, deprived defendant of the right to effective assistance of counsel (see *People v Baldi*, 54 NY2d 137, 146-147 [1981]). We see no strategic basis for counsel's failure to object to these highly prejudicial instances of prosecutorial abuse, in critical respects utterly attenuated from the evidence and the applicable principles of law.

SMITH, J. (dissenting). Defendant was convicted on compelling evidence, after a fair trial, of sexually abusing two young girls. The majority sets the conviction aside because it is displeased with the prosecutor's summation, and thinks defense counsel should have objected to it. In fact, the summation, while not impeccable, was not outrageous. Defense counsel's choice not to object may have been the right one. And if it was a mistake, it rises nowhere near to the level of ineffective assistance of counsel.

I simply cannot fathom why the majority is reversing in this

case. We have never, so far as I know, done such a thing before, and I hope it will be long before we do it again.

I

The majority identifies four passages in the prosecutor's summation that it says were improper. None of them would justify reversing defendant's conviction, even if defense counsel had objected and the objections had been overruled.

I concede that the prosecutor should have omitted her emotional peroration: "The day that the voice of a child is not evidence is the day that those doors should be locked forever." Prosecutors are supposed to be more dispassionate than that, and if objection had been made the trial court might have reminded the prosecutor and the jury to focus on the evidence. But missteps like this are not uncommon—getting carried away is an occupational hazard for trial lawyers—and they very rarely result in either a mistrial or a reversal on appeal. I know of no case, and the majority cites none, in which rhetoric fairly comparable to what this prosecutor used proved fatal to a conviction. Jurors should be given some credit for common sense, and no one with common sense would be persuaded by this sort of talk to overlook any reasonable doubt about a defendant's guilt.

The majority's criticism of the prosecutor's defense of the children's credibility (majority mem at 966) is technically, but only technically, correct. While it was perfectly proper for the prosecutor to remind the jury that the witnesses had traveled a "long road"—as indeed they had, through many interrogations—she should not have said that "they said the exact same thing over and over and over again." There was no evidence to that effect, and could not have been, because prior consistent statements are inadmissible hearsay. But prior *inconsistent* statements are admissible as impeachment, and it would have been quite proper for the prosecutor to point out to the jury that, despite all the times that the children had been interviewed and testified, they were not impeached at trial with a single significant inconsistency. That the prosecutor did not make the "long road" argument in quite the right way would surely be no basis for reversing this conviction—even if the issue were preserved.

The majority's other two criticisms of the summation are, in my opinion, simply wrong. The majority faults the prosecutor for telling the jury "that it could view evidence of the complainants' contemporaneous misbehavior at school as proof that the

crimes occurred” (majority mem at 966). But the majority does not explain why a sudden change in children’s behavior is irrelevant in a case involving alleged sexual abuse. Factfinders are generally allowed to consider a victim’s post-event conduct to support a finding that a crime occurred (*People v Groff*, 71 NY2d 101, 111 [1987]; *People v Kidwell*, 88 AD3d 1060, 1062 [3d Dept 2011]). I cannot believe that the majority intends to change that rule.

And finally, though I am no more impressed than the majority by the testimony of Burse, the jailhouse informer, the prosecutor was entitled to call Burse as a witness and to argue that the jury should believe him. In doing so, she faced the obvious problem that Burse got, in exchange for his testimony, a favorable letter from the prosecutor to the Parole Board, and she was entitled to remind the jury that she did not “control” what the Parole Board did. Of course, her letter might well influence what the Parole Board did—she never claimed it could not. If the jurors were not bright enough to figure that out on their own, it was explained to them by defense counsel in his own summation: “Do you really believe that a District Attorney of Monroe County going in front of a parole board and saying this man cooperated with us . . . [Y]ou don’t think they would take that strongly into his consideration, and he will get his minimum?”

II

While the majority has mentioned two things in the prosecutor’s summation that might have warranted objection (and I believe there were others, though of minor importance), defense counsel was not necessarily wrong in passing up the opportunity to object. Before the prosecutor spoke, defense counsel had given an even more passionate, and quite effective, closing argument. He had excoriated the victims’ mother (“You think this woman is not capable of using her children for financial gain? Of course, she is. It’s all she does”) and gone after Burse with enormous relish (“Can you believe one word out of that lying murderer’s mouth? . . . [F]lush [his testimony] down the toilet where it belongs”). The prosecutor objected three times during this summation; all her objections look reasonable to me, but only one was sustained.

I am not suggesting either that defense counsel argued improperly, or that if he did the prosecutor should be excused for doing the same thing. But a defense lawyer who has just

given a summation like this, and been allowed to do so without significant interruption, might justifiably fear that he will look bad to the jury, or draw rebuke from the judge, if he interrupts his adversary's argument. He might have thought it a more effective strategy to warn the jury in advance about the prosecutor's rhetoric—and that is exactly what he did:

“She’s going to get up here when I’m done and she’s going to be theatrical, she will be dramatic, like she’s been throughout the course of the trial. She’s trying to get you excited, play on your sympathies of these poor little kids . . . You can’t base your verdict on what she says. You base it on the facts and the evidence and that’s what came to you from the witness stand.”

It was not, I suggest, an unreasonable trial strategy for defense counsel to sit quietly and appear unconcerned when the prosecutor did what he had told the jury she would do (*see People v Taylor*, 1 NY3d 174, 177 [2003] [defense counsel “may have concluded that further objections would serve only to annoy the trial court or—more importantly—the jury”]).

III

But even if defense counsel's silence was a mistake, it is not close to being the sort of mistake that constitutes ineffective assistance of counsel.

The rules governing ineffective assistance claims are well established. A defendant is constitutionally entitled not to a perfect lawyer, but to “meaningful representation” (*People v Baldi*, 54 NY2d 137, 147 [1981]; *see People v Benevento*, 91 NY2d 708, 712 [1998]). “Judicial scrutiny of counsel's performance must be highly deferential” (*Strickland v Washington*, 466 US 668, 689 [1984]). Even “significant mistakes by defense counsel” will not necessarily sustain an ineffective assistance claim (*People v Turner*, 5 NY3d 476, 480 [2005], citing *People v Hobot*, 84 NY2d 1021 [1995] and *People v Flores*, 84 NY2d 184 [1994]). I have already said enough, I think, to demonstrate that any error defense counsel committed here did not cross the threshold of ineffectiveness.

Nor did defendant suffer prejudice from any error—a factor we have held “significant” though not “indispensable” to a showing of ineffective assistance (*People v Stultz*, 2 NY3d 277, 284 [2004]). While a defendant need not show that he would probably have been acquitted but for counsel's error, he must

show at least a serious impairment of his right to a fair trial (*Benevento*, 91 NY2d at 713). Here, defendant's trial was fair, and the proof of his guilt was strong—a conclusion I reach giving not the slightest weight to Burse's testimony.

There were four other witnesses—the two victims, their older brother and their mother—all of whom would have to be lying if defendant is innocent. Even accepting the theory of the defense that the mother (defendant's sister) had a motive to frame him, it is highly unlikely that she could have induced her children to invent the detailed, powerfully convincing testimony that they gave. The girls (12 and 8 at the time of trial) described their sexual experience in childlike, anatomically precise terms. Their 13-year-old brother described the older girl's decision to confide first in him, and then in their mother, and added his own observation of defendant's behavior: he said he had seen defendant kissing the older girl “on the neck like girlfriends/boyfriends, teenagers.” To believe that the mother stage-managed all this testimony, the jury would have had to think her an extraordinary handler of theatrical talent. And, as the prosecutor asked in summation, if the whole story was a fabrication, why take the risk of bringing the boy into the conspiracy?

If the testimony of the children and their mother was not enough, the jury also heard evidence of defendant's consciousness of guilt. He admitted that, when his sister warned him “to watch what I say and watch what I did around her children” he volunteered the statement “I'm not a child molester”—at a time when no one had said he was. And when he was later confronted, by a police investigator, with the accusation, he gave incredible, defensive explanations—suggesting, in substance, that the older girl had tried unsuccessfully to seduce him. It was not until the trial that he claimed that the children's mother persuaded them to make everything up.

In sum, it is just not plausible that this defendant was convicted because his lawyer failed to object to the prosecutor's summation. He was convicted because the evidence proved him guilty beyond a reasonable doubt.

I deeply regret the majority's decision to require this painful case to be tried all over again. I can only end as I began, with the hope that we will not soon see another result like this.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, PIGOTT and JONES concur in memorandum; Judge SMITH dissents in an opinion.

Order reversed, etc.

[967 NE2d 700, 944 NYS2d 475]

AIR STREAM CORP., Appellant, v 3300 LAWSON CORP., Respondent.

Decided April 3, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 17, 2011. The Appellate Division (1) reversed, on the law and the facts, so much of a judgment of the Supreme Court, Nassau County (Ira B. Warshawsky, J.; op 24 Misc 3d 1208[A], 2009 NY Slip Op 51317[U] [2009]), entered after a nonjury trial, as had (a) declared that plaintiff was the owner of certain property by adverse possession and that defendant did not have an easement by grant over the property, (b) permanently enjoined defendant from interfering with plaintiff's use of the property, and (c) in effect denied defendant's counterclaims for a judgment declaring that the defendant had an easement by grant over the property and directing plaintiff to remove a structure encroaching on the property; (2) declared that plaintiff did not acquire the property in question by adverse possession, that defendant had an easement by grant over the property, that defendant was not enjoined from interfering with plaintiff's use of the property; and (3) directed plaintiff to remove the encroachment from the property.

Plaintiff and defendant owned adjacent parcels of real property. Two loading docks were located entirely within plaintiff's property boundaries, and one loading dock was located entirely within defendant's property boundaries. Another loading dock was bisected by the parties' common property boundary, such that seven feet of the loading dock were located within defendant's borders, while the remaining seven feet of the loading dock were located within plaintiff's borders. Plaintiff commenced an action alleging that it had acquired the parcel on defendant's property through adverse possession, or, in the alternative, had acquired a prescriptive easement. Plaintiff further alleged that defendant never had an easement by grant over the parcel on its property, and, even if such an easement previously existed, plaintiff had extinguished that easement

through adverse possession. Additionally, plaintiff sought a permanent injunction enjoining defendant from fencing in the parcel on its property. Defendant counterclaimed for a judgment directing plaintiff to remove that portion of a cement platform that allegedly encroached on its property, as well as a judgment declaring that defendant enjoyed an easement over the parcel on plaintiff's property.

The Appellate Division concluded, among other things, that Supreme Court's determination that plaintiff had acquired the parcel by adverse possession was not supported by the record as it had not carried its burden of establishing exclusivity. The Appellate Division found that while the record reflected that plaintiff's use of the disputed parcel was open, notorious, and continuous during the prescriptive period, the record was replete with evidence that the relationship between the parties was one of neighborly cooperation and accommodation, and that plaintiff's use during the prescriptive period was with defendant's permission.

Air Stream Corp. v 3300 Lawson Corp., 84 AD3d 987, reversed.

HEADNOTE

Adverse Possession — Hostile Possession — Appellate Review

In an action seeking, in part, a declaration that plaintiff was the owner of certain real property by adverse possession, the order of the Appellate Division finding against the plaintiff was reversed and the case remitted to that Court for further proceedings in accordance with the principles of law expressed in *Estate of Becker v Murtagh* (19 NY3d 75 [2012]). Because the legal standards Supreme Court employed were consonant with the decision in *Becker*, the case was remitted to the Appellate Division rather than Supreme Court and the Appellate Division, in reviewing Supreme Court's judgment, should apply the facts of the case to the law as expressed in *Becker*.

APPEARANCES OF COUNSEL

Dollinger, Gonski & Grossman, Carle Place (*Floyd G. Grossman* of counsel), for appellant.

Jaspan Schlesinger LLP, Garden City (*Linda S. Agnew* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and case remitted to the Appellate Division,

Second Department, for further proceedings in accordance with the principles of law expressed in *Estate of Becker v Murtagh* (19 NY3d 75 [2012] [decided today]). Because the legal standards Supreme Court employed were consonant with our decision in *Becker*, we remit to the Appellate Division rather than Supreme Court. Thus, the Appellate Division, in reviewing Supreme Court's judgment, should now apply the facts of this case to the law as expressed in *Becker*.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

CLERMONT YORK ASSOC., Respondent, v LESLIE FEHER, Appellant.

Submitted February 6, 2012; decided April 3, 2012

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (see NY Const, art VI, § 3; CPLR 5602).

In the Matter of DAVID D., a Disbarred Attorney, Appellant.
GRIEVANCE COMMITTEE OF THE EIGHTH JUDICIAL DISTRICT,
Respondent.

Submitted February 6, 2012; decided April 3, 2012

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

Judge PIGOTT taking no part.

DONALD FELIX, Respondent, v LAW OFFICE OF THOMAS F. LIOTTI, Appellant.

Submitted February 14, 2012; decided April 3, 2012

Reported below, 90 AD3d 597; 2012 NY Slip Op 61575(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within

the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for a stay dismissed as academic.

In the Matter of ISAAC HOWARD M. and Another, Children Alleged to be Neglected. FATIMA M., Appellant; JEWISH CHILD CARE ASSOCIATION OF NEW YORK, Respondent.

Submitted February 6, 2012; decided April 3, 2012

Reported below, 90 AD3d 559.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Family Court's order denying appellant's motion to vacate a prior order of that court, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

KAUFMANN'S CAROUSEL, INC., Appellant, v CAROUSEL CENTER COMPANY LP et al., Respondents. (And Other Actions.)

Submitted February 6, 2012; decided April 3, 2012

Reported below, 87 AD3d 1343; 68 AD3d 1696, 1697, 1700.

Motion, insofar as it seeks leave to appeal from the December 2009 Appellate Division orders, dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]); motion, insofar as it seeks leave to appeal from the September 2011 Appellate Division order, dismissed upon the ground that such order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ALFREDO LUGO, Appellant, v ANDREA W. EVANS, as Chair of the Division of Parole, Respondent.

Submitted January 23, 2012; decided April 3, 2012

Reported below, 89 AD3d 1356.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRAY
GILLIAM, Appellant.

Submitted March 19, 2012; decided April 3, 2012

Reported below, 86 AD3d 923.

Motion by appellant pro se for removal of assigned counsel
and assignment of new counsel denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CURTIS
LIVINGSTON, Appellant.

Submitted February 14, 2012; decided April 3, 2012

Reported below, 87 AD3d 628.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]).

TONY PERPIGNAN, Appellant, v FIRST FRANKLIN FINANCIAL CORP.,
Respondent.

Submitted February 14, 2012; decided April 3, 2012

Reported below, 87 AD3d 1117.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of SHORE DEVELOPMENT PARTNERS, Respondent, v
BOARD OF ASSESSORS et al., Appellants.

Submitted February 14, 2012; decided April 3, 2012

Reported below, 82 AD3d 988.

Motion for leave to appeal dismissed upon the ground that
the orders and judgments sought to be appealed from do not
finally determine the proceedings within the meaning of the
Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v ENRIQUE
T., Appellant.

Submitted February 14, 2012; decided April 3, 2012

Reported below, 93 AD3d 158.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

[968 NE2d 965, 945 NYS2d 611]

In the Matter of LUYSSTER CREEK, LLC, Appellant, v NEW YORK
STATE PUBLIC SERVICE COMMISSION et al., Respondents.

Argued March 19, 2012; decided April 26, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 10, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Patrick J. McGrath, J.), entered in a proceeding pursuant to CPLR article 78, which had, among other things, dismissed petitioner's application to review a determination of respondent Public Service Commission confirming that the development of certain real property as an envelope manufacturing facility was an essential factor underlying the public interest finding in its prior order approving the transfer of the property.

Matter of Luyster Cr., LLC v New York State Pub. Serv. Commn., 82 AD3d 1401, reversed.

HEADNOTE

Public Utilities — Public Service Commission — Conditional Approval of Land Sale

A determination of respondent Public Service Commission, which rescinded a prior order approving the transfer of property from respondent public utility to petitioner private corporation on the grounds that development of the property as an envelope manufacturing facility was an essential factor underlying the public interest finding in its prior order (*see* Public Service Law § 70), lacked a rational basis and was annulled. Although the corporation no longer intended to build the envelope factory, the development of that factory was not made an express condition of the Commission's approval or a condition precedent to the transfer of the property to petitioner. That the use of the property as an envelope manufacturing facility was the reason that the sale was approved is belied by the Commission's prior order, which contemplates future transfers of the property in language concerning deed restrictions and provided that the corporation would pay the utility fifty percent of all net proceeds from any sale that occurred within three years of closing.

APPEARANCES OF COUNSEL

Dax Law Firm, P.C., Albany (*John W. Dax* and *William F. McLaughlin* of counsel), for appellant.

Peter McGowan, General Counsel, Albany (*Jonathan D. Feinberg* and *John C. Graham* of counsel), for New York State Public Service Commission, respondent.

Davis Polk & Wardwell LLP, New York City (*Guy Miller Struve* of counsel), and *Scott A. Levinson* and *Stephen T. Brewi*, for Consolidated Edison Company of New York, Inc., respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, with costs, the petition should be granted and the April 2007 determination of the New York State Public Service Commission should be annulled.

In December 2001, petitioner Luyster Creek, LLC (Luyster Creek) and respondent Consolidated Edison Company of New York, Inc. (Con Edison) entered into a purchase agreement whereby Luyster Creek would purchase a parcel of land located in Astoria, Queens, which Con Edison no longer needed. As part of the negotiations, Luyster Creek informed Con Edison that it was its intention to construct an envelope factory on the land. Pursuant to Public Service Law § 70 the agreement between Luyster Creek and Con Edison needed the approval of respondent New York State Public Service Commission (the Commission). Luyster Creek and Con Edison submitted a petition to the Commission requesting authorization for the transaction “under the terms and conditions set forth in the Agreement.” On November 25, 2002, the Commission approved the transfer as satisfying the public interest requirement of Public Service Law § 70, subject to certain conditions. The transaction never closed.

Although the Commission, in its declaration approving the transfer, noted that Luyster Creek intended to build an envelope factory, it did not expressly make the construction of said factory a necessary condition of the approval or a condition precedent to the transfer. The Commission did, however, expressly condition its approval of the transaction “upon compliance by Con Edison, [Luyster Creek], and their successors and assigns with the National Electric Code, the National Electric Safety Code, the Commission’s rules and regulations, the Commission’s

standards for electrostatic and electromagnetic fields, and all other applicable laws, rules and regulations” (emphasis added). The Commission ordered that the transaction was “approved subject to the conditions set forth below and in the body of this Order.”

Subsequently, Con Edison learned that Luyster Creek no longer intended to build the envelope factory. Con Edison petitioned the Commission to rescind the November 2002 order approving the transaction. On April 24, 2007, the Commission rescinded its approval of the transfer stating: “use of the Property for construction of an envelope manufacturing facility was one of the essential factors that this Commission considered in making a determination that the proposed transfer is in the public interest, pursuant to [Public Service Law] § 70.”

The Commission’s statement in its 2007 order that the use of the property as an envelope manufacturing facility was the reason that the sale was approved is belied by its 2002 order, which contemplates future transfers of the property as follows: “the Agreement includes deed restrictions that prevent [Luyster Creek] or any future owner from using the Property in a manner otherwise permitted by the applicable zoning regulations” (emphasis added).

This language makes clear that the Commission in 2002 recognized the possibility that Luyster Creek could eventually transfer the property. Furthermore, potential resale of the property was part of the agreement between Luyster Creek and Con Edison, which provided that Luyster Creek would pay Con Edison fifty percent of all net proceeds from any sale that occurred within three years of closing.

The development of an envelope factory was not made an express condition of the Commission’s approval or a condition precedent to the transfer of the property to Luyster Creek, therefore, the Commission’s Order of April 2007, nullifying its prior approval of the proposed sale lacks a rational basis (*see Matter of National Fuel Gas Distrib. Corp. v Public Serv. Commn. of the State of N.Y.*, 16 NY3d 360, 368 [2011]).

Given this disposition, we need not reach the issue as to whether the Commission exceeded its delegated statutory authority.

Judges CIPARICK, GRAFFEO, SMITH, PIGOTT and JONES concur in memorandum; Chief Judge LIPPMAN and Judge READ taking no part.

Order reversed, etc.

[967 NE2d 1198, 944 NYS2d 753]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LATISHA
BOWDEN, Appellant.

Decided April 26, 2012

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 4, 2011. The Appellate Division (1) reversed, on the law and the facts, an order of the Supreme Court, Bronx County (Colleen D. Duffy, J.; op 27 Misc 3d 1203[A], 2010 NY Slip Op 50538[U] [2010]; see 27 Misc 3d 1226[A], 2010 NY Slip Op 50917[U] [2010]), which had granted defendant's motion to suppress physical evidence and statements, (2) denied defendant's suppression motion, (3) reversed, on the law, a subsequent order of that court which had dismissed the indictment, (4) reinstated the indictment, and (5) remitted the matter for further proceedings.

The Appellate Division concluded that the hearing court erred in suppressing physical evidence and defendant's statements and found that based upon the testimony of the sole witness, whose testimony the hearing court properly credited in its entirety, every aspect of the police conduct was properly justified by their observations and the information in their possession.

People v Bowden, 87 AD3d 402, appeal dismissed.

HEADNOTE

Crimes — Appeal — Dismissal

An appeal from an order of the Appellate Division, which, among other things, reversed an order granting defendant's motion to suppress evidence, was dismissed by the Court of Appeals upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*Michael J. McLaughlin*, *Richard Joselson* and *Steven Banks* of counsel), for appellant.

Robert T. Johnson, *District Attorney*, Bronx (*Stanley R. Kaplan* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed upon the ground that the reversal by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal” (CPL 450.90 [2] [a]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[969 NE2d 197, 946 NYS2d 81]

JILL WILLIAMS et al., Respondents, v STATE OF NEW YORK, Appellant.

Argued March 21, 2012; decided April 26, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 3, 2011. The Appellate Division (1) reversed, on the law and the facts, a judgment of the Court of Claims (Alan C. Marin, J.; op 23 Misc 3d 1135[A], 2009 NY Slip Op 51103[U] [2009]), entered after a nonjury trial, which had dismissed the claim, (2) reinstated the claim, (3) found liability on the part of the State, and (4) remanded the matter for a new trial on the issue of damages. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of the Court of Claims, properly made?”

Williams v State of New York, 84 AD3d 412, reversed.

HEADNOTE**State — Claim against State — Proximate Cause — Assault by Former Mental Patient**

The Court of Claims properly dismissed a claim in which a former mental patient, who had been admitted on a voluntary basis and left the facility without consent, assaulted claimant nearly two years after leaving the facility, since the causal connection between the hospital staff’s alleged negligence and the patient’s attack on claimant was too attenuated and speculative to support liability. There was no way to know whether and no reason to suppose that the patient would have remained in the care of the State at the time of the

assault even if hospital staff had prevented him from leaving the grounds two years earlier, or had notified the police of his absence, which they did not as he was assessed as nondangerous. There was always a risk that the patient might eventually decompensate and become assaultive once outside a hospital setting—whether he left with or without permission—as any number of circumstances arising during the two-year period might have triggered such a change in mental condition. Proximate cause analysis incorporates a “test of temporal duration,” which asks if the occurrence of the injury was tied to the claimed negligent act or omission within a reasonable lapse of time, and here the lapse of time was not reasonable. Accordingly, the State was entitled to dismissal of the claim because it established, as a matter of law, that any negligence on its part was not a proximate cause of claimant’s injuries.

APPEARANCES OF COUNSEL

Eric T. Schneiderman, Attorney General, New York City (Cece-lia C. Chang, Robert C. Weisz, Benjamin N. Gutman and Barbara D. Underwood of counsel), for appellant.

McGarry & Simon, New York City (William A. Simon of counsel), for respondents.

Mental Hygiene Legal Service, First Judicial Department, New York City (Marvin Bernstein and Sadie Ishee of counsel), and Mental Hygiene Legal Service, Second Judicial Department, Mineola (Lesley M. De Lia, Lisa Volpe and Dennis B. Feld of counsel), for Mental Hygiene Legal Service, First Judicial Department and another, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, the judgment of the Court of Claims reinstated and the certified question answered in the negative.

On July 25, 1993, while escorted by a mental health therapy aide to one of the chapels on the grounds of the Manhattan Psychiatric Center (MPC), Tony Joseph (Joseph), a voluntary patient, stole away when the aide permitted him to use a bathroom out of her sight. MPC, which is operated by the State of New York’s Office of Mental Health (OMH), is a nonsecure civil facility located on Ward’s Island in New York City. The aide contacted MPC security personnel when she realized that Joseph was missing, and staff members and safety officers searched for him on Ward’s Island to no avail. Under OMH policies in place at the time, MPC classified Joseph as “left without consent” (LWOC), denoting an assessment that he was nondangerous and did not meet certain other criteria, rather than “escaped,” which would have required the hospital to contact the police for assistance in locating him.

Nearly two years later, on July 7, 1995, Joseph threw a glass bottle at claimant Jill Williams (Williams), while she was waiting to cross Riverside Drive on the Upper West Side of Manhattan. The bottle hit her lower right leg, fracturing the tibia, and she underwent two surgeries. Joseph was convicted of first-degree assault for the attack, and was sentenced to 4 to 8 years in prison. Williams and her husband (collectively, claimants) subsequently brought this negligence action against the State. In an amended claim dated November 12, 1996, they alleged that the State negligently supervised Joseph, who had a history of violence, particularly against women, and improperly classified his unauthorized leave from the hospital as LWOC, resulting in Williams's injuries. Williams sought \$27,462.60 for medical and hospital services, medicine and miscellaneous expenses and \$10 million for pain and suffering; her husband sought \$5 million for loss of services. In a decision filed on June 3, 2009, the Court of Claims held that the breach of any duty owed by the State to claimants was not the proximate cause of Williams's injuries—i.e., that “the failure to prevent Joseph from sneaking out of MPC . . . or the failure to classify such elopement as an escape does not support a legal nexus to his assault on Ms. Williams nearly two years later” (23 Misc 3d 1135[A], 2009 NY Slip Op 51103[U] [2009]). Accordingly, judgment was entered on June 10, 2009 dismissing the claim. Claimants appealed.

On May 3, 2011, the Appellate Division, with two Justices dissenting, reversed on the law and the facts, reinstated the claim, found the State liable and remanded the matter for a trial on the issue of damages (84 AD3d 412 [1st Dept 2011]). The majority concluded that “there [was] no doubt that [the State's] carelessness in supervising Joseph was the proximate cause of claimant's injuries”; in particular,

“despite Joseph's long history of violence, defendant not only created the opportunity for Joseph to escape from its care, but also, by classifying him as LWOC, absolved itself of the obligation to notify the police that a dangerous, violent and mentally unstable individual was loose somewhere in New York City” (*id.* at 415-416).

The dissenters, agreeing with the trial judge, concluded that the assault was “too remote in time to be proximately caused by” actions or omissions occurring at MPC “almost two years earlier” (*id.* at 417 [Andrias, J.P., dissenting]). On July 14, 2011, the Appellate Division granted the State's motion for leave to

appeal to us on a certified question of law; namely, whether its order was properly made. We answer the certified question in the negative, and so reverse.

The causal connection between the hospital staff's alleged negligence in July 1993 and Joseph's attack on Williams in July 1995—almost exactly two years later—is simply too attenuated and speculative to support liability. For one thing, there is no way to know whether and no reason to suppose that Joseph, a voluntary patient, would have remained in OMH's care in 1995 even if hospital staff had prevented him from leaving MPC's grounds in 1993, or had notified the police of his absence. And although there was always a risk that Joseph might eventually decompensate and become assaultive once outside a hospital setting—whether he left with or without permission—any number of circumstances arising during the two-year period might have triggered such a change in mental condition. Proximate cause analysis incorporates a “test of temporal duration,” which asks if “the occurrence of the injury [was] tied to the claimed negligent act or omission within a reasonable lapse of time” (*Pagan v Goldberger*, 51 AD2d 508, 511 [2d Dept 1976]; see also Restatement [Second] of Torts § 433 [c], Comment f [“Experience has shown that where a great length of time has elapsed between the actor's negligence and harm to another, a great number of contributing factors may have operated, many of which may be difficult or impossible of actual proof”]). Here, the lapse of time was not reasonable. Accordingly, the State was entitled to dismissal of the claim because it established, as a matter of law, that any negligence on its part was not a proximate cause of Williams's injuries (see *Bonomonte v City of New York*, 17 NY3d 866 [2011]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

BENTORIA HOLDINGS, INC., Respondent, v TRAVELERS INDEMNITY COMPANY, Appellant, et al., Defendants.

Submitted April 23, 2012; decided April 26, 2012

Reported below, 84 AD3d 1135.

Motion by American Insurance Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

JENNIFER CANGRO, Appellant, v JOHN Z. MARANGOS, Respondent.

In the Matter of GINA MARIE REITANO.

JENNIFER CANGRO, an Alleged Incapacitated Person, Appellant,
v MARY V. ROSADO, Respondent.

Decided April 26, 2012

Reported below, 90 AD3d 470; 89 AD3d 535.

Appeals dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

DANIEL MARKS COHEN et al., Appellants, v ANDREW M. CUOMO,
Governor of the State of New York, et al., Respondents.

Submitted April 25, 2012; decided April 26, 2012

Reported below, 35 Misc 3d 478.

Motion by New Roosevelt Foundation, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

DANIEL MARKS COHEN et al., Appellants, v ANDREW M. CUOMO,
Governor of the State of New York, et al., Respondents.

Submitted April 25, 2012; decided April 26, 2012

Reported below, 35 Misc 3d 478.

Motion by Common Cause New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of H.H. WARNER, LLC, Appellant, v ROCHESTER
GENESEE REGIONAL TRANSPORTATION AUTHORITY, Respondent.

Decided April 26, 2012

Reported below, 87 AD3d 1388.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

NYCTL 1998-2 TRUST, Respondent, v NORMAN ACKERMAN, Appellant, et al., Defendants.

Submitted January 23, 2012; decided April 26, 2012

Reported below, 82 AD3d 447.

Motion for leave to appeal dismissed as untimely. The prior motion for leave to appeal made to the Appellate Division was untimely (*see* Karger, Powers of the New York Court of Appeals § 12:3, at 436-437 [3d ed rev]). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAFAEL L. BELLARD, Appellant.

Submitted April 9, 2012; decided April 26, 2012

Reported below, 89 AD3d 1443.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEPHEN DEPROSPERO, Appellant.

Submitted April 9, 2012; decided April 26, 2012

Reported below, 91 AD3d 39.

Motion for assignment of counsel granted only to the extent that Frank Policelli, Esq., 10 Steuben Park, Utica, New York 13501 is assigned without fee to represent appellant on the appeal herein. Counsel may, however, apply for reimbursement of necessary disbursements incurred in connection with the assignment.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISAAC
DIGGINS, Appellant.

Submitted April 23, 2012; decided April 26, 2012

Reported below, 84 AD3d 667.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEX
ECHEVARRIA, Appellant.

Submitted April 2, 2012; decided April 26, 2012

Reported below, 89 AD3d 545.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAY-
SHAWN P. HANDY, Appellant.

Submitted April 9, 2012; decided April 26, 2012

Reported below, 83 AD3d 1454.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MALIK
HOWARD, Appellant.

Submitted April 23, 2012; decided April 26, 2012

Reported below, 92 AD3d 176.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v GERARD IPPOLITO, Also Known as GERALD IPPOLITO,
Respondent-Appellant.

Submitted March 26, 2012; decided April 26, 2012

Reported below, 89 AD3d 1369.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the respondent-appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COR-
NELL LONG, Appellant.

Submitted April 16, 2012; decided April 26, 2012

Reported below, 89 AD3d 1513.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v EDGAR MORALES, Respondent-Appellant.

Submitted April 16, 2012; decided April 26, 2012

Reported below, 86 AD3d 147.

Motion by Center on the Administration of Criminal Law for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDREW
MOSS, Appellant.

Submitted April 9, 2012; decided April 26, 2012

Reported below, 89 AD3d 600.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE
NAGER, Appellant.

Submitted February 21, 2012; decided April 26, 2012

Reported below, 34 Misc 3d 135(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELBERT
NORRIS, Appellant.

Submitted March 26, 2012; decided April 26, 2012

Reported below, 90 AD3d 955.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRELL
NORRIS, Appellant.

Submitted March 26, 2012; decided April 26, 2012

Reported below, 90 AD3d 788.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
PLUNKETT, Appellant.

Submitted April 2, 2012; decided April 26, 2012

Reported below, 77 AD3d 1442.

Motion by American Academy of HIV Medicine et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEROY TUFF, JR., Appellant.

Submitted April 16, 2012; decided April 26, 2012

Reported below, 90 AD3d 1645.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CHRIS APPLEWHITE, Appellant, v HAROLD D. GRAHAM, Superintendent, Auburn Correctional Facility, Respondent.

Submitted February 21, 2012; decided April 26, 2012

Reported below, 87 AD3d 1284.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot. Motion for poor person relief dismissed as academic.

ROSE GROUP PARK AVENUE LLC et al., Appellants, v NEW YORK STATE LIQUOR AUTHORITY, Respondent. THE PRESERVATION COALITION et al., Intervenors-Respondents.

Submitted March 26, 2012; decided April 26, 2012

Reported below, 93 AD3d 1.

Motion by Brown Memorial Baptist Church et al. for leave to file a memorandum of law amici curiae on the motion for leave to appeal herein, and for leave to file a brief amici curiae on the appeal herein, dismissed as academic.

In the Matter of STEPHEN ROSENBLUM, Respondent, v NEW YORK CITY CONFLICTS OF INTEREST BOARD et al., Appellants.

Submitted March 26, 2012; decided April 26, 2012

Reported below, 75 AD3d 426.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 18 NY3d 422 (2012)].

In the Matter of JOHN WHITFIELD, Appellant, v PATRICIA J. BAILEY, Individually and as FOIL Appeal Officer for the New York County District Attorney's Office, Respondent.

Submitted February 21, 2012; decided April 26, 2012

Reported below, 91 AD3d 491.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the October 2010 Supreme Court order, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the order sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

APPEALS WITHDRAWN AND DISCONTINUED

(April 1, 2012 through April 30, 2012)

Consumer Directed Choices, Inc., Matter of, v New York State Off. of the Medicaid Inspector Gen.	3d Dept: 90 AD3d 1271	4/9/12
---	-----------------------	--------

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2012 through April 30, 2012)

People v Abraham	1st Dept: 91 AD3d 555 (Bronx)	denied 4/16/12 (Grafteo, J.)
People v Abreu	2d Dept: 91 AD3d 965 (Kings)	denied 4/10/12 (Pigott, J.)
People v Adams	County Ct, 10/26/11 (Monroe)	granted 4/24/12 (Jones, J.)
People v Aguay	4th Dept: 89 AD3d 1464 (Jefferson)	denied 4/13/12 (Pigott, J.)
People v Allick	1st Dept: 92 AD3d 588 (Bronx)	denied 4/30/12 (Lippman, Ch. J.)
People v Alsaifullah	App Div, 3d Dept: 2012 NY Slip Op 66066(U) (Albany)	dismissed 4/24/12 (Ciparick, J.)
People v Anderson	4th Dept: 90 AD3d 1475 (Erie)	denied 4/5/12 (Jones, J.)
People v Badger	4th Dept: 90 AD3d 1531 (Monroe)	denied 4/10/12 (Pigott, J.)
People v Barboni	4th Dept: 90 AD3d 1548 (Oswego)	granted 4/16/12 (Ciparick, J.)
People v Barnes	1st Dept: 90 AD3d 476 (NY)	denied 4/3/12 (Ciparick, J.)

People v Battease	3d Dept: 93 AD3d 888 (Washington)	denied 4/18/12 (Grafteo, J.)
People v Bernal	1st Dept: 91 AD3d 421 (NY)	denied 4/3/12 (Ciparick, J.)
People v Berry	2d Dept: 45 AD3d 693 (Nassau)	denied 4/10/12 (Read, J.)
People v Black	2d Dept: 90 AD3d 1066 (Kings)	denied 4/3/12 (Ciparick, J.)
People v Blandon	App Div, 2d Dept: 2012 NY Slip Op 64652(U) (Queens)	dismissed 4/23/12 (Lippman, Ch. J.)
People v Blankymsee	2d Dept: 92 AD3d 890 (Queens)	granted 4/4/12 (Grafteo, J.)
People v Boone	1st Dept: 88 AD3d 496 (NY)	dismissed 4/30/12 (Lippman, Ch. J.)
People v Borden	4th Dept: 90 AD3d 1652 (Niagara)	denied 4/3/12 (Ciparick, J.)
People v Braswell	4th Dept: 92 AD3d 1207 (Monroe)	denied 4/18/12 (Grafteo, J.)
People v Brinson	2d Dept: 90 AD3d 670 (Queens)	granted 4/4/12 (Grafteo, J.)
People v Brown (Antoine)	4th Dept: 92 AD3d 1216 (Erie)	denied 4/30/12 (Lippman, Ch. J.)
People v Brown (Corey)	4th Dept: 83 AD3d 1577 (Orleans)	denied 4/16/12 (Ciparick, J.)
People v Brown (Robert)	App Term, 2d Dept: 34 Misc 3d 136(A) (Queens)	denied 4/3/12 (Jones, J.)
People v Burnett	4th Dept: 90 AD3d 1573 (Onondaga)	denied 4/30/12 (Lippman, Ch. J.)
People v Burr	4th Dept: 86 AD3d 932 (Erie)	denied 4/18/12 (Read, J.)
People v Butler	1st Dept: 88 AD3d 470 (NY)	denied 4/5/12 (Jones, J.)
People v Callicutt	3d Dept: 85 AD3d 1326 (Albany)	denied 4/4/12 (Read, J.)
People v Carey	4th Dept: 92 AD3d 1224 (Onondaga)	denied 4/5/12 (Grafteo, J.)
People v Carter	2d Dept: 91 AD3d 967 (Nassau)	denied 4/17/12 (Pigott, J.)
People v Casey	4th Dept: 90 AD3d 1588 (Wayne)	denied 4/5/12 (Jones, J.)
People v Cash	4th Dept: 90 AD3d 1514 (Cayuga)	denied 4/3/12 (Ciparick, J.)
People v Cates	1st Dept: 92 AD3d 553 (Bronx)	denied 4/16/12 (Grafteo, J.)
People v Cephus	2d Dept: 92 AD3d 688 (Queens)	denied 4/5/12 (Grafteo, J.)
People v Charlemagne	App Div, 1st Dept: 2011 NY Slip Op 64096(U) (NY)	dismissed 4/4/12 (Ciparick, J.)
People v Clark (Antonio)	4th Dept: 90 AD3d 1576 (Niagara)	denied 4/16/12 (Grafteo, J.)

MEMORANDA

993

People v Clark (Christopher)	1st Dept: 88 AD3d 527 (NY)	denied 4/4/12 (Read, J.)
People v Coleman	1st Dept: 90 AD3d 543 (NY)	denied 4/3/12 (Jones, J.)
People v Collins (Aaron)	4th Dept: 85 AD3d 1678 (Erie)	denied 4/5/12 (Jones, J.)
People v Collins (Melvin)	2d Dept: 90 AD3d 1069 (Queens)	denied 4/4/12 (Read, J.)
People v Cornelius	1st Dept: 89 AD3d 595 (NY)	granted 4/16/12 (Read, J.)
People v Cruz (Carlos)	1st Dept: 88 AD3d 498 (Bronx)	denied 4/30/12 (Lippman, Ch. J.)
People v Cruz (Eulese)	4th Dept: 89 AD3d 1464 (Jefferson)	denied 4/13/12 (Pigott, J.)
People v Cut	3d Dept: 85 AD3d 1326 (Albany)	denied 4/4/12 (Read, J.)
People v Dantzler	2d Dept: 91 AD3d 883 (Queens)	denied 4/5/12 (Grafteo, J.)
People v Davis (Kent)	1st Dept: 90 AD3d 461 (NY)	denied 4/9/12 (Pigott, J.)
People v Davis (Rodney)	1st Dept: 90 AD3d 432 (NY)	denied 4/3/12 (Ciparick, J.)
People v Davison	2d Dept: 92 AD3d 691 (Queens)	denied 4/16/12 (Grafteo, J.)
People v DeCampoamor	2d Dept: 91 AD3d 669 (Suffolk)	denied 4/24/12 (Jones, J.)
People v Devaughn	2d Dept: 84 AD3d 1394 (Queens)	denied 4/4/12 (Read, J.)
People v Diallo	3d Dept: 88 AD3d 1152 (Clinton)	denied 4/19/12 (Pigott, J.)
People v Dingle	1st Dept: 91 AD3d 441 (Bronx)	denied 4/10/12 (Pigott, J.)
People v Dodd	4th Dept: 91 AD3d 1338 (Genesee)	denied 4/10/12 (Pigott, J.)
People v Dorce	2d Dept: 92 AD3d 692 (Queens)	denied 4/5/12 (Grafteo, J.)
People v Dowling	3d Dept: 92 AD3d 1034 (St. Lawrence)	denied 4/10/12 (Smith, J.)
People v Doyle	2d Dept: 90 AD3d 780 (Nassau)	denied 4/3/12 (Ciparick, J.)
People v E	3d Dept: 90 AD3d 1242 (Cortland)	denied 4/3/12 (Ciparick, J.)
People v Edwards (Anthony)	App Term, 2d Dept: 34 Misc 3d 147(A) (Queens)	denied 4/17/12 (Pigott, J.)
People v Edwards (Joseph)	4th Dept: 90 AD3d 1575 (Onondaga)	denied 4/4/12 (Read, J.)
People v Eric	3d Dept: 90 AD3d 1242 (Cortland)	denied 4/3/12 (Ciparick, J.)
People v Ferrin	4th Dept: 90 AD3d 1588 (Cayuga)	denied 4/3/12 (Jones, J.)

People v Figueroa	App Div, 1st Dept: 2011 NY Slip Op 86900(U) (NY)	denied 4/12/12 (Smith, J.)
People v Finley	2d Dept: 91 AD3d 886 (Westchester)	denied 4/18/12 (Smith, J.)
People v Flinn (Diana)	4th Dept: 92 AD3d 1217 (Niagara)	denied 4/10/12 (Smith, J.)
People v Flinn (Diana)	4th Dept: 92 AD3d 1220 (Niagara)	denied 4/10/12 (Smith, J.)
People v Ford	3d Dept: 90 AD3d 1299 (Chenango)	denied 4/3/12 (Jones, J.)
People v Francois	1st Dept: 89 AD3d 588 (Bronx)	denied 4/4/12 (Read, J.)
People v Frazier	4th Dept: 91 AD3d 1319 (Chautauqua)	denied 4/5/12 (Pigott, J.)
People v Fuentes	2d Dept: 92 AD3d 797 (Kings)	denied 4/16/12 (Grafteo, J.)
People v Fulmer	4th Dept: 87 AD3d 1385 (Onondaga)	denied 4/5/12 (Jones, J.)
People v Garcia	App Div, 1st Dept, 8/23/11 (NY)	denied reconsideration 4/30/12 (Read, J.)
People v Garner	1st Dept: 88 AD3d 502 (NY)	denied 4/30/12 (Lippman, Ch. J.)
People v Gavallo	2d Dept: 87 AD3d 1014 (Queens)	denied 4/5/12 (Jones, J.)
People v Giunta	1st Dept: 92 AD3d 454 (NY)	denied 4/30/12 (Read, J.)
People v Gonzalez	1st Dept: 92 AD3d 510 (NY)	denied 4/18/12 (Smith, J.)
People v Green (Eric)	3d Dept: 90 AD3d 1151 (Broome)	denied 4/4/12 (Read, J.)
People v Green (Melvin)	2d Dept: 89 AD3d 1035 (Orange)	denied 4/3/12 (Jones, J.)
People v Guzman	1st Dept: 90 AD3d 529 (Bronx)	denied 4/3/12 (Ciparick, J.)
People v Hamilton	2d Dept: 89 AD3d 1104 (Dutchess)	denied 4/3/12 (Ciparick, J.)
People v Hammonds	2d Dept: 91 AD3d 791 (Westchester)	denied 4/17/12 (Pigott, J.)
People v Hanley	1st Dept: 85 AD3d 659 (NY)	granted 4/16/12 (Read, J.)
People v Hargis	County Ct, 1/31/12 (Jefferson)	denied 4/10/12 (Smith, J.)
People v Hayes	2d Dept: 91 AD3d 792 (Dutchess)	denied 4/12/12 (Pigott, J.)
People v Heard	3d Dept: 92 AD3d 1142 (Albany)	denied 4/16/12 (Grafteo, J.)
People v Heier	3d Dept: 90 AD3d 1336 (Broome)	denied 4/5/12 (Pigott, J.)

MEMORANDA

995

People v Helm	County Ct, 6/14/11 (Schenectady)	denied 4/10/12 (Read, J.)
People v Hudson	1st Dept: 91 AD3d 489 (NY)	denied 4/2/12 (Smith, J.)
People v Hyers	4th Dept: 92 AD3d 1207 (Chautauqua)	denied 4/30/12 (Lippman, Ch. J.)
People v Johnson (Anthony)	2d Dept: 90 AD3d 676 (Kings)	denied 4/3/12 (Jones, J.)
People v Johnson (John)	4th Dept: 92 AD3d 1215 (Erie)	denied 4/18/12 (Grafteo, J.)
People v Johnson (Shawndell)	3d Dept: 91 AD3d 1194 (Schenectady)	denied 4/5/12 (Pigott, J.)
People v Johnson (Vernon)	2d Dept: 92 AD3d 696 (Suffolk)	denied 4/30/12 (Lippman, Ch. J.)
People v Knott	3d Dept: 92 AD3d 975 (Columbia)	denied 4/17/12 (Pigott, J.)
People v Lapiana-Cavallaro	County Ct, 11/21/11 (Monroe)	denied 4/3/12 (Ciparick, J.)
People v Lassic	2d Dept: 90 AD3d 1072 (Nassau)	denied 4/5/12 (Grafteo, J.)
People v Levy	2d Dept: 91 AD3d 793 (Suffolk)	denied 4/6/12 (Smith, J.)
People v Lewis	App Div, 3d Dept, 2/10/12 (Broome)	denied 4/30/12 (Read, J.)
People v Lopez	1st Dept: 90 AD3d 516 (NY)	denied 4/3/12 (Jones, J.)
People v Lynch	2d Dept: 92 AD3d 805 (Suffolk)	denied 4/18/12 (Smith, J.)
People v Manfredonia	1st Dept: 88 AD3d 456 (NY)	denied 4/30/12 (Lippman, Ch. J.)
People v Marino-Affaitati (Claudio)	2d Dept: 88 AD3d 742 (Dutchess)	denied 4/4/12 (Read, J.) (Case No. 88)
People v Marino-Affaitati (Claudio)	2d Dept: 88 AD3d 742 (Dutchess)	denied 4/4/12 (Read, J.) (Case No. 89)
People v Mateo (James)	App Div, 3d Dept: 2012 NY Slip Op 67545(U) (Ulster)	dismissed 4/24/12 (Jones, J.)
People v Mateo (James)	App Div, 3d Dept: 2012 NY Slip Op 67546(U) (Ulster)	dismissed 4/24/12 (Jones, J.)
People v Mateo (James)	App Div, 3d Dept: 2012 NY Slip Op 67547(U) (Ulster)	dismissed 4/24/12 (Jones, J.)
People v McCalla	2d Dept: 90 AD3d 949 (Queens)	denied 4/4/12 (Read, J.)
People v McCaskill (Jamel)	1st Dept: 88 AD3d 578 (NY)	denied 4/26/12 (Lippman, Ch. J.)
People v McCaskill (Jemel)	1st Dept: 88 AD3d 578 (NY)	denied 4/26/12 (Lippman, Ch. J.)
People v McFadden	1st Dept: 90 AD3d 413 (Bronx)	denied 4/3/12 (Ciparick, J.)

People v McGee	4th Dept: 87 AD3d 1400 (Erie)	granted 4/24/12 (Jones, J.)
People v McNeal	3d Dept: 91 AD3d 1204 (Broome)	denied 4/17/12 (Pigott, J.)
People v Medero	1st Dept: 91 AD3d 486 (Bronx)	denied 4/5/12 (Pigott, J.)
People v Meek	4th Dept: 90 AD3d 1597 (Monroe)	denied 4/5/12 (Pigott, J.)
People v Mejias	1st Dept: 86 AD3d 429 (NY)	granted 4/24/12 (Jones, J.)
People v Mendez	1st Dept: 89 AD3d 496 (NY)	denied 4/4/12 (Read, J.)
People v Mercado	1st Dept: 92 AD3d 458 (NY)	denied 4/30/12 (Lippman, Ch. J.)
People v Miller	1st Dept: 92 AD3d 520 (NY)	denied 4/23/12 (Grafteo, J.)
People v Milton	4th Dept: 90 AD3d 1636 (Erie)	denied 4/5/12 (Pigott, J.)
People v Mohammed	1st Dept: 92 AD3d 510 (NY)	denied 4/18/12 (Smith, J.)
People v Monserrate	2d Dept: 90 AD3d 785 (Queens)	denied 4/12/12 (Ciparick, J.)
People v Morrishaw	3d Dept: 92 AD3d 1088 (Schenectady)	denied 4/18/12 (Smith, J.)
People v Myles	4th Dept: 89 AD3d 1453 (Niagara)	denied 4/18/12 (Pigott, J.)
People v Nedd	2d Dept: 90 AD3d 1076 (Kings)	denied 4/16/12 (Ciparick, J.)
People v Nelson	2d Dept: 90 AD3d 954 (Kings)	denied 4/3/12 (Jones, J.)
People v Nielsen	2d Dept: 89 AD3d 1041 (Queens)	denied 4/4/12 (Read, J.)
People v Norfleet	1st Dept: 92 AD3d 522 (NY)	denied 4/17/12 (Pigott, J.)
People v Pecararo	3d Dept: 83 AD3d 1284 (Essex)	denied reconsideration 4/30/12 (Read, J.)
People v Pemberton	2d Dept: 93 AD3d 681 (Kings)	denied 4/18/12 (Grafteo, J.)
People v Pendelton	3d Dept: 90 AD3d 1234 (Schenectady)	denied 4/5/12 (Jones, J.)
People v Perez	2d Dept: 91 AD3d 673 (Kings)	denied 4/5/12 (Pigott, J.)
People v Perry	4th Dept: 90 AD3d 1503 (Monroe)	denied 4/4/12 (Read, J.)
People v Peters	4th Dept: 90 AD3d 1507 (Monroe)	denied 4/30/12 (Read, J.)
People v Pitman	1st Dept: 87 AD3d 947 (NY)	denied 4/30/12 (Lippman, Ch. J.)

MEMORANDA

997

People v Pleasant	1st Dept: 87 AD3d 932 (NY)	denied 4/30/12 (Lippman, Ch. J.)
People v Powell (Herbert)	App Term, 2d Dept: 2012 NY Slip Op 67890(U) (Kings)	dismissed 4/18/12 (Smith, J.)
People v Powell (Kenneth)	1st Dept: 88 AD3d 543 (NY)	dismissed 4/2/12 (Read, J.)
People v Powell (Kenneth)	1st Dept: 91 AD3d 555 (NY)	denied 4/4/12 (Read, J.)
People v Pratchett	4th Dept: 90 AD3d 1678 (Erie)	denied 4/4/12 (Read, J.)
People v Price	1st Dept: 90 AD3d 516 (NY)	denied 4/3/12 (Jones, J.)
People v Purvis	3d Dept: 90 AD3d 1339 (Albany)	denied 4/5/12 (Jones, J.)
People v Rawls	1st Dept: 89 AD3d 605 (NY)	denied 4/30/12 (Lippman, Ch. J.)
People v Redmon	2d Dept: 89 AD3d 961 (Kings)	denied reconsideration 4/12/12 (Pigott, J.)
People v Reid	2d Dept: 82 AD3d 1268 (Westchester)	denied 4/30/12 (Lippman, Ch. J.)
People v Richardson	1st Dept: 85 AD3d 660 (NY)	denied 4/30/12 (Lippman, Ch. J.)
People v Rivera (Efrain)	2d Dept: 91 AD3d 972 (Kings)	denied 4/19/12 (Smith, J.)
People v Rivera (Jose)	1st Dept: 90 AD3d 466 (NY)	denied 4/30/12 (Lippman, Ch. J.)
People v Rodriguez (Andy)	1st Dept: 89 AD3d 408 (NY)	denied 4/30/12 (Lippman, Ch. J.)
People v Rodriguez (Antonio)	1st Dept: 86 AD3d 429 (NY)	granted 4/24/12 (Jones, J.)
People v Rodriguez (Orlando)	App Div, 1st Dept: 2011 NY Slip Op 86900(U) (NY)	denied 4/12/12 (Smith, J.)
People v Rodriguez (Roberto)	2d Dept: 91 AD3d 797 (Kings)	denied 4/16/12 (Grafteo, J.)
People v Rodriguez (Roberto)	2d Dept: 92 AD3d 902 (Kings)	denied 4/19/12 (Smith, J.)
People v Rogers	4th Dept: 90 AD3d 1506 (Niagara)	denied 4/23/12 (Grafteo, J.)
People v Roman	2d Dept: 91 AD3d 974 (Kings)	denied 4/16/12 (Grafteo, J.)
People v Ruiz	App Div, 2d Dept: 2012 NY Slip Op 64666(U) (Kings)	dismissed 4/6/12 (Smith, J.)
People v Rusby	4th Dept: 90 AD3d 1524 (Genesee)	denied 4/3/12 (Ciparick, J.)
People v Ruthledge	1st Dept: 92 AD3d 540 (NY)	denied 4/30/12 (Read, J.)
People v Salamone	2d Dept: 89 AD3d 961 (Suffolk)	denied reconsideration 4/10/12 (Pigott, J.)

People v Sanchez	App Div, 3d Dept: 2011 NY Slip Op 92009(U) (Schenectady)	denied 4/12/12 (Pigott, J.)
People v Saxton	3d Dept: 93 AD3d 1077 (Saratoga)	denied 4/12/12 (Ciparick, J.)
People v Serrano	2d Dept: 90 AD3d 1079 (Suffolk)	denied 4/3/12 (Jones, J.)
People v Shakir	2d Dept: 90 AD3d 958 (Kings)	denied 4/10/12 (Smith, J.)
People v Shaver	3d Dept: 92 AD3d 978 (Albany)	denied 4/2/12 (Smith, J.)
People v Silva	2d Dept: 91 AD3d 675 (Kings)	denied 4/17/12 (Pigott, J.)
People v Small	2d Dept: 91 AD3d 676 (Westchester)	denied 4/5/12 (Grafteo, J.)
People v Smalls	1st Dept: 92 AD3d 420 (NY)	denied 4/12/12 (Smith, J.)
People v Smith (Christopher)	4th Dept: 90 AD3d 1565 (Onondaga)	denied 4/3/12 (Ciparick, J.)
People v Smith (Frank)	1st Dept: 90 AD3d 561 (NY)	denied 4/5/12 (Pigott, J.)
People v Somoza	1st Dept: 92 AD3d 467 (NY)	denied 4/17/12 (Pigott, J.)
People v Sooknanan	2d Dept: 92 AD3d 810 (Queens)	denied 4/16/12 (Grafteo, J.)
People v Soto	2d Dept: 89 AD3d 963 (Orange)	denied 4/3/12 (Jones, J.)
People v Spicer	4th Dept: 90 AD3d 1524 (Genesee)	denied 4/3/12 (Ciparick, J.)
People v Spruill	3d Dept: 90 AD3d 1242 (Cortland)	denied 4/3/12 (Ciparick, J.)
People v Starks	2d Dept: 91 AD3d 975 (Nassau)	denied 4/5/12 (Grafteo, J.)
People v Stinson	1st Dept: 91 AD3d 461 (NY)	denied 4/5/12 (Jones, J.)
People v Stone	4th Dept: 93 AD3d 1192 (Erie)	denied 4/30/12 (Lippman, Ch. J.)
People v Tavaréz	App Div, 2d Dept: 2012 NY Slip Op 62088(U) (Westchester)	denied 4/16/12 (Grafteo, J.)
People v Thomas	4th Dept: 90 AD3d 1591 (Monroe)	denied 4/16/12 (Grafteo, J.)
People v Thompson (Paul)	2d Dept: 81 AD3d 670 (Richmond)	granted 4/24/12 (Jones, J.)
People v Thompson (Robert)	2d Dept: 92 AD3d 812 (Kings)	denied 4/30/12 (Lippman, Ch. J.)
People v Timmons	4th Dept: 90 AD3d 1591 (Monroe)	denied 4/30/12 (Read, J.)
People v Tobar	2d Dept: 92 AD3d 906 (Nassau)	denied 4/16/12 (Grafteo, J.)
People v VanWuyckhuyse	4th Dept: 90 AD3d 1524 (Genesee)	denied 4/3/12 (Ciparick, J.)

MEMORANDA

999

People v Villalona	1st Dept: 91 AD3d 536 (Bronx)	denied 4/5/12 (Pigott, J.)
People v Wall	2d Dept: 92 AD3d 812 (Suffolk)	denied 4/11/12 (Smith, J.)
People v Walters	2d Dept: 90 AD3d 958 (Nassau)	denied 4/5/12 (Pigott, J.)
People v Washington	1st Dept: 91 AD3d 534 (NY)	denied 4/5/12 (Grafteo, J.)
People v Watt	County Ct, 2/3/12 (Rensselaer)	denied 4/2/12 (Smith, J.)
People v Welch	App Div, 4th Dept: 2012 NY Slip Op 62325(U) (Niagara)	dismissed 4/2/12 (Read, J.)
People v West	1st Dept: 89 AD3d 577 (NY)	denied 4/30/12 (Lippman, Ch. J.)
People v Williams (Bill)	2d Dept: 91 AD3d 679 (Kings)	granted 4/5/12 (Smith, J.)
People v Williams (Charles)	4th Dept: 90 AD3d 1514 (Cayuga)	denied 4/3/12 (Ciparick, J.)
People v Williams (Reginald)	App Div, 2d Dept: 2012 NY Slip Op 64669(U) (Westchester)	dismissed 4/2/12 (Jones, J.)
People v Williams (Timothy)	1st Dept: 88 AD3d 463 (NY)	granted 4/11/12 (Smith, J.)
People v Wilson	1st Dept: 92 AD3d 512 (NY)	denied* 4/6/12 (Smith, J.)
People v Winkfield	2d Dept: 90 AD3d 959 (Kings)	denied 4/5/12 (Jones, J.)
People v Woodrow	3d Dept: 91 AD3d 1188 (Schenectady)	denied 4/2/12 (Smith, J.)
People ex rel. Burr v Clark	4th Dept: 86 AD3d 933 (Erie)	denied 4/16/12 (Read, J.) (Appeal No. 1)
People ex rel. Burr v Clark	4th Dept: 86 AD3d 933 (Erie)	denied 4/16/12 (Read, J.) (Appeal No. 2)
People ex rel. Burr v Dillon	4th Dept: 86 AD3d 933 (Erie)	denied 4/16/12 (Read, J.) (Appeal No. 3)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(April 1, 2012 through April 30, 2012)

People v Harris	2d Dept: 93 AD3d 58 (Orange)	granted 4/25/12 (Dillon, J.)
-----------------	------------------------------	---------------------------------

* Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Brinson* (90 AD3d 670 [2011], *lv granted* 18 NY3d 992 [2012]) or *People v Blankymsee* (92 AD3d 890 [2012], *lv granted* 18 NY3d 992 [2012]).

* Includes only applications that were granted.

1000

18 NEW YORK REPORTS, 3d SERIES

People v Pallagi (Sashalee)	4th Dept: 91 AD3d 1266 (Ontario)	granted 4/3/12 (Scudder, J.)
People v Pallagi (Tatiana)	4th Dept: 91 AD3d 1273 (Ontario)	granted 4/3/12 (Scudder, J.)

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS.

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

CLASS ACTIONS.

1. Installation of Telephone Lines on Private Property.—In an action based upon defendant telephone company's attachment of a box to plaintiffs' apartment building in New York City for the purpose of transmitting telephone communications to and from defendant's customers in other buildings, the courts below did not abuse their discretion in denying plaintiffs' motion for class certification. The case as described in plaintiffs' complaint and expert affidavit seemed on its face well-suited to class action treatment, as there were allegations that defendant had made a practice of attaching similar boxes to privately owned buildings in several New York City neighborhoods and had pursued a strategy to avoid its obligation to pay compensation. Evidence submitted by defendant, however, showed that there was a substantial amount of proof specific to plaintiffs' building, and not common to the class, that was relevant to the case. It was fair to infer that there would also be building-specific evidence relating to property owned by many other members of the putative class. The courts below were justified, on the record, in finding that at least two of the prerequisites to a class action were not met: the requirements that there be "questions of law or fact common to the class which predominate over any questions affecting only individual members" (CPLR 901 [a] [2]) and that "the claims . . . of the representative parties" be "typical of the claims . . . of the class" (CPLR 901 [a] [3]). *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS.

ADVERSE POSSESSION.

HOSTILE POSSESSION.

1. Appellate Review.—In an action seeking, in part, a declaration that plaintiff was the owner of certain real property by adverse possession, the order of the Appellate Division finding against the plaintiff was reversed and the case remitted to that Court for further proceedings in accordance with the principles of law expressed in *Estate of Becker v Murtagh* (19 NY3d 75 [2012]). Because the legal standards Supreme Court employed were consonant with the decision in *Becker*, the case was remitted to the Appellate Division rather than Supreme Court and the Appellate Division, in reviewing Supreme Court's judgment, should apply the facts of the case to the law as expressed in *Becker*. *Air Stream Corp. v 3300 Lawson Corp.*, 18 NY3d 972.

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

ALIMONY.

See HUSBAND AND WIFE.

ANNULMENT OF MARRIAGE.

See MARRIAGE.

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ACADEMIC AND MOOT QUESTIONS.

1. Legality of Form of Bail Challenged after Defendant's Guilty Plea.—An appeal of an order denying petitioner's application for a writ of habeas corpus, in which petitioner challenged the authority of Supreme Court to set cash bail as the only available form of bail, did not become moot after petitioner entered a guilty plea to various offenses. Although the legality of his pretrial detention was technically no longer germane since that custody was terminated as a result of petitioner's plea, the mootness exception applied because the propriety of cash-only bail was an important issue that was likely to recur and which typically would evade review. Accordingly, the appeal was not dismissed and the proceeding was converted into a declaratory judgment action given that petitioner no longer needed affirmative habeas corpus relief. *People ex rel. McManus v Horn*, 18 NY3d 660.

DISMISSAL.

2. Summary Dismissal by Appellate Division.—Appeals to the Appellate Division that had been dismissed by that court sua sponte were reinstated since the Appellate Division abused its discretion where it did not articulate a basis for its order of dismissal and no grounds for dismissing the appeals appeared tenable from the record. Plaintiff timely perfected his appeals under the First Department's rules, and the court did not give plaintiff adequate notice if it shortened the time period for him to perfect the appeals. Accordingly, on the present record, the appeals could not have been properly dismissed for failure to comply with the court's orders. Therefore, plaintiff's appeals were reinstated and the case remitted to the Appellate Division to consider the merits of those appeals. *Melcher v Apollo Med. Fund Mgt. L.L.C.*, 18 NY3d 915.

ARBITRATION.

See, also, INSURANCE.

MATTERS ARBITRABLE.

1. No-Layoff Clause in Municipal Collective Bargaining Agreement.—In a dispute arising from a Village's abolition of six firefighter positions due to budgetary necessity, the Village and the firefighters' union were not required to arbitrate the meaning of a "no-layoff" clause in their collective bargaining agreement since the terminations did not fall within the no-layoff clause and, therefore, were not arbitrable under the parties' contract. A purported job security provision is valid and enforceable only if it is "explicit," the agreement extends for a "reasonable period of time," and it is not negotiated in a period of a legislatively declared financial emergency between parties of unequal bargaining power. The language here stated that the "Village shall not lay-off any member of the bargaining unit during the term of this contract," but this language, in and of itself, did not explicitly prohibit the municipality from abolishing firefighter positions out of budgetary necessity. The term "layoff" was undefined in the parties' agreement and is open to different and reasonable interpretations. Moreover, the clause did not comprehensively prohibit the municipality from abolishing firefighter positions, and, given its narrow and limited language, it could not be construed as such. Accordingly, because the clause was not explicit, unambiguous and comprehensive, there was nothing for the union to grieve or for an arbitrator to decide. *Matter of Johnson City Professional Firefighters Local 921 (Village of Johnson City)*, 18 NY3d 32.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER.

ATTORNEY GENERAL.**ENJOINING DECEPTIVE PRACTICES.**

1. Claims Alleging Fraud and Violations of Real Estate Appraisal Independence Rules.—The Attorney General adequately pleaded a cause of action under General

ATTORNEY GENERAL—Cont'd

Business Law § 349 and had standing to do so in an action against defendants alleging fraud and violations of real estate appraisal independence rules. Plaintiff asserted claims that defendants, a company that provides lending institutions with real estate appraisal services and its wholly owned subsidiary, an appraisal management company, engaged in repeated fraudulent and deceptive acts in the conduct of its business to the detriment of consumers and the public. *People v First Am. Corp.*, 18 NY3d 173.

BAIL.**RIGHT TO BAIL.**

1. More than One Form of Bail Required.—CPL 520.10 (2) (b) prohibits a court from fixing only one form of bail. The statute states that a “court may direct that the bail be posted in any one of two or more of the forms” and thus requires that at least two forms of bail be ordered. Prohibiting only one form of bail comports with the overall statutory structure and the legislative purpose that prompted the enactment of CPL 520.10. The word “may” did not grant a court discretion to impose only one type of bail, rather its inclusion in both subdivision (2) (a) and (b) of CPL 520.10 was the simplest way for the Legislature to codify the two permissible methods of fixing bail: either by ordering a specific amount of bail without stating any particular bail form, or by specifying the forms of bail and giving the defendant at least two alternative choices. Providing flexible bail alternatives to pretrial detainees, who are presumptively innocent, is consistent with the underlying purpose of CPL article 520, which was to reform the restrictive bail scheme that had existed in the former Code of Criminal Procedure in order to improve the availability of pretrial release. Since a court may set multiple forms of bail in differing amounts, which, in effect, may be virtually indistinguishable from the cash option, there did not appear to have been a compelling need for the Legislature to authorize a single form of bail. *People ex rel. McManus v Horn*, 18 NY3d 660.

BANKS AND BANKING.

See, also, **BILLS, NOTES AND CHECKS.**

BILLS, NOTES AND CHECKS.

See, also, **BANKS AND BANKING.**

CERTIORARI.

See **PROCEEDING AGAINST BODY OR OFFICER.**

CHIROPRACTORS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

CHURCHES.

See **RELIGIOUS CORPORATIONS AND ASSOCIATIONS.**

CITIES.

See **MUNICIPAL CORPORATIONS.**

CIVIL SERVICE.

See, also, **ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS**, and other specific titles.

COMPENSATION AND BENEFITS.

1. Leave for Ordinary Disability — Procedural Protections.—Petitioners, public employees who each sought to return to work after a voluntary absence but were placed on involuntary leave after they were found unfit to return to duty following a medical examination by a State-affiliated physician, were entitled to the procedural safeguards of Civil Service Law § 72, which includes the opportunity for a hearing once a determination is made to place an employee on involuntary leave. The

CIVIL SERVICE—Cont'd

language of section 72 does not make a distinction between an employee placed on involuntary leave from the job site and one that is placed on such leave from a voluntary absence. The references to the involuntary leave as a “proposed” leave of absence and the language requiring notice of the “proposed date on which such leave is to commence” (Civil Service Law § 72 [1]) do not assume that the employee is currently working, but simply refer to the prospective nature of the involuntary leave. Civil Service Law § 72 (5), which permits the employer to immediately place the employee on involuntary leave when the employee poses a potential danger to the work site, applies whether the employee is actively working or about to return. Further, the remedial purpose of the statute as revealed by the legislative history, which is to afford tenured civil servants with procedural protections prior to involuntary separation from service, applied equally here. To read the statute otherwise would discourage employees from taking voluntary leave. *Matter of Sheeran v New York State Dept. of Transp.*, 18 NY3d 61.

DISCIPLINARY PROCEEDINGS.

2. Disqualification of Ultimate Decision Makers Who Testify at Disciplinary Hearing.—Persons who have testified in a Civil Service Law § 75 disciplinary hearing are required to disqualify themselves from subsequently acting upon any of the charges related to that hearing where their testimony renders them personally involved in the disciplinary process and directly supports or negates the establishment of the charges preferred and where the person is not necessary to effectuate a decision. Accordingly, in a proceeding to review a school board determination terminating petitioner from his position as business manager of the school district, inasmuch as two members of the school board testified at petitioner’s disciplinary hearing concerning the charges levied pursuant to section 75 and became personally involved in the disciplinary process and partial, their disqualification from participating in the ultimate termination decision was necessary. One board member was extensively involved in the disciplinary process and was called to testify in order to sustain a charge the basis of which was petitioner’s communication with her. The other board member testified concerning his knowledge of relevant documents and certain communications with petitioner’s supervisor, thereby demonstrating his personal involvement in the disciplinary process. Moreover, the votes of neither board member were needed to take disciplinary action. *Matter of Baker v Poughkeepsie City School Dist.*, 18 NY3d 714.

RETIREMENT AND PENSION BENEFITS.

3. Accidental Disability Retirement.—A petition seeking to annul a determination of a municipal pension fund’s Board of Trustees denying a line-of-duty accidental disability retirement to petitioner firefighter, who was injured in a firehouse brawl with a fellow firefighter, was properly denied notwithstanding that the Board was deadlocked on the choice between ordinary disability and accidental disability. The denial of accidental retirement on the basis of a tie vote of the Board of Trustees may not be set aside unless it can be determined as a matter of law on the record that the disability was the natural and proximate result of a service-related accident. That was plainly not the case here, where petitioner’s injuries resulted solely from an altercation with a fellow firefighter, rather than his performance of any job duties. *Matter of Walsh v Scoppetta*, 18 NY3d 850.

CLUBS.

See ASSOCIATIONS.

CONDEMNATION.

See EMINENT DOMAIN.

CONSTITUTIONAL LAW.**GIFT OF PUBLIC FUNDS.**

1. Appropriations to Fund Contracts with Private Entities.—Plaintiff taxpayers’ challenge pursuant to article VII, § 8 (1) of the New York State Constitution to ap-

CONSTITUTIONAL LAW—Cont'd

appropriations in the New York State 2008-2009 budget to the State Department of Agriculture and Markets to fund agreements with not-for-profit organizations for the promotion of agricultural products grown or produced in New York, namely apple and grape crops and products, was properly dismissed by Supreme Court. An appropriation that results in funds being given directly by the State to private recipients is valid where it has a predominant public purpose and any private benefit is merely incidental. Here, the very purpose of the Department of Agriculture and Markets is to obtain specialized marketing services to promote a major industry in New York—the agriculture industry—for the overall benefit of the public and the State's competitiveness to foster growth in this important sector of the State's economy. Moreover, the Department is authorized to assist in the promotion and marketing of New York's wine and fruit products. The appropriations at issue here, which provided funding for contracts between the Department and the New York State Apple Growers Association, New York Wine and Grape Foundation and Long Island Wine Council, all fulfilled a predominantly public purpose and were not prohibited under article VII, § 8 (1). *Bordeleau v State of New York*, 18 NY3d 305.

2. Appropriations to Public Benefit Corporations.—Plaintiff taxpayers' challenge pursuant to article VII, § 8 (1) of the New York State Constitution to appropriations in the New York State 2008-2009 budget to defendant public benefit corporation to fund payments to private entities for public development purposes was properly dismissed by Supreme Court. Article VII, § 8 (1) of the State Constitution precludes the State from giving or loaning "money" to private recipients and it more broadly forbids the State from giving or lending its "credit" to private recipients or public corporations. Although the State may not lend its credit to a public corporation, such as defendant, nothing in article VII, § 8 (1) prohibits the State from adopting appropriations directed to such public entities. Because public benefit corporations benefit from a status separate and apart from the State, money passed to public corporations consequently cannot be subject to the article VII, § 8 (1) prohibition against gifting or loaning State money as such money is no longer in the control of the State. *Bordeleau v State of New York*, 18 NY3d 305.

3. Validity of Appropriations That Provide Funds to Private Entities.—In resolving a challenge to an appropriation, whether under article VIII, § 1 or article VII, § 8 (1) of the New York State Constitution, that results in funds being given directly by the State to private recipients, such appropriation will be deemed valid if it has a predominant public purpose and any private benefit is merely incidental. *Murphy v Erie County* (28 NY2d 80 [1971]), not *People v Westchester County Natl. Bank of Peekskill, N.Y.* (231 NY 465 [1921]), provides the appropriate standard for resolving a challenge to such an appropriation. *Bordeleau v State of New York*, 18 NY3d 305.

CONSUMER PROTECTION.**DECEPTIVE ACTS AND PRACTICES.**

1. Automatic Renewal of Lease of Personal Property — Lack of Injury.—In an action arising out of the automatic renewal of a lease for personal property where defendant financial services provider waived all early termination buy-out and collection fees two weeks after plaintiff filed suit, plaintiff's claims under General Business Law § 349 and General Obligations Law §§ 5-901 and 5-903 were properly dismissed since plaintiff had not suffered any harm as a result of defendant's alleged practices. Assuming that an implied private right of action lies pursuant to General Obligations Law §§ 5-901 and 5-903, which require notification prior to the renewal of leases and service contracts for personal property containing automatic renewal provisions, plaintiff did not pay any service termination fees, nor did he pay for services he did not receive; thus, no monetary damages were incurred. Despite the allegation in the complaint that plaintiff's credit rating had been impaired, defendant's concession that the automatic renewal provision clause was rendered unenforceable and waiver of its claims to termination fees ceased any threat of injury. Moreover, plaintiff's General Business Law § 349 claim, relating to deceptive acts and practices, was also correctly dismissed for lack of injury since a prima facie showing requires allegations that defendant was engaged in an act that was decep-

CONSUMER PROTECTION—Cont'd

tive or misleading in a material way and that plaintiff had been injured as a result. *Ovitz v Bloomberg L.P.*, 18 NY3d 753.

2. Automatic Renewal of Lease of Personal Property — Lack of Basis for Equitable Relief.—In an action arising out of the automatic renewal of a lease for personal property where defendant financial services provider waived all early termination buy-out and collection fees two weeks after plaintiff filed suit, the Appellate Division properly dismissed plaintiff's claims for equitable relief. In light of the absence of actual injury and defendant's waiver of its claims for early termination and collection fees, there was neither a justiciable controversy upon which a declaratory judgment could be rendered, nor the irreparable harm necessary for injunctive relief. *Ovitz v Bloomberg L.P.*, 18 NY3d 753.

3. Sale of Wine.—In an action arising out of the purchase of allegedly counterfeit bottles of wine, plaintiff sufficiently pleaded causes of action under General Business Law §§ 349 and 350 and the disclaimers set forth in defendant's catalogs did not bar those claims for deceptive trade practices on a motion to dismiss, as they did not establish a defense as a matter of law. To successfully assert a claim under General Business Law § 349 (h) or § 350, a plaintiff must allege that a defendant has engaged in consumer-oriented conduct that is materially misleading and that plaintiff suffered injury as a result of the allegedly deceptive act or practice. To the extent that the Appellate Division order imposed a reliance requirement on the section 349 and 350 claims, it was error. Justifiable reliance by the plaintiff is not an element of the statutory claim. *Koch v Acker, Merrall & Condit Co.*, 18 NY3d 940.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

BREACH OR PERFORMANCE OF CONTRACT.

1. Lease Assignment Contract — Allocation of Risk.—Under the terms of a 2007 lease assignment contract whereby plaintiff residential developer agreed to purchase defendant tenant's leasehold interest in certain real property, the risk that the City of New York might not approve the assignment under a preexisting Land Distribution Agreement (LDA), which prohibited assignment of the lease before January 2009 without the City's consent, did not entitle plaintiff to terminate the contract. In the contract, the LDA was listed as one of the "Permitted Exceptions" that were excluded from defendant's representation and warranty that it was not "prohibited from consummating" the contract. Thus, the risk that defendant might be "prohibited from consummating" the assignment agreement by the LDA, however great or small, was a risk that plaintiff expressly agreed to take. Furthermore the allocation of risk in the contract did not violate public policy. No public policy prohibited plaintiff from agreeing, as it did, that, if the City thwarted the transaction, defendant could still retain plaintiff's deposit, and plaintiff would be in breach for failure to close. *CPS Operating Co. LLC v Pathmark Stores, Inc.*, 18 NY3d 26.

CONTRACTUAL LIMITATION OF LIABILITY.

2. Burglar Alarm Company — Gross Negligence.—In an action to recover damages for losses incurred during a burglary of plaintiff bank's branch, plaintiff sufficiently alleged conduct on the part of defendant security service contractors that, if true, constituted gross negligence so as to render the exculpatory clauses in the parties' contracts unenforceable as against plaintiff's breach of contract claims. When grossly negligent conduct is invoked to pierce an agreed-upon limitation of liability in a commercial contract, such conduct must smack of intentional wrongdoing and evince a reckless indifference to the rights of others. Here, plaintiff alleged much more than defendants' mere failure to install a proper working alarm system and inspect it. Rather, plaintiff alleged that defendants had knowledge, for weeks, if not months, that the equipment they installed had been malfunctioning, yet failed to investigate the source of their equipment malfunction and failed to put anyone at the branch on notice of the potential security breach. *Abacus Fed. Sav. Bank v ADT Sec. Servs., Inc.*, 18 NY3d 675.

CONTRACTS—Cont'd

3. Burglar Alarm Company — Gross Negligence.—In an action arising out of a burglary of plaintiff bank's branch where plaintiff sufficiently alleged conduct on the part of defendant security service contractors that, if true, constituted gross negligence, and where the contract between the parties did not require the plaintiff to obtain insurance to cover losses stemming from defendant's gross negligence, a breach of contract cause of action against defendant was reinstated providing a basis for plaintiff's recovery for its own losses. The decision to obtain insurance, if any, was discretionary as to plaintiff, and the contract did not contain an express waiver by plaintiff to waive all rights for damages covered by insurance it may have obtained as against defendant. However, the complaint as pleaded failed to allege sufficient facts to confer standing on plaintiff to pursue the losses allegedly sustained by its safe deposit box customers. *Abacus Fed. Sav. Bank v ADT Sec. Servs., Inc.*, 18 NY3d 675.

CORPORATIONS.

FOREIGN CORPORATION.

1. Liability for Unpaid Wages.—The trial court properly dismissed an action by a former employee as against three shareholders of plaintiff's out-of-state corporate employer to recover unpaid wages pursuant to Business Corporation Law § 630. The plain language and history of section 630 and other relevant portions of the Business Corporation Law reveal that section applies only to domestic corporations, and not to foreign corporations. *Stuto v Kerber*, 18 NY3d 909.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COUNTY EXECUTIVE.

1. Authority to Terminate Commissioners of Nassau County Assessment Review Commission.—Respondent County Executive of Nassau County did not have the authority to terminate petitioner commissioners of the Nassau County Assessment Review Commission (ARC) in the absence of cause, prior to the expiration of their fixed, statutory terms. The ARC, established for the purpose of reviewing and correcting real property assessments, is comprised of nine commissioners who are appointed by the County Executive subject to approval by the County Legislature (*see* RPTL 523-b). The commissioners have staggered five-year terms and no more than six of the commissioners can be enrolled voters of the same political party. Although RPTL 523-b does not set forth any procedure for the removal of commissioners, the statute demonstrates the legislative intent to protect the ARC from political influence. Nassau County Charter § 203 (1), which vests the County Executive with authority to appoint members of county boards and commissions, subject to approval of the County Legislature, and concomitantly remove any person so appointed, must be read in light of the purposes of RPTL 523-b. Nassau County Charter § 203 (1) refers specifically to "members of . . . commissions appointed for definite terms," and makes clear that, when those members are removed, "reasons for such removal" must be provided. "Reasons," in this context, can reasonably be read as a synonym for "cause": thus, section 203 permits removal of commissioners serving fixed terms for cause, but not otherwise. RPTL 523-b and Nassau County Charter § 203 are not incompatible and must be read together to accomplish the clear legislative intent. *Matter of Sedacca v Mangano*, 18 NY3d 609.

DEFENSE AND INDEMNIFICATION OF EMPLOYEE.

2. Petitioner commissioners of the Nassau County Assessment Review Commission (ARC) were not entitled to attorneys' fees incurred for their independently retained private counsel in their combined declaratory judgment action/CPLR article 78 proceeding seeking an order declaring that respondent County Executive of Nassau County did not have the power to remove the ARC commissioners during their terms absent cause and enjoining respondents from taking any such action. The County of Nassau is required to "provide for the defense" of an employee involved in a civil action arising out of an act or omission that occurred during the

COUNTIES—Cont'd

scope of his or her employment (*see* Nassau County Administrative Code § 22-2.8 [2] [a]). Where, as here, the employees commenced the action, there is no obligation on the part of the County to pay for their “defense.” Nor does the Administrative Code otherwise obligate the County to bear responsibility for petitioners’ legal fees. *Matter of Sedacca v Mangano*, 18 NY3d 609.

COURT OF CLAIMS.

See STATE.

COURTS.**COURT OF APPEALS.**

1. Certified Question — Denial of Certification.—The Court of Appeals denied a motion by counsel for appellant for permission to withdraw from representation of that party and, upon its own motion, reconsidered an order accepting certification of a question by the United States Court of Appeals for the Second Circuit and, upon reconsideration, declined to accept certification. Further consideration by the Court of Appeals was not warranted in light of appellant’s unwillingness to participate in the certified question or to further prosecute the appeal in the Second Circuit, as evidenced by its motion to withdraw the appeal in that court, and by the apparent disintegration of the attorney-client relationship between appellant and its counsel. *Joseph v Athanasopoulos*, 18 NY3d 946.

JURISDICTION.

2. Long-Arm Jurisdiction — Defamation.—In an action alleging that defendants, an Ohio organization devoted to the protection of collies and its president, a Vermont resident, published defamatory statements on the organization’s Web site addressing the condition and treatment of certain rescued collies at one of plaintiff’s facilities, defendants did not transact business in New York within the meaning of CPLR 302 (a) (1) so as to warrant a finding of long-arm jurisdiction. Although defamation claims may proceed against non-domiciliaries who transact business in New York and thereby satisfy the requirements of CPLR 302 (a) (1), such claims cannot form the basis for “tortious act” jurisdiction due to the express statutory exceptions set forth in CPLR 302 (a) (2) and (3). Given this manifestation of the Legislature’s intention to treat defamation differently from other causes of action, particular care must be taken to make certain that non-domiciliaries are not haled into court in a manner that potentially chills free speech without an appropriate showing that they purposefully transacted business here and that the proper nexus exists between the transaction and the defamatory statements at issue. Here, defendants’ activities in New York, which consisted of defendant president’s three phone calls and two brief visits to plaintiff’s facility, totaling less than three hours, in addition to a donation of cash and leashes, were quite limited and did not constitute purposeful activities related to the defamation claim. Importantly, the allegedly defamatory statements were not written in or directed to New York, and they were posted on a medium that was equally accessible in any jurisdiction. Further, there was no substantial relationship between the statements and defendants’ New York activities. Defendant president did not visit New York in order to generate material to publish on the organization’s Web site. Rather, defendants’ activities were limited to helping provide financial and medical assistance for the rescued dogs. *SPCA of Upstate N.Y., Inc. v American Working Collie Assn.*, 18 NY3d 400.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

APPEAL.

1. Preservation of Issue for Review — Challenge to Jury Charge.—In the first-degree robbery prosecution of defendant, a paid informant for the Drug Enforce-

CRIMES—Cont'd

ment Administration who participated in an unauthorized break-in but told police that he was trying to stop the robbery, defendant's challenge to the trial court's failure to instruct the jury on the statutory definitions of the terms "deprive" and "appropriate" as they related to the meaning of larcenous intent was preserved for review. In order to preserve for appellate review a claim of error in a charge to the jury, a defendant must make his or her position known to the court and the argument must be specifically directed at the alleged error (*see* CPL 470.05 [2]). At trial, the jurors sent several notes to the court indicating that they were having difficulty resolving whether the defendant had the requisite larcenous intent, defined in Penal Law § 155.05 (1) as the "intent to deprive another of property or to appropriate the same to himself or to a third person." Defendant's counsel expressed concern that the jury might not understand the meaning of the phrase "[a]ppropriated for himself" and requested a particular charge as to intent with regard to that phrase, which the court rejected. That was sufficient to preserve the issue for review because the definition of the term went directly to the question of the permanency of the taking and the requisite intent. *People v Medina*, 18 NY3d 98.

2. Preservation of Issue for Review — Refusal to Give Missing Witness Charge.—In a prosecution arising out of the robbery of a store, the defendant did not preserve for appellate review the trial court's error in refusing to give a missing witness instruction. Defendant expressly withdrew his request for a missing witness instruction in return for an opportunity to interview the witnesses in question. In addition, he was allowed to make a missing witness argument in summation without interruption or comment. *People v Hall*, 18 NY3d 122.

3. Waiver of Right to Appeal.—The record did not sufficiently demonstrate that defendant, who had a history of mental illness and signed a written waiver of the right to appeal in connection with his guilty plea, validly waived his right to appeal because Supreme Court failed to ensure that defendant grasped the minimal information pertaining to the appeal waiver it provided during the plea colloquy. When asked by Supreme Court during his plea allocution whether he understood that he was waiving his right to appeal, defendant answered by simply asking about the mandatory fees associated with his guilty plea. Supreme Court neither confirmed whether defendant comprehended its terse explanation of the nature of the appeal waiver nor mentioned that defendant possessed an inherent right to appeal a judgment of conviction and sentence. Right before it adjourned the case for sentencing, Supreme Court simply asked whether the written waiver of the right to appeal had been signed, and did not inquire of defendant whether he understood the written waiver or whether he had even read the waiver before signing it. Supreme Court should have assured itself that defendant adequately understood the right that he was forgoing, and the absence of such inquiry was particularly troubling given defendant's background and history of mental illness, including defendant's submission to four CPL article 730 examinations ordered by Supreme Court in the nearly four years between defendant's indictment and his guilty plea. Those circumstances, combined with the knowledge that defendant was a first-time felony offender who had been ordered to submit to article 730 examinations in two other counties, should have alerted Supreme Court not only to give defendant a thorough explanation of the appeal waiver but also to make sure that defendant fully grasped the nature of this fundamental right that he was forgoing. *People v Bradshaw*, 18 NY3d 257.

4. Matters Appealable.—In a criminal prosecution, the People's appeal from a portion of an Appellate Division order reversing the court below and granting a motion to suppress seized evidence was dismissed as it could not be said that the reversal was "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]). The Appellate Division rejected the People's assertion that there was probable cause to believe that defendant committed attempted criminal impersonation in the second degree, and further concluded that the facts did not provide probable cause to arrest defendant for criminal possession of stolen property because he was taken into custody before the officers learned that another person's driver's license in defendant's possession had been reported missing. *People v Omowale*, 18 NY3d 825.

CRIMES—Cont'd

5. Matters Reviewable.—The determination of the Appellate Division, that the police reasonably could have concluded that a weapon was located in defendant's vehicle during a traffic stop and that the situation presented an actual and specific danger to the safety of the officers, was a mixed question of law and fact for which there was support in the record and was therefore beyond further review in the Court of Appeals. *People v Omowale*, 18 NY3d 825.

6. Matters Reviewable.—An appeal from an order of the Appellate Division, which reversed an order granting defendant's motion to suppress evidence, was dismissed by the Court of Appeals upon the ground that the reversal by the Appellate Division was not on the law alone within the meaning of CPL 450.90 (2) (a). The Appellate Division's reversal, while termed "on the law," was actually predicated upon a differing view concerning the issue of attenuation, which was a mixed question of law and fact, and a reversal on a mixed question typically does not meet the requisites of the statute. *People v Holland*, 18 NY3d 840.

7. Review Power of Appellate Courts.—On appeal from a judgment convicting defendant of criminal possession of a controlled substance in the third degree, the Appellate Division erroneously resolved defendant's suppression application on a theory not reached by the suppression court without addressing the validity of Supreme Court's rationale. CPL 470.15 (1) precludes the Appellate Division from reviewing an issue that was either decided in an appellant's favor or was not decided by the trial court, and, in an appeal from an Appellate Division affirmance, CPL 470.35 (1) grants the Court of Appeals no broader review power than that possessed by the Appellate Division. Accordingly the Appellate Division order was reversed and the matter remitted to Supreme Court. *People v Ingram*, 18 NY3d 948.

8. Dismissal.—An appeal from an order of the Appellate Division, which, among other things, reversed an order granting defendant's motion to suppress evidence, was dismissed by the Court of Appeals upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]). *People v Bowden*, 18 NY3d 980.

ARREST.

9. Probable Cause.—In a prosecution for rape and related crimes, Supreme Court should have suppressed testimony concerning complainant's identification of defendant in a lineup since the People did not meet their burden in establishing probable cause for defendant's arrest. *People v Bradshaw*, 18 NY3d 257.

ASSAULT.

10. Intent to Prevent Emergency Medical Technician from Performing Lawful Duty.—In a prosecution for second-degree assault under Penal Law § 120.05 (3) and another crime, the evidence was legally sufficient to establish that defendant acted "[w]ith intent to prevent" an emergency medical technician (EMT) "from performing a lawful duty" when he caused an EMT to suffer physical injury since the People made out a prima facie case of intent by presenting evidence that defendant attacked someone he had reason to know was an EMT on duty at the time. Here, defendant attacked and repeatedly pummeled a uniformed EMT who was attempting to enter his ambulance after having treated a person in response to a call for assistance. Under section 120.05 (3), a defendant need not intend to prevent an EMT from performing a specific task. The jurors might have logically concluded that the victim was performing the routine job duties of an EMT in a lawful manner when he attempted to leave premises where he had furnished medical assistance, whether he was then on his way to another call or to his home base at the hospital. The People were not required to prove that defendant intended to injure the victim; however, the ferocity and persistence of his attack might have reasonably caused the jurors to decide that he intended to interfere with the victim's performance of his duties as an EMT. In fact, the victim was unable to return to work for three weeks after the assault. A jury is entitled to infer that a defendant intended the natural and probable consequences of his acts. The element of intent is rarely proved by an explicit expression of culpability by the perpetrator, and competing

CRIMES—Cont'd

inferences to be drawn regarding the defendant's intent, if not unreasonable, are within the exclusive domain of the finders of fact. *People v Bueno*, 18 NY3d 160.

11. Serious Physical Injury — Pain.—Defendant's conviction for first degree assault was reduced to second degree assault since there was a failure to show that the victim, who received numerous blows with a sharp instrument, suffered "protracted impairment of health" so as to constitute serious physical injury within the meaning of Penal Law § 120.10 (1) and § 10.00 (10). While the victim complained of daily pain attributable to his healing scars, there was no basis for the jury reasonably to conclude that those sensations, discomfiting as they may have been, were indicative of or causally related to any protracted health impairment, and there was no medical evidence of an injury even potentially giving rise to extended health impairment. Although it may be possible for pain itself to be disabling and result in protracted impairment of health, there was no evidence that the pain complained of by the victim was so severe as to have had that effect, as he did not, for example, testify as to his pain's severity or his need to resort to palliative measures. *People v Stewart*, 18 NY3d 831.

12. Serious Physical Injury — Superficial Wounds.—Defendant's conviction for first degree assault was reduced to second degree assault where the victim's injuries, sustained after receiving numerous blows with a sharp instrument, were not shown to be objectively distressing or objectionable so as to justify the conclusion that they constituted "serious . . . disfigurement" qualifying as a serious physical injury predicate for first degree assault under Penal Law § 120.10 (1) and § 10.00 (10). The victim's injuries were described in their most acute aspect by the treating emergency room physician as "superficial," with no organ damage or injury to muscle tissue being radiologically evident. Three of the victim's four wounds required only gauze dressing, and, while the remaining six-to-seven-centimeter wound on the victim's inner forearm was sutured, the victim spent just one day in the hospital without follow-up medical care, apart from the removal of his stitches. *People v Stewart*, 18 NY3d 831.

ATTEMPT.

13. Rape — Sufficiency of Evidence.—In a prosecution arising out of an attack on a female civilian prison employee, the trial court erred in dismissing the conviction for attempted rape in the first degree upon defendant's motion for a trial order of dismissal since the evidence of attempted rape was legally sufficient. A verdict is legally sufficient when, viewing the facts in a light most favorable to the People, there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt. There was evidence that, before the attack, defendant was seen lurking in an alleyway that civilian employees often walked along; that he attacked a female victim in an otherwise empty corridor; that he brought items that could be used to silence and restrain a person; that he tried to incapacitate his victim; that he spoke to his victim but did not ask her to help him escape from the prison or direct her to do anything other than be quiet; and that he forced his victim to the floor. The jury also heard evidence from which it could infer that defendant ejaculated before he fled the scene. Moreover, the evidence was sufficient to show that defendant came dangerously near commission of the completed crime where there was testimony that defendant had straddled his gagged victim, and was in the process of binding her hands, when he was disturbed by another person's appearance in the corridor. Although there was no evidence that the assailant had disrobed or had touched the victim's "private parts," a rational jury could have concluded that the attack was carried forward to a point that came within dangerous proximity to forcible sexual intercourse. *People v Clyde*, 18 NY3d 145.

CONTROLLED SUBSTANCES.

14. Possession of Marihuana — Automobile as "Public Place".—An information charging defendant with criminal possession of marihuana in the fifth degree (Penal Law § 221.10 [1]) for possession of marihuana while in his vehicle on a public street adequately alleged the element of that crime requiring possession in a "public place." The definition of "public place" was incorporated by reference from Penal

CRIMES—Cont'd

Law § 240.00 (1), which includes “highways” as public places. That defendant was in his personal automobile did not alter the fact that he was on a highway and, therefore, in a public place when he was seen in possession of marihuana. The question is not whether a person’s automobile is “public” or “private” but whether defendant was in a public place when he was in his car on the street. A driver of a personal automobile will be in a public place only when the vehicle is in a location that qualifies under the statute as a public place. In contrast, by defining certain vehicles used for public transportation—such as a bus—as themselves constituting “public places,” the Legislature made the location of those vehicles at the time of the crime irrelevant; they are “public places” whether they are being driven on a highway or are parked in a private parking lot. *People v Jackson*, 18 NY3d 738.

15. Possession of Marihuana — Marihuana “Open to Public View.”—An information charging defendant with criminal possession of marihuana in the fifth degree (Penal Law § 221.10 [1]), alleging that a police officer observed the defendant holding a quantity of marihuana in his hand while defendant was in his vehicle on a public street, included sufficient nonconclusory allegations relating to the element of the crime requiring the marihuana to be burning or open to public view. A determination that a particular item is “open to public view,” a term that is not specifically defined, does not require the exercise of professional skill or experience on the part of a police officer warranting a specialized explanation. Thus, the basis for such an allegation could be discerned by drawing reasonable inferences from all the facts set forth in the accusatory instrument. Here, the accusatory instrument alleged that, upon approaching the vehicle, the officer “smelled a strong odor of marihuana emanating from inside . . . the vehicle” and “observed the defendant holding a quantity of marihuana in [his] hand, open to public view.” Additional allegations indicated that the contraband was in a ziplock bag. Although the officer did not describe the precise location of defendant’s hand, since she was standing outside the vehicle when she saw the substance in the ziplock bag, those allegations supported the inference that any other member of the public could also have seen the marihuana from the same vantage point—meaning that the marihuana was in an unconcealed area of the vehicle that would have been visible to a passerby or other motorist. *People v Jackson*, 18 NY3d 738.

EVIDENCE.

16. Third-Party Culpability.—In the murder prosecution of defendant for fatally shooting his upstairs neighbors in their apartment, Supreme Court’s determination that defendant’s purported third-party culpability evidence demonstrating that there were other potential perpetrators who had a motive to do violence to one of the victims would be entirely speculative and its subsequent preclusion was a proper exercise of Supreme Court’s discretion. Defendant failed to establish a nexus between an earlier beating where the victim had been assaulted and the shooting here. That the People introduced evidence establishing defendant’s motive for the shootings did not open the door to generalized, speculative evidence of possible motives by unidentifiable persons. *People v Gamble*, 18 NY3d 386.

FAIR TRIAL.

17. Bolstering Victim’s Testimony — Harmless Error.—In a prosecution in which defendant was accused of committing sex crimes against his then seven-year-old daughter, the defendant was not deprived of a fair trial where a police investigator and a caseworker opined that the victim was credible. Although that type of testimony was improper, the trial court sustained an objection before the investigator answered, no curative instruction was requested, and the court subsequently directed the jury to disregard such impermissible testimony. Defense counsel opened the door to the prosecutor asking certain questions about the caseworker’s ability to gauge the victim’s veracity, but arguably not so wide as to allow the caseworker to state his ultimate conclusion regarding the victim’s credibility. Nevertheless, the error was harmless because there was no significant probability that the jury would have acquitted defendant if the caseworker had not provided the opinion testimony. *People v Guay*, 18 NY3d 16.

18. Impact of Courtroom Seating Arrangements.—The positioning of court officers directly behind defendant during the course of his criminal trial did not deprive

CRIMES—Cont'd

defendant of his right to a fair trial. The discretion afforded to trial courts to control their courtrooms and trial proceedings necessarily includes decisions pertaining to courtroom security. Here, defendant had been charged with a disciplinary infraction for allegedly assaulting a correction officer and had acted aggressively in court during the pendency of this case before a different judge. Those undisputed record facts allowed Supreme Court in the exercise of its discretion to permit the court officers to sit directly behind defendant with their toes placed on the back of his chair. There was no basis in the record for a finding that this security measure telegraphed to the jury that defendant was a dangerous individual. Moreover, the additional security measures sanctioned by Supreme Court were, at most, only minimally intrusive. *People v Gamble*, 18 NY3d 386.

HARMLESS AND PREJUDICIAL ERROR.

19. Refusal to Give Missing Witness Charge.—In a prosecution arising out of the robbery of a store, the trial court's error in refusing to give a missing witness instruction was harmless. Defendant's participation in the robbery was recorded on videotape where he was seen in front of the store during the robbery, looking around, observing the clash between the store owner and the man identified as his codefendant, and then grabbing and holding the owner while another accomplice punched him. Moreover, defendant testified in his own defense, and did not deny that he was the person on the videotape, offering instead a ridiculous explanation: making himself first an innocent bystander and then a good Samaritan, trying to protect one of the robbers against the store owner's aggression. The evidence against defendant was overwhelming, and it was impossible to imagine that a missing witness charge, or different rulings on the closing arguments, would have persuaded a jury to acquit him. *People v Hall*, 18 NY3d 122.

20. Improper Expert Testimony.—In a prosecution for attempted rape, assault, and other crimes, it was harmless error for the trial court to permit two physicians to present expert testimony as to their conclusions regarding whether the victims' injuries met the definition of "physical injury" and whether the attack on the female victim created a risk of "serious physical injury." The trial court improperly allowed physicians testifying for the prosecution to state their conclusions regarding the victims' injuries, because those conclusions, in the context of statutory interpretation, were for the jury to draw. Admissibility turns on whether, given the nature of the subject, the facts cannot be stated or described to the jurors in such a manner as to enable them to form an accurate judgment. Therefore, inasmuch as the facts that underlie physical injury and risk of serious physical injury can readily be stated to a jury so as to enable the jurors to form an accurate judgment concerning the elements of assault and unlawful imprisonment, it was error to permit the expert testimony. Here, however, the evidence that defendant assaulted the female victim and a witness, and unlawfully imprisoned the former, was overwhelming. Moreover, there was no significant probability that the jury's verdict on these counts would have been different had it been required to draw its own conclusions with regard to the extent of the two victims' injuries. *People v Clyde*, 18 NY3d 145.

21. Shackling of Defendant.—In a prosecution for attempted rape and other crimes in which defendant was convicted of assault in the second degree, unlawful imprisonment in the first degree and promoting prison contraband in the first degree, the trial court's order to have defendant wear visible shackles during the trial was harmless error. Since the trial court did not place on the record its reasons for considering leg irons necessary, the use of the shackles was a violation of defendant's federal constitutional rights under *Deck v Missouri* (544 US 622 [2005]). However, as a matter of federal law, harmless error analysis applies to shackling errors and under New York State constitutional law the result would be the same. Under *Deck*, the burden is on the State to prove beyond a reasonable doubt that a shackling error did not contribute to the verdict obtained. Here, the proof of defendant's guilt was overwhelming and there was no reasonable possibility that the jury would have acquitted him were it not for the shackling error. In particular, DNA evidence and a witness's identification placed defendant at the crime scene, and articles left behind by the perpetrator when he fled matched items in

CRIMES—Cont'd

defendant's single-occupancy cell. Furthermore, the jury, faced with a defendant accused of assaulting and/or attempting to rape a civilian while incarcerated, was more likely to conclude that the defendant was shackled as a precaution, because of the nature of the crimes charged, than to conclude that the defendant was shackled because he was independently known to be dangerous. Accordingly, the shackling error was harmless. *People v Clyde*, 18 NY3d 145.

22. Expert Testimony.—In an arson prosecution, although it could be argued that the admission of expert testimony from a battalion chief and two fire marshals ruling out accidental and natural causes and concluding that one of the fires at issue was intentionally set was largely unnecessary since the evidence, apart from the expert testimony, conclusively established that the fires were intentionally set, any error in the admission of such testimony was harmless. The evidence of defendant's guilt was overwhelming and there was no significant probability that the jury would have acquitted defendant without the expert testimony. *People v Rivers*, 18 NY3d 222.

23. Violation of *Molineux* Rulings.—In an arson prosecution arising from two fires set in an apartment building during which the prosecution concededly elicited testimony in violation of the trial court's *Molineux* rulings (see *People v Molineux*, 168 NY 264 [1901]), the testimony elicited, on the whole, was not significant and, in any event, to the extent any evidence subject to the trial court's *Molineux* rulings was improperly admitted, such error was harmless. Although the prosecutor elicited evidence of an uncharged arson attempt and evidence linking defendant to violence, guns, the Nation of Islam, and a violent motorcycle gang, allegedly in violation of the trial court's *Molineux* rulings, if defendant was prejudiced at all, such prejudice was minimal. When defendant moved for a mistrial, the trial court instructed the prosecutor to refrain from making statements regarding improper topics and also took steps to minimize the impact upon the jury of arguably improper testimony or prosecutorial statements. Moreover, since the evidence against defendant, including his own taped admissions and testimony of the individual who set the first fire at defendant's behest, overwhelmingly established defendant's guilt, and since there was no reasonable possibility or significant probability that the improper questions and elicited references to defendant's bad acts and negative associations affected the guilty verdict, any *Molineux* error was harmless. *People v Rivers*, 18 NY3d 222.

24. Admission of Refusal to Submit to Chemical Test.—In a prosecution for driving while intoxicated that resulted in defendant's conviction of the lesser included offense of driving while ability impaired (DWAI), the trial court's error in permitting the People to introduce, as proof of consciousness of guilt, evidence of defendant's refusal to submit to a chemical breath test to determine his blood alcohol content was not harmless. The trial court, which acted as the finder of fact, indicated in its decision that it was the consciousness of guilt evidence, coupled with defendant's performance on field sobriety tests and the odor of alcohol, that led to the DWAI conviction. Moreover, in response to a post-trial motion to set aside the verdict, the trial court characterized the proof on the DWAI charge as presenting a fairly close question. Thus, the trial court clearly relied on the erroneously admitted consciousness of guilt evidence. *People v Smith*, 18 NY3d 544.

HEALTH CARE FRAUD.

25. Sufficiency of Evidence.—In a prosecution for health care fraud in the fourth degree (see Penal Law §§ 177.05, 177.10) and grand larceny in the third degree, the People presented legally sufficient evidence for a jury to rationally conclude that pills dispensed by defendant to an undercover officer on multiple occasions were different from the drugs listed on the prescriptions presented by the officer to defendant, and that defendant knowingly and willfully provided materially false information to Medicaid, as to at least the dispensed medications, thereby wrongfully obtaining more than \$3,000. On one occasion, there was evidence that the officer entered defendant's pharmacy with a prescription for a relatively inexpensive medication, asked for "the usual pills," and defendant handed him a different quantity of pills than prescribed. Viewing the evidence—the officer's request for medicine other than that which was prescribed; the discrepancy between the number

CRIMES—Cont'd

of pills in the prescription and the number of pills defendant actually gave to the officer; and the whole course of dealing between defendant and the officer, in which defendant over a period of months consistently gave the officer what he asked for, rather than what was prescribed—in the light most favorable to the People, a jury could reasonably infer that the pills were not those which had been prescribed, that the officer's fictitious wife, for whom the medication was prescribed, would not be the recipient of the medication, and therefore that defendant knowingly and willfully provided materially false information to Medicaid. *People v Khan*, 18 NY3d 535.

IDENTIFICATION OF DEFENDANT.

26. Suggestive Identification Procedure.—In the prosecution of defendant for first-degree robbery and related charges, the trial court erred when it denied defendant's motion to reopen the *Wade* hearing on defendant's pretrial motion to suppress the victim's identifications of defendant after the victim's son, who had acted as translator for the victim while the victim viewed a photographic array, testified at trial that he had known defendant for "[a] long time" prior to the robbery. Although the suppression court had been troubled by the son's role at the identification procedure the court ultimately concluded that suppression was not warranted because the son had informed the investigating detective before trial that he did not know defendant. The son's trial testimony, however, fatally undermined the suppression court's rationale for denying that motion. The son's significant revelation at trial considerably strengthened defendant's suggestiveness claim when viewed in conjunction with other relevant facts: the detective acted on unspecified neighborhood gossip regarding the robber's name and history based on information provided by the son; the detective was apparently concerned about the son's possible preexisting familiarity with defendant and broached the topic before the photo array was conducted; the detective either was or should have been aware of the substantial risk that the son was familiar with defendant despite the son's assurance to the contrary; there was no apparent impediment to the detective utilizing a Spanish interpreter who did not have preexisting information about the possible perpetrator or a familial connection to the victim; and the detective could not be reasonably sure that the son would accurately translate the conversation. The suggestiveness could not be attributed to the victim's son, but to the detective's decision to utilize the son as the interpreter notwithstanding the possible risks that were involved in that practice. Moreover, defendant could not have discovered, before the suppression court ruled on the motion, the true extent of the son's familiarity with defendant or what the son misrepresented to the police (*see* CPL 710.40 [4]). *People v Delamota*, 18 NY3d 107.

INDICTMENT.

27. Dismissal of Count Over Defendant's Objection — Abolition of Nolle Prosequi.—A prosecutor does not have the unilateral power to dismiss a count of a grand jury indictment over a defendant's objection; whether such a count should be dismissed at the prosecutor's request is an issue to be decided by the court in its discretion. Thus, where, following the indictment and conviction of defendant for first degree assault and first degree vehicular assault, a new trial was ordered, the court erred at the new trial in allowing the prosecutor to withdraw the first degree vehicular assault charge, determining that the prosecutor had that authority. At early common law the power to dismiss a count of an indictment was the prosecutor's alone, by nolle prosequi. However, nolle prosequi was abolished in 1881 and the power to dismiss was transferred from the prosecutor to the judge. Although the provision of the Code of Criminal Procedure specifically abolishing nolle prosequi was not carried forward into the Criminal Procedure Law, the omission in the new statute did not restore to prosecutors their former unilateral authority. Rather, the omission was more likely to mean that the Legislature thought it unnecessary to say in 1970 that the nolle prosequi power was "abolished" when it had been nonexistent for 89 years. Accordingly, the prosecutor could not, at her own discretion, choose not to proceed with the first degree vehicular assault count of the indictment since the issue was one for the trial court's discretion. *People v Extale*, 18 NY3d 690.

CRIMES—Cont'd**INFORMATION.**

28. Challenge to Sufficiency.—Defendant, who had waived his right to be prosecuted by a misdemeanor information, could nevertheless challenge the validity of the accusatory instrument on jurisdictional grounds because a valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite to a criminal prosecution. *People v Hightower*, 18 NY3d 249.

29. Jurisdictional Validity.—In evaluating the jurisdictional validity of an accusatory instrument, the distinction between jurisdictional and nonjurisdictional defects is between defects implicating the integrity of the process and less fundamental flaws, such as evidentiary or technical matters. A violation of the requirement that the factual portion of a misdemeanor information must provide reasonable cause to believe that defendant committed the offense charged in the accusatory part of the instrument falls into the first category. *People v Hightower*, 18 NY3d 249.

INSTRUCTIONS.

30. Failure to Instruct Jury on Statutory Definitions of “Deprive” and “Appropriate” with Respect to Larcenous Intent.—In the first-degree robbery prosecution of defendant, a paid informant for the Drug Enforcement Administration who participated in an unauthorized break-in but told police that he was trying to stop the robbery, the trial court’s failure to instruct the jury on the statutory definitions of the terms “deprive” and “appropriate” as they related to the meaning of larcenous intent constituted reversible error. In order to sustain a conviction for robbery in the first degree the People were required to establish that defendant had larcenous intent, defined as the “intent to deprive another of property or to appropriate the same to himself or to a third person” (Penal Law § 155.05 [1]). At the heart of the intent issue here was whether defendant intended to permanently deprive the victims of the property taken from them. Given the omission of the definition of “appropriate” and/or “deprive,” the instruction did not adequately convey the meaning of intent to the jury and instead created a great likelihood of confusion such that the degree of precision required for a jury charge was not met. During deliberations, the jurors sent several notes to the court indicating that they were having difficulty resolving whether the defendant had the requisite larcenous intent. Under the circumstances present here, including the defendant’s unusual behavior during the crime and the jury notes evincing its confusion concerning the meaning of intent, the error was not harmless. *People v Medina*, 18 NY3d 98.

31. Verdict Sheet — Instruction Regarding Burden of Proof.—In the prosecution of defendant for second-degree murder and related crimes, it was reversible error for the trial court to submit a verdict sheet to the jury that stated “Has the Defendant established by a *preponderance of the evidence* that he acted under Extreme Emotional Disturbance?,” as the instruction regarding defendant’s burden of proof on the affirmative defense of extreme emotional disturbance was not authorized by CPL 310.20 (2). Although CPL 310.20 (2), as amended in 1996, permits a verdict sheet to include “the dates, names of complainants or specific statutory language . . . by which the counts may be distinguished,” the court here added not “statutory language . . . by which the counts may be distinguished,” but an instruction on burden of proof. That instruction was not permitted by CPL 310.20 (2). Nor did the 1996 amendment to the statute permit the use of harmless error analysis where, as here, a verdict sheet contains annotations not authorized by the statute. *People v Miller*, 18 NY3d 704.

32. Verdict Sheet — Reversible Error.—The holding of *People v Spivey* (81 NY2d 356, 361-362 [1993]) and *People v Damiano* (87 NY2d 477 [1996]), that it is reversible error, not subject to harmless error analysis, to provide a jury in a criminal case with a verdict sheet that contains annotations not authorized by CPL 310.20 (2), remains unchanged notwithstanding the 1996 amendment to the statute expanding what is permitted in the verdict sheet and the Governor’s memorandum approving that amendment which stated that “any erroneous verdict sheet notations will be subject to harmless error analysis.” Legislative history cannot supply something that is just not in the statute and the 1996 amendments left intact the holding of

CRIMES—Cont'd

Damiano that harmless error analysis cannot be applied where a verdict sheet exceeds the limitations that CPL 310.20 (2) imposes. Although the relevant legislative history indicates that harmless error analysis would apply to notations on verdict sheets beyond what was permitted by the newly amended statute, there is no language to that effect in the statute. Had the Legislature intended harmless error analysis to be applied, it had only to say so. *People v Miller*, 18 NY3d 704.

JURORS.

33. Challenge to Jury — Hearing Impaired Juror.—In a prosecution in which defendant was accused of committing sex crimes against his then seven-year-old daughter, the trial court did not abuse its discretion when it dismissed a hearing-impaired prospective juror for cause because the record supported the determination that the prospective juror's hearing impairment would have unduly interfered with his ability to be a trial juror. It was readily apparent to the court and the parties that the panelist had trouble hearing the precise questions posed, and despite his remark that he would not have difficulty if he remained in the front of the jury box, the court observed the venire member during voir dire and apparently noticed that the prospective juror's body language demonstrated that he was not comprehending everything that was happening. In addition, the court expressed its concern that the hearing impairment was likely to be more problematic here because, in its experience, child witnesses tended to be more soft-spoken than adults. Defense counsel did not contest any of those conclusions. Moreover, it was significant that, aside from the panelist's own suggestion that he remain in the front row, the court was not asked to offer any other reasonable accommodation that may have adequately assuaged the concerns about the prospective juror's ability to understand the proceedings and fulfill the functions of a trial juror. While in the absence of some suggestion for reasonably addressing the concerns about the prospective juror the trial court could not be faulted for failing to order an accommodation *sua sponte*, a better course would have been for the court to take steps on its own accord to inquire about the prospective juror's auditory limitations and discuss possible accommodation. *People v Guay*, 18 NY3d 16.

34. Challenge to Jury — Prospective Juror's Familiarity with Potential Witnesses.—In a criminal prosecution, the trial court abused its discretion as a matter of law when it denied defendant's for-cause challenge to a prospective juror who had personal and professional relationships with several of the witnesses expected to testify at defendant's trial. The familiarity of the prospective juror, the wife of a local police captain, with numerous potential witnesses satisfied the implied bias standard under CPL 270.20 (1) (c), necessitating her removal for cause. Not only had the captain assigned the investigation to a particular detective sergeant, but more significantly, the prospective juror forthrightly disclosed that she knew eight of the witnesses (seven police officers and an assistant district attorney) who were to testify at trial—more than half of the People's potential witnesses—and had frequent professional and social relationships with at least two of the police officers. Although the prospective juror offered unequivocal assurances of impartiality, those declarations were ineffective because there was a considerable risk that she could unwittingly give undue credence to the witnesses she knew, and her service would give rise to the perception that defendant did not receive a fair trial. *People v Furey*, 18 NY3d 284.

LARCENY.

35. Improper Use of Unlimited Access Subway Pass.—A petit larceny charge in an accusatory instrument alleging that defendant, in exchange for money, swiped an unlimited-ride pass card thereby allowing an unidentified person to pass through a subway turnstile was jurisdictionally defective. Although the misdemeanor information described defendant's acts with enough clarity to provide reasonable cause to believe that defendant engaged in the unlawful sale of transportation authority services and provided unlawful access to those services, there was no basis upon which the petit larceny charge in the accusatory instrument could be upheld. To be guilty of larceny, a person must, with intent to deprive, wrongfully take, obtain or withhold property, i.e., any thing of value, from an owner thereof, i.e., someone with a

CRIMES—Cont'd

right of possession superior to that of the taker, obtainer or withholder. The transportation authority was not deprived of the money that defendant accepted from the actual rider because it never owned those funds. The money in question could have been due and owing to the authority, but the authority never acquired a sufficient interest in the money to become an “owner” thereof within the meaning of Penal Law § 155.00 (5). *People v Hightower*, 18 NY3d 249.

PLEA OF GUILTY.

36. Forfeiture of Right to Raise Issues on Appeal — Jurisdictional Sufficiency of Accusatory Instrument.—Defendant forfeited most appellate claims by pleading guilty to fifth-degree criminal possession of marihuana but he retained the right to challenge the jurisdictional sufficiency of the accusatory instrument charging him with that crime because a valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite to criminal prosecution. Since defendant did not waive the right to be tried for that misdemeanor offense by information, his claim of jurisdictional insufficiency must be assessed based on the standards governing an information, which is valid for jurisdictional purposes if it contains nonconclusory factual allegations that, if assumed to be true, address each element of the crime charged, thereby affording reasonable cause to believe that defendant committed that offense. Although an information should also be based on nonhearsay allegations, a purported hearsay defect in an accusatory instrument is nonjurisdictional and, thus, forfeited by a guilty plea. However, defendant did not rely on hearsay deficiencies, but argued that the accusatory instrument failed to include sufficient nonconclusory factual allegations relating to two elements of the charged offense, a claim that would, if meritorious, be jurisdictional in nature. *People v Jackson*, 18 NY3d 738.

PROOF OF OTHER CRIMES.

37. Proof of Uncharged Crimes to Establish Motive and Identity of Perpetrator.—In the murder prosecution of defendant based on comprehensive, albeit circumstantial, evidence linking defendant to the shootings of his upstairs neighbors in their apartment, Supreme Court exercised sound discretion in permitting the daughter and the boyfriend of one of the victims to testify about limited incidents of defendant’s uncharged crimes leading to the shootings. The daughter was permitted to testify about an incident that occurred 11 months before the shootings when defendant confronted her and one of the victims in the victims’ apartment and threatened to kill them both; fearing for their safety, they filed a complaint and obtained an order of protection. The boyfriend was permitted to testify about an incident that occurred less than two months before the shooting when defendant confronted the same victim in the victims’ apartment while the boyfriend was present and threatened to kill them while displaying a knife and what appeared to be a handgun. Defendant was arrested for that incident, charged with criminal contempt, and a second order of protection was issued in favor of the victim as well as the boyfriend. While excluding certain testimony that it deemed overly prejudicial, Supreme Court correctly determined that the witnesses’ testimony that defendant had previously threatened to kill them and one of the victims was relevant in establishing a motive for the murders and the identity of the perpetrator in this circumstantial case. Moreover, Supreme Court properly opined that the testimony it allowed the People to elicit provided necessary background information on the nature of the relationship between defendant and the victims and placed the charged conduct in context. Furthermore, the record revealed that the People adhered to the scope of Supreme Court’s *Molineux* ruling (*People v Molineux*, 168 NY 264 [1901]). *People v Gamble*, 18 NY3d 386.

38. Defense of Extreme Emotional Disturbance.—In a murder prosecution in which the defendant alleged that he “snapped” and strangled another man after the victim made sexual advances toward him, the trial court properly admitted defendant’s statement admitting to another, similar strangulation to rebut defendant’s extreme emotional disturbance defense. Evidence of a defendant’s uncharged crime may be admitted in a particular case where the proponent of the evidence identifies some material issue, other than the defendant’s criminal

CRIMES—Cont'd

propensity, to which the evidence is directly relevant and, once that showing is made, the trial court determines that the probative value of the evidence outweighs the danger of prejudice. Here the People sought to introduce defendant's statement regarding the other homicide for reasons other than to show defendant's propensity towards violence. The highly probative evidence of the similar strangulation arguably showed, in support of the prosecution's theory, that defendant had a premeditated intent to target gay men for violence, thereby tending to rebut the loss of control he claimed as part of his extreme emotional disturbance defense. Further, while it could be argued that the admission of the defendant's statement was overly prejudicial propensity evidence, the repetition, duplication and similarity of defendant's acts did have a direct bearing on the question of premeditated intent. As defendant's state of mind was the main question the jury was required to resolve, it logically followed that the jury had to be permitted to decide whether the repetitive actions defendant engaged in rebutted his claim of extreme emotional disturbance. *People v Cass*, 18 NY3d 553.

39. Identity or Modus Operandi Exception to *Molineux* Rule.—In a prosecution arising from an alleged attack on defendant's wife, the Appellate Division erred in holding defendant's identity to be so conclusively established as to render inadmissible testimony of defendant's ex-wife alleging that defendant assaulted her 15 months earlier. Under the identity or modus operandi exception to the *Molineux* rule (*People v Molineux*, 168 NY 264 [1901]), evidence of a similar, uncharged crime may be admissible to identify the defendant where the similarities are unusual enough to compel the inference that the defendant committed both the uncharged crime and the current charged crime, unless the defendant's identity is conclusively established by other evidence. Here, assuming that defendant's prior assault on his ex-wife was similar enough to the alleged assault on his current wife to trigger the exception, defendant's identity was not so conclusively established as to prevent the exception from being invoked. The jury could have believed that the complainant's testimony was intentionally false, as suggested by the defense, and absent complainant's testimony, proof of identity was not conclusive. Furthermore, while defendant admitted being present during some of the time when the complainant said her injuries were inflicted, and he did not testify that anyone other than he inflicted them or had an opportunity to do so, he denied that he committed the crime. The "identity" that is relevant for purposes of the exception is the identity of the defendant as the person who committed the acts constituting the crime, not just as someone who was present at the scene. *People v Agina*, 18 NY3d 600.

PROOF OF PRIOR CONVICTIONS.

40. Testimony of One Defendant Implicating Codefendant.—In a robbery prosecution involving defendant and a codefendant, it was not error when, during the cross-examination of the codefendant, testimony was admitted about a previous assault that both defendants had committed together. The trial court had previously ruled that the prosecution could not bring out the prior assault convictions on cross-examination, but the codefendant on direct examination testified that he did not know the defendant well. While the prosecution contended that the codefendant's testimony opened the door to the use of the assault against him, it did not as to the defendant, who did not testify. The trial judge, however, fashioned a fair solution: he did not allow the prosecutor to refer to the conviction, but did allow him to ask whether the codefendant remembered "having a fight" along with the defendant against another person, which allowed the prosecutor to attack the codefendant's denial that he knew the defendant well, with minimal prejudice to the latter. The codefendant's answer to the question was not as carefully crafted as the court's ruling, with defendant remarking that "we all [including the defendant] got locked up for so-called assaulting this guy." While that testimony might have been prejudicial to the defendant, there was no reason to believe that either the prosecutor or the court saw it coming, and the court could not be faulted for failing to anticipate what happened. *People v Hall*, 18 NY3d 122.

41. Inquiry into Nature of Prior Convictions — Discretion of Trial Court.—In a prosecution for criminal sale and possession of drugs, the trial court did not abuse

CRIMES—Cont'd

its discretion by issuing a *Sandoval* ruling which permitted the prosecutor to refer to defendant's prior drug-related felony convictions by naming the specific crimes, should defendant choose to testify. Defendant had requested that the prosecutor's cross-examination of him be limited to the mere fact that his prior convictions were unspecified felonies; however, the trial court ruled that the prosecutor's potential inquiry would be limited to the name of the crime, county and date of conviction and that the jury would also be instructed that the prior convictions were not evidence of defendant's guilt. Although the concerns of *People v Sandoval* (34 NY2d 371 [1974])—whether the prejudicial effect of impeachment testimony far outweighs the probative worth of the evidence on the issue of credibility—still exist and may have been implicated here since defendant's prior convictions were similar to the pending charges, the court weighed appropriate concerns and limited the scope of cross-examination. *People v Smith*, 18 NY3d 588.

RIGHT TO BE PRESENT AT TRIAL.

42. Reconstruction Hearing.—On the record presented, defendant satisfied his burden of showing that a reconstruction hearing was necessary to determine whether he was present during his *Sandoval* hearing. Upon remittal, if it is determined that defendant was not present during the *Sandoval* hearing, a new trial must be ordered; if it is determined that defendant was present, the judgment of conviction should be amended to reflect that result. *People v Walker*, 18 NY3d 839.

RIGHT TO COUNSEL.

43. Impact of Courtroom Seating Arrangements.—The positioning of court officers directly behind defendant during the course of his criminal trial did not infringe upon defendant's constitutional right to counsel by depriving defendant of his right to communicate confidentially with his attorney. Defendant did not meet his burden of establishing that confidential communications with his attorney had been compromised by the placement of the court officers behind defendant with the officers' toes against the bottom of defendant's chair, a heightened security measure put in place by Supreme Court based on defendant's disciplinary history while incarcerated and prior incidents of aggressive courtroom behavior. Supreme Court found that the relief sought by defense counsel—that the court officers sit in their normal places two inches farther away from defendant—would not have made counsel's communications with defendant any more confidential, and nothing in the record suggested that the finding was incorrect. *People v Gamble*, 18 NY3d 386.

44. Effective Representation — Failure to Object to Prosecutor's Comments on Summation.—In a homicide prosecution, defendant was not denied the effective assistance of counsel because of defense counsel's failure to object to allegedly prejudicial comments the prosecutor made during summation. During summation the prosecutor described defendant as a "predator" who systematically preyed upon the vulnerable, a characterization to which defense counsel failed to object. However, defendant did not show that counsel lacked a legitimate explanation for not objecting or that, if counsel had objected, a mistrial would have been warranted. Further, the prosecutor's characterization of defendant's behavior as predatory was arguably a fair response to defense counsel's summation argument that defendant's acts were a reaction to what he perceived as a threat against him, and it was consistent with the prosecution's theory of the case, i.e., based on the evidence adduced at trial, defendant acted with premeditation, not under the influence of an extreme emotional disturbance. Accordingly, defendant failed to show that defense counsel provided less than meaningful representation; nor was counsel's failure to object the type of error that was so egregious or so clear cut and completely dispositive as to render counsel's assistance ineffective. *People v Cass*, 18 NY3d 553.

45. Substitution of Assigned Counsel.—The trial court in a criminal prosecution did not abuse its discretion by denying defendant's request for the substitution of assigned counsel since defendant failed to demonstrate that good cause for the substitution existed. After defendant's first counsel was replaced, defendant requested substitution of new assigned counsel stating that he and his attorney disagreed about how to proceed with pretrial motions and he did "not feel comfort-

CRIMES—Cont'd

[able] going to . . . trial with this man.” The trial court conducted an inquiry into defendant’s request for new assigned counsel revealing that defendant did not approve of the representation counsel sought to provide him despite counsel detailing that he had considered defendant’s suggested pretrial motions, had prepared for trial and had tried numerous similar cases. Moreover, the court noted that counsel was competent and likely to provide effective representation; the case was ready for trial; and defendant provided “no reason” to substitute counsel for a second time. Against that factual setting, the trial court’s denial of defendant’s request for the substitution of assigned counsel was a proper exercise of discretion. *People v Smith*, 18 NY3d 588.

46. Effective Representation — Appellate Counsel.—Defendant, convicted of second degree murder, driving while intoxicated and other related crimes, was not deprived of effective assistance of appellate counsel by his counsel’s failure to raise the issue of the trial court’s admission of a videotape of defendant consenting to a blood test, an arguably prejudicial piece of evidence. Although there are cases in which a single failing in an otherwise competent performance is so egregious and prejudicial as to deprive a defendant of his constitutional right, such cases are rare. Here, the evidentiary issue was a matter of discretion for the trial court, and the error, if any, was not egregious and was unlikely to have been prejudicial. While admitting the videotape into evidence may have been error because, under then-accepted law, evidence as to defendant’s remorse or the lack of it may have been irrelevant to the presence or absence of “circumstances evincing a depraved indifference to human life” (Penal Law § 125.25 [2]), the argument was by no means “clear-cut,” and it could not be said that its omission from defendant’s appellate brief was inconsistent with the conduct of a reasonably competent appellate attorney. *People v Keating*, 18 NY3d 932.

47. Effective Representation — Failure to Object to Prosecutor’s Summation.—In the prosecution of defendant for sex offenses allegedly committed against his two nieces, defense counsel’s failure to object to the prosecutor’s egregiously improper departures during summation deprived defendant of the right to effective assistance of counsel when viewed in the totality of the representation provided defendant, and where no strategic basis for counsel’s failure to object to the highly prejudicial instances of prosecutorial abuse was evident. The evidence of the charged sex offenses was far from overwhelming: the alleged sexual abuse was not medically confirmed, defendant asserted that the children’s mother had a financial motive to put the children up to their accusations, and the testimony of a convicted murderer awaiting a hearing upon an alleged parole violation was crucial to confirming the children’s testimony. On summation, the prosecutor improperly encouraged inferences of guilt based on facts not in evidence, bolstered the children’s credibility, gave a less than frank minimization of the consideration the inmate would receive in exchange for his potentially pivotal testimony, and admonished the jury that their acceptance of the children’s testimony was essential to the administration of justice. Competent defense counsel should have sought to prevent the prosecutor’s summation from directing the jury’s attention away from the properly admitted evidence. *People v Fisher*, 18 NY3d 964.

RIGHT TO SPEEDY TRIAL.

48. Motion Practice.—In a prosecution for grand larceny and health care fraud, defendant was not deprived of his statutory right to a speedy trial since motion practice, which is an excuse for not being ready, was going on during much of the time defendant complained about. In any event, it appeared that the most time the People could be charged with was 129 days, well short of the applicable six-month period (see CPL 30.30 [1] [a]). *People v Khan*, 18 NY3d 535.

49. Waiver.—The indictment charging defendant with driving while ability impaired, other crimes and an infraction was dismissed where it was undisputed that the People were not ready for trial within six months of the commencement of the action, as required by CPL 30.30 (1) (a), even after application of the exclusions listed in CPL 30.30 (4), and where the record contained no evidence of any waiver, written or oral, of defendant’s rights under CPL 30.30. While the People claimed

CRIMES—Cont'd

that defendant waived his rights under CPL 30.30 by participating in plea negotiations for several months, mere silence is not a waiver. *People v Dickinson*, 18 NY3d 835.

ROBBERY.

50. Use of Dangerous Weapon — Stun Gun.—In a prosecution in which defendants were accused of using a stun gun to temporarily incapacitate a store owner during a robbery, defendants' convictions for first degree robbery and criminal possession of a weapon in the fourth degree were properly vacated since the People failed to prove that the stun gun was a "dangerous instrument" as required by Penal Law § 160.15 (3) and § 265.01 (2). Under Penal Law § 10.00 (13) a "dangerous instrument" is an instrument "readily capable of causing death or other serious physical injury" and Penal Law § 10.00 (10) defines "serious physical injury" as "physical injury which creates a substantial risk of death, or which causes death or serious and protracted disfigurement, protracted impairment of health or protracted loss or impairment of the function of any bodily organ." The stun gun was not recovered, and no expert or other witness was called to explain to the jury what a stun gun is, or what it can do. The only evidence of the weapon's potential for harm came from the testimony of the store owner, which described pain, a burning sensation and temporary incapacitation and while those were very unpleasant things to experience, they were not "serious physical injury." Accordingly, the jury had no basis for concluding that the stun gun was readily capable of killing or maiming someone, or of causing any of the other severe harms described in section 10.00 (10). Furthermore, the prosecution's contention that serious physical injury could have resulted if defendant had continued to use the stun gun was speculation and was insufficient to show that the instrument was "readily capable" of causing such consequences. *People v Hall*, 18 NY3d 122.

SENTENCE.

51. Resentence under Drug Law Reform Act — Exclusion Offenses — Calculation of Look-Back Period.—Defendant, who was serving a sentence imposed under the now-repealed Rockefeller Drug Laws, was eligible for resentencing under the Drug Law Reform Act of 2009 (L 2009, ch 56) since his prior violent felony conviction did not occur within the 10-year look-back provision of CPL 440.46 (5) (a), as measured from the date of his drug offense resentence application, and thus did not qualify as an exclusion offense under that provision. The phrase "the preceding ten years" in CPL 440.46 (5) (a) would ordinarily be understood to extend backward from the present, i.e., from the time the resentence application is placed before the motion court, and there is no textual ground for the contention that what was really meant was 10 years preceding the commission of the drug offense for which the defendant is presently incarcerated. The Drug Law Reform Act was intended to afford relief to low-level non-violent drug offenders originally sentenced under a scheme that often mandated inordinately harsh punishment. A defendant's enhanced recidivist sentence should not, because of his or her commission of a violent felony in the objectively distant and ever-receding past, remain irretrievably governed by a generally outmoded sentencing regimen. Moreover, given CPL 440.46 (3)'s express contemplation that the resentencing court consider a defendant's institutional record and prison disciplinary history, time spent incarcerated has a bearing on the resentencing decision and, thus, logically should not be excluded from counting toward a defendant's basic eligibility for sentencing relief. To the extent that the Legislature's definition of the eligible class in an individual case proves over-inclusive, the proper corrective is achieved by means of the statutorily required exercise of judicial discretion to determine whether relief to an eligible applicant is in the end consonant with the dictates of substantial justice. *People v Sosa*, 18 NY3d 436.

52. Drug Law Reform Act of 2009 — Predicate Felony Conviction for Exclusion Offense.—Defendants, incarcerated drug felons who had been adjudicated predicate felony offenders based upon prior nonviolent felony convictions, were ineligible for resentencing under the Drug Law Reform Act of 2009 because they had prior convictions for violent felony offenses, on which sentences were imposed not more than 10

CRIMES—Cont'd

years before the commission of their respective drug felonies, excluding time for incarceration, that constituted predicate felony convictions for exclusion offenses under CPL 440.46 (5) (a). It is evident from CPL 440.46 (5) (a) that a predicate felony conviction is not limited to a conviction that has been adjudicated on the basis of a violent felony offense, particularly in light of CPL 440.46 (5) (b)'s prior adjudication requirement. By including that requirement in paragraph (b), which does not include the 10-year limitation, but not paragraph (a), the Legislature plainly intended that defendants with convictions for violent felony offenses need not be previously adjudicated as such before being rendered ineligible for resentencing. Furthermore, while the term "second felony offender" requires an adjudication under CPL 400.21 (7) (c), the term "predicate felony conviction" does not require any such adjudication (*see* Penal Law § 70.06 [1] [b]). Although the defendants here did not do so, defendants seeking resentencing are not precluded from challenging the validity of their prior violent felony convictions, as the Drug Law Reform Act of 2004 provides that a court may conduct a hearing "to determine any controverted issue of fact relevant to the issue of sentencing" (L 2004, ch 738, § 23). *People v Steward*, 18 NY3d 493.

53. Illegal Sentence — Authority of Appellate Division to Remit to Trial Court for Resentencing.—The Appellate Division, after concluding that the trial court had imposed unlawful consecutive sentences on two of the counts of which defendant was convicted, was not precluded by CPL 430.10 from remitting defendant's case to the trial court for resentencing, and, in doing so, leaving the determination of the proper resentence to the discretion of the trial court. CPL 430.10 provides that, "[e]xcept as otherwise specifically authorized by law," when a court has imposed a lawful sentence of imprisonment, it may not be changed, suspended or interrupted once its term or period has commenced. That provision does not prohibit sentences from being either changed or modified as the result of a postjudgment motion or the appellate process. The language, "[e]xcept as otherwise specifically authorized by law," limits the statute's reach, particularly in light of the broad authority CPL 470.20 grants intermediate appellate courts to take corrective action upon a modification of a sentence. Under the authority found in CPL 470.20, an intermediate appellate court reversing or modifying a sentence has the discretion to either remit to the trial court for resentencing or substitute its own legal sentence for the illegally imposed sentence. *People v Rodriguez*, 18 NY3d 667.

SEXUAL ABUSE.

54. Forcible Compulsion.—An indictment charging defendant with sexual abuse in the first degree by means of forcible compulsion was properly dismissed since defendant's alleged touching of a teenage girl and "stealth" ejaculation on her as he stood behind her on a crowded subway train failed to establish the requisite use of forcible compulsion. There was no coordinated action by defendant and other passengers to hedge in the victim. Rather, the crowded conditions in the subway car merely masked and facilitated the unwanted sexual contact alleged. The sexual contact itself was the only physical force that defendant may be said to have deployed against his victim, and that was not enough to establish that the sexual contact was compelled by use of physical force (*see* Penal Law § 130.00 [8] [a]). *People v Mack*, 18 NY3d 929.

TIMELINESS OF PROSECUTION.

55. Non-sexual Offenses — Defendant's Whereabouts Continuously Unknown and Unascertainable.—In a criminal prosecution which, in part, charged the victim's step-grandfather with certain non-sexual offenses which were allegedly committed in 2002, CPL 30.10 (4) (a) (ii) did not toll the time between the alleged commission of the offenses and the victim's allegations against defendant in 2007. Section 30.10 (4) (a) (ii) excludes any periods of time following the commission of an offense if "the whereabouts of the defendant were continuously unknown and continuously unascertainable by the exercise of reasonable diligence," and excludes time only if the police are aware of a particular crime. Here, the police did not learn about the crimes charged in the indictment until the victim revealed her allegations in 2007. Consequently, the one- and two-year limitations periods that applied to the

CRIMES—Cont'd

indictment's non-sexual misdemeanors and petty offenses began to run when those crimes purportedly happened and the timeliness for prosecution of those crimes expired well before the accusatory instrument was issued. *People v Quinto*, 18 NY3d 409.

56. Toll Applicable to Sex Crimes against Child Less than 18 Years Old — Prior Report of Offense.—In a criminal action initiated more than five years after defendant's then-14-year-old step-granddaughter initially informed the police that she had become pregnant as a result of a rape by a classmate, those counts of the indictment charging defendant with sex offenses allegedly committed during time periods which occurred both before and after the time period encompassed by the victim's report to the police of the alleged rape by the schoolmate were timely commenced under the tolling provision of CPL 30.10 (3) (f). Section 30.10 (3) (f) tolls the running of the limitations period for sex crimes committed against minors "until the child has reached the age of eighteen or the offense is reported" to an appropriate agency, whichever occurs earlier. The statute specifically refers to a report of "the offense," not "any offense." Inasmuch as the only purported crime that the then-14-year-old victim discussed with the police was an alleged rape by a classmate occurring several months earlier and did not mention any other sexual conduct occurring either before or after the alleged incident with the classmate, the police had no reason to believe that the victim had been subjected to any criminal conduct during the time periods occurring either before or after the reported classmate rape. As a result, the statutes of limitations did not commence on the initial disclosure date when the victim was still 14 for any of the sex offenses within the two time frames surrounding the reported classmate rape. Rather, the limitations periods for those crimes began to run when the victim turned 18 years old. *People v Quinto*, 18 NY3d 409.

57. Toll Applicable to Sex Crimes against Child Less than 18 Years Old — Prior Report of Offense.—In a criminal action initiated more than five years after defendant's then-14-year-old step-granddaughter initially informed the police that she had become pregnant as a result of a rape by a classmate, those counts of the indictment charging defendant with sex offenses allegedly committed during the time period encompassed by the victim's report to the police of the alleged rape by the schoolmate were timely commenced under the tolling provision of CPL 30.10 (3) (f). A triggering "report" under CPL 30.10 (3) (f), which tolls the running of the limitations period for sex crimes committed against minors "until the child has reached the age of eighteen or the offense is reported" to an appropriate agency, whichever occurs earlier, refers to a communication that, at a minimum, describes the offender's alleged criminal conduct and the harm inflicted on the victim and covers only the specific criminal acts disclosed in the communication. Information of this nature provides the police with actual notice that a specific criminal offense has occurred, allowing them to conduct a prompt investigation. Here, the information the victim conveyed when she was 14 did not provide a reasonable basis for the authorities to suspect that she had been sexually assaulted at home by a relative; in fact, inquiries prompted by the victim's pregnancy led the victim to deny unequivocally that she was being sexually abused by a family member. Since no information linked defendant to the circumstances of the reported crime, the People were entitled to apply CPL 30.10 (3) (f) and the statutes of limitations for the indicted sex offenses allegedly committed by defendant during the time period of the reported classmate rape did not commence until the victim became 18 years of age. *People v Quinto*, 18 NY3d 409.

TRIAL.

58. Retrial — Improperly Dismissed Charge.—In reversing a conviction for second degree assault due to trial court error in permitting the prosecution to unilaterally withdraw a charge against defendant, a new trial was ordered notwithstanding that defendant had already served the term of imprisonment to which he was sentenced. Although dismissal rather than a new trial has been sometimes ordered in cases involving relatively minor crimes, the People should not be barred from trying again to obtain a conviction since the crimes charged, first degree assault and first degree vehicular assault, were serious. *People v Extale*, 18 NY3d 690.

CRIMES—Cont'd**VERDICT.**

59. Sufficiency of Evidence — Conflicting Testimony of Multiple Witnesses.—In the prosecution of defendant for first-degree robbery and related charges, the evidence at trial was legally sufficient to support defendant's conviction despite discrepancies in the trial proof about the perpetrator's physical appearance. The detective who spoke with the victim on the night of the robbery testified that, in the immediate aftermath of the robbery, the victim said that the perpetrator was a Hispanic man in his mid-20s who weighed about 140 pounds, was approximately five feet, six inches tall and held a knife in his right hand while he stole property with his left hand. Defendant, however, was 18 years old at the time of the robbery, stood six feet, three inches tall and had a nonfunctioning left arm. Nevertheless the victim was unwavering during his testimony at trial that the robber had not used his left arm, that defendant was the person who attacked him and that the detective's recollection of the perpetrator's description was simply incorrect. Moreover, the victim provided a rational explanation for the difference between his memory of the robber and the description provided by the detective that the jury was entitled to accept or reject. The limited rule of *People v Ledwon* (153 NY 10 [1897]), which established that a criminal conviction is not supported by legally sufficient evidence if the only evidence of guilt is supplied by a witness who offers inherently contradictory testimony about the defendant's culpability, was not applicable here since the victim's trial testimony was not inherently inconsistent. Court of Appeals jurisdiction is constrained by its standard of review and defendant's conviction could not be overturned on sufficiency grounds regardless of the Court's subjective assessment of the People's case. Such authority is vested exclusively in the intermediate appellate court under its obligation to review whether the weight of the evidence supported the verdict—a determination governed by a legal standard that is far broader than the one employed in a sufficiency analysis. *People v Delamota*, 18 NY3d 107.

WITNESSES.

60. Failure to Call Witness.—In a prosecution arising out of the robbery of a store, the trial court erred in refusing to give a missing witness charge with respect to three eyewitnesses who were friendly to the store owner, who could have been expected to support the owner's version of events, and who were all available to the prosecution. It was irrelevant that the witnesses were also available to the defense, in the sense that defense counsel were allowed to interview them, and the defense could have called them if it chose. A missing witness instruction permits the jury to draw the common-sense inference that a failure to call a seemingly friendly witness suggests some weakness in a party's case and that inference is not rebutted when the opposing party chooses not to call the same witness who, by definition, the opposing party would expect to be hostile. Similarly, the court's rulings on objections and its instructions to the jury during closing argument were incorrect, since the jury should not have been told that the absence of the witnesses "is not to form any part of your judgment." Moreover, the court's statement that defense counsel "could have . . . called any of the . . . witnesses" tended to obscure the point that those witnesses would normally be expected to support the prosecution's view of the case. *People v Hall*, 18 NY3d 122.

61. Expert Witness — Arson Expert.—The proposition advanced in dictum in *People v Grutz* (212 NY 72 [1914]), which prohibited expert testimony in an arson prosecution on the ultimate issue of whether the fire was intentionally set on the basis that such testimony invades the province of the jury, is put to rest. Testimony by an arson expert is admissible when it would help to clarify an issue calling for professional or technical knowledge possessed by the expert and beyond the ken of the typical juror, and this would apply to testimony regarding both the ultimate questions and those of lesser significance. However, expert testimony would not generally be admissible in a case where the fire's cause is not in question. A trial court, in deciding whether testimony from an arson expert is admissible, must determine whether the potential value of the evidence is outweighed by the possibility of undue prejudice to the defendant or interference with the jury's province.

CRIMES—Cont'd

Expert testimony should not be excluded merely because, to some degree, it invades the jury's province since expert testimony is used in partial substitution for the jury's otherwise exclusive province. *People v Rivers*, 18 NY3d 222.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCLOSURE.

PRECLUSION ORDER.

1. Relief from Order — Demonstration of Meritorious Claim.—Plaintiffs demonstrated the existence of a meritorious claim for purposes of avoiding a preclusion order in a medical malpractice action by their expert witness disclosure, pursuant to CPLR 3101 (d) (1) (i), detailing the expert medical opinion evidence supporting the claim. *Imperato v Mount Sinai Med. Ctr.*, 18 NY3d 871.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DISMISSAL AND NONSUIT.

WANT OF PROSECUTION.

1. Dismissal without Court Order Vacated.—Plaintiffs were entitled to vacatur of the dismissal of their medical malpractice action for neglect to prosecute where the record indicated that the action was ministerially dismissed, without notice to the parties, and without the entry of any formal order of dismissal by the court, based upon plaintiffs' failure to comply with a deadline to file the note of issue as set forth in a stipulation executed by the court and the parties and in an annexed 90-day demand served upon plaintiffs' counsel pursuant to CPLR 3216. As evident from the 90-day demand and the dictates of CPLR 3216, plaintiffs' failure to comply with the demand would "serve as a basis" for the trial court, on its own motion, to dismiss the action. However, there was no evidence that the trial court made a motion to dismiss the action, and there was apparently no entry of a formal order dismissing the action, only a ministerial dismissal without benefit of further judicial review. The parties continued to schedule depositions as if the case were still active, and the earliest that any of the litigants learned that the matter had been dismissed was more than two months following dismissal, when one of the hospital defendants moved to dismiss the action, and the court clerk returned those papers on the ground that the motion was moot. Where, as here, a case proceeds to the point where it is subject to dismissal, it should be the trial court, with notice to the parties, that makes the decision concerning the fate of the case, not the Clerk's Office. *Cadichon v Facelle*, 18 NY3d 230.

DIVORCE.

See HUSBAND AND WIFE.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

ELECTIONS.**JUDICIAL PROCEEDINGS.**

1. Timeliness — Challenge to Election of County Committee Officers.—A proceeding challenging the validity of the election of respondents as officers of a political party's county committee was untimely under Election Law § 16-102 (2) because it was not commenced within 10 days after the organizational meeting during which the county committee elected respondent officers. The 10-day period in Election Law § 16-102 (2) is applicable not only to party meetings that select candidates for public office, but also to party meetings that select party officers. Since the statute undoubtedly provides for challenging people elected for "party position" (Election Law § 16-102 [1]), to interpret it to remain silent as to the statutory period would mean that a significantly longer one would apply. However, the 10-day period is sensible and consistent with the Legislature's avowed purpose when it amended Election Law § 16-102 (2) to include committee meetings, i.e., to compute the time within which to commence a legal proceeding to be measured not only from the holding of a primary election, caucus, or convention, but to include a meeting of a party committee. *Matter of Kosowski v Donovan*, 18 NY3d 686.

EMINENT DOMAIN.**INVERSE CONDEMNATION.**

1. Installation of Telephone Lines on Private Property.—Plaintiffs stated a valid inverse condemnation claim for just compensation based upon defendant telephone company's attachment of a box to plaintiffs' apartment building for the purpose of transmitting telephone communications to and from defendant's customers in other buildings. Defendant had the power, under Transportation Corporations Law § 27, to take plaintiffs' property for the purpose of attaching its cables and wires, "subject to the right of the owners thereof to full compensation for the same." In their claim plaintiffs asserted that defendant had de facto exercised its section 27 power, and taken plaintiffs' property, by attaching its "equipment" and "lines" to their building. Inverse condemnation, as it has come to be defined, describes the manner in which a landowner recovers just compensation for a taking of the landowner's property when condemnation proceedings have not been instituted. It is not limited to situations where an entity has chosen to exercise its eminent domain power. Rather, a continuous, permanent trespass may be converted into a de facto taking. *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.

2. Installation of Telephone Lines on Private Property — Timeliness of Claim.—Plaintiffs' inverse condemnation claim for just compensation based upon defendant telephone company's attachment of a box to plaintiffs' apartment building many years ago for the purpose of transmitting telephone communications to and from defendant's customers in other buildings was timely. Assuming that actions in inverse condemnation are governed by a three-year statute of limitations that runs from the time of the taking (*see* CPLR 214 [4]), thereby rendering plaintiffs' inverse condemnation claim time-barred, the claim was saved by Real Property Law § 261. Under section 261, a company may not unlawfully attach its wires or cables to private property and then, by lapse of time, deprive the property owner of any remedy for the unlawful act. Section 261 is not limited to a claim by a company that it has acquired title to property by adverse possession, or that its long use of property has given it a prescriptive easement. It also applies to an action for inverse

EMINENT DOMAIN—Cont'd

condemnation based on an alleged de facto taking of property, as plaintiffs alleged here. *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ENVIRONMENTAL CONSERVATION.**HAZARDOUS WASTE.**

1. Inactive Hazardous Waste Disposal Sites — Validity of Regulation.—Respondent New York State Department of Environmental Conservation did not exceed its authority or act contrary to law in enacting 6 NYCRR 375-2.8 (a), which calls for the restoration of inactive hazardous waste disposal sites to “pre-disposal conditions, to the extent feasible,” and 6 NYCRR 375-1.8 (f) (9) (i), which incorporates the remedial goal stated in section 375-2.8 (a). The regulations do not exceed the enabling authority of ECL 27-1313 (5) (d) which provides, in pertinent part, that the goal of a remedial program is “a complete cleanup of the site through the elimination of the significant threat to the environment posed by the disposal of hazardous wastes at the site.” ECL 27-1313 (5) (d) does not provide that a “complete cleanup” is effectuated solely through “the elimination of the significant threat to the environment”; rather, it tasks respondent with eliminating significant threats while also stating a preference for a more thorough or “complete” cleanup. That stated goal is aspirational, as ECL 27-1313 (5) (d) recognizes that respondent may implement limited actions that reduce rather than completely eliminate dangers. Such statutory construction is consistent with ECL 27-1301 (3), which defines inactive hazardous waste disposal site remedial programs as including measures of abatement or control in addition to elimination and removal. There is no discernible difference between the use of the phrase “complete cleanup” in section 27-1313 (5) (d) and “pre-disposal conditions, to the extent feasible” in respondent’s regulations. A remedial program may encompass measures that run a gamut from removal of wastes to institutional controls, implemented to address harms that range from potential to actual hazards. Moreover, respondent is not empowered to unilaterally fashion a remedial program without due consideration of the practicalities of such a measure as the statutory scheme expressly ties the scope of such programs to the particular characteristics for each regulated site. Accordingly, the phrase “to the extent feasible” in the respondent’s regulation is a reasonable incorporation of the considerations within the statute and a limit on the scope of remedial programs. Furthermore, respondent cannot arbitrarily exercise its authority as the Legislature has provided for a specific process prior to the implementation of any remedial program by which landowners subject to regulation by respondent may contest the order of such a measure. *Matter of New York State Superfund Coalition, Inc. v New York State Dept. of Envtl. Conservation*, 18 NY3d 289.

EQUITY.**UNJUST ENRICHMENT.**

1. Installation of Telephone Lines on Private Property.—Plaintiffs did not state a valid unjust enrichment claim based upon defendant telephone company’s attachment of a box to plaintiffs’ apartment building for the purpose of transmitting telephone communications to and from defendant’s customers in other buildings. The basis of a claim for unjust enrichment is that the defendant has obtained a benefit which in equity and good conscience should be paid to the plaintiff. It is available only in unusual situations when, though the defendant has not breached a contract nor committed a recognized tort, circumstances create an equitable obligation running from the defendant to the plaintiff. It is not available where it simply duplicates, or replaces, a conventional contract or tort claim. Here, plaintiffs alleged that defendant committed actionable wrongs, by trespassing on or taking their

EQUITY—Cont'd

property, and by deceiving them into thinking they were not entitled to compensation. To the extent that those claims were to succeed, the unjust enrichment claim was duplicative; if plaintiffs' other claims were defective, an unjust enrichment claim could not remedy the defects. *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

FRAUD.**MARTIN ACT.**

1. Common-Law Causes of Action for Breach of Fiduciary Duty and Gross Negligence Not Preempted.—The Martin Act (General Business Law art 23-A) did not preempt plaintiff's common-law causes of action for breach of fiduciary duty and gross negligence against defendant for allegedly mismanaging the investment portfolio of an entity whose obligations plaintiff guaranteed. The plain text of the Martin Act, while granting the Attorney General investigatory and enforcement powers over possible fraudulent practices in the marketing of securities and prescribing various penalties, does not expressly mention or otherwise contemplate the elimination of common-law claims. Although a private litigant may not pursue a common-law cause of action where the claim is predicated solely on a violation of the Martin Act or its implementing regulations and would not exist but for the statute, an injured investor may bring a common-law claim—for fraud or otherwise—that is not entirely dependent on the Martin Act for its viability. Mere overlap between the common law and the Martin Act is not enough to extinguish common-law remedies. Moreover, proceedings by the Attorney General and private actions further the same goal—combating fraud and deception in securities transactions—and to hold that the Martin Act precludes properly pleaded common-law actions would leave the marketplace less protected than it was before the Martin Act's passage. *Assured Guar. (UK) Ltd. v J.P. Morgan Inv. Mgt. Inc.*, 18 NY3d 341.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

GIFTS.**INTER VIVOS GIFT.**

1. Monumental Sculpture.—A 1,100-pound bronze sculpture was the subject of a valid inter vivos gift to plaintiff's assignor since each of the elements of a valid inter vivos gift—intent on the part of the donor to make a present transfer; delivery of the gift, either actual or constructive to the donee; and acceptance by the donee—was established by clear and convincing evidence. Following the death of the sculptor's wife, who had inherited the work after the artist's death, plaintiff's as-

GIFTS—Cont'd

signor produced a photograph of the sculpture, signed and dated on the back in the widow's handwriting, with a notation stating "I gave this sculpture 'The Cry' to my good friend [plaintiff's assignor]." The manner of the gift was consistent with the widow's pattern of making gifts of similar items to plaintiff's assignor. The intent of the widow to make a present transfer of the sculpture was clear on the face of the gift instrument. There was no suggestion that she had been coerced; there was no question about her capacity. In addition, mere possession of a gift after the donor's death creates a presumption of delivery to the donee during the donor's lifetime and the executor of the widow's estate failed to raise a triable issue of fact so as to overcome the presumption of delivery. Nor was there any dispute that the plaintiff's assignor accepted the gift. The Dead Man's Statute (CPLR 4519) created no impediment to the assignor's reliance on the presumption of delivery created by his possession of the gift instrument, which was specifically addressed to him, after the death of the artist's widow. Moreover, even assuming that the limitations period had lapsed on the plaintiff's conversion and replevin claims, the executor, on behalf of the estate, acknowledged in a related settlement agreement that the Surrogate's Court would decide the ownership of the sculpture "on the merits" and, therefore, the estate could not secure possession of the sculpture without a final judicial determination of ownership in its favor. *Mirvish v Mott*, 18 NY3d 510.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT AND CHILD; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

IMMIGRATION.

See ALIENS.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE; PARENT AND CHILD; SCHOOLS; SOCIAL SERVICES, and other specific titles.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

DUTY TO DEFEND AND INDEMNIFY.

1. "Wrongful Act" Definition Not Ambiguous.—The plain language of an insurance policy, which defined, in part, the term "Wrongful Act" for which coverage was available as "any breach of the responsibilities, obligations or duties by an Insured which are imposed upon a fiduciary of a Benefit Program by the Employee Retirement Income Security Act of 1974 [ERISA]," did not extend coverage to alleged violations of ERISA by defendant insureds acting in their capacity as the settlor of their employee benefit plans. The average insured would reasonably interpret the language in the definition of "Wrongful Act" to mean that coverage was limited to acts of an insured undertaken in its capacity as an ERISA fiduciary. That the term "fiduciary" was undefined in the policy did not require that it be given its plain, ordinary meaning, which differs from the definition provided in ERISA, so as to cover defendants' actions by virtue of the fact that they were insureds and plan fiduciaries that allegedly violated certain ERISA provisions, regardless of the fact that they allegedly did so in their capacity as plan settlor and not as ERISA fiduciary. If not limited to claims for breach of fiduciary duties, the definition might

INSURANCE—Cont'd

cover almost every lawsuit imaginable. Moreover, to interpret the disputed language to mean that coverage was limited to acts of an insured undertaken in its capacity as an ERISA fiduciary would not render the second prong of the “Wrongful Act” definition—“any other matter claimed against an Insured solely because of such Insured’s service as a fiduciary of any Benefit Program”—duplicative of the first prong and therefore unnecessary. The two provisions serve different functions. Furthermore, plaintiff’s subsequent revision of its policy language did not render the challenged provision ambiguous and require that it be construed in defendant’s favor. *Federal Ins. Co. v International Bus. Machs. Corp.*, 18 NY3d 642.

2. Additional Insured under Commercial General Liability Policy.—An insurer was not obligated to defend a landlord in an underlying action where the landlord was an additional insured under a commercial general liability policy issued by the insurer to plaintiff tenant “only with respect to liability arising out of the ownership, maintenance or use of that part of the premises leased to [tenant].” Although the landlord would be entitled to a defense in an action commenced against it by a third party for an injury suffered on the leased premises, the policy did not provide coverage for liability to its co-insured for damage to property owned, rented, or occupied by the insured. *VBH Luxury, Inc. v 940 Madison Assoc. LLC*, 18 NY3d 899.

NO-FAULT AUTOMOBILE INSURANCE.

3. Serious Injury — Causation.—In a personal injury action arising from an automobile accident that allegedly caused the then 82-year-old plaintiff to sustain injuries described by defendants’ expert in a sworn radiologist’s report based on an MRI as “degenerative in etiology and longstanding in nature, preexisting the accident,” plaintiffs’ evidence in opposition to defendant’s motion for summary judgment was sufficient to raise an issue of fact as to whether plaintiff’s injuries were causally related to the accident. Plaintiffs submitted another radiologist’s affidavit, which stated that while some findings from the MRI “are consistent with degenerative disease,” a single MRI could not rule out the possibility that “the patient’s soft tissue findings are . . . a result of a specific trauma.” That question, according to plaintiffs’ radiologist, could best be judged “by the patient’s treating physician in conjunction with exam, history and any previous tests,” and plaintiff’s treating physician opined that the findings were causally related to the accident. Although it was not implausible that a man of 82 would have suffered significant degenerative changes, it could not be said as a matter of law on the record here that such changes were the sole cause of plaintiff’s injuries. *Perl v Meher*, 18 NY3d 208.

4. Serious Injury — Expert’s Quantitative Proof of Range of Motion Impairment.—In two personal injury actions arising from separate automobile accidents, plaintiffs’ submission of expert testimony regarding specific, numerical range of motion measurements taken by the expert years after the accidents occurred were sufficient to raise an issue of fact regarding whether plaintiffs had suffered serious injuries within the meaning of Insurance Law § 5102 (d). A plaintiff’s subjective complaints alone are not sufficient to support a claim of serious injury; there must be objective proof. An expert’s designation of a numeric percentage of a plaintiff’s loss of range of motion can be used to substantiate a claim of serious injury, or an expert’s qualitative assessment of a plaintiff’s condition may suffice where the evaluation has an objective basis and compares the plaintiff’s limitations to normal function, purpose and use. Here, the same expert testified in both actions that he examined the particular plaintiff shortly after the accident; that he performed a number of clinical tests which indicated some departure from the norm; that he observed that plaintiff had difficulty in moving and diminished strength; and that plaintiff’s range of motion was impaired. The expert did not, at his initial examination of either plaintiff, quantify the range of motion he observed, but he did examine both plaintiffs several years later, using instruments to make specific, numerical range of motion measurements. Regardless of whether the expert’s detailed observations at his initial examination met the qualitative prong of the objective evidence test, the expert’s later, numerical measurements were sufficient to meet the quantitative prong. It was not necessary for the quantitative measurements to have been made contemporaneous with the accident. *Perl v Meher*, 18 NY3d 208.

INSURANCE—Cont'd

5. Serious Injury — Expert's Quantitative Proof of Range of Motion Impairment.—In order to substantiate a plaintiff's claim under the No-Fault Law that he or she has sustained a "serious injury" (Insurance Law § 5102 [d]) as the result of an automobile accident, an expert's designation of a numeric percentage of a plaintiff's loss of range of motion need not be made contemporaneous to the accident. Observing and recording a patient's symptoms in qualitative terms shortly after the accident, and later doing more specific, quantitative measurements in preparation for litigation, is not wrong or illogical. Although a contemporaneous doctor's report is important to proof of causation, where causation is proved it is not unreasonable to measure the severity of the injuries at a later time, as injuries can become significantly more or less severe as time passes. Potential plaintiffs should not be penalized for failing to seek out, immediately after being injured, a doctor who knows how to create the right kind of record for litigation. *Perl v Meher*, 18 NY3d 208.

6. Serious Injury.—In a personal injury action arising from an automobile accident, plaintiff failed to offer evidence sufficient to raise an issue of fact regarding whether she had suffered a serious injury within the meaning of Insurance Law § 5102 (d). There was no evidence in the record as to what plaintiff's alleged permanent impairment was so as to support her "permanent consequential limitation of use of a body organ or member" and "significant limitation of use of a body function or system" claims. A report from her treating physician stated the conclusion that plaintiff had a "[m]ild partial permanent disability," but the report did not describe the disability; it said that plaintiff was "[c]urrently able to perform the essential functions of her job." Moreover, there was no evidence to support plaintiff's claim that there were 90 of the 180 days after the injury when she was disabled from "substantially all" of her usual activities. Even plaintiff's subjective description of her injuries—which in any event would be insufficient to defeat summary judgment—did not show that there were 90 of the 180 days after the injury when she was disabled from "substantially all" of her usual activities, and the record did not show any "medically determined injury" that would bring her within the "90/180" provision of the statute. *Perl v Meher*, 18 NY3d 208.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTEREST.

PREVERDICT INTEREST.

1. Future Wrongful Death Damages.—In awarding preverdict interest in a wrongful death action, the trial court properly discounted the jury's award of future damages back to the date of the death of plaintiff's decedent and awarded interest on the future damages from the date of death to the date of verdict. Preverdict interest awarded pursuant to EPTL 5-4.3 (a) in a wrongful death action is part of the damages, and such interest should run from the date of death to the date of verdict. Damages in a wrongful death action are due on the date of the decedent's death. Thus, future damages are a debt owed entirely as of the date of liability, which by statute is the date of death, and such damages award properly should include preverdict interest calculated from the date of death. While preverdict interest on a future damages award that has not been properly discounted would result in an improper windfall to the plaintiff, juries are specifically instructed, pursuant to CPLR 4111 (e), to award a full amount of future damages, without a reduction to present value, and discounting is performed by the trial court under CPLR articles 50-A and 50-B. Since the purpose of interest was to compensate plaintiff for having been deprived of the use of money to which he was entitled from the moment that liability was determined, i.e., the date of death, to permit defendant to retain the cost of using the money would have resulted in an improper windfall to defendant. *Toledo v Iglesia Ni Cristo*, 18 NY3d 363.

INTERVENTION.

See PARTIES.

INTOXICATING LIQUORS.**LIABILITY OF SOCIAL HOST.**

1. Preventing Intoxicated Guests from Leaving Party.—In actions arising out of a motor vehicle accident that occurred when an intoxicated guest was leaving a party hosted by defendants at their home, common-law negligence claims asserted against defendants, alleging that defendants served the driver an unreasonable amount of alcohol and failed to control him while he was on defendants' property, were dismissed. Although landowners, in general, have a duty to act in a reasonable manner to prevent harm to those on their property, and, in particular, have a duty to control the conduct of third persons on their premises when they have the opportunity to control such persons, the defendants here were no longer in a position to control the intoxicated driver when he entered his vehicle and drove away. Furthermore, requiring social hosts to prevent intoxicated guests from leaving their property would inappropriately expand the concept of duty. *Martino v Stolzman*, 18 NY3d 905.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

SAFE PLACE TO WORK.

1. Demolition of Walls and Partitions — Industrial Code Violation.—In an action to recover damages for injuries sustained when plaintiff, while demolishing brick walls at a vacant warehouse, was struck by two unsecured metal, vertical plumbing pipes that fell onto him after being struck by debris from the demolition of a nearby wall, plaintiff sufficiently stated a claim under Labor Law § 241 (6) based on a violation of 12 NYCRR 23-3.3 (b) (3). That regulation provides: "Walls, chimneys and other parts of any building or other structure shall not be left unguarded in such condition that such parts may fall, collapse or be weakened by wind pressure or vibration." Plaintiff was not required to show that the pipes fell or collapsed due to wind pressure or vibration to state a claim under 12 NYCRR 23-3.3 (b) (3). The phrase "by wind pressure or vibration" does not attach to the words "fall" or "collapse," but only to the immediately preceding words, "be weakened." *Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1.

2. Demolition of Walls and Partitions — Industrial Code Violation.—In an action to recover damages for injuries sustained when plaintiff, while demolishing brick walls at a vacant warehouse, was struck by two unsecured metal, vertical plumbing pipes that fell onto him after being struck by debris from the demolition of a nearby wall, defendants were not entitled to summary judgment dismissing plaintiff's claim under Labor Law § 241 (6) based on a violation of 12 NYCRR 23-3.3 (c), which requires "continuing inspections" in order to detect hazards created by the progress of the demolition work. Defendants failed to meet their burden of showing either that they complied with the regulation or that their noncompliance did not cause plaintiff's accident. *Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1.

3. What Constitutes Elevation-Related Accident.—A worker injured by a falling object whose base stands at the same level as the worker is not categorically barred from recovery under Labor Law § 240 (1). Whether a plaintiff is entitled to recovery under Labor Law § 240 (1) requires a determination of whether the injury sustained is the type of elevation-related hazard to which the statute applies. The reach of Labor Law § 240 (1) is limited to such specific gravity-related accidents as a worker falling from a height or being struck by a falling object that was improperly hoisted or inadequately secured. *Misseritti v Mark IV Constr. Co.* (86 NY2d 487 [1995])

LABOR—Cont'd

should not be interpreted, as it has by some intermediate appellate courts, as precluding recovery under Labor Law § 240 (1) where a worker sustains an injury caused by a falling object whose base stands at the same level as the worker. Rather, the finding against liability in *Misseritti* was mandated by the absence of a causal nexus between the worker's injury and a lack or failure of a device prescribed by section 240 (1). A "same level" rule ignores the nuances of an appropriate section 240 (1) analysis and will not be adopted. *Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1.

4. What Constitutes Elevation-Related Accident.—In an action to recover damages for injuries sustained when plaintiff, while demolishing brick walls at a vacant warehouse, was struck by two unsecured metal, vertical plumbing pipes that fell onto him after being struck by debris from the demolition of a nearby wall, plaintiff was not precluded from recovery under Labor Law § 240 (1) simply because he and the pipes that struck him were on the same level. The pipes, which were metal and four inches in diameter, stood at approximately 10 feet and toppled over to fall at least four feet before striking the five-foot-eight-inch-tall plaintiff. That height differential was not de minimis given the amount of force the pipes were able to generate over their descent. Thus, plaintiff suffered harm that flowed directly from the application of the force of gravity to the pipes. However, though the risk here arose from a physically significant elevation differential, it remained to be seen whether plaintiff's injury was the direct consequence of defendants' failure to provide adequate protection against that risk. As plaintiff failed to demonstrate that protective devices such as blocks or ropes could have been used to secure the pipes and prevent the accident and defendants failed to demonstrate that no protective devices were called for, neither party was entitled to summary judgment. *Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1.

5. Fall into Open Trench.—In an action to recover damages for injuries plaintiff sustained when he stepped into an open trench partially filled with concrete while spreading wet concrete over a basement floor that had a trench system for piping, defendants were entitled to dismissal of plaintiff's Labor Law § 240 (1) cause of action. Plaintiff and his coworkers had been directed to pour and spread concrete over the entire basement floor, including the trenches. The accident occurred as plaintiff walked backwards across the floor, pulling concrete with a rake held in front of him, and stepped into the approximately two-foot-wide and three-to-four-foot-deep trench. Liability under Labor Law § 240 (1) depends on whether the injured worker's task creates an elevation-related risk of the kind that the safety devices listed in section 240 (1) protect against. The installation of a protective device to cover or barricade the trench—assuming that such a device was an "other device []" within the meaning of the statute—would have been contrary to the objectives of the work plan in the basement. Since the liquid concrete would have necessarily filled the trench and poured out over the surrounding floor areas, it would have been impractical and contrary to the very work at hand to cover the area where the concrete was being spread, particularly since the settling of concrete requires that the work of leveling be done with celerity. *Salazar v Novalex Contr. Corp.*, 18 NY3d 134.

6. Fall into Open Trench.—In an action to recover damages for injuries plaintiff sustained when he stepped into an open trench partially filled with concrete while spreading wet concrete over a basement floor that had a trench system for piping, defendants were entitled to dismissal of plaintiff's Labor Law § 241 (6) cause of action predicated on a violation of 12 NYCRR 23-1.7 (b) (1) (i). Plaintiff and his coworkers had been directed to pour and spread concrete over the entire basement floor, including the trenches. The accident occurred as plaintiff walked backwards across the floor, pulling concrete with a rake held in front of him, and stepped into the approximately two-foot-wide and three-to-four-foot-deep trench. The regulation relied upon by plaintiff states that "[e]very hazardous opening into which a person may step or fall shall be guarded by a substantial cover fastened in place or by a safety railing constructed and installed in compliance with this Part" (12 NYCRR 23-1.7 [b] [1] [i]). Even assuming that the trench here constituted a "hazardous opening," 12 NYCRR 23-1.7 (b) (1) (i) could not be reasonably interpreted to apply

LABOR—Cont'd

to a situation where, as here, covering the opening in question would have been inconsistent with filling it, an integral part of the job. *Salazar v Novalex Contr. Corp.*, 18 NY3d 134.

7. Summary Judgment.—In a personal injury action arising from plaintiff worker's fall from a six-foot high dumpster, defendants property manager and owner were not entitled to summary judgment dismissing plaintiff's Labor Law § 240 (1) claim as it could not be said as a matter of law that equipment of the kind enumerated in section 240 (1) was not necessary to guard plaintiff from the risk of falling from the top of the dumpster. Courts must take into account the practical differences between the usual and ordinary dangers of a construction site, and the extraordinary elevation risks envisioned by the statute. However, with the facts considered in the light most favorable to plaintiff, his particular task of rearranging the demolition debris and placing additional debris in the dumpster, as he described it, required him to stand at the top of the dumpster, with at least one foot perched on the eight-inch ledge of the dumpster. Moreover, defendants failed to adduce any evidence demonstrating that being in a precarious position such as plaintiff was in was not necessary to the task, nor did defendants demonstrate that no safety device of the kind enumerated in section 240 (1) would have prevented his fall. *Ortiz v Varsity Holdings, LLC*, 18 NY3d 335.

8. Summary Judgment.—In a personal injury action arising from plaintiff worker's fall from a six-foot high dumpster on property owned and managed by defendants, plaintiff's motion for summary judgment on his Labor Law § 240 (1) claim was properly denied since a question of fact remained regarding whether the task plaintiff was expected to perform created an elevation-related risk of the kind that the safety devices listed in section 240 (1) shield workers from. To recover under the statute plaintiff was required to establish that he stood on or near the eight-inch ledge at the top of the dumpster because it was necessary to do so in order to carry out the task he had been given. While the assertion in his affidavit that he was required to stand on or near the ledge was enough, in the context of the case and without contradictory evidence from defendants, to ward off defendants' motion for summary judgment, it was not sufficient by itself for plaintiff to win summary judgment. Moreover, to prevail on summary judgment, plaintiff must establish that there was a safety device of the kind enumerated in the statute that could have prevented his fall, because liability is contingent upon the failure to use, or the inadequacy of such a device. Because that too was a triable issue of fact, plaintiff was not entitled to summary judgment. *Ortiz v Varsity Holdings, LLC*, 18 NY3d 335.

9. Elevation-Related Hazard — Cleaning Manufactured Product.—Plaintiff, who was injured when he fell from a ladder in a factory while cleaning a product manufactured by his employer, was not engaged in an activity covered by Labor Law § 240 (1), which affords protections to workers "employed" in the "erection, demolition, repairing, altering, painting, cleaning or pointing of a building or structure." Plaintiff was cleaning an approximately seven-foot high "wall module" manufactured by his employer when the ladder he was standing on allegedly broke and he fell to the ground. The text and history of Labor Law § 240 (1) confirm that its central concern is the dangers that beset workers in the construction industry. Section 240 (1) has never been extended to reach a factory employee engaged in cleaning a manufactured product. Although the volume of section 240 litigation is vast, there has been no New York appellate case in which a worker recovered under that provision for an injury suffered while cleaning a product in the course of a manufacturing process, creating an inference that the statute does not apply to such injuries. Permitting recovery on the ground that plaintiff was "cleaning" a "structure" would expand the protections of the statute far beyond the purposes it was designed to serve. *Dahar v Holland Ladder & Mfg. Co.*, 18 NY3d 521.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

EVICITION.

1. Actual Partial Eviction — No Rent Abatement Where Landlord's Intrusion De Minimis.—A minimal and inconsequential retaking of space that has been leased to

LANDLORD AND TENANT—Cont'd

a commercial tenant does not constitute an actual partial eviction relieving the tenant from all obligation to pay rent where the interference by the landlord is small and has no demonstrable effect on the tenant's use and enjoyment of the space. Accordingly, where defendant landlord entered the leased space and installed cross-bracing between two existing support columns causing a change in the flow of patron foot traffic in plaintiff's theatre complex and a slight diminution of a waiting area, plaintiff was not entitled to a total rent abatement as the landlord's taking of less than one-tenth of one percent of the leased space had no measurable effect on the tenant's use and was de minimis. While it is well settled that the withholding of the entire amount of rent is the proper remedy when there has been a partial eviction by a landlord, the intrusion on the demised premises here was of such trifling amount that imposition of the draconian remedy of total rent abatement was unjustified. Given the inherent inequity of a full rent abatement under the circumstances and modern realities that a commercial lessee is free to negotiate appropriate lease terms, there is no need to apply a rule, derived from feudal concepts, that any intrusion—no matter how small—on the demised premises must result in full rent abatement. *Eastside Exhibition Corp. v 210 E. 86th St. Corp.*, 18 NY3d 617.

RENT REGULATION.

2. Major Capital Improvement Rent Increase — Permanent Exemption for Certain Apartments.—In ruling that certain apartments in petitioner's residential building were permanently exempted from being subjected to a major capital improvement (MCI) rent increase while other apartments would have their rent increased, respondent State Division of Housing and Community Renewal (DHCR) did not abandon the principle that administrative agencies are required to follow their own precedent and that deviations from precedent should be accompanied by an explanation for the modification so that the agency's decision may be properly reviewed. DHCR has, in several instances, granted an MCI rent increase along with permanent exemptions for particular apartments, rather than issuing temporary suspensions for the affected apartments. *Matter of Terrace Ct., LLC v New York State Div. of Hous. & Community Renewal*, 18 NY3d 446.

3. Major Capital Improvement Rent Increase — Permanent Exemption for Certain Apartments.—In a proceeding to review a determination of respondent State Division of Housing and Community Renewal (DHCR) granting petitioner a major capital improvement (MCI) rent increase for some apartments in its building but permanently exempting five apartments from the increase due to water damage found to be related to the MCI work, temporary suspensions of the MCI rent increase were not mandated by Rent Stabilization Code (9 NYCRR) § 2522.4 (a) (13). That regulation provides that DHCR should not grant an MCI rent adjustment if the owner "is not maintaining all required services"; however, the agency may grant the application "upon condition that such services will be restored within a reasonable time." DHCR's reading of "all required services" as referencing services that are unrelated to the MCI project is entitled to deference and cannot be said to be irrational. In the overall context of the MCI adjustment process, DHCR is supposed to grant a rent modification if an MCI project inures to the benefit of every tenant in a building. However, subdivision (a) (13) of the regulation, in contrast, envisions situations, unlike the situation here, where an MCI application satisfies that requirement but the landlord has failed to provide other "required services" unrelated to the MCI project; under those circumstances the regulation permits DHCR to encourage the restoration of those services by making that action a necessary condition of the owner's recoupment of the funds expended on the MCI project. Because it has not been alleged that petitioner deprived its tenants of required services unrelated to the MCI work, the regulation had no bearing on petitioner's application for a rent increase. *Matter of Terrace Ct., LLC v New York State Div. of Hous. & Community Renewal*, 18 NY3d 446.

4. Major Capital Improvement Rent Increase — Permanent Exemption for Certain Apartments.—It was not arbitrary or capricious for respondent State Division of Housing and Community Renewal (DHCR) to grant petitioner a major capital improvement (MCI) rent increase while at the same time permanently

LANDLORD AND TENANT—Cont'd

exempting five apartments from the obligation to pay additional rent due to water damage found to be related to the MCI work. DHCR is not limited to temporarily suspending an MCI rent increase and its choice to permanently exempt an apartment in certain situations is deferentially reviewed by the courts to determine whether there is a rational basis for the decision and, if so, DHCR's conclusion must be upheld even if a court would have reached a different result. Here, DHCR found that, at the time the MCI application was submitted, the five apartments at issue had defective conditions caused by moisture attributable to the MCI project and that those conditions continued in existence when DHCR inspected the apartments approximately 16 months later. On those facts, it was reasonable for the agency to conclude that those apartments did not benefit from the MCI project since they had been adversely affected by the construction work. As such, there was a sound basis for DHCR to exclude the five apartments from having to contribute to the cost of the MCI project. Although not cited as a basis for its decision here, if DHCR considers whether an owner has demonstrated good faith in diligently addressing the problems caused by an MCI, DHCR should articulate this circumstance in the MCI order to allow for adequate review by the courts. *Matter of Terrace Ct., LLC v New York State Div. of Hous. & Community Renewal*, 18 NY3d 446.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

ACTIONABLE WORDS.

1. Summary Judgment.—In a defamation action alleging that defendants, during a meeting with plaintiff's wife, made unqualified statements that plaintiff sexually assaulted defendants' underage daughter on two occasions, accompanied by specific details of plaintiff's threats and actions during the incidents, defendants were not entitled to summary judgment because they failed to establish as a matter of law that they did not defame plaintiff. Generally, only statements of fact can be defamatory and an actionable statement of fact may be distinguished from a protected statement of opinion by examining whether the allegedly defamatory words have a precise meaning that is readily understood, whether the statement can be proven as true or false, and whether the context of the communication signals readers or listeners that what is being read or heard is likely to be opinion, not fact. Here, although there were conflicting recollections of the meeting, the relevant factors tended to weigh in favor of viewing defendants' alleged communications as actionable statements of fact: the precise meaning of the utterances was that plaintiff raped and molested a child at a specific place during two encounters; the statements could be proven true or false; and the overall context in which the utterances were made was indicative of factual assertions. Since a reasonable listener would have understood that defendants intended to label plaintiff as a child rapist, the statements would be actionable even if they were couched in the form of an opinion, rather than fact. Plaintiff's wife's realization that defendants' purported statements were derived from what their daughter told them was not determinative of whether defendants' alleged communications were actionable because the fact that a particular accusation originated with a different source does not automatically furnish a license for others to repeat or publish it without regard to its accuracy or defamatory character. *Thomas H. v Paul B.*, 18 NY3d 580.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

LIMITATION OF ACTIONS.**ESTOPPEL TO PLEAD STATUTE OF LIMITATIONS.**

1. Installation of Telephone Lines on Private Property.—Plaintiffs' General Business Law § 349 claim based upon defendant telephone company's attachment of a box to plaintiffs' apartment building many years ago for the purpose of transmitting

LIMITATION OF ACTIONS—Cont'd

telephone communications to and from defendant's customers in other buildings, allegedly without telling plaintiffs that they were entitled to compensation and falsely telling plaintiffs that defendant was entitled to attach the box, was not timely. The claim was subject to the three-year limitations period imposed by CPLR 214 (2), which applies to actions to recover upon a liability created or imposed by statute. The complaint, however, alleged no successful deception of plaintiffs within three years of the time the action was brought, rendering defendant's statute of limitations defense prima facie valid. Defendant was not estopped from raising the statute of limitations defense, as plaintiffs did not alleged an act of deception, separate from the ones for which they sued, on which an equitable estoppel could be based. Plaintiffs' injury was suffered when, relying on defendant's omissions and representations, they refrained from demanding either payment or removal of the box and that occurred more than three years before suit was brought. *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.

FOUR-MONTH STATUTE OF LIMITATIONS.

2. Challenge to Termination of Probationary Public School Employment.—The proceedings by petitioners challenging the termination of their probationary employment at respondent New York City Department of Education, brought more than four months after the dates when their probationary service ended but within four months after petitioners exhausted an available internal appeal procedure, were time-barred under CPLR 217 (1). As *Matter of Frasier v Board of Educ. of City School Dist. of City of N.Y.* (71 NY2d 763 [1988]) holds, a determination pursuant to Education Law § 2573 (1) (a) to discontinue a probationary employee's service becomes final and binding on that employee on his or her last day at work. Here, respondent's decisions were "final and binding" within the meaning of CPLR 217 (1) as of the dates when petitioners' probationary service ended, and any suit to challenge those decisions should have been commenced within four months after those dates. The internal appeal procedure provided for under the collective bargaining agreement and respondent's bylaws constituted an optional procedure under which an employee may ask respondent to reconsider and reverse its initial decision; it was not an administrative remedy that petitioners were required to exhaust before litigating the termination of their probationary employment. *Kahn v New York City Dept. of Educ.*, 18 NY3d 457.

WHAT STATUTE GOVERNS.

3. Claim against School District to Recover Taxes Erroneously Assessed.—Education Law § 3813 (2-b)'s one-year statute of limitations applies to a taxpayer's claim against a school district for money had and received arising from an erroneous assessment of school taxes. The statute, which governs non-tort claims against school districts, provides, "notwithstanding any other provision of law providing a longer period of time in which to commence an action or special proceeding" against a school district, no such action shall be commenced more than one year after the cause of action arose. A taxpayer may recover taxes paid pursuant to a wrongful assessment under the theory of money had and received. Because such a claim is premised upon a contractual obligation or liability, express or implied in law or fact, it is generally governed by a six-year statute of limitations. However, that limitations period is inapplicable where, as here, the taxpayer seeks recovery against a school district, which is entitled to rely on section 3813 (2-b). *Regional Economic Community Action Program, Inc. v Enlarged City School Dist. of Middletown*, 18 NY3d 474.

WHEN CAUSE OF ACTION ACCRUES.

4. Claim against School District to Recover Taxes Erroneously Assessed.—A taxpayer's claim against a school district for money had and received arising from an erroneous assessment of school taxes accrued when the taxes were paid, and not when the district refused to issue a refund. Education Law § 3813 (1), which provides that accrual of claims for monies due arising out of contract "shall be deemed to have occurred as of the date payment for the amount claimed was denied," was inapplicable to the taxpayer's claim. That statute applies to actions

LIMITATION OF ACTIONS—Cont'd

where the parties have a contractual relationship, and the taxpayer and the district did not have such a relationship. Although a cause of action for money had and received is an action based on an implied contract, that designation is a misnomer because it is not an action founded on a contract at all; rather, it is an obligation which the law creates in the absence of an agreement when one party possesses money that in equity and good conscience it ought not to retain and that belongs to another. *Regional Economic Community Action Program, Inc. v Enlarged City School Dist. of Middletown*, 18 NY3d 474.

5. Right to Demand Payment under Insurance Contracts.—The six-year statute of limitations applicable to defendant insurers' breach of contract counterclaims began to run when the insurers possessed the legal right to demand payment from the insured for various amounts owed under the insurance contracts. As a general principle, the statute of limitations begins to run when a cause of action accrues (see CPLR 203 [a]), that is, when all of the facts necessary to the cause of action have occurred so that the party would be entitled to obtain relief in court. Under the accrual principle, where a claim is for payment of a sum of money allegedly owed pursuant to a contract, the statute of limitations would be triggered when the party that was owed money had the right to demand payment, not when it actually made the demand. Here, defendants acknowledged that they had the right to bill plaintiff years earlier for many adjustments under the policies but failed to do so through inadvertence. To hold that the claims accrued when defendants demanded payment would permit a defendant to extend the limitations period indefinitely by simply failing to make a demand. Furthermore, defendants' contention that their right to payment under the policies was subject to a condition precedent—defendants' issuance of a demand for payment—was not persuasive; defendants could not point to any contract language unambiguously conditioning their right to payment on their own demand. *Hahn Automotive Warehouse, Inc. v American Zurich Ins. Co.*, 18 NY3d 765.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MONOPOLIES.

DONNELLY ACT.

1. Reinsurance Coverage — Foreign Conspiracy.—Plaintiff, a New York branch of a German reinsurance corporation, failed to state an antitrust claim under the Donnelly Act (General Business Law § 340 *et seq.*) against defendants, London, England based entities engaged in the business of providing retrocessionary reinsurance that were created so as to reinsure certain otherwise uninsurable pre-1993 non-life retrocessionary obligations of Lloyd's of London syndicates. The complaint alleged, essentially, that a German reinsurer through its New York branch purchased retrocessional coverage in a London marketplace and consequently sustained economic injury when retrocessional claims management services were by agreement within that London marketplace consolidated so as to eliminate competition over their delivery. Injury so inflicted, attributable primarily to foreign, government approved transactions having no particular New York orientation and occasioning injury here only by reason of the circumstance that plaintiff's purchasing branch

MONOPOLIES—Cont'd

happens to be situated here, was not redressable under New York State's antitrust statute. Even assuming that the extraterritorial reach of the Donnelly Act is as extensive as that of its federal counterpart, the Sherman Act (15 USC § 1 *et seq.*), the Sherman Act would not reach a competitive restraint, imposed by participants in a British marketplace, that only incidentally affected commerce in this country. *Global Reins. Corp.-U.S. Branch v Equitas Ltd.*, 18 NY3d 722.

2. Reinsurance Coverage — Relevant Product Market.—Plaintiff, a New York branch of a German reinsurance corporation, failed to state an antitrust claim under the Donnelly Act (General Business Law § 340 *et seq.*) against defendants, London, England based entities engaged in the business of providing retrocessionary reinsurance that were created so as to reinsure certain otherwise uninsurable pre-1993 non-life retrocessionary obligations of Lloyd's of London syndicates. An antitrust claim under the Donnelly Act, or under its essentially similar federal progenitor, section 1 of the Sherman Act (15 USC § 1 *et seq.*), must allege both concerted action by two or more entities and a consequent restraint of trade within an identified relevant product market. Although a perhaps colorable claim of concerted action was discernable from the complaint, and there was a nominal allegation of a worldwide market, there was no allegation of any anticompetitive effect attributable to the posited conspiracy beyond the Lloyd's marketplace. The Lloyd's syndicates were capable of insulating themselves from each other's competitive behavior in the area of claims management and could by that device attempt to cap their liabilities under certain previously issued coverage, but there were no allegations in the complaint from which it was possible to gather that they were capable of avoiding the business consequences of this approach in the global market. Plaintiff was perhaps injured by an anticompetitive restraint in the Lloyd's market, but that was not a circumstance from which it was possible to conclude that there was some broader anticompetitive effect, or even a capacity to produce such an effect, in the relevant world market. *Global Reins. Corp.-U.S. Branch v Equitas Ltd.*, 18 NY3d 722.

MOTELS.

See INNKEEPERS.

MOTOR VEHICLES.**CHEMICAL TESTS.**

1. Refusal to Submit to Chemical Test.—In a prosecution for driving while intoxicated, the trial court erred in permitting the People to introduce, as proof of consciousness of guilt, evidence of defendant's refusal to submit to a chemical breath test to determine his blood alcohol content (BAC), where, following the state troopers' third recitation of chemical test warnings and accompanying request for defendant's consent to testing, defendant was not adequately warned that his request to await a call back from his lawyer would constitute a refusal to take the test. Under Vehicle and Traffic Law § 1194 (2) (f), evidence that a defendant declined to take a chemical test is admissible provided that the defendant was clearly and unequivocally informed that that would be one of the ramifications of refusal. Refusal evidence is probative of consciousness of guilt only if the defendant actually declined to take the test. Here, the troopers not only granted defendant's request to attempt to contact his attorney, but they left him alone for a half hour to wait for a return telephone call from his attorney before they again approached him, and they did not indicate at any point that BAC tests were to be administered promptly or that defendant's time to make a decision was limited. When defendant was asked on the third and final occasion whether he was willing to take a chemical test, he had no reason to know that his time for deliberation was over. A reasonable motorist in defendant's position would not have understood that, unlike the prior encounters, his further request to speak to an attorney would be interpreted by the troopers as a binding refusal to submit to a chemical test. *People v Smith*, 18 NY3d 544.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

MUNICIPAL CORPORATIONS—Cont'd**REGULATION OF TAXICAB BUSINESS.**

1. Prohibiting Taxicab Owners from Collecting Sales Tax in Addition to Maximum Permitted Lease Rates.—A regulation of a municipal taxi and limousine commission that prohibited taxicab owners from collecting sales tax from driver-lessees in addition to the maximum permitted lease rates was annulled because the commission did not show any rational basis for it. The decision to change the prevailing practice of permitting owners to collect the sales tax in addition to the maximum lease rate was admittedly not based on any economic analysis, nor was there any evidence of an industrywide inconsistency regarding the collection of sales tax. The commission would not necessarily be faulted for making an adjustment to the maximum permitted lease rates without an affirmative showing that taxi owners' revenues and costs justified the adjustment, so long as the owners had an opportunity to submit evidence on that issue. But a change in the maximum rates had to be justified by something, and the commission presented no justification with any support in the record for its decision to require the inclusion of sales tax in the maximum lease rates. In short, the regulation appeared to be an arbitrary and capricious decision to transfer money from taxicab owners to taxicab drivers. *Metropolitan Taxicab Bd. of Trade v New York City Taxi & Limousine Commn.*, 18 NY3d 329.

TORT LIABILITY.

2. Failure to Provide Adequate Police Protection.—A municipality can avoid liability in a negligence action either if the plaintiff fails to establish that it was owed a special duty of care or if the municipality establishes that it was entitled to a governmental function immunity defense. The special duty rule, which requires a plaintiff to show the municipality violated a special duty owed to the plaintiff apart from any duty to the public in general, operates independently of the governmental function immunity defense, which shields public entities from liability for discretionary actions taken during the performance of governmental functions. The governmental function immunity defense precludes liability even when all elements of a negligence claim—including duty—have been proved. The special duty doctrine is therefore not an exception to governmental function immunity. *Valdez v City of New York*, 18 NY3d 69.

3. Special Relationship — Failure to Provide Adequate Police Protection — Justifiable Reliance on Police Promise.—In a negligence action alleging that defendant City failed to provide adequate police protection to plaintiff, who was shot by her former boyfriend, the evidence was insufficient to establish a special relationship between plaintiff and the police and to demonstrate the special duty of care necessary to hold the City liable. Under the special relationship rule plaintiff was required to allege a special duty, beyond the obligation owed the public at large, and to show, among other things, justifiable reliance on the municipality's affirmative undertaking. The "justifiable reliance" element was not satisfied here on the basis of a telephone call plaintiff made to her local police Domestic Violence Unit on the day before she was shot to report a death threat from the former boyfriend. Based on nothing more than the statements of the police officer who spoke to her on the telephone that she should return to her apartment and that the police would arrest the former boyfriend "immediately," it was not reasonable for plaintiff to conclude that she could relax her vigilance indefinitely. Since the record indicated that plaintiff was threatened over the telephone, and there was no indication that plaintiff knew where he was calling from or that she conveyed any information relating to his whereabouts to the police, it would not have been reasonable for plaintiff to have relied on the police promise to arrest the former boyfriend "immediately" in a literal sense since his location had to be discovered. At best, the officer's statement could reasonably be viewed only as a promise to look for the former boyfriend and arrest him if he was located. Furthermore, plaintiff's prior experience with the Domestic Violence Unit and her testimony that she expected the police to call her back to confirm the arrest undercut her claim that she was justified in relaxing her vigilance when more than a day passed with no word of the expected arrest. *Valdez v City of New York*, 18 NY3d 69.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

DUTY.

1. Injured Worker.—In an action to recover damages for personal injuries plaintiff worker sustained when he sliced his left thumb while using an unguarded angle grinder, the Appellate Division properly affirmed an order denying defendant contractor's motion for summary judgment dismissing plaintiff's common-law negligence cause of action as against it since there were unresolved factual issues bearing on whether defendant, which was not plaintiff's employer, owed any duty to plaintiff with respect to the condition of the grinder. There was conflicting evidence as to whether the grinder was owned by defendant or plaintiff's employer, and as to the circumstances under which plaintiff came to possess the grinder. *Beazer v New York City Health & Hosps. Corp.*, 18 NY3d 833.

2. Duty to Assist Guest Leaving Party.—In actions arising out of a motor vehicle accident that occurred when an intoxicated guest was leaving a party hosted by defendants at their home, common-law negligence claims asserted against defendants, alleging that defendants failed to warn the driver that vehicles parked on the road could obstruct his view as he exited the driveway, were dismissed. Defendants had no duty to assist the driver as he pulled out of their driveway, or otherwise warn him that vehicles parked along the road next to the driveway might obstruct the view when exiting. While a landowner's duty to warn of a latent, dangerous condition on his property is a natural counterpart to his duty to maintain his property in a reasonably safe condition, the vehicles parked adjacent to the defendants' driveway did not create a latent or dangerous condition on their property. That the defendants may have been aware of the potential obstruction did not create a duty on their part to assist or warn the departing guest. *Martino v Stolzman*, 18 NY3d 905.

MAINTENANCE OF PREMISES.

3. Duty of Landowner.—In an action to recover for injuries an employee of an independent contractor sustained while working at a recycling center owned by defendant County but operated by the contractor under an operations and maintenance agreement, the courts below improperly applied the out-of-possession landlord standard in granting the County's motion for summary judgment dismissing the complaint since no leasehold was created by the agreement. Control over the property is the test which measures generally the responsibility in tort of the owner of real property, and control is both a question of law and of fact. *Gronski v County of Monroe*, 18 NY3d 374.

4. Duty of Landowner.—In an action to recover for injuries an employee of an independent contractor sustained while working at a recycling center owned by defendant County but operated by the contractor under an operations and maintenance agreement, defendant was not entitled to summary judgment dismissing the complaint as it could not be said as a matter of law that the County had relinquished complete control of the facility. When a landowner and one in actual possession have committed their rights and obligations with regard to the property to a writing, both the terms of the agreement and the parties' course of conduct, including but not limited to, the landowner's ability to access the premises, must be examined in order to determine whether the landowner in fact surrendered control over the property such that its duty is extinguished as a matter of law. Although the agreement between the County and the independent contractor unambiguously assigned to the contractor the responsibility to implement safe practices and remedy unsafe conditions at the recycling center, it also vested the County with ultimate approval authority over the contractor's operating procedures and granted the County supervisory rights and unfettered access to the facility. Moreover, an examination of the County's conduct indicated that it maintained both a visible and vocal presence at the recycling center. The County, as landowner, remained in presumptive control

NEGLIGENCE—Cont'd

over its property and subject to the attendant obligations of ownership until it was found that control was relinquished, either as a matter of law or by a factfinder after presentation of all of the evidence. Accordingly, the remaining issue to be resolved by a trier of fact was whether the County, through its course of conduct, exercised sufficient control over the facility such that it owed plaintiff a duty to prevent and remedy the kind of condition that resulted in his injury. *Gronski v County of Monroe*, 18 NY3d 374.

PROXIMATE CAUSE.

5. Reckless Conduct of Plaintiff — Diving Into Shallow Water.—A claim alleging that defendant State negligently failed to maintain a State-owned dam and lake in a reasonably safe condition and failed to warn that the water near the dam was too shallow for safe diving was properly dismissed where claimant engaged in reckless behavior when he dove from the dam's spillway into the dangerously shallow lake waters, sustaining serious injuries. Claimant acknowledged that he had been a frequent visitor to the area and had swum there many times, that he knew that the lake's water level fluctuated, and that he saw that the water was below the top of a spillway which was three feet below the crest of the dam and no more than four feet above the lake bed. Any warning would have only alerted him to what he already knew about the approximate water level in the vicinity of the spillway as a result of his familiarity with the depth of the lake's water and the height of the spillway above the lake bed. There was no evidence of any kind to support claimant's speculation that the dam, which leaked, was leakier at the time of the accident or the lake's water level was lower on that day than had been the case on the other occasions when he dove into the lake. It did not follow that the lake's water level must have been lower than usual on the day of the accident because claimant did not hit bottom any of the other times he dove in from the spillway or, if the water level was lower that day, it was because of leaks in the dam, rather than the amount of rainfall that summer. Even assuming that the State owed claimant a duty to warn, a plaintiff with actual knowledge that he is diving into shallow water has engaged in reckless conduct constituting the sole legal cause of any ensuing injuries, thus absolving a defendant of negligence. *Theshelashvili v State of New York*, 18 NY3d 199.

VIOLATION OF STATUTORY DUTY.

6. Excavator's Duty to Preserve and Protect Adjoining Property — Absolute Liability.—Defendants, whose excavation work performed 18 feet below curb level caused an adjacent building owned and leased by plaintiffs to shift out of plumb and tilt out of verticality, were subject to absolute liability under former Administrative Code of the City of New York § 27-1031 (b) (1), which imposed a specific duty upon those performing excavation work more than 10 feet below curb level to "preserve and protect" adjoining structures. Usually, a violation of a state statute that imposes a specific duty constitutes negligence per se, or may even create absolute liability, whereas a violation of a municipal ordinance constitutes only evidence of negligence. However, Administrative Code § 27-1031 (b) (1), which originated from an 1855 special law imposing absolute liability that was subsequently reenacted under the Consolidation Act of 1882, was unique in that its language and purpose were virtually identical, in all relevant aspects, to those of its state law predecessors. Neither the wording nor the import of the statute was materially or substantially altered either upon its recodification in 1899 as a local law or in the century thereafter. More importantly, its original purpose of shifting the risk of injury from the injured landowner to the excavator of adjoining land remained constant over the years. As such, Administrative Code § 27-1031 (b) (1) was entitled to statutory treatment in tort cases. *Yenem Corp. v 281 Broadway Holdings*, 18 NY3d 481.

7. Excavator's Duty to Preserve and Protect Adjoining Property — Summary Judgment.—Plaintiffs, the owner and tenant of a building that shifted out of plumb and tilted out of verticality during the course of defendants' excavation work on adjacent property, were entitled to summary judgment on the issue of liability under former Administrative Code of the City of New York § 27-1031 (b) (1), which imposed a specific duty upon those performing excavation work more than 10 feet

NEGLIGENCE—Cont'd

below curb level to “preserve and protect” adjoining structures. Defendants’ affidavits and the report of their engineers expressly stated that the excavation, carried to a depth exceeding the regulatory threshold, undermined the foundation of the building and caused it to lean southward. Although certainly relevant to any measure of damages, consideration of the building’s prior condition did not factor into a proximate cause analysis under Administrative Code § 27-1031 (b) (1), which imposed absolute liability upon defendants. *Yenem Corp. v 281 Broadway Holdings*, 18 NY3d 481.

WHAT CONSTITUTES.

8. Improper Disposal of Construction Debris in Garbage Can at Park.—Plaintiff, a park maintenance worker who was allegedly injured in the course of her employment when she attempted to move a garbage can containing concrete, was entitled to a trial on the merits of her claim that defendant subcontractor’s improper disposal of construction debris into the can caused her serious and permanent injuries. Defendant, hired as a subcontractor on a project to renovate the park where plaintiff was injured, failed to meet its burden of making a prima facie showing of entitlement to summary judgment. Defendant failed to prove that it did not place construction debris in the trash receptacle. Its owner averred that he did not remember whether defendant disposed of concrete, and defendant did not place any documentation on the record establishing either that it was not involved in the disposal of concrete as a result of its participation in the renovation project, or, if it was, that the task was properly accomplished. Moreover, even if defendant had met its burden, plaintiff set forth evidence sufficient to establish that there were genuine issues of material fact necessitating a trial. There was evidence that concrete removal was part of the renovation work performed at the park and that there was concrete in the garbage can at the time of plaintiff’s accident. There was also a material factual dispute over whether members of the public had access to the park in the days leading up to plaintiff’s accident. *Vega v Restani Constr. Corp.*, 18 NY3d 499.

9. Improper Disposal of Construction Debris in Garbage Can at Park — Risk of Injury Inherent in Plaintiff’s Work.—In a personal injury action brought by plaintiff, a park maintenance worker who was allegedly injured in the course of her employment when she attempted to move a garbage can containing concrete disposed of by defendant subcontractor, defendant failed to meet its burden on its motion for summary judgment under a theory that the risk of injury due to moving very heavy garbage cans was inherent in plaintiff’s work so as to bar her from recovery for her injuries. Defendant, hired as a subcontractor on a project to renovate the park where plaintiff was injured, offered no evidence concerning the typical duties of someone working in plaintiff’s position. Moreover, plaintiff testified during her deposition that it was not part of her job to dispose of construction debris, and a representative of defendant made statements strongly suggesting that it was the responsibility of the contractors themselves, not the park maintenance staff, to dispose of concrete waste from the renovation project. *Vega v Restani Constr. Corp.*, 18 NY3d 499.

10. Improper Disposal of Construction Debris in Garbage Can at Park — Ordinary and Obvious Hazard.—In a personal injury action brought by plaintiff, a park maintenance worker who was allegedly injured in the course of her employment when she attempted to move a garbage can containing concrete disposed of by defendant subcontractor during a park renovation project, the hazard of a very heavy garbage can filled with concrete was not, as a matter of law, “ordinary and obvious” so as to bar plaintiff from recovery for her injuries, assuming that the doctrine of open and obvious hazards applies in these circumstances. On defendant’s motion for summary judgment there remained triable issues of fact pertaining to whether the risk that the garbage can could be filled with concrete was ordinary and obvious. The record evidence suggested that it would have been unusual and abnormal for there to be concrete in the garbage can, and that the concrete was under some garbage and not visible. Although it might have been possible that the hazard was otherwise obvious because plaintiff could have hefted the can in order to test its weight before attempting to pull it, the record did not support the conclusion that the claimed

NEGLIGENCE—Cont'd

overloading condition was obvious, and that plaintiff should have known that the can was very heavy due to the presence of concrete, or that attempting to move it on her own would cause injury. *Vega v Restani Constr. Corp.*, 18 NY3d 499.

NEGOTIABLE INSTRUMENTS.

See **BILLS, NOTES AND CHECKS.**

NEWSPAPERS.

See, also, **LIBEL AND SLANDER**, and other specific titles.

OPTICIANS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

OPTOMETRISTS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

PARENT AND CHILD.

See, also, **ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE; INFANTS; SCHOOLS; SOCIAL SERVICES**, and other specific titles.

PATERNITY PROCEEDINGS.

See **CHILDREN BORN OUT OF WEDLOCK.**

PHYSICAL EXAMINATIONS.

See **DISCLOSURE.**

PODIATRISTS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

POLITICAL PARTIES.

See **ELECTIONS.**

PRINCIPAL AND AGENT.

See, also, **BROKERS; INSURANCE**, and other specific titles.

PRISONS AND PRISONERS.**DISCIPLINE OF INMATES.**

1. Confidential Informant.—The Appellate Division's judgment confirming a determination in an inmate disciplinary hearing finding petitioner guilty of violating prison rules prohibiting assault and violent conduct was affirmed notwithstanding that the hearing officer relied principally on detailed information from a confidential informant and declined to call as a witness a correction officer who petitioner thought might corroborate his testimony concerning his whereabouts. Information from a confidential informant may constitute substantial evidence to support a prison disciplinary determination so long as the hearing officer makes an independent assessment of the informant's reliability. Here, the hearing officer's inquiry established that the confidential account was detailed and specific; that there were valid reasons to conclude that the informant was reliable; and that there was no reason to think that the informant was motivated by a promise of reward from the prison officials or a personal vendetta against petitioner. Further, the hearing officer did not abuse his discretion when he declined to call as a witness an additional correction officer from whom petitioner sought testimony since the correction officer responsible for monitoring inmate movement to and from petitioner's cell block on the day in question testified that he did not maintain a written record of the time when an inmate issued a pass comes back to the cell block, and that he did not recall seeing petitioner return. In any event, testimony about petitioner's where-

PRISONS AND PRISONERS—Cont'd

abouts at one time would not preclude his presence in the location where the assault occurred an hour later. *Matter of Williams v Fischer*, 18 NY3d 888.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

PUBLIC UTILITIES.

PUBLIC SERVICE COMMISSION.

1. Conditional Approval of Land Sale.—A determination of respondent Public Service Commission, which rescinded a prior order approving the transfer of property from respondent public utility to petitioner private corporation on the grounds that development of the property as an envelope manufacturing facility was an essential factor underlying the public interest finding in its prior order (*see* Public Service Law § 70), lacked a rational basis and was annulled. Although the corporation no longer intended to build the envelope factory, the development of that factory was not made an express condition of the Commission's approval or a condition precedent to the transfer of the property to petitioner. That the use of the property as an envelope manufacturing facility was the reason that the sale was approved is belied by the Commission's prior order, which contemplates future transfers of the property in language concerning deed restrictions and provided that the corporation would pay the utility fifty percent of all net proceeds from any sale that occurred within three years of closing. *Matter of Luyster Cr., LLC v New York State Pub. Serv. Commn.*, 18 NY3d 977.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RECORDS.

FREEDOM OF INFORMATION LAW.

1. Redaction of Residential Addresses of Professionals Licensed by Education Department.—In responding to petitioners' Freedom of Information Law (FOIL) request for the names and business addresses of veterinarians licensed by the Education Department in Schenectady County, the Department was required to either produce the existing record of names and addresses in full or remove the home addresses of licensees, which was information that the Department did not wish to produce and that petitioners did not request. An agency responding to a FOIL demand may not withhold a record solely because some of the information in that record may be exempt from disclosure. Where it can do so without unreasonable difficulty, the agency must redact the record to take out the exempt information. Here,

RECORDS—Cont'd

the Department had refused to provide street addresses for any of the licensees because its computer database did not distinguish between residential and business addresses, but it did not claim that it would be hard to find out, by communicating with the licensees, which addresses were residential. Although FOIL generally does not require an agency to create a new record (Public Officers Law § 89 [3] [a]), there is a difference between creating a new record and redacting an existing one. *Matter of Schenectady County Socy. for the Prevention of Cruelty to Animals, Inc. v Mills*, 18 NY3d 42.

2. Exemption for Inter-Agency and Intra-Agency Materials — Communications with Federal Governmental Agencies.—In a proceeding by petitioner municipality to challenge respondent Department of Environmental Conservation's denial of portions of petitioner's request for information under the Freedom of Information Law (FOIL) relating to the Hudson River dredging project and the availability of alternative water supplies for local residents, the statutory exemption for pre-decisional inter-agency or intra-agency materials (*see* Public Officers Law § 87 [2] [g]) was not applicable to certain records exchanged with the United States Environmental Protection Agency (EPA). By its plain terms, the statutory definition of "agency" as set forth in Public Officers Law § 86 (3) does not include federal agencies but is limited to state and municipal entities. Although the EPA would be an agency within the definition of that term as it is commonly understood, it is not an "agency" for purposes of FOIL. To the extent that there is resonance to the argument that the exemption should apply in order to protect the pre-decisional joint deliberative process, that issue must be addressed to the Legislature. *Matter of Town of Waterford v New York State Dept. of Envtl. Conservation*, 18 NY3d 652.

3. Exemption for Inter-Agency and Intra-Agency Materials — Communications with Federal Governmental Agencies.—In a proceeding by petitioner municipality to challenge respondent Department of Environmental Conservation's denial of portions of petitioner's request for information under the Freedom of Information Law (FOIL) relating to the Hudson River dredging project and the availability of alternative water supplies for local residents, the statutory exemption for pre-decisional inter-agency or intra-agency materials (*see* Public Officers Law § 87 [2] [g]) was not applicable to certain records exchanged with the United States Environmental Protection Agency (EPA) on the ground that the EPA was the equivalent of an outside consultant. The EPA was the lead agency for the dredging project. It was not retained by respondent and did not function as respondent's employee or agent. Moreover, unlike typical consultants, those agencies represented different constituencies and their interests might diverge. *Matter of Town of Waterford v New York State Dept. of Envtl. Conservation*, 18 NY3d 652.

RELIGIOUS CORPORATIONS AND ASSOCIATIONS.**DEMOLITION OF CHURCH BUILDING.**

1. Authority of Former Parishioners to Challenge Demolition.—Section 5 of the Religious Corporations Law did not grant plaintiffs, former parishioners of a Roman Catholic church incorporated as a religious corporation, the authority to challenge the decision to demolish the church, which was properly voted upon by the board of trustees and sanctioned by the archbishop. Section 5 vests the custody and control of a religious corporation's real property in the board of trustees and states that the trustees of an incorporated Roman Catholic church shall not transfer any property without the consent of the bishop or archbishop of the diocese. Section 5 is consistent with the church corporation bylaws and sections 91 and 92 of the Religious Corporations Law, which explain the governance of an incorporated Roman Catholic church and the division and disposition of parish property, in uniformly recognizing the authority of the board of trustees and the archbishop to control church property. Applying the neutral principles of law doctrine, no right or authority to veto the demolition decision was reserved for the benefit of the parishioners. Pursuant to the bylaws, parishioners were members of the ecclesiastical body—not members of a corporation, and such status did not confer upon them the rights and duties as members of the religious corporation. Given that the deed to the property at issue

RELIGIOUS CORPORATIONS AND ASSOCIATIONS—Cont'd

was in the name of the religious corporation, and the corporation's bylaws and the Religious Corporations Law unequivocally granted the trustees, as well as the archbishop specifically, the power to control and administer the property of the church corporation, the authority to demolish the church building was within their purview. *Blaudziunas v Egan*, 18 NY3d 275.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

ADMINISTRATIVE PERSONNEL.

1. Enforcement of New York City's Conflicts of Interest Law against Tenured Public School Assistant Principal.—Respondent Conflicts of Interest Board of the City of New York (COIB) and respondent City's Office of Administrative Trials and Hearings were improperly prohibited from proceeding with an administrative trial against petitioner, a tenured assistant principal in the City's public school system, for an alleged violation of New York City's Conflicts of Interest Law (NY City Charter §§ 2600-2607) after the New York City Department of Education (DOE) declined to take disciplinary action against petitioner. COIB is authorized to enforce the Conflicts of Interest Law against a public servant who is subject to discipline under Education Law §§ 3020 and 3020-a. Although sections 3020 and 3020-a set out the exclusive means for DOE to sanction a tenured pedagogue, including by imposing a fine, the penalty petitioner faced here, it does not follow that COIB may not fine a DOE employee for a Conflicts of Interest Law violation. The Conflicts of Interest Law is a separate statutory scheme designed to protect governmental integrity, not to safeguard a tenured pedagogue from arbitrary action by DOE that might adversely affect the terms and conditions of his or her employment. While COIB may recommend that DOE suspend or remove a tenured pedagogue from employment for an ethics violation (NY City Charter § 2606 [b]), COIB itself may only levy a fine for the act prompting its recommendation. Accordingly, "discipline" within the meaning of sections 3020 and 3020-a encompasses only job-related penalties that may be imposed upon a tenured pedagogue by his or her employer—a local school board or, in the case of the City, DOE. Moreover, the text and legislative history of the Conflicts of Interest Law belie the notion that COIB may not fine City employees, such as tenured pedagogues, who are also subject to a state law or collective bargaining agreement providing for disciplinary proceedings. Since NY City Charter § 2603 (h) (6) states that COIB is not prevented from acting where the

SCHOOLS—Cont'd

employing agency decides to terminate or otherwise discipline a public servant, there is no basis for interpreting the Conflicts of Interest Law as forbidding the Board from acting where the agency has elected not to pursue disciplinary action. *Matter of Rosenblum v New York City Conflicts of Interest Bd.*, 18 NY3d 422.

TUITION FOR NONRESIDENTS.

2. Children Residing in Child Care Institutions.—Plaintiff school district was not obligated to pay for the educational costs of those children living in defendant licensed child care institution located within district boundaries who were determined to be nonresidents of the school district. Education Law article 81, which governs the education of school-aged children residing in child care institutions, provides that such children are entitled “to receive a free and appropriate education in the least restrictive environment for that child” (Education Law § 4002 [1]). Suitable programs for accomplishing that task may include the program of the public schools where the institution is located or a neighboring public school program (Education Law § 4002 [2] [a]). Article 81 must be read in conjunction with Education Law § 3202, which provides that the school district of a child’s residence is financially responsible for the cost of educating a child. Although the statutory language of Education Law § 3202 (6) states that it gives way to the provisions of article 81, it does so only to the extent to which article 81 expressly supercedes its provisions. Thus, the residency provisions of section 3202 apply because article 81 does not adequately address who is responsible for paying the cost of the required “free and appropriate” education. Moreover, the statutory provisions of article 81 indicate that the Legislature did not intend to put the financial burden on the local school district for all of the children living in a child care institution. *Board of Educ. of the Garrison Union Free School Dist. v Greek Archdiocese Inst. of St. Basil*, 18 NY3d 355.

SEPARATION.

See HUSBAND AND WIFE.

SLANDER.

See LIBEL AND SLANDER.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATE.**CLAIM AGAINST STATE.**

1. Proximate Cause — Assault by Former Mental Patient.—The Court of Claims properly dismissed a claim in which a former mental patient, who had been admitted on a voluntary basis and left the facility without consent, assaulted claimant nearly two years after leaving the facility, since the causal connection between the hospital staff’s alleged negligence and the patient’s attack on claimant was too attenuated and speculative to support liability. There was no way to know whether and no reason to suppose that the patient would have remained in the care of the State at the time of the assault even if hospital staff had prevented him from leaving the grounds two years earlier, or had notified the police of his absence, which they did not as he was assessed as nondangerous. There was always a risk that the patient might eventually decompensate and become assaultive once outside a hospital setting—whether he left with or without permission—as any number of circumstances arising during the two-year period might have triggered such a change in mental condition. Proximate cause analysis incorporates a “test of temporal duration,” which asks if the occurrence of the injury was tied to the claimed negligent act or omission within a reasonable lapse of time, and here the lapse of time was not reasonable. Accordingly, the State was entitled to dismissal of the claim because it established, as a matter of law, that any negligence on its part was not a proximate cause of claimant’s injuries. *Williams v State of New York*, 18 NY3d 981.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

STATUTES.**FEDERAL PREEMPTION.**

1. Claims Alleging Fraud and Violations of Real Estate Appraisal Independence Rules.—The Attorney General’s claims against defendants alleging fraud and violations of real estate appraisal independence rules in an action seeking injunctive and monetary relief as well as civil penalties for violations of New York’s Executive Law and Consumer Protection Act (*see* Executive Law § 63 [12]; General Business Law § 349) and the common law were not preempted by federal law. The Home Owners’ Loan Act (HOLA) (12 USC § 1461 *et seq.*) and the Financial Institutions Reform, Recovery and Enforcement Act (FIRREA) (Pub L 101-73, 103 US Stat 183) and their concomitant regulations do not occupy the entire field with respect to appraisal management companies so as to preempt the Attorney General from raising the claims against defendants here. The purpose of HOLA, which created a system of federal savings and loan associations regulated by the Office of Thrift Supervision (OTS), was to provide emergency relief with respect to home mortgage indebtedness. FIRREA governs the regulation of appraisal management companies and explicitly envisioned a cooperative effort between federal and state authorities to ensure that real estate appraisal reports comport with the Uniform Standards of Professional Appraisal Practice (USPAP). FIRREA’s clear mandate was to induce states to regulate real estate appraisers in partnership with federal agencies. Although “OTS is authorized to promulgate regulations that preempt state laws affecting the operations of federal savings associations” and “occupies the entire field of lending regulation for federal savings associations” (12 CFR 560.2 [a]), the illustrative examples set forth in 12 CFR 560.2 (b) of the categories of state laws preempted under 12 CFR 560.2 (a) do not mention real estate appraisals. If, however, the state law is not covered by paragraph (b) but affects lending, the presumption arises that the law is preempted (*see* 12 CFR 560.2 [c]). Here, the crux of the Attorney General’s complaint was that defendants engaged in unlawful and deceptive business practices in that they failed to adhere to the requirements of USPAP. The Attorney General’s authority to prosecute defendants for such faulty practices would, at most, incidentally affect the lending operations of a federal savings association. *People v First Am. Corp.*, 18 NY3d 173.

SUBPOENA.

See WITNESSES.

SUBROGATION.**WAIVER.**

1. Waiver-of-Subrogation Clause in Service Provider’s Contract.—A waiver-of-subrogation clause in the parties’ contract, which provided that plaintiff “shall look solely to its insurer for recovery of its loss and hereby waives any and all claims for such loss against” defendant security services contractor, acted as a total defense to the claims asserted to recover for losses incurred during a burglary of plaintiff’s bank branch, notwithstanding that plaintiff sufficiently alleged conduct on the part of the defendants that, if true, constituted gross negligence. In upholding the validity of a waiver-of-subrogation clause, a distinction must be drawn between contractual provisions which seek to exempt a party from liability and contractual provisions which in effect simply require one of the parties to the contract to provide insurance for all of the parties. *Abacus Fed. Sav. Bank v ADT Sec. Servs., Inc.*, 18 NY3d 675.

SUMMONS.

See PROCESS.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TAXATION.**TAX LIENS, TAX SALES AND TAX TITLES.**

1. Foreclosure — Due Process.—Where petitioner County provided adequate notice for the underlying tax foreclosure action involving respondents' property, additional notice of a repurchase option authorized by local law following the lawful foreclosure, which was sent by certified mail to respondents' former address and returned as not deliverable, was sufficient and in accord with constitutional due process (US Const 14th Amend; NY Const, art I, § 6). Due process only required notice for the governmental taking of private property that may have impaired the interested parties' rights, i.e., the foreclosure action. Any subsequent juncture related to the underlying foreclosure, even one established by local law, did not impose a concomitant duty of notice, particularly when there was no further governmental taking at issue. Here, the release and repurchase option provided by the County was a discretionary, permissive remedy that did not establish or extend a property right entitled to due process protection since any property interests held by respondents were lawfully extinguished as of the expiration of their right to redemption and the entry of the judgment of foreclosure. Thus, the County was only constitutionally obligated to give singular notice of the foreclosure action, which it adequately provided, as that was the underlying governmental action threatening respondents' property interests. *Matter of Orange County Commr. of Fin. (Helseth)*, 18 NY3d 634.

TORTS.**BREACH OF CONTRACT AS BASIS FOR TORT ACTION.**

1. Gross Negligence.—In an action against defendant security services contractors to recover damages for losses incurred during a burglary of plaintiff bank's branch, the complaint did not allege conduct that would give rise to separate liability in tort. The allegations that a breach of contract occurred as a result of gross negligence did not give rise to a duty independent of the contractual relationship. *Abacus Fed. Sav. Bank v ADT Sec. Servs., Inc.*, 18 NY3d 675.

BREACH OF FIDUCIARY DUTY.

2. Existence of Relationship.—In an action arising from a series of related business transactions in which a number of foreign investors acquired membership interests in limited liability companies that purchased residential buildings for renovation and resale, plaintiffs' allegations of a fiduciary relationship survived defendants' motion to dismiss claims of an accounting, breach of fiduciary duty and constructive fraud. Plaintiffs asserted that defendants, who organized the limited liability companies, located and managed the properties, and solicited the investors, deliberately concealed that they were paid commissions of up to 15% of the purchase prices of the properties, thereby inflating the purchase prices by millions of dollars. The promoters of a limited liability company are in the best position to disclose material facts to investors and can reveal those facts more efficiently than individual investors, who would otherwise incur expense investigating what the promoters already know. In addition, the complaint alleged that defendants represented to the foreign investors that they had "particular experience and expertise" in the New York real estate market, and that plaintiffs were "overseas investors" with little knowledge of New York real estate or American laws or business practices regarding real estate or investments. Moreover, plaintiffs contended that defendants assumed a position of trust and confidence, in part, by "playing upon the cultural identities and friendship" of plaintiffs. Accepting the totality of those allegations to be true, the complaint adequately pleaded a fiduciary relationship. Additionally, the constructive fraud claim survived the motion to dismiss because plaintiffs sufficiently alleged damages by asserting that they suffered actual pecuniary loss in the amount of the secret commissions that inflated the purchase prices of the properties. *Roni LLC v Arfa*, 18 NY3d 846.

TORTS—Cont'd**PRIMA FACIE TORT.**

3. Privilege.—In an action arising out of the denial of tenure to plaintiff school teacher, allegedly resulting from defendants' disclosure of plaintiff's extramarital affair with a student's mother, defendants' course of conduct in instigating complaints to school authorities against plaintiff was not entitled to an absolute privilege under *Brandt v Winchell* (3 NY2d 628 [1958]) that would warrant dismissal under CPLR 3211 of plaintiff's causes of action for prima facie tort and tortious interference with prospective contractual rights. *Brandt* held that defendants' lawful act of initiating certain charges relating to plaintiff did not become actionable because it was motivated by personal malevolence, as the best interests of the public were advanced by the exposure of plaintiff's actions. Here, defendants reported misconduct to the relevant authorities, prompting an official investigation regarding a matter of public interest, and were allegedly motivated not by a desire to benefit the public but to harm plaintiff for personal reasons. However, accepting plaintiff's allegations as true, the complaint asserted what was in essence a blackmail scheme: defendants attempted to coerce him into relinquishing his parental rights by offering him money and threatening to reveal certain information to school authorities to ensure that he was denied tenure, and made good on the threat when plaintiff refused to accede to the demand. Defendant's complaints to school officials could not be isolated from the coercive scheme, which constituted a single and integrated course of conduct to which the absolute privilege articulated in *Brandt* should not be extended. Moreover, the conduct alleged was not entitled to immunity under the First Amendment. *Posner v Lewis*, 18 NY3d 566.

TOWNS.

See MUNICIPAL CORPORATIONS.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

CONTRACT FOR SALE OF REAL PROPERTY.

1. Damages Based on Seller's Repudiation — "Ready, Willing and Able" Showing Required.—A buyer seeking damages based on a seller's alleged repudiation of a real estate contract is required to show, as an element of its claim, that it was ready, willing and able to close the transaction, i.e., that but for the seller's repudiation, the transaction could and would have closed. This rule is supported by common sense, since damages for breach of contract are not recoverable where they were not actually caused by the breach, i.e., where the transaction would have failed, and the damages would have been suffered, even if no breach occurred. It is reasonable to allocate the burden of proof to the buyer to show that it would and could have performed, rather than to the seller to show that the buyer would not or could not have performed, since the buyer can more readily produce evidence of its own intentions and resources. Here, plaintiff buyers' evidence of their financial condition was not conclusive on the issue of their ability to make the purchases in question. Therefore, whether plaintiffs were ready, willing and able to close presented an issue of fact, and plaintiffs' motion for summary judgment on the issue of liability should have been denied. *Pesa v Yoma Dev. Group, Inc.*, 18 NY3d 527.

2. Repudiation.—In an action seeking damages based on defendant seller's alleged anticipatory breach of three real estate contracts, the courts below erred in deciding as a matter of law that the seller's transfer of the three properties in question to its affiliated corporation constituted a repudiation of the contracts. Generally, a transfer between affiliates, which may be done for any number of innocent reasons, is not in itself a repudiation. Here, the seller and its affiliate were corpora-

VENDOR AND PURCHASER—Cont'd

tions controlled by the same principals, so the transfer did not make it impossible for the seller to close the transaction or prove that it was unwilling to do so. While there was significant evidence to support a finding that the transfer was inconsistent with performance of the contracts, based on a statement in an affidavit from the seller's lawyer, a later affidavit from the same affiant could be read as retracting his earlier statement. The credibility of that explanation presented an issue of fact sufficient to defeat plaintiff buyers' motion for summary judgment on the issue of liability. *Pesa v Yoma Dev. Group, Inc.*, 18 NY3d 527.

3. Repudiation.—In an action seeking damages based on defendant seller's alleged anticipatory breach of three real estate contracts, the courts below correctly denied the seller's cross motion for summary judgment. The record did not conclusively show that plaintiff buyers were not ready, willing and able to close the transaction, or that the seller's transfer of the three properties in question to its affiliated corporation was not a repudiation of its obligations under the contracts. Even assuming that the seller did not repudiate the transaction before it sent cancellation notices to the buyers, its right to cancel based on the mortgage contingency clause in the contracts had not been conclusively demonstrated, since the buyers' claim that their failure to get mortgage commitments was a result of the seller's non-performance of its obligations remained an open issue. *Pesa v Yoma Dev. Group, Inc.*, 18 NY3d 527.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

WORKERS' COMPENSATION.**CAUSAL RELATION.**

1. Employer's Failure to File Notice of Controversy.—In a workers' compensation case in which it was undisputed that the employer did not timely file its notice of controversy (*see* Workers' Compensation Law § 25 [2] [b]) and there was no showing of good cause or other reason to excuse the failure, the employer should have been precluded from offering its physician's testimony to dispute claimant's evidence on the issue of causation. Accordingly, on remand the Workers' Compensation Board must determine, without regard to the employer's proof, whether claimant, in the first instance, demonstrated that the decedent's death was work-related. *Matter of Cappellino v Baumann & Sons Bus Co.*, 18 NY3d 890.

EXCLUSIVENESS OF REMEDY.

2. Recovery of Uninsured Motorist Benefits from Self-Insured Employer.—The exclusivity provision of Workers' Compensation Law § 11 does not bar an employee entitled to workers' compensation benefits from recovering uninsured motorist benefits from his or her self-insured employer in connection with an automobile accident that occurred while the employee was driving an employer-owned vehicle in the course of employment. While Workers' Compensation Law § 11 states that an employer's liability for workers' compensation benefits shall be exclusive and in place of "any other liability whatsoever," the statute cannot be read to bar all suits to enforce contractual liabilities. An action against a self-insurer to enforce its liability for uninsured motorist coverage, which is the same liability that an insurance company has under Insurance Law § 3420 (f) (1), is essentially contractual.

WORKERS' COMPENSATION—Cont'd

Where an employer is self-insured, as allowed by Vehicle and Traffic Law § 370 (3), it is as though the employer has written an insurance policy to itself, including the statutorily-required provision for uninsured motorist coverage. There is no policy reason why the employee's uninsured motorist protection should decrease because he or she happened to be driving a car of a self-insurer. *Matter of Elrac, Inc. v Exum*, 18 NY3d 325.

SPECIAL FUNDS.

3. Aggregate Trust Fund — Present Value of Uncapped Non-Schedule Permanent Partial Disability Award to be Deposited Into Fund.—In a workers' compensation proceeding that resulted in an uncapped non-schedule permanent partial disability award for claimant, the insurance carrier for claimant's employer was required under Workers' Compensation Law § 27 (2) to deposit a lump-sum amount into the Aggregate Trust Fund (ATF) representing the present value of the award. Section 27 (2), as amended in 2007, mandates that private insurance carriers make a deposit into the ATF of the present value of awards made pursuant to Workers' Compensation Law § 15 (3) (w), and was applicable to claimant's 2008 award. Although section 15 (3) (w) was also amended in 2007 so as to cap the number of weeks that a person is eligible to receive benefits for a non-schedule permanent partial disability, that amendment did not apply to claimant, who was injured in 2004, and his award was not capped. The Legislature specifically chose the date of the accident as the demarcation point between those claimants who qualify for the uncapped award pursuant to the pre-amended Workers' Compensation Law § 15 (3) (w) and the capped award pursuant to the amended statute, and further specifically chose the date of the award, without regard to the date of the injury, as the point where the deposit of a lump-sum payment into the ATF representing the present value of the benefits is required pursuant to Workers' Compensation Law § 27 (2). Accordingly, a private insurance carrier is required to deposit into the ATF the present value of awards that are subject to both the pre- and post-amended section 15 (3) (w). *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

4. Aggregate Trust Fund — Present Value of Uncapped Non-Schedule Permanent Partial Disability Award to be Deposited Into Fund.—Workers' Compensation Law § 27 (2), which, as amended in 2007, mandates that private insurance carriers make a deposit into the Aggregate Trust Fund (ATF) of the present value of non-schedule permanent partial disability awards made after the effective date of the statute's amendment, is not retroactive. The fact that an award required to be deposited into the ATF under section 27 (2) may relate to an injury that occurred prior to the statute's amendment does not render the statute retroactive. A statute is not retroactive when made to apply to future transactions merely because such transactions relate to and are founded upon antecedent events. Here, the insurance carrier for claimant's employer was required under the amended statute to deposit with the ATF the present value of claimant's 2008 uncapped non-schedule permanent partial disability award arising from a 2004 injury. The amendment neither altered the carrier's preexisting liability nor imposed a wholly unexpected new procedure. It merely changed the time and manner of payments of non-schedule permanent partial disability awards. *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

5. Aggregate Trust Fund — Present Value of Uncapped Non-Schedule Permanent Partial Disability Award to be Deposited Into Fund.—The Workers' Compensation Board did not act arbitrarily and capriciously in mandating that the private insurance carrier for claimant's employer deposit a lump-sum amount into the Aggregate Trust Fund representing the present value of claimant's 2008 uncapped non-schedule permanent partial disability award arising from a 2004 injury notwithstanding the carrier's contention that it was impossible to correctly ascertain the present value of such an award. The deposit of the present value of the future benefit was legislatively mandated by Workers' Compensation Law § 27 (2) and the procedure for the calculation of such an award was governed by Workers' Compensation Law § 27 (5) using specific actuarial tables. Thus, using the actuarial tables, as required by the statute, to calculate the present value of the award was not impermissibly speculative and the Board, in following the Legislature's clear direc-

WORKERS' COMPENSATION—Cont'd

tion, did not act arbitrarily and capriciously in mandating the deposit. *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

6. Aggregate Trust Fund — Present Value of Uncapped Non-Schedule Permanent Partial Disability Award to be Deposited Into Fund.—Workers' Compensation Law § 27 (2), which, as amended in 2007, mandated that the private insurance carrier for claimant's employer deposit a lump-sum amount into the Aggregate Trust Fund representing the present value of claimant's 2008 uncapped non-schedule permanent partial disability award arising from a 2004 injury, did not violate the Takings Clause of the United States Constitution. The Takings Clause prohibits the government from taking private property for public use without providing just compensation (see US Const Amend V). The amended statute, as applied, did not violate that clause. The statute neither increased the amount of compensation owed to claimant nor appropriated the carrier's assets for the use of the State. *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

7. Aggregate Trust Fund — Present Value of Uncapped Non-Schedule Permanent Partial Disability Award to be Deposited Into Fund.—Workers' Compensation Law § 27 (2), which, as amended in 2007, mandated that the private insurance carrier for claimant's employer deposit a lump-sum amount into the Aggregate Trust Fund (ATF) representing the present value of claimant's 2008 uncapped non-schedule permanent partial disability award arising from a 2004 injury, did not violate the Contracts Clause of the United States Constitution. The Contracts Clause prohibits states from enacting "[l]aw[s] impairing the Obligation of Contracts" (US Const, art I, § 10 [1]). Prior to the amendment of the Workers' Compensation Law § 27 (2) the Board could, at its discretion, require a carrier to deposit the present value of the award into the ATF. The amendment merely makes what was once discretionary, mandatory. There was no impairment of the insurance contract. At most, the carrier's contract became less profitable—not a substantial impairment. *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

8. Aggregate Trust Fund — Present Value of Uncapped Non-Schedule Permanent Partial Disability Award to be Deposited Into Fund.—Workers' Compensation Law § 27 (2), which, as amended in 2007, mandated that the private insurance carrier for claimant's employer deposit a lump-sum amount into the Aggregate Trust Fund (ATF) representing the present value of claimant's 2008 uncapped non-schedule permanent partial disability award arising from a 2004 injury, did not violate the carrier's equal protection rights under the Fourteenth Amendment of the United States Constitution. Although private insurers are treated differently from the State Insurance Fund and self-insurers, there is a rational basis for differential treatment of separate classes of insurers. The basis for requiring a private insurer to deposit the present value of a future award into the ATF is to protect claimants from carrier insolvency. The same goal is achieved by the State Insurance Fund because of its status as a state agency, and self-insurers have a separate regulatory framework to safeguard against insolvency (see 12 NYCRR 315.2-315.4). *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

9. Aggregate Trust Fund — Present Value of Uncapped Non-Schedule Permanent Partial Disability Award to be Deposited Into Fund.—Workers' Compensation Law § 27 (2), which, as amended in 2007, mandated that the private insurance carrier for claimant's employer deposit a lump-sum amount into the Aggregate Trust Fund representing the present value of claimant's 2008 uncapped non-schedule permanent partial disability award arising from a 2004 injury, did not violate the carrier's substantive due process rights. To establish a claim for violation of substantive due process, a party must establish a cognizable vested property interest and that the governmental action was wholly without legal justification. The statute did not deprive the carrier of property, because it did not increase the amount the carrier owed. Moreover, the carrier failed to make any showing that the statute was without legal justification and not supported by a rational legislative purpose. *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

10. Aggregate Trust Fund — Present Value of Uncapped Non-Schedule Permanent Partial Disability Award to be Deposited Into Fund.—Workers' Compensation

WORKERS' COMPENSATION—Cont'd

Law § 27 (2), which, as amended in 2007, mandated that the private insurance carrier for claimant's employer deposit a lump-sum amount into the Aggregate Trust Fund representing the present value of claimant's 2008 uncapped non-schedule permanent partial disability award arising from a 2004 injury, did not violate the carrier's procedural due process rights. The carrier was accorded procedural due process at every step, as it was entitled to contest, first at a hearing before a workers' compensation law judge, then at an appeal to the Board, and ultimately at the Appellate Division, its liability, the classification of the worker's injuries and the amount of the award (*see* Workers' Compensation Law § 23). Moreover, carriers receive notice and an opportunity to be heard regarding all proposed settlements (*see* Workers' Compensation Law § 32). *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

THIRD-PARTY ACTION.

11. Apportionment of Litigation Costs — Future Medical Expenses.—Future medical benefits that a workers' compensation carrier has been relieved of paying due to a claimant's successful prosecution of a third-party action are speculative, notwithstanding a jury award for future medical expenses in that action, and the carrier need only pay its equitable share of attorneys' fees and costs incurred by a claimant once the claimant incurs and pays each medical expense. A jury verdict for future medical expenses is not the proper barometer by which to measure the carrier's equitable share of litigation costs incurred by a claimant in obtaining the future medical expenses award in the third-party action. Future medical expenses, when considered in light of the benefit to the carrier, cannot reliably be calculated, because it is impossible to predict the future medical care the claimant will need, when the expenses from such care will accrue and how much it will cost when they do. While a claimant is not entitled to an immediate apportionment of the litigation costs incurred in obtaining the future medical expenses award, that does not relieve the carrier of paying its equitable share of the benefit. The trial court has the discretion to fashion a means of apportioning litigation costs as they accrue and monitoring how the carrier's payments to the claimant are made, thereby ensuring that the carrier's equitable share of litigation costs is based on concrete, realized benefit, while concomitantly ensuring that the claimant will not wait indefinitely for the carrier's payment of its share. *Matter of Bissell v Town of Amherst*, 18 NY3d 697.

ZONING.

See MUNICIPAL CORPORATIONS.

TABLE OF STATUTES AND RULES CONSTRUED

BUSINESS CORPORATION LAW.

- § 630 (Liability of shareholders for wages due to laborers, servants or employees).
Stuto v Kerber, 18 NY3d 909.

CIVIL PRACTICE LAW AND RULES.

- 203 (a) (Method of computing periods of limitation generally; accrual of cause of action). *Hahn Automotive Warehouse, Inc. v American Zurich Ins. Co.*, 18 NY3d 765.
- 214 (2) (Actions to be commenced within three years; for penalty created by statute). *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.
- 214 (4) (Actions to be commenced within three years; injury to property). *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.
- 217 (1) (Proceeding against body or officer; four-month statute of limitations). *Kahn v New York City Dept. of Educ.*, 18 NY3d 457.
- 302 (a) (1) (Personal jurisdiction by acts of nondomiciliaries; transaction of business within state). *SPCA of Upstate N.Y., Inc. v American Working Collie Assn.*, 18 NY3d 400.
- 302 (a) (2) (Personal jurisdiction by acts of nondomiciliaries; commission of tortious act within state). *SPCA of Upstate N.Y., Inc. v American Working Collie Assn.*, 18 NY3d 400.
- 302 (a) (3) (Personal jurisdiction by acts of nondomiciliaries; commission of tortious act without state). *SPCA of Upstate N.Y., Inc. v American Working Collie Assn.*, 18 NY3d 400.
- 901 (a) (2) (Prerequisites to class action; common questions of law or fact). *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.
- 901 (a) (3) (Prerequisites to class action; claims or defenses are typical). *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.
- 2103 (b) (2) (Service of papers; upon attorney). *Kaufmann's Carousel, Inc. v Carousel Ctr. Co. LP*, 18 NY3d 975.
- 3101 (d) (1) (i) (Scope of disclosure; trial preparation; experts; expected subject of testimony). *Imperato v Mount Sinai Med. Ctr.*, 18 NY3d 871.
- 3216 (Want of prosecution). *Cadichon v Facelle*, 18 NY3d 230.
- 4519 (Personal transaction or communication between witness and decedent or mentally ill person). *Mirvish v Mott*, 18 NY3d 510.
- 5511 (Permissible appellant and respondent). *Eldridge v Carmel Cent. School Dist. Bd. of Educ.*, 18 NY3d 853; *Licci v Lebanese Canadian Bank, SAL*, 18 NY3d 952.
- 5513 (a) (Time to take appeal, cross-appeal or move for permission to appeal). *Bell v 24-26 E. 82nd St. Corp.*, 18 NY3d 917.
- 5513 (b) (Time to move for permission to appeal). *Matter of Lee v Mohawk Time Allowance Comm.*, 18 NY3d 828; *Pozefsky v Aulisi*, 18 NY3d 897; *Empire Ctr. for N.Y. State Policy v New York City Police Pension Fund*, 18 NY3d 901; *Kittner v Eastern Mut. Ins. Co.*, 18 NY3d 911; *Kaufmann's Carousel, Inc. v Carousel Ctr. Co. LP*, 18 NY3d 975; *People v Livingston*, 18 NY3d 976.
- 5601 (Appeals to Court of Appeals as of right). *Biton v Meer*, 18 NY3d 836; *Aloyts v 601 Tenant's Corp.*, 18 NY3d 942; *Licci v Lebanese Canadian Bank, SAL*, 18 NY3d 952.
- 5601 (b) (2) (Appeals to Court of Appeals as of right; constitutional grounds). *Little v New York State Task Force on Demographic Research & Reapportionment*, 18 NY3d 902.

CIVIL PRACTICE LAW AND RULES—Continued

- 5601 (d) (Appeals to Court of Appeals as of right; based upon nonfinal determination of Appellate Division). *Huff v Rodriguez*, 18 NY3d 869.
- 5602 (Appeals to Court of Appeals by permission). *L&L Assoc. Holding Corp. v Sadowski*, 18 NY3d 854; *People ex rel. Jackson v Bradt*, 18 NY3d 879; *Green v State of New York*, 18 NY3d 901; *Clermont York Assoc. v Feher*, 18 NY3d 974.
- 5602 (a) (Appeals to Court of Appeals by permission). *Pender v Lasalle Bus Serv., Inc.*, 18 NY3d 838; *Jordan v Bates Adv. Holdings, Inc.*, 18 NY3d 911; *People v Nager*, 18 NY3d 989.
- 5602 (a) (2) (Appeals to Court of Appeals by permission). *Matter of Troy Sand & Gravel Co., Inc. v Town of Nassau*, 18 NY3d 920; *Matter of State of New York v Enrique T.*, 18 NY3d 976.

CIVIL SERVICE LAW.

- § 72 (Leave for ordinary disability). *Matter of Sheeran v New York State Dept. of Transp.*, 18 NY3d 61.
- § 72 (1) (Leave for ordinary disability; notice and hearing when employee placed on involuntary leave of absence). *Matter of Sheeran v New York State Dept. of Transp.*, 18 NY3d 61.
- § 72 (5) (Leave for ordinary disability; immediate involuntary leave of absence where employee poses danger). *Matter of Sheeran v New York State Dept. of Transp.*, 18 NY3d 61.
- § 75 (Removal and other disciplinary action). *Matter of Baker v Poughkeepsie City School Dist.*, 18 NY3d 714.

CODE OF FEDERAL REGULATIONS.

- 12 CFR 560.2 (a) (Office of Thrift Supervision; lending and investment; applicability of law; occupation of field). *People v First Am. Corp.*, 18 NY3d 173.
- 12 CFR 560.2 (b) (Office of Thrift Supervision; lending and investment; applicability of law; illustrative examples). *People v First Am. Corp.*, 18 NY3d 173.
- 12 CFR 560.2 (c) (Office of Thrift Supervision; lending and investment; applicability of law; state laws that are not preempted). *People v First Am. Corp.*, 18 NY3d 173.

CRIMINAL PROCEDURE LAW.

- 30.10 (3) (f) (Timeliness of prosecutions; periods of limitation; toll for sexual offense against child less than 18). *People v Quinto*, 18 NY3d 409.
- 30.10 (4) (a) (ii) (Timeliness of prosecutions; periods of limitation; defendant's whereabouts continuously unknown and unascertainable). *People v Quinto*, 18 NY3d 409.
- 30.30 (1) (a) (Speedy trial; time limitations; six months). *People v Khan*, 18 NY3d 535; *People v Dickinson*, 18 NY3d 835.
- 270.20 (1) (c) (Trial jury; challenge for cause of individual juror; related to certain people). *People v Furey*, 18 NY3d 284.
- 310.20 (2) (Jury deliberation; use of exhibits and other material; verdict sheet). *People v Miller*, 18 NY3d 704.
- 430.10 (Sentence of imprisonment not to be changed after commencement). *People v Rodriguez*, 18 NY3d 667.
- 440.46 (5) (a) (Motion for resentencing; certain controlled substance offenders; exclusion offense). *People v Sosa*, 18 NY3d 436; *People v Steward*, 18 NY3d 493.
- 440.46 (5) (b) (Motion for resentencing; certain controlled substance offenders; exclusion offense; second violent felony offense or persistent violent felony offense). *People v Steward*, 18 NY3d 493.
- 450.90 (2) (a) (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized; reversal on law alone). *People v Omowale*, 18 NY3d 825; *People v Lora*, 18 NY3d 829; *People v Holland*, 18 NY3d 840; *People v Bowden*, 18 NY3d 980.

CRIMINAL PROCEDURE LAW—Continued

- 460.20 (Certificate granting leave to appeal to Court of Appeals). *People v Coffey*, 18 NY3d 828; *People v Velez*, 18 NY3d 829; *People v Clark*, 18 NY3d 865; *People v Hyra*, 18 NY3d 866; *People v Tillman*, 18 NY3d 867; *People v Washington*, 18 NY3d 867; *People v Peque*, 18 NY3d 876; *People v Barksdale*, 18 NY3d 895; *People v Dove*, 18 NY3d 895; *People v Smith*, 18 NY3d 914; *People v Bush*, 18 NY3d 938; *People v LaPierre*, 18 NY3d 938; *People v Tuff*, 18 NY3d 990.
- 470.05 (2) (Determination of appeals; preservation of issue for review). *People v Medina*, 18 NY3d 98.
- 470.15 (1) (Determination of appeals by intermediate appellate courts; scope of review; issues adversely affecting appellant). *People v Ingram*, 18 NY3d 948.
- 470.20 (Determination of appeals by intermediate appellate courts; corrective action upon reversal or modification). *People v Rodriguez*, 18 NY3d 667.
- 470.35 (1) (Determination by Court of Appeals of appeals from orders of intermediate appellate courts; scope of review). *People v Ingram*, 18 NY3d 948.
- 520.10 (2) (b) (Bail and bail bonds; fixing of bail and authorized forms thereof; more than one form required). *People ex rel. McManus v Horn*, 18 NY3d 660.
- 710.40 (4) (Motion to suppress evidence; when made and determined). *People v Delamota*, 18 NY3d 107.

EDUCATION LAW.

- Art 81 (Education of children residing in child care institutions). *Board of Educ. of the Garrison Union Free School Dist. v Greek Archdiocese Inst. of St. Basil*, 18 NY3d 355.
- § 2573 (1) (a) (Appointment of assistant, district or other superintendents, teachers and other employees; their salaries, et cetera; probationary period). *Kahn v New York City Dept. of Educ.*, 18 NY3d 457.
- § 3020 (Discipline of teachers). *Matter of Rosenblum v New York City Conflicts of Interest Bd.*, 18 NY3d 422.
- § 3020-a (Teachers and supervisory and administrative staff; disciplinary procedures and penalties). *Matter of Rosenblum v New York City Conflicts of Interest Bd.*, 18 NY3d 422.
- § 3202 (Public schools free to resident pupils; tuition from nonresident pupils). *Board of Educ. of the Garrison Union Free School Dist. v Greek Archdiocese Inst. of St. Basil*, 18 NY3d 355.
- § 3202 (6) (Public schools free to resident pupils; tuition from nonresident pupils). *Board of Educ. of the Garrison Union Free School Dist. v Greek Archdiocese Inst. of St. Basil*, 18 NY3d 355.
- § 3813 (1) (Presentation of claims against governing body of school district; accrual of claims). *Regional Economic Community Action Program, Inc. v Enlarged City School Dist. of Middletown*, 18 NY3d 474.
- § 3813 (2-b) (Presentation of claims against governing body of any school district or certain state supported schools; one-year statute of limitations). *Regional Economic Community Action Program, Inc. v Enlarged City School Dist. of Middletown*, 18 NY3d 474.
- § 4002 (1) (Education of children residing in child care institutions; educational services; right to free and appropriate education). *Board of Educ. of the Garrison Union Free School Dist. v Greek Archdiocese Inst. of St. Basil*, 18 NY3d 355.
- § 4002 (2) (a) (Education of children residing in child care institutions; educational services; least restrictive environment; public school program). *Board of Educ. of the Garrison Union Free School Dist. v Greek Archdiocese Inst. of St. Basil*, 18 NY3d 355.

ELECTION LAW.

- § 16-102 (2) (Proceedings as to designating petitions; 10-day period in which to challenge primary, convention, meeting of party committee, or caucus). *Matter of Kosowski v Donovan*, 18 NY3d 686.

ENVIRONMENTAL CONSERVATION LAW.

- 27-1301 (3) (“Inactive hazardous waste disposal site remedial program” defined). *Matter of New York State Superfund Coalition, Inc. v New York State Dept. of Env'tl. Conservation*, 18 NY3d 289.

ENVIRONMENTAL CONSERVATION LAW—Continued

27-1313 (5) (d) (Inactive hazardous waste disposal sites; remedial programs; goal). *Matter of New York State Superfund Coalition, Inc. v New York State Dept. of Envtl. Conservation*, 18 NY3d 289.

ESTATES, POWERS AND TRUSTS LAW.

5-4.3 (a) (Wrongful death; rights of family members; amount of recovery). *Toledo v Iglesia Ni Christo*, 18 NY3d 363.

EXECUTIVE LAW.

§ 63 (12) (Proceeding by Attorney General to enjoin repeated fraudulent or illegal acts; restitution). *People v First Am. Corp.*, 18 NY3d 173.

GENERAL BUSINESS LAW.

Art 23-A (Martin Act). *Assured Guar. (UK) Ltd. v J.P. Morgan Inv. Mgt. Inc.*, 18 NY3d 341.

§ 340 *et seq.* (Donnelly Act). *Global Reins. Corp.-U.S. Branch v Equitas Ltd.*, 18 NY3d 722.

§ 349 (Consumer fraud; deceptive acts and practices). *People v First Am. Corp.*, 18 NY3d 173; *Ovitz v Bloomberg L.P.*, 18 NY3d 753; *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777; *Koch v Acker, Merrall & Condit Co.*, 18 NY3d 940.

§ 350 (False advertising unlawful). *Koch v Acker, Merrall & Condit Co.*, 18 NY3d 940.

GENERAL OBLIGATIONS LAW.

§ 5-901 (Certain provisions of leases of personal property inoperative unless notice thereof given to lessee). *Ovitz v Bloomberg L.P.*, 18 NY3d 753.

§ 5-903 (Automatic renewal provision of contract for service, maintenance or repair unenforceable by contractor unless notice thereof given to recipient of services). *Ovitz v Bloomberg L.P.*, 18 NY3d 753.

INSURANCE LAW.

§ 3420 (f) (1) (Liability insurance; standard provisions; minimum uninsured motorist coverage). *Matter of Elrac, Inc. v Exum*, 18 NY3d 325.

§ 5102 (d) (No-fault automobile insurance; “serious injury” defined). *Theshelashvili v State of New York*, 18 NY3d 199.

LABOR LAW.

§ 240 (1) (Scaffolding and other devices for use of employees; duties of contractors and owners to supply safety devices). *Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1; *Salazar v Novalex Contr. Corp.*, 18 NY3d 134; *Ortiz v Varsity Holdings, LLC*, 18 NY3d 335; *Dahar v Holland Ladder & Mfg. Co.*, 18 NY3d 521.

§ 241 (6) (Construction, excavation and demolition work). *Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1; *Salazar v Novalex Contr. Corp.*, 18 NY3d 134.

NASSAU COUNTY ADMINISTRATIVE CODE.

§ 22-2.8 (2) (a) (Defense and indemnification of county officers and employees). *Matter of Sedacca v Mangano*, 18 NY3d 609.

NASSAU COUNTY CHARTER.

§ 203 (1) (Executive; responsibility for administration; powers of appointment and removal). *Matter of Sedacca v Mangano*, 18 NY3d 609.

NEW YORK CITY ADMINISTRATIVE CODE.

§ 27-1031 (b) (1) (Excavation operations; support of adjoining structures; excavation depth more than 10 feet). *Yenem Corp. v 281 Broadway Holdings*, 18 NY3d 481.

NEW YORK CITY CHARTER.

§ 2600 *et seq.* (Conflicts of interest; prohibitions on conduct of public servants). *Matter of Rosenblum v New York City Conflicts of Interest Bd.*, 18 NY3d 422.

§ 2606 (b) (Conflicts of interest; penalties). *Matter of Rosenblum v New York City Conflicts of Interest Bd.*, 18 NY3d 422.

NEW YORK CONSTITUTION.

- Art I, § 6 (Grand jury; waiver of indictment; right to counsel; informing accused; double jeopardy; self-incrimination; waiver of immunity by public officers; due process of law). *Matter of Orange County Commr. of Fin. (Helseth)*, 18 NY3d 634.
- Art VI, § 3 (Jurisdiction of Court of Appeals). *Clermont York Assoc. v Feher*, 18 NY3d 974.
- Art VI, § 3 (b) (Jurisdiction of Court of Appeals). *People ex rel. Jackson v Bradt*, 18 NY3d 879.
- Art VI, § 3 (b) (2) (Jurisdiction of Court of Appeals). *Little v New York State Task Force on Demographic Research & Reapportionment*, 18 NY3d 902.
- Art VI, § 3 (b) (7) (Jurisdiction of Court of Appeals). *Pender v Lasalle Bus Serv., Inc.*, 18 NY3d 838.
- Art VI, § 5 (b) (Power of appellate courts upon appeal from judgment or order; transfer of appeals taken to improper appellate court). *Little v New York State Task Force on Demographic Research & Reapportionment*, 18 NY3d 902.
- Art VII, § 8 (1) (Gift or loan of state credit or money prohibited; exceptions for enumerated purposes). *Bordeleau v State of New York*, 18 NY3d 305.

PENAL LAW.

- § 10.00 (10) (“Serious physical injury” defined). *People v Hall*, 18 NY3d 122; *People v Stewart*, 18 NY3d 831.
- § 10.00 (13) (“Dangerous instrument” defined). *People v Hall*, 18 NY3d 122.
- § 120.05 (3) (Assault, second degree; intent to prevent emergency medical services technician from performing lawful duty). *People v Bueno*, 18 NY3d 160.
- § 120.10 (1) (Assault, first degree; intent to cause serious physical permanent injury). *People v Stewart*, 18 NY3d 831.
- § 125.25 (2) (Murder, second degree; depraved indifference). *People v Keating*, 18 NY3d 932.
- § 130.00 (8) (a) (Sex offenses; “forcible compulsion” defined). *People v Mack*, 18 NY3d 929.
- § 155.00 (5) (Larceny; “owner” defined). *People v Hightower*, 18 NY3d 249.
- § 155.05 (1) (“Larceny” defined). *People v Medina*, 18 NY3d 98.
- § 160.15 (3) (Robbery, first degree; use or threatened use of dangerous instrument). *People v Hall*, 18 NY3d 122.
- § 177.10 (Health care fraud, fourth degree). *People v Khan*, 18 NY3d 535.
- § 221.10 (1) (Criminal possession of marihuana, fifth degree; public place; open to public view). *People v Jackson*, 18 NY3d 738.
- § 240.00 (1) (Offenses against public order; “public place” defined). *People v Jackson*, 18 NY3d 738.
- § 265.01 (2) (Criminal possession of weapon, fourth degree). *People v Hall*, 18 NY3d 122.

PUBLIC OFFICERS LAW.

- § 86 (3) (Freedom of Information Law; “agency” defined). *Matter of Town of Waterford v New York State Dept. of Envtl. Conservation*, 18 NY3d 652.
- § 87 (2) (g) (Freedom of Information Law; denial of access to records; inter-agency or intra-agency materials). *Matter of Town of Waterford v New York State Dept. of Envtl. Conservation*, 18 NY3d 652.
- § 89 (3) (a) (Access to records; response to request). *Matter of Schenectady County Socy. for the Prevention of Cruelty to Animals, Inc. v Mills*, 18 NY3d 42.

PUBLIC SERVICE LAW.

- § 70 (Gas and electric corporations; transfer of franchises or stocks). *Matter of Luyster Cr., LLC v New York State Pub. Serv. Commn.*, 18 NY3d 977.

REAL PROPERTY LAW.

- § 261 (Maintenance of telegraph or other electric wires raises no presumption of grant). *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.

REAL PROPERTY TAX LAW.

§ 523-b (Assessment review commission). *Matter of Sedacca v Mangano*, 18 NY3d 609.

REGULATIONS OF DEPARTMENT OF ENVIRONMENTAL CONSERVATION.

6 NYCRR 375-1.8 (f) (9) (i) (Environmental remediation programs; remedial program; remedy selection; land use). *Matter of New York State Superfund Coalition, Inc. v New York State Dept. of Envtl. Conservation*, 18 NY3d 289.

6 NYCRR 375-2.8 (a) (Inactive hazardous waste disposal site remedial program; goal). *Matter of New York State Superfund Coalition, Inc. v New York State Dept. of Envtl. Conservation*, 18 NY3d 289.

RELIGIOUS CORPORATIONS LAW.

§ 5 (General powers and duties of trustees of religious corporations). *Blaudziunas v Egan*, 18 NY3d 275.

§ 91 (Government of incorporated Roman Catholic churches). *Blaudziunas v Egan*, 18 NY3d 275.

§ 92 (Division of Roman Catholic parish; disposition of property). *Blaudziunas v Egan*, 18 NY3d 275.

RENT STABILIZATION CODE.

9 NYCRR 2522.4 (a) (13) (Adjustment of legal regulated rent; major capital improvement rent increase; temporary suspension). *Matter of Terrace Ct., LLC v New York State Div. of Hous. & Community Renewal*, 18 NY3d 446.

RULES OF COURT OF APPEALS.

22 NYCRR 500.22 (b) (2) (Motions for permission to appeal in civil cases). *Matter of Toale v Caravella*, 18 NY3d 868; *Matter of Jahquavius W. (Quanteria H.)*, 18 NY3d 878; *Koch v Acker, Merrall & Condit Co.*, 18 NY3d 940.

22 NYCRR 500.24 (b) (Motions for reargument of appeals, motions and decisions on certified questions). *Clarke v Rodriguez*, 18 NY3d 864.

22 NYCRR 500.27 (Discretionary proceedings to review certified questions from federal courts and other courts of last resort). *People v Ingram*, 18 NY3d 948.

SESSION LAWS.

2004, ch 738, § 23 (Drug reform laws; sentencing). *People v Steward*, 18 NY3d 493.

STATE INDUSTRIAL CODE.

12 NYCRR 23-1.7 (b) (1) (i) (Protection from general hazards; falling hazards; hazardous openings). *Salazar v Novalex Contr. Corp.*, 18 NY3d 134.

12 NYCRR 23-3.3 (b) (3) (Demolition by hand; demolition of walls and partitions). *Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1.

12 NYCRR 23-3.3 (c) (Demolition by hand; inspection). *Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1.

TRANSPORTATION CORPORATIONS LAW.

§ 27 (Telegraph and telephone corporations; construction of lines). *Corsello v Verizon N.Y., Inc.*, 18 NY3d 777.

UNITED STATES CODE.

12 USC § 1461 *et seq.* (Home Owners' Loan Act). *People v First Am. Corp.*, 18 NY3d 173.

15 USC § 1 *et seq.* (Sherman Act). *Global Reins. Corp.-U.S. Branch v Equitas Ltd.*, 18 NY3d 722.

UNITED STATES CONSTITUTION.

Art I, § 10, cl (1) (Impairment of contracts). *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

5th Amend (Just compensation for property). *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

14th Amend (Due process of law). *Matter of Orange County Commr. of Fin. (Helseth)*, 18 NY3d 634.

UNITED STATES STATUTES.

103 US Stat 183 (Financial Institutions Reform, Recovery and Enforcement Act).
People v First Am. Corp., 18 NY3d 173.

VEHICLE AND TRAFFIC LAW.

§ 370 (3) (Indemnity bonds or insurance policies; self-insurance). *Matter of Elrac, Inc. v Exum*, 18 NY3d 325.

§ 1194 (2) (f) (Alcohol and drug-related offenses; arrest and testing; evidence of refusal to submit to chemical test). *People v Smith*, 18 NY3d 544.

WORKERS' COMPENSATION LAW.

§ 11 (Alternative remedy; bar on third-party action against employer unless injured worker sustained "grave injury"). *Matter of Elrac, Inc. v Exum*, 18 NY3d 325.

§ 15 (3) (w) (Schedule in case of disability; permanent partial disability; other cases). *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

§ 25 (2) (b) (Compensation, how payable; procedure; notice of controversy). *Matter of Cappellino v Baumann & Sons Bus Co.*, 18 NY3d 890.

§ 27 (2) (Depositing future payments in aggregate trust fund). *Matter of Raynor v Landmark Chrysler*, 18 NY3d 48.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

- | | |
|--|--|
| 1. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 2. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 3. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change contructive to constructive. |
| 4. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 5. 54 NY2d 137 (People v Baldi) | At 53 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 6. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 7. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |
| 8. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 9. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 10. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |

11. **85 NY2d 139** (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) At 85 NY2d 146, second paragraph, line 13, change lead to led.
12. **88 NY2d 41** (Town of Orangetown v Magee) At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733.
13. **88 NY2d 400** (People v Huston) At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].
14. **93 NY2d 382** (BDO Seidman v Hirshberg) At 93 NY2d 391, line 25, change former employer to former employee.
15. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
16. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
17. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
18. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
19. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
20. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.

Errata

1067

- | | |
|--|--|
| 21. 7 NY3d 703 (Matter of Park v Kapica) | Change the page number of the reported below citation from 802 to 801. |
| 22. 8 NY3d 944 (People v Charriez) | In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U). |
| 23. 9 NY3d 923 (People v Jacobs) | In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868. |
| 24. 11 NY3d 875 (People v Ford) | On line 5 of the Summary, change Bronx County to New York County. |
| 25. 13 NY3d 511 (Matter of Goldstein v New York Urban Dev. Corp.) | At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition]. |